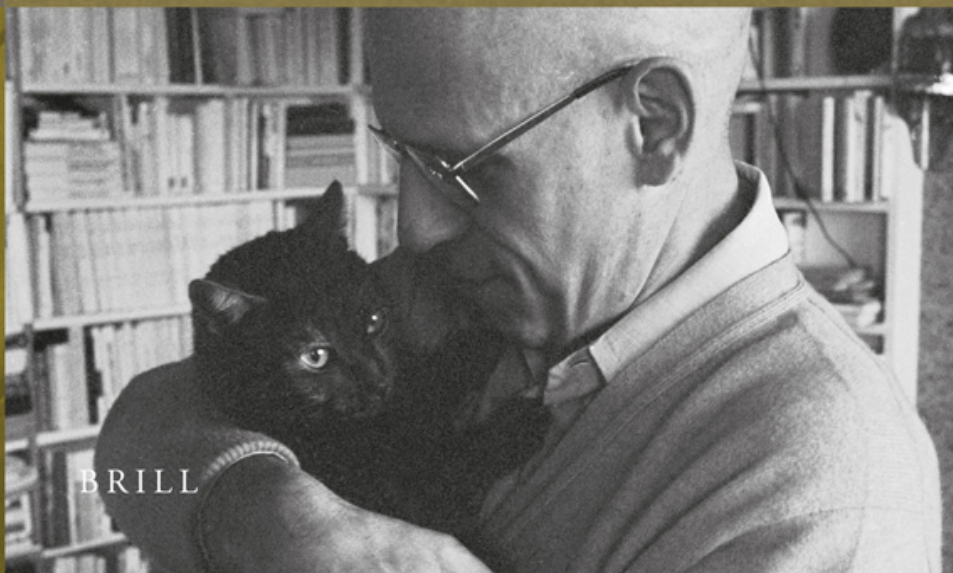
HUMAN-ANIMAL STUDIES

Foucault and Animals

Edited by Matthew Chrulew and Dinesh Wadiwel



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Foucault and Animals

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Foucault and Animals

Edited by

Matthew Chrulew, *Curtin University*
Dinesh Joseph Wadiwel, *The University of Sydney*



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Foreword

This 18th volume in the Brill Human-Animal Studies Book Series is a major contribution to the search for and development of theoretical foundations for the field. While one criticism of the field is the relative dearth of applied studies, particularly those that fail to give sufficient attention to the nonhuman animal side of the human-animal relationship, another common criticism is the quality of its theoretical discourse. This volume on the writings of Michel Foucault offers a corrective to the occasional practice in the field of making "superficial" reference (this volume, p. 4) to theory, such as an obligatory nod to a theorist *du jour* in the form of relatively unexamined applications of his or her major concepts.

Like Heidegger, Foucault is a theorist who rarely addressed the "animal issue." When he did, it was often to provide a foil for human-centered theorizing. Ironically, as is pointed out (this volume, p. 16), that anthropocentrism was in the context of a project the thrust of which was to de-center human being.

Yet, clearly, the seminal thought of Foucault is providing a theoretical frame for the examination of issues in the field such as agency, inter-sectionality, language, and bio-power. "Expansion of [t]his limited ontology" (this volume, p. 7) is timely as the field is pivoting to a "political turn" (Milligan, 2016). That turn within the "animal turn" promises to deliver more rigorous theory, more theoretically grounded applications and less human-centered studies that will contribute to the betterment of both human and other animals.

Reference

Milligan, T. The Political Turn in Animal Rights. ***Politics and Animals***, [S.l.], p. 6–15, oct. 2015. ISSN 2002–0295. Available at: <http://journals.lub.lu.se/index.php/pa/article/view/13512>. Date accessed: 17 Apr. 2016.

Kenneth Shapiro, Book Series Editor
Animals and Society Institute
Washington Grove MD

List of Contributors

Jeffrey Bussolini
is Director of the Center for Feline Studies with Ananya Mukherjea. Associate Professor at CUNY. With Matthew Chrulew and Brett Buchanan he edited/translated three issues of *Angelaki* on Philosophical Ethology. Translated Dominique Lestel's book *The Friends of My Friends* for Columbia University Press, is co-translating Vinciane Despret's *Naissance d'une théorie éthologique* for Univocal, and translates extensively for Roberto Marchesini. He wrote "Toward Cat Phenomenology: A Search for Animal Being," *Found Object 8*, Spring 2000, and co-wrote "The Phenomenology of Animal Life," *Environmental Humanities 5*, November 2014. Edited the issue of *Foucault Studies* (#10, November 2010) on interrelationships between Foucault and Giorgio Agamben, and wrote "What is a Dispositive?" and a research article on Agamben's interpretation of Foucault for that issue.

Saïd Chebili
psychiatrist, practices his profession at a hospital in the Paris region. He also has a doctorate in Philosophy from the Sorbonne, Université Paris 1. His dissertation bore on the philosophical critiques of psychology. In parallel with his activities as psychiatrist, he is associate researcher with the CAFHES (Center of Archives in Philosophy, History and Scientific Editions). He has published a number of works in French: *Figures de l'animalité dans l'oeuvre de Michel Foucault* (*Figures of Animality in the Work of Michel Foucault*) (1999), *La tâche civilisatrice de la psychanalyse selon Freud* (*The Civilizing Task of Psychoanalysis According to Freud*) (2002), *Foucault et la psychologie* (*Foucault and Psychology*) (2005), *Une histoire des critiques philosophiques de la psychologie* (*A History of the Philosophical Critiques of Psychology*) (2008), and *Malaise dans la psychiatrie* (*Malaise in Psychiatry*) (2012). Currently, he is interested in the philosophical critiques of psychiatry.

Matthew Chrulew
is a research fellow in the School of Media, Culture and Creative Arts, and leader of the Posthumanism-Animality-Technology research program in the Centre for Culture and Technology, at Curtin University in Perth, Western Australia. His essays have appeared in *Angelaki, SubStance, New Formations, Foucault Studies, Humanimalia* and *The Bible and Critical Theory*. He is a

founding associate editor of *Environmental Humanities*. With Chris Danta he edited issue 43.2 of *SubStance* on Jacques Derrida's *The Beast & the Sovereign* lectures, and with Jeffrey Bussolini and Brett Buchanan he edited three issues of *Angelaki* on the philosophical ethology of Dominique Lestel, Vinciane Despret and Roberto Marchesini. He co-edited the books *Animals in the Anthropocene: Critical Perspectives on Non-Human Futures* (Sydney UP, 2015) with Madeleine Boyd, Chris Degeling, Agata Mrva-Montoya, Fiona Probyn-Rapsey, Nikki Savvides and Dinesh Wadiwel, and *Extinction Studies: Stories of Time, Death, and Generations* (Columbia UP, forthcoming) with Deborah Bird Rose and Thom van Dooren.

Natalie Corinne Hansen
completed her PhD in Literature and Feminist Studies at the University of California, Santa Cruz. Her work examines representations of human-horse relationships in imaginative fiction, popular media, and training narratives. Recent work appears in the collections *Animals, Sports, and Society* and *Becoming Human: From Animality to Transhumanism*. Hansen currently teaches literature and composition at Santa Monica College in the Los Angeles area. Having left active training and competition in various equestrian disciplines a decade ago, Hansen currently practices holistic healing for horses and promotes equine welfare among horseowners and riders.

Lewis Holloway
is Reader in Human Geography in the Department of Geography, Environment and Earth Sciences at the University of Hull, UK. He has conducted research projects in a number of agricultural contexts involving human-nonhuman animal relationships, including those on very small 'hobby' farms as well as those involving technologically-mediated relationships in commercial, large-scale beef cattle, sheep and dairy farming. With other authors, including Carol Morris and Christopher Bear, he has explored the application of Foucault's writings on 'biopower' to livestock farming, concentrating particularly on the deployment of genetic techniques in livestock breeding and on the development of robotic and information technologies in agriculture.

Claire Huot
is Associate Professor of Chinese studies at the University of Calgary. She teaches art, civilization, film and literature. Her present research is on dogs and Chinese culture. She has written books on contemporary Chinese

cultural phenomena. She is a published novelist and she has worked with Robert Majzels on an experimental poetic project entitled "85."

Robert G. W. Kirk
is Lecturer in Medical History and Humanities at the Centre for the History of Science, Technology and Medicine (CHSTM), University of Manchester (UK). His work examines the role of nonhuman animals in human cultures, particularly within science and medicine, as well as the place of nonhuman animals in historical writing. Rob's contribution to this volume forms part of a wider study examining how, why, and to what consequence animal care and welfare became increasingly integrated within the biomedical sciences in the post Second World War period.

Leonard Lawlor
received his PhD in philosophy from Stony Brook University in 1988. He taught at the University of Memphis from 1989 to 2008 where he became Faudree-Hardin Professor of Philosophy. In 2008, he became Edwin Erle Sparks Professor of Philosophy at Penn State University, where he continues to teach and serve as Director of Graduate Studies in Philosophy. He is the author of seven books, among which are: *This Is Not Sufficient: An Essay on Animality and Human Nature in Derrida*, and *Derrida and Husserl: The Basic Problem of Phenomenology*. He has one book forthcoming from Edinburgh University Press called *From Violence to Speaking Out*, and another in progress called *Violence against Violence*.

Alex Mackintosh
is a TV producer and independent scholar interested in the human-animal binary and shamanism. He holds a PhD from the London Consortium (University of London), where he received a distinction for his interdisciplinary thesis 'The Glass-Walled Slaughterhouse: Power, Visibility, and the Invention of the Abattoir'. His thesis addressed the way that animal slaughter has been conceptualised, imagined, and represented—in literature, art, urban planning, journalism, philosophy, and popular culture—for the past five hundred years. He holds an MA in Modern and Medieval Languages and an MPhil in Latin American Studies from Trinity College, Cambridge.

Craig McFarlane
completed his dissertation "Early Modern Speculative Anthropology" in 2014 at the Graduate Program in Sociology at York University. His dissertation

analyzed the attempt to articulate a clear and fixed distinction between the human and animal in early modern social theory. He has also written on the importance of including animals in sociological analysis. He is currently a contract instructor in legal studies and sociology at Carleton University.

Carol Morris
is Associate Professor of Rural Environmental Geography in the School of Geography, University of Nottingham. With Lewis Holloway, University of Hull, she has been exploring ways of working with Foucauldian notions of biopower to theorise developments in agriculture, specifically the use of genetic knowledges in livestock breeding. The co-production of knowledges about the nonhuman in agriculture is a broader research interest.

Clare Palmer
is Professor of Philosophy at Texas A&M University. She was awarded a BA Hons and a DPhil from Oxford University, and has held academic positions at universities in the UK, Australia and the United States. She is the author or co-author of four books, including *Animal Ethics in Context* (Columbia University Press, 2010) and *Companion Animal Ethics* (Wiley-Blackwell, 2016). She held the position of President of the International Society for Environmental Ethics from 2007–2010 and serves on the editorial board of journals including *Environmental Values, Agricultural and Environmental Ethics* and *Environmental Humanities*.

Paul Patton
is Scientia Professor of Philosophy at The University of New South Wales in Sydney, Australia. He is the author of *Deleuze and the Political* (Routledge, 2000) and *Deleuzian Concepts: Philosophy, Colonization, Politics* (Stanford, 2010). He has published widely on Continental political philosophy. His current research deals with aspects of French poststructuralism and contemporary liberal political philosophy, including the rights of colonized indigenous peoples.

Joseph Pugliese
is Professor and Research Director of the Department of Media, Music, Communication and Cultural Studies, Macquarie University, Sydney, Australia. Selected publications include: *Biometrics: Bodies, Technologies, Biopolitics* (Routledge, 2010), which was short-listed for the international Surveillance Studies Book Prize 2010, and *State Violence and the Execution of Law: Biopolitical Caesurae of Torture, Black Sites, Drones* (Routledge, 2013), which was nominated

for the UK's Hart Socio-Legal Book Prize 2013 and the US's Law and Society Association Herbert Jacob Book Prize 2013; it was awarded the Macquarie Faculty of Arts Research Excellence Award 2014.

Chloë Taylor
is Associate Professor of Women's and Gender Studies and Philosophy at the University of Alberta. She is the author of *The Culture of Confession from Augustine to Foucault* (Routledge, 2008) and *The Routledge Philosophy Guidebook to Foucault and The History of Sexuality* (Routledge, 2016), and the co-editor (with Hasana Sharp) of *Feminist Philosophies of Life* (McGill-Queens University Press, 2016) and (with Neil Dalal) *Asian Perspectives on Animal Ethics* (Routledge, 2014). Her research interests include twentieth-century French philosophy, philosophy of sexuality, feminist philosophy, and animal ethics. She has published articles in these areas in journals such as *Hypatia, Philosophy Today, Foucault Studies*, and *Feminist Studies*.

Dinesh Joseph Wadiwel
is Lecturer and Director of the Master of Human Rights at the University of Sydney. His research interests include sovereignty and the nature of rights, violence, race and critical animal studies. He is author of the monograph *The War against Animals* (Brill, 2015) and co-editor, with Madeleine Boyd, Matthew Chrulew, Chris Degeling, Agata Mrva-Montoya, Fiona Probyn-Rapsey and Nikki Savvides of *Animals in the Anthropocene: Critical Perspectives on Non-Human Futures* (Sydney University Press, 2015).

EDITORS' INTRODUCTION

Foucault and Animals

Matthew Chrulew and Dinesh Joseph Wadiwel

> The animal in man no longer has any value as the sign of a Beyond; it has become his madness, without a relation to anything but itself; his madness in the state of nature.
>
> for millennia, man remained what he was for Aristotle: a living animal with the additional capacity for a political existence; modern man is an animal whose politics places his existence as a living being in question.
>
> MICHEL FOUCAULT, *History of Madness* and *The Will to Knowledge*

⁘

The legacy of Michel Foucault's thinking can be found across a diverse range of fields of inquiry, including philosophy, sociology, psychology, history, politics, architecture, health sciences, ethics and sexuality. Yet Foucault says very little about animals. And perhaps, as a consequence, while Foucault would seem to be everywhere in social and political theory, the impact of his work is yet to be fully appreciated within the emerging field of animal studies. As has been shown in recent critical engagements with Foucault that have drawn connections with animal life, including those of Giorgio Agamben,[1] Donna Haraway,[2] Nicole Shukin,[3] Cary Wolfe,[4] and Jamie Lorimer,[5] Foucault's work is extremely profitable for understanding our conflicted relationships with animals. More than just another of the endless applications of his work, we believe this

1 Giorgio Agamben, *The Open: Man and Animal*, trans. Kevin Attell (Stanford: Stanford University Press, 2004).

2 Donna Haraway, *When Species Meet* (Minneapolis: University of Minnesota Press, 2008).

3 Nicole Shukin, *Animal Capital: Rendering Life in Biopolitical Times* (Minneapolis: University of Minnesota Press, 2009).

4 Cary Wolfe, *Before the Law: Humans and Other Animals in a Biopolitical Frame* (Chicago: The University of Chicago Press, 2012).

5 Jamie Lorimer, *Wildlife in the Anthropocene: Conservation After Nature* (Minneapolis: University of Minnesota Press, 2015).

conjunction to be essential: both for the advancement of a new field struggling with questions of power, knowledge, and ethics; and for the study of a philosopher whose antihumanism failed to interrogate the category of species.

This edited book collects essays by scholars at the forefront of their fields to provide readers with a grounding in the intersection of Foucault's thought with animal studies. The contributors hail from a range of disciplines, from philosophy to geography, yet each offers an interesting new perspective on how Foucault might be used to consider human-animal relations. As with Foucault's own wide-ranging work, the book covers philosophical discussion as well as analyses of science, policy, and praxis. It focuses not simply on the perpetual transfer of Foucauldian concepts to new domains, but on their effective adaptation to the specific issues and difficulties of multispecies contexts, meeting the urgent need for in-depth, interdisciplinary theorisation that is able to map and challenge how the lines of distinction between human and animal are defined and policed in apparatuses of knowledge and power. The essays analyse and disrupt systems of power from zoos to factory farms which simultaneously organise conduct, violence, care and domination of nonhuman animals.

Recent years have seen significant growth in work on animals in humanities scholarship. In the interdisciplinary field of animal studies, as well as in critical theory and Continental philosophy, "the question of the animal" has emerged as an essential aspect of the new humanities. This scholarship has problematised the uniqueness of the human, particularly insofar as it is defined and produced at the expense of "the animal." It has interrogated how the category of "species" is fashioned and regulated in material and textual "naturecultures," and how it intersects with categories of class, race and gender, demonstrating how mechanisms of animalisation (of both humans and animals) perpetuate the suffering of oppressed groups, whether human or otherwise. It has demonstrated the barbarity of civilisation's unacknowledged violence against the nonhuman.

Alongside a prominent if often superficial emphasis on Deleuze and Guattari's concept of "becoming-animal," perhaps the greatest influence by a Continental philosopher on recent animal theory has come from Jacques Derrida's late work.[6] Here, Derrida deconstructed the anthropocentric philosopheme that incessantly divides the supposedly unique human from what is so crudely and violently called "the Animal," and insisted instead that we recognise and respond to the difference and multiplicity of the living. Leading

6 See for example Jacques Derrida, *The Animal That Therefore I Am*, ed. Marie-Louise Mallet; trans. David Wills (New York: Fordham University Press, 2008).

work in posthumanism and animal studies has launched chiefly from the platform of this deconstruction.[7] Whilst Derrida's interventions offer invaluable resources, the prominence of his critique threatens to occlude other areas of thought that could prove equally indispensable.

For a number of reasons, the potentially significant voice of Foucault has been muted when it comes to the analysis of human-animal relations. In the context of animal studies, his work is less prominently engaged with among the list of other luminaries (most often Nietzsche, Heidegger, Levinas, Deleuze, Derrida and Agamben) that have been repeatedly critiqued or co-opted as relevant to the question of the animal. Though she briefly discusses the impact of his remarks on animality and madness, Elisabeth de Fontenay does not consider Foucault as a significant figure in the history of the philosophy of animality, even alongside his contemporaries Derrida and Deleuze.[8] Partly, such blind spots stem from a familiar exclusion of what is perceived as Foucault's historical, sociological and archival work from the tradition of pure philosophy, a separation he played his part in cultivating. Yet as Leonard Lawlor has shown, Foucault's work stands alongside that of Derrida and Merleau-Ponty as an essential element in the post-phenomenological critique of humanism and the associated rethinking of the concept of life.[9] Certainly, it is notable that recent scholarship, such as Wolfe's exploration of the relationship between biopolitics, animals and the law, has taken up these themes in its use of Foucault to theorise the human and the politics of life.[10]

Foucault's oeuvre contains a number of enticing, more or less metaphorical references to animals—from the animality of madness in the Renaissance,[11] to the infamous provocation to thought of the "Chinese Encyclopedia."[12] Further, it is apparent that Foucault shared with his teacher Georges Canguilhem a lifelong interest in the history of biology. Yet, Foucault did not

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7 Cary Wolfe, *What is Posthumanism?* (Minneapolis: University of Minnesota Press, 2010); Matthew Calarco, *Zoographies: The Question of the Animal from Heidegger to Derrida* (New York: Columbia University Press, 2008); and Akira Mizuta Lippit, *Electric Animal: Toward a Rhetoric of Wildlife* (Minneapolis: University of Minnesota Press, 2000).

8 Elisabeth de Fontenay, *Le Silence des Bêtes: La philosophie à l'épreuve de l'animalité* (Paris: Fayard, 1998).

9 Leonard Lawlor, *The Implications of Immanence: Toward a New Concept of Life* (New York: Fordham University Press, 2006).

10 Wolfe, *Before the Law*.

11 Michel Foucault, *History of Madness*, ed. Jean Khalfa; trans. Jonathan Murphy and Jean Khalfa (London: Routledge, 2006).

12 Michel Foucault, *The Order of Things: An Archaeology of the Human Sciences* (London: Routledge, 2002).

explicitly thematise human relations with nonhuman animals in a way that politicised their subjected bodies and lives; nor did he live long enough to be prompted to engage with more recent discourses on the animal. Rather, in somewhat typical humanist fashion, he commonly referred animality (as sign, symbol or metaphor) back to the sphere of human concern. For all his Nietzscheanism, Foucault's work only bears a faint shadow of his predecessor's zoophilia.[13]

Significant extension and adaptation is thus required to make Foucault's work truly effective in interspecies contexts. He was certainly alert to the use of "animalisation" as a political strategy for rationalising violence against various marginalised groups in human societies (those called mad, criminal, abnormal); and yet he never took the further step of challenging the logic of speciesism that makes possible this matrix of oppression. Some have argued that since Foucault's work, for all its anti- or posthumanism, remains comfortably within a species humanism, it is therefore of limited usefulness for rethinking human relations to animals and the environment.[14] Yet as has been the case in so many other fields (e.g. feminism, postcolonialism, race studies, disability studies) the anti-dogmatic and provisional character of Foucault's infamous "toolbox" not only tolerates but encourages such reinscriptions and intersections. The essays collected here thereby seek to turn what Paola Cavalieri called a "missed opportunity" into a rewarding occasion for the forging of new paths, pushing Foucault's thought beyond the borders of the human.[15]

Secondary scholarship has only occasionally met the potential for a zoopoliticisation of Foucault's work. Early applications were constrained by their focus on his archaeological period. Keith Tester's constructionist study of animal rights discourses used Foucault's nominalistic sketch of different historical *epistemes* to explain the curious passage from the social acceptability of animal *trials* to animal *rights*, thereby dismissing ethical concern for animals as a

13 See Christa Davis Acampora and Ralph R. Acampora, eds., *A Nietzschean Bestiary: Becoming Animal beyond Docile and Brutal* (Lanham: Rowman & Littlefield Publishers, 2004); and Vanessa Lemm, *Nietzsche's Animal Philosophy: Culture, Politics and the Animality of the Human Being* (New York: Fordham University Press, 2009).

14 Neil Levy, "Foucault's Unnatural Ecology," in *Discourses of the Environment*, ed. Éric Darier (Oxford and Malden: Blackwell, 1999), 203–216; Paola Cavalieri, "A Missed Opportunity: Humanism, Anti-Humanism and the Animal Question," in *Animal Subjects: An Ethical Reader in a Posthuman World*, ed. Jodey Castricano (Waterloo: Wilfrid Laurier University Press, 2008), 97–123; Gary Steiner, *Animals and the Limits of Postmodernism* (New York: Columbia University Press, 2013).

15 Cavalieri, "A Missed Opportunity."

"fetish" for human concerns.[16] However, this relativism is only made possible by Tester's privileging of human discourse about animals, excluding the domain of power relations (to which Foucault himself turned in search of the operators of historical change) and the corporeal locus of impact on animal bodies, and thereby marginalising what is arguably the strongest element of Foucault's work for application to animals. Saïd Chebili analysed the roles of animal figures in Foucault's work, yet likewise remained largely within the ambit of archaeology.[17] Only rarely has such work been taken to the limits of the discursive approach, as when radical deep ecologist Christopher Manes thematised the silence of nature in Western thought to articulate how, like silenced figures such as those pronounced mad or abnormal, nature itself, and its multitude of tones and touches, has been refused voice by the institutional scientific knowledges of "Man" in our decidedly non-animistic culture.[18]

Of course this focus on discourse only reflects the limits of Foucault's own exclusion of animals. In a collection of animal philosophy from the Continental tradition, amid offerings from other philosophers that impinge more directly on traditional questions of ethics and metaphysics, the text from Foucault (justifiably the most relevant) is an excerpt from *History of Madness* on the theme of the relationship between insanity and animality in the Renaissance and Classical periods.[19] Yet, as Clare Palmer has argued in her contribution to that volume and elsewhere, to bring out the strength of Foucault's work in this area requires that we move beyond the archaeology of discourse on animality to the genealogy of power relations with animals.[20]

Prominent theorists have made more or less indirect use of Foucault's genealogical period in their work on animals. Jean Baudrillard provides a remarkably Foucauldian genealogy of our attempts to make animals speak.[21] Haraway, for all her criticisms, honours her debt to Foucault—often remarking that she

16 Keith Tester, *Animals and Society: The Humanity of Animal Rights* (London: Routledge, 1991).

17 Saïd Chebili, *Figures de l'animalité dans l'œuvre de Michel Foucault* (Paris: L'Harmattan, 1999).

18 Christopher Manes, "Nature and Silence," in *Postmodern Environmental Ethics*, ed. Max Oelschlaeger (Albany: State University of New York Press, 1995), 43–57.

19 Matthew Calarco and Peter Atterton, eds., *Animal Philosophy: Essential Readings in Continental Thought* (London and New York: Continuum, 2004).

20 See Clare Palmer, "Madness and Animality in Michel Foucault's *Madness and Civilization*," in *Animal Philosophy: Essential Readings in Continental Thought*, ed. Matthew Calarco and Peter Atterton (London and New York: Continuum, 2004), 72–84.

21 Jean Baudrillard, "The Animals: Territory and Metamorphosis," *Simulacra and Simulations*, trans. Sheila Faria Glaser (Ann Arbor: University of Michigan Press, 1994), 129–141.

or he might have written a text by the title of *The Birth of the Kennel*[22]—and adapts his thinking about biopolitics and relational freedom in her work on practices and zones of interspecies contact.[23] Recently, among more immediately Foucauldian scholarship, there has been an encouraging trend towards a more sophisticated, political and materialist approach attentive to the productive apparatuses of power that govern and regulate animal lives, from their movements and habitats down to their DNA.

While Foucault's theory of power has been extremely influential, it has been almost exclusively applied to human politics. This collection devotes itself to the expansion of his limited ontology, one that only admitted relations of power between human subjects, and capacities or relations of knowledge between human subjects and "things,"[24] excluding thereby the entire "wild profusion of existing things" that he elsewhere found so upsetting of regimes of order[25]—a swarm of critters fluttering on the underside of human activity. What is needed is a genealogy that, "situated within the articulation of the body and history,"[26] pays attention to not only human but also *nonhuman* bodies.

A number of scholars have demonstrated that Foucault's concepts (particularly of discipline, governmentality, and biopower) can be fruitfully applied to the environment, whether to understand the social apparatus of environmental management as "environmentality"[27] or to critique the philosophy and politics of different modes of ecological thought and practice.[28] While most of this work has focussed on the management of environmental resources and

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22 For example, Donna Haraway, *The Companion Species Manifesto: Dogs, People, and Significant Otherness* (Chicago: Prickly Paradigm Press, 2003), 61.

23 Haraway, *When Species Meet*.

24 Michel Foucault, "The Subject and Power," in *Power: Essential Works of Foucault, 1954–1984, volume 3*, ed. James D. Faubion (London: Penguin Books, 2002), 326–48.

25 Foucault, *The Order of Things*.

26 Michel Foucault, "Nietzsche, Genealogy, History," in *The Foucault Reader*, ed. Paul Rabinow (London: Penguin Books, 1984), 76–100 (83).

27 Éric Darier, ed. *Discourses of the Environment* (Oxford and Malden: Blackwell, 1999); Arun Agrawal, *Environmentality: Technologies of Government and the Making of Subjects* (Durham: Duke University Press, 2005).

28 Ade Peace, "Governing the Environment: The Programs and Politics of Environmental Discourse," in *Foucault: The Legacy*, ed. Clare O'Farrell (Kelvin Grove: Queensland University of Technology, 1997), 530–545; Timothy W. Luke, *Ecocritique: Contesting the Politics of Nature, Economy, and Culture* (Minneapolis: University of Minnesota Press, 1997); Paul Rutherford, "'The Entry of Life into History'," in *Discourses of the Environment*, ed. Éric Darier (Oxford and Malden: Blackwell, 1999), 37–62; Paul Alberts, "Foucault, Nature, and the Environment," in *A Companion to Foucault*, ed. Christopher Falzon, Timothy O'Leary and Jana Sawicki (Oxford and Malden: Blackwell, 2013), 544–561.

the production of environmental subjects, more recent scholarship has made *animals* a specific focus. Palmer was among the first to argue strongly that Foucault's theory of power can be usefully applied to human-animal relations, not simply on the level of discourse and subjectivity—of human knowledge and understanding of animals—but in a more direct manner that explicitly concerns itself with the disciplining and shepherding of animals as beings who act and can resist.[29]

While there are still numerous questions to be explored, there has since been significant growth in work that applies Foucault's theory of the productivity of power to human-animal relations. Recently, Nicole Shukin's *Animal Capital* has championed a materialist poststructuralist animal studies,[30] against the idealism she discerns in studies that link animals too closely to representation and spectrality.[31] Other work has explored contexts from the construction of animal subjectivity in early animal welfare discourse;[32] to the discipline, normalisation and slaughter of animals in industrial farming;[33] to the junction of communication and power in animal training;[34] to the management

29 Clare Palmer, "'Taming the Wild Profusion of Existing Things'? A Study of Foucault, Power, and Human/Animal Relationships," *Environmental Ethics* 23:4 (2001): 339–358.

30 Shukin, *Animal Capital*.

31 For example, Lippit, *Electric Animal*.

32 Anna Feuerstein, "'I Promise to Protect Dumb Creatures': Pastoral Power and the Limits of Victorian Nonhuman Animal Protection," *Society & Animals* 23:2 (2014): 1–18.

33 Dinesh Joseph Wadiwel, "Cows and Sovereignty: Biopower and Animal Life," *Borderlands e-journal* 1:2 (2002); Dawn Coppin, "Foucauldian Hog Future: The Birth of Mega-Hog Farms," *The Sociological Quarterly* 44:4 (2003): 597–616; Anna Williams, "Disciplining Animals: Sentience, Production, and Critique," *International Journal of Sociology and Social Policy* 24:9 (2004): 45–57; Lewis Holloway, "Subjecting Cows to Robots: Farming Technologies and the Making of Animal Subjects," *Environment and Planning D: Society and Space* 25 (2007): 1041–1060; Richie Nimmo, "Governing Nonhumans: Knowledge, Sanitation and Discipline in the Late 19th and Early 20th-Century British Milk Trade," *Distinktion: Journal of Social Theory* 9:1 (2008): 77–97; Stephen Thierman, "Apparatuses of Animality: Foucault Goes to a Slaughterhouse," *Foucault Studies* 9 (2010): 89–110; Matthew Cole, "From 'Animal Machines' to 'Happy Meat'? Foucault's Ideas of Disciplinary and Pastoral Power Applied to 'Animal-Centred' Welfare Discourse," *Animals* 1:1 (2011): 83–101; Jonathan L. Clark, "Ecological Biopower, Environmental Violence Against Animals, and the 'Greening' of the Factory Farm," *Journal of Critical Animal Studies* 10:4 (2012): 109–129; Chloë Taylor, "Foucault and Critical Animal Studies: Genealogies of Agricultural Power," *Philosophy Compass* 8:6 (2013): 539–551.

34 Paul Patton, "Language, Power, and the Training of Horses," in Cary Wolfe ed., *Zoontologies: The Question of the Animal* (Minneapolis: University of Minnesota Press, 2003); Kirrilly Thompson, "Theorising Rider-Horse Relations: An Ethnographic Illustration

of urban feral populations;[35] to surveillance systems and the simulation, control or care of wildlife;[36] to the extension of biopower into technoscience and genetic optimisation;[37] to the smothering stewardship of zoological gardens;[38] to the impact and transformation of biopower in wildlife conservation.[39] Yet such work has made use of Foucault's thought with varying degrees of sophistication; for example, much of the work that seeks to unveil the human management practices distorting so-called "wild" animals fails to articulate the specificity of the power wielded over nonhuman species, or its possible effects on their behaviour and survival.

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of the Centaur Metaphor in the Spanish Bullfight," in *Theorizing Animals: Re-thinking Humanimal Relations*, ed. Nik Taylor and Tania Signal (Leiden: Brill, 2011), 221–253.

35 Diane P. Michelfelder, "Valuing Wildlife Populations in Urban Environments," *Journal of Social Philosophy* 34:1 (2003): 79–90; Clare Palmer, "Colonization, Urbanization, and Animals," *Philosophy & Geography* 6:1 (2003): 47–58; Krithika Srinivasan, "The Welfare Episteme: Street Dog Biopolitics in the Anthropocene," in *Animals in the Anthropocene: Critical Perspectives on Non-Human Futures*, ed. Human Animal Research Network Editorial Collective (Sydney: Sydney University Press, 2015), 201–220.

36 Charles Bergman, "Inventing a Beast with No Body: Radio-Telemetry, the Marginalization of Animals, and the Simulation of Ecology," *Worldviews* 9:2 (2005): 255–270; Sara Rinfret, "Controlling Animals: Power, Foucault, and Species Management," *Society and Natural Resources* 22 (2009): 571–578; Hugo Reinert, "The Care of Migrants: Telemetry and the Fragile Wild," *Environmental Humanities* 3 (2013): 1–24.

37 Richard Twine, *Animals as Biotechnology: Ethics, Sustainability and Critical Animal Studies* (London: Earthscan, 2010); Carrie Friese, *Cloning Wild Life: Zoos, Captivity, and the Future of Endangered Animals* (New York & London: New York University Press, 2013); Richie Nimmo, "The Bio-Politics of Bees: Industrial Farming and Colony Collapse Disorder," *Humanimalia* 6:2 (2015): 1–20.

38 Ralph Acampora, "Zoos and Eyes: Contesting Captivity and Seeking Successor Practices," *Society & Animals* 13:1 (2005): 69–88; Matthew Chrulew, "From Zoo to Zoöpolis: Effectively Enacting Eden," in *Metamorphoses of the Zoo: Animal Encounter after Noah*, ed. Ralph R. Acampora (Lanham: Lexington Books, 2010), 193–219; Irus Braverman, *Zooland: The Institution of Captivity* (Stanford: Stanford University Press, 2012); Matthew Chrulew, "Preventing and Giving Death at the Zoo: Heini Hediger's 'Death Due to Behaviour'," in *Animal Death*, ed. Fiona Probyn-Rapsey and Jay Johnston (Sydney: Sydney University Press, 2013), 221–238.

39 Rafi Youatt, "Counting Species: Biopower and the Global Biodiversity Census," *Environmental Values* 17 (2008): 393–417; Matthew Chrulew, "Managing Love and Death at the Zoo: The Biopolitics of Endangered Species Preservation," *Australian Humanities Review* 50 (2011): 137–157; Krithika Srinivasan, "Caring for the Collective: Biopower and Agential Subjectification in Wildlife Conservation," *Environment and Planning D: Society and Space* 32 (2014): 501–517; Lorimer, *Wildlife in the Anthropocene*.

Much of this work bears on the prominent contemporary debate around biopower.[40] Foucauldian scholars such as Paul Rabinow[41] and Nikolas Rose[42] have considered how the late twentieth century's developments in life sciences and genetics have produced new "biosocial" domains, practices and politics of life. Yet while much of the broader political discussion begins from Foucault's initial works, there has been a distinct move away from his micropolitical genealogies towards a transhistorical conception that relates sovereignty to bare life.[43] Moreover, much of the debate about biopower—power over life itself—has considered but one fragment of life, the human, failing to question how nonhuman animal life is caught up in apparatuses of biopolitical power/knowledge.[44] For example, Agamben's *The Open* thematises the human/animal distinction as a central site for the production of human subjectivity, yet thematises the political effects of this caesura only on *human* subjects.[45] There is certainly room to offer a more penetrating analysis of how biopower might relate to nonhuman life: for example, Wadiwel builds on the work of Foucault and Agamben to problematise the biopolitical enclosure of nonhuman animal life as an essential and ethically relevant part of the sovereign capture of life itself.[46]

As Holloway and Morris put it, there is a great need to further explore "the analytical relevance of Foucault's notion of biopower in the context of regulating and managing non-human lives and populations."[47] Leonard Lawlor has

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40 See particularly Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life*, trans. Daniel Heller-Roazen (Stanford: Stanford University Press, 1998); and Roberto Esposito, *Bíos: Biopolitics and Philosophy*, trans. Timothy Campbell (Minneapolis: University of Minnesota Press, 2008).

41 Paul Rabinow, "Artificiality and Enlightenment: From Sociobiology to Biosociality," in *Anthropologies of Modernity: Foucault, Governmentality and Life Politics*, ed. Jonathan Xavier Inda (Oxford and Malden: Blackwell, 2005), 181–193.

42 Nikolas Rose, *The Politics of Life Itself: Biomedicine, Power, and Subjectivity in the Twenty-First Century* (Princeton: Princeton University Press, 2006).

43 In, for example, Agamben, *Homo Sacer*; and Jacques Derrida, *The Beast & the Sovereign, volume I*, ed. Michel Lisse, Marie-Louise Mallet and Ginette Michaud; trans. Geoffrey Bennington (Chicago: The University of Chicago Press, 2009).

44 Timothy Campbell and Adam Sitze, "Introduction: Biopolitics: An Encounter," in *Biopolitics: A Reader*, ed. Timothy Campbell and Adam Sitze (Durham: Duke University Press, 2013), 1–40 (14–18).

45 Agamben, *The Open.*

46 Wadiwel, "Cows and Sovereignty"; and Dinesh Joseph Wadiwel, *The War Against Animals* (Leiden: Koninklijke Brill, 2015).

47 Lewis Holloway and Carol Morris. "Exploring Biopower in the Regulation of Farm Animal Bodies: Genetic Policy Interventions in UK Livestock," *Genomics, Society and Policy* 3:2 (2007): 82–98 (82).

articulated a philosophy of "life-ism" opposed to biopower, a notion of the immanence of life beyond "man and his doubles" that places death, finitude and powerlessness at the heart of life.[48] The task that remains is to connect this rethinking of life, beyond vitalism and biologism, to the question of the nonhuman animal.[49] This volume contributes further towards the essential recognition that biopower attends to both humans and animals, but does so differentially, in a manner that brings violence and control, as well as care, vigorously and often overwhelmingly onto nonhuman animals through *knowledge* of their biological capacities pertaining to their potential use, whether as food, labour, experimental subject, spectacle, companion or otherwise.

Foucault's late work on technologies of the self has also been taken up in relation to ethical eating practices such as vegetarianism and veganism.[50] This has made possible reconceptualisations of the ethics of eating beyond universal moral arguments to better understand the role of normalisation in habits of consumption, and to articulate alternate dietary practices as enabling the production of new subjectivities and communities. Moreover, insofar as Foucault's thought combines archaeological, genealogical and ethical approaches, it allows us to trace the interconnections between such ethico-aesthetic practices of the self and the institutional politics of industrial food production that has been so central to recent debates in animal studies.[51]

This volume will prove an essential intervention in this field. With sections on "Discourse and Madness," "Power and Discipline," "Science and Biopolitics," and "Government and Ethics," it both summarises and challenges the scholarship so far on Foucault and animals, addressing its various lacks and deficiencies, and collecting and bolstering its strongest threads. It offers new tools with which to approach well-worn questions, as well as venturing questions hardly broached, on themes from training and friendship to language and death. In doing so, it will clarify the relevance and exceeding value of one of the twentieth century's most influential thinkers to the analysis and critique of human-animal relations, articulating a unique and essential voice in a major contemporary debate.

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48 Lawlor, *The Implications of Immanence*.

49 Lawlor does so in relation to Derrida in Leonard Lawlor, *This Is Not Sufficient: An Essay on Animality and Human Nature in Derrida* (New York: Columbia University Press, 2007).

50 Joseph J. Tanke, "The Care of Self and Environmental Politics: Towards a Foucaultian Account of Dietary Practice," *Ethics & the Environment* 12:1 (2007): 79–96; Chloë Taylor, "Foucault and the Ethics of Eating," *Foucault Studies* 9 (2010): 71–88; Megan A. Dean, "You Are *How* You Eat? Femininity, Normalization, and Veganism as an Ethical Practice of Freedom," *Societies* 4 (2014): 127–147.

51 Stanley Cavell, Cora Diamond, John McDowell, Ian Hacking and Cary Wolfe, *Philosophy and Animal Life* (New York: Columbia University Press, 2008).

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PART 1

Discourse and Madness



CHAPTER 1

Terminal Truths: Foucault's Animals and the Mask of the Beast

Joseph Pugliese

Re-reading Michel Foucault's landmark *Madness and Civilization* after the space of two decades, I was struck by the manner in which the category of 'madness' could be effectively replaced with that of 'animals' in order to begin to shed light on the anthropocentrism that haunts so much of his work. Animals largely figure in Foucault's thought and writing as figural creatures that traverse the text as mere indices without weight or body: they are largely incidental to his otherwise groundbreaking archaeologies of knowledge. Even as animals often supply for Foucault the figurative ground and exempla for asking foundational epistemic questions—"But what is it impossible to think, and what kind of impossibility are we faced with here?"[1]—precisely as creatures of figuration, they are presented as mere supplements to both his archaeological epistemic excavations and his revolutionary theorisation of biopolitics. In his conceptualization of biopolitics, the "species body" remains anthropocentric in all of its determinations, and it is impossible to discern those other species that have been, and continue to be, infrastructural to the violent exercise of biopolitics.[2] As mere supplements that constitute evidence of the operation of trace knowledge in Foucault's thought, animals function as figures that, even as they are critically unacknowledged, are constitutive of the very ground of thought. In the course of this chapter, I pursue how animals in Foucault's thought work to make visible the very conditions of possibility of various systems of thought and epistemic formations, even as they themselves are, under the force of anthropocentrism, rendered either as incidental or invisible.

Working with *Madness and Civilization* as my grounding text, I examine the manner in which non-human animals figure as either non-foundational metonyms in Foucault's thought, establishing, precisely as metonyms, discursive

1 Michel Foucault, *The Order of Things: An Archaeology of the Human Sciences* (New York: Vintage, 1973), xv.

2 See Joseph Pugliese, *State Violence and the Execution of Law: Biopolitical Caesurae of Torture, Black Sites, Drones* (Abingdon and New York: Routledge, 2013), 32–46.

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economies of displacement, or, alternatively, as nodal figures that erupt in his text in order briefly to mark a crux that brings into focus the question of animals in Western thought before being rapidly supplanted by the hegemonic force of anthropocentric concerns and orientations. My aim is to read *Madness and Civilization* against the grain, pushing up against the weight of Western anthropocentrism as it shapes and constitutes the contours of Foucault's thought.

1 What is Originative in the Biopolitical Caesura?

In the very opening pages of his Preface to *Madness and Civilization*, Foucault names that foundational absence in the field of Western historiography that he intends to address: "We have yet to write the history of that other form of madness, by which men, in an act of sovereign reason, confine their neighbours, and communicate and recognize each other through the merciless language of non-madness."[3] Inscribed in this absence that Foucault identifies is yet another absence that becomes visible through the deployment of what I will term a *deanthropocentrizing* lens. Mobilizing this deanthropocentrizing approach, I rewrite the above cited passage as follows: We have yet to write the history of that other form of anthropocentric madness by which humans, through acts of sovereign reason, confine animals, communicate their sense of exceptionalism and recognize each other as the supreme species through the merciless language of speciesism. This history has, of course, already begun to be written, and I will presently draw on this now extensive anti-anthropocentric corpus in order to evidence my arguments. However, its status is, in the Western context, still largely marginal. This is evidenced by the hegemonic violence that sovereign, biopolitical reason still visits on animals. Their mass confinement, domestication, industrial breeding and slaughter—all testify to the merciless language of a sovereign anthropocentrism that has been interrogated but not dethroned. Reading *Madness and Civilization* against the grain by repeatedly overwriting the category of 'madness' with 'animals' effectively brings into focus the haunting parallels that hover unspoken above Foucault's thought, simultaneously as my dissident reading aims to preserve, as though under erasure, the very madness of the madness that inflects anthropocentric thought.

3 Michel Foucault, *Madness and Civilization: A History of Insanity in the Age of Reason*, trans. Richard Howard (New York: Vintage, 1973), ix.

Having articulated the startling absence of that other history in the opening lines of his Preface, Foucault advocates a "return, in history, to that zero point in the course of madness at which madness is an undifferentiated experience, a not yet divided experience of division itself."[4] This is, of course, an impossible return: at once Edenic in its prelapsarian aspirations and charged with all the traps that ineluctably compromise quests for pure and undifferentiated origins. Yet, as assiduous archaeologist of Western thought, Foucault broaches the challenge in the imperative mode: "We must describe, from the start of its trajectory, that 'other form' which relegates Reason [/Humans] and Madness [/Animals] to one side or the other of its action as things henceforth external, deaf to all exchange, and as though dead to one another."[5] In the epistemic cast of "that 'other form,'" animals have figured precisely as unthinking externality to the reasoning and reflexive interiority of the human; as 'mute' subjects abjectly devoid of language, animals have supplied the foil that has enabled human speech to emerge as the paragon of lucid communication and articulate intelligibility—even as animals have not had the luxury to remain deaf to the axiomatic commands, instructions, threats and death warrants issued by their human masters: with whips, cattle prods, shackles and apportioned 'treats,' they have listened hard and understood only too well the merciless language of the master's reason. "This is doubtless," Foucault continues, "an uncomfortable region. To explore it we must renounce the convenience of terminal truths, and never let ourselves be guided by what we may know of madness [/animals]."[6] The renunciation of "terminal truths" is, again, a luxury barely afforded to animals; on the contrary, the horror of the industrial slaughterhouse and the mass euthanizing of domestic 'pets' all testify to animals' non-negotiable relation to terminal truths. The burden remains, then, to flesh out the unspeakable dimensions of these violent, anthropocentrically-determined terminal truths.

Foucault's commitment to the renunciation of doxic truths that terminate the possibility to think otherwise is, true to form, unwavering and groundbreaking. As impossible as the work of delineating a zero point that marks the emergence of a doxic thought might be, Foucault attempts this: "What is constitutive is the action that divides madness [/animals from humans], and not the science elaborated once this division is made and calm restored."[7] After the fact of this originary scission, an entire epistemology—anthropocentric

4 Ibid., ix.

5 Ibid., ix.

6 Ibid., ix.

7 Ibid., ix.

thought—is, a priori, always already in place, its philosophical infrastructure solidified and its scientific dimensions legitimated. This is what will enable the ongoing complacency of a calm unperturbed by the everyday violence that humans visit upon animals. The restoration of that calm follows after the violent blow or scission that dispatches animals to the inferior, hither side of the human. Foucault presciently names what in his later thought he will qualify with the prefix 'biopolitical': "What is originative is the caesura that establishes the distance between reason [/humans] and non-reason [/animals]; reason's [/human's] subjugation of non-reason [/animals] . . . derives explicitly from this point."[8] The anthropocentric caesura is what establishes the distance between reasoning humans and unreasoning animals, precisely as it authorizes humans' subjugation of animals as lesser beasts that can be captured, enslaved or killed with impunity. This speciesist schema achieves its cultural intelligibility and power effects through the following violent predication: "Power over the animal is the essence of the 'I' or the 'person,' the essence of the human."[9] Glossing the anthropocentric metaphysics that found and constitute the Kantian subject, Jacques Derrida discloses its axiomatic predication on the animal other: "The subject that is [hu]man is a person, 'one and the same person [*die selbe Person*],' therefore, who will be the subject of reason, morality, and the law. What exists in opposition to this person? Well, the thing . . . The person is an entirely different thing (*ganz verschiedenes Wesen*), in rank and dignity (*durch Rang und Würte*), from these things (*Sachen*), which are irrational animals."[10] The power/knowledge effects that are enabled by this caesura hinge precisely on what Foucault identifies as the reason/unreason division: "One has power and authority (*walten*) over these irrational animals because they are things. One can use them and lord over them as one pleases."[11]

"We shall have to speak of this act of scission," Foucault elaborates, "of this distance set, of this void instituted between reason and what is not reason, without ever relying upon the fulfillment of what it claims to be."[12] Foucault here spatializes the power/knowledge effects of the biopolitical caesura: at all times the difference between humans and animals is animated by the category of a distance that is at once epistemic and physical in its determinations and effects. An ensemble of what Foucault will later term the "authorities

8 Ibid., ix–x.

9 Jacques Derrida, *The Animal That Therefore I Am*, ed. Marie-Louise Mallet, trans. David Wills (New York: Fordham University Press, 2008), 92–3.

10 Ibid., 92–3.

11 Ibid., 93.

12 Foucault, *Madness and Civilization*, x.

of delimitation"[13]—including philosophical, religious, scientific and legal—labour to authorize this distance and to police its borders. Foucault's naming of the "void," instituted between reason/humans and what is not reason/animals, powerfully designates the non-foundational ground upon which this division rests. Looking into this void, Giorgio Agamben will name it as "the central emptiness, the hiatus that—within [hu]man—separates [hu]man and animal."[14] Foucault underscores what is at stake in theorizing this void: "Then, and then only, can we determine the realm in which" human/reason and animal/unreason "moving apart, are not yet disjunct; and in an incipient and very crude language, antedating that of science, begin the dialogue of their breach, testifying in a fugitive way that they still speak to each other."[15] In the Western historical context, this time when the human/animal was still not disjunct refers to the pre-Socratic period and thinkers such as Homer, Hesiod, Pythagoras and Empedocles who were "commit[ted] to the fundamental continuity between humans and animals."[16] "Here," at this historical juncture, "reason [/humans] and non-reason [/animals] are inextricably involved: inseparable at the moment when they do not yet exist, and existing for each other, in relation to each other, in the exchange which separates them."[17] Foucault's marking of the "exchange which separates them" refuses the collapsing of difference, which would entail yet another violence, even as it underscores the conditions of possibility for an ethical relation between humans and animals in which they exist not only in dialogue between each other, but are, in Levinasian terms, for each other, in relation to each other, yet marked by the distance of proximity that separates one from the other.[18]

Having enunciated the otherwise denied possibility for dialogue between reason/humans and non-reason/animals, Foucault delineates the consequences of the denial of this dialogue: "The language of psychiatry [/anthropocentrism], which is a monologue of reason *about* madness [/animals], has been established only on the basis of such a silence."[19] Under the insignia of this anthropocentric monologue and its attendant silence, animals have

13 Michel Foucault, *The Archaeology of Knowledge*, trans. A.M. Sheridan Smith (London: Tavistock, 1985), 42.

14 Giorgio Agamben, *The Open: Man and Animal* (Stanford: Stanford University Press, 2004), 92.

15 Foucault, *Madness and Civilization*, x.

16 Gary Steiner, *Anthropocentrism and Its Discontents* (Pittsburgh: University of Pittsburgh Press, 2005), 39.

17 Foucault, *Madness and Civilization*, x.

18 Emmanuel Levinas, *Otherwise than Being or Beyond Essence* (Dordrecht: Kluwer Academic Publishers, 1991), 161, 166.

19 Foucault, *Madness and Civilization*, xi.

been positioned, precisely as the mad are in Foucault's history, as "mute" and "voiceless" and as acting "without commentary" because captivated utterly by inarticulate instinct. The monologue of anthropocentrism about animals—as entities without reason, language or ethics—has been systematically unpacked and exposed in Derrida's powerful sequence of deconstructive essays devoted to the "Cartesian tradition of the animal without language and without response."[20] As Derrida makes clear, the maintenance of this "silence" of the animal is only enabled by the most virulent of disavowals. Yet this silence is also punctuated by the shards of a "broken dialogue" that, once couched in Foucauldian terms, posit "the separation as already effected, and thrust into oblivion all those stammered, imperfect words without fixed syntax in which the exchange between" humans and animals "was made."[21]

2 Anthropocentrism: The History of that Other Form of Madness

Foucault's commitment to delineating the "history of that other form of madness," that is essentially predicated on the violent exercise of reason, enables the articulation of some of the most insightful moments in his *Madness and Civilization*. The "Reason-Madness nexus," he underscores, "constitutes for Western culture one of the dimensions of its originality."[22] In the face of this nexus, Foucault launches a challenge: "What, then, is this confrontation beneath the language of reason? Where can an interrogation lead us which does not follow reason in its horizontal cause, but seeks to retrace in time that constant verticality which confronts European culture with what it is not . . . ?"[23] Overwriting the reason/madness nexus with its other epistemic couplet—human/animal—resonates on both philosophical and historical grounds. As I have discussed in detail elsewhere, the West's confrontation with all its various others—animals, natives, colonial subjects and so on—has been oriented by the arrogation of a humanity predicated on the animality of its others.[24]

The power and resilience of speciesism, as deployed by the West, has been enabled by a history of combinatory possibilities that couples speciesism with the range of other descriptors constitutive of epistemic and physical violence: for example, the racio-gendered-sexualized speciesism that positioned

20 Derrida, *The Animal That Therefore I Am*, 118.

21 Foucault, *Madness and Civilization*, x.

22 Ibid., xi.

23 Ibid., xi.

24 Pugliese, *State Violence*, 33–4.

enslaved African American women in animal nature as reproductive bodies that could be sexually violated with impunity. Precisely what the operation of speciesism (and its combinatory descriptors) has enabled is that violent process of what Foucault aptly names that "constant verticality" constitutive of the West's assignment of all its others along biopolitical hierarchies of life—with the tautology of Western-white-man at the apex and all other forms in descending scale towards that brute animality that can be captured, enslaved and killed with impunity. "[I]t is at this point," Foucault contends, that "history is immobilized in the tragic category which both establishes and impugns it."[25] The confrontation with this tragic category opens up the possibility to gaze on a "realm, no doubt, where what is in question is the limits rather than the identity of a culture."[26] This is Foucault at his most illuminating. Materialized here are the very discursive limits of what the West can think; these are limits that can only be glimpsed by identifying everything that the West must mobilize in terms of "what it is not": the animal, the native, the Other. In this serial schema, the category of 'the animal' effectively founds and constitutes the other categories that it animates and renders intelligible precisely as Other. As such, this is a category that, as Derrida contends, assumes a transcategorical or quasi-transcendental status: "Must not this place of the Other be ahuman? If this is indeed the case, then the ahuman . . . would be the quasi-transcendental referent, the excluded, foreclosed, disavowed, tamed, and sacrificed foundation of what it founds, namely, the symbolic order, the human order, law, and justice."[27]

Animals, as mere figurations, haunt *Madness and Civilization*. In the early stages of the text, they emerge "In the margins of the community," in "wastelands," the "reaches that would belong to the non-human."[28] As figures, they supply the ground for Foucault's illustrative points: "the symbolic man becomes a fantastic bird whose disproportionate neck folds a thousand times upon itself—an insane being, halfway between animal and thing."[29] How could this creature be anything but "insane," inhabiting, as it does, a monstrous morphology that refuses the biopolitical caesura? Yet, as the text progresses, animals come into their own as agents that will define the humanity of the human and the madness of the mad: "at the beginning of the Renaissance, the relations with animality are reversed; the beast is set free; it escapes the world of legend and moral illustration to acquire a fantastic nature of its

25 Foucault, *Madness and Civilization*, xii.

26 Ibid., xi.

27 Derrida, *The Animal That Therefore I Am*, 132.

28 Foucault, *Madness and Civilization*, 3.

29 Ibid., 19.

own. And by an astonishing reversal, it is now the animal that will stalk man, capture him, and reveal to him his own truth."[30] This truth is predicated on the biopolitical caesura: "Animality has escaped domestication by human symbols and values; and it is animality that reveals the dark rage, the sterile madness that lie at man's heart."[31] The animal here has escaped domestication only to fall into its equally violent opposite: wild, raging and mad, the animal will now supply the bestial animus of the insane and therefore legitimate a range of practices—including confinement and beatings—in order to restore the insane back to sanity, the bestial back to the human. As Foucault remarks, the age of the Great Confinement that follows the Renaissance can be encapsulated by the motto at the entrance of one of "these prisons of moral order": "'If wild beasts can be broken to the yoke, it must not be despaired of correcting the man who has strayed.'"[32]

The transference of the human/animal biopolitical caesura to the mad legitimates their imprisonment, their violent domestication and their animal-like displays under the tutelage of their keepers:

> The madmen at Bicêtre were shown "like curious animals, to the first simpleton willing to pay a coin" . . . One went to see the keeper display the madmen the way the trainer at the Fair of Saint-Germain put the monkeys through their tricks . . . Certain attendants were well known for their ability to make the mad perform dances and acrobatics, with a few flicks of the whip.[33]

This repertoire of techniques constitutive of domesticating violence is, furthermore, enframed by the transmuting of the mad into caged animals that are available, through the safety of bars, for visual consumption as exotic spectacle:

> During the classical period, madness was shown, but on the other side of bars; if present, it was at a distance, under the eyes of a reason that no longer felt any relation to it and that would not compromise itself by too close a resemblance. Madness had become a thing to look at: no longer a monster inside oneself, but an animal with strange mechanisms, a bestiality from which man had long since been suppressed.[34]

30 Ibid., 21.
31 Ibid., 21.
32 Ibid., 63.
33 Ibid., 68–9.
34 Ibid., 70.

Foucault encapsulates his vision of the human/animal nexus in the context of the asylum in the following summation: "there was a certain image of animality that haunted the hospitals of the period . . . Madness borrowed its face from the mask of the beast . . . This model of animality prevailed in the asylums and gave them their cage-like aspect, their look of the menagerie."[35] Haunting this scene of caged beasts as othered spectacle is yet another history that remains unspoken yet is absolutely historically coextensive with the very "classical period" that Foucault theorizes: the European colonial exhibitions of captured Indigenous peoples put on display precisely as "things to look at."[36] "At the hospital of Nantes," Foucault writes, "the menagerie appears to consist of individual human cages for wild beasts."[37] Foucault's menagerie is fundamentally a product of European empire. Assigned positions at the lower end of the vertical scale of the biopolitical hierarchy, the native was represented as either the 'missing link' between the animal and human or, alternatively, as an exotic animal species completely remote from the human family. Operative in these colonial exhibitions and displays of exotic natives is what I have elsewhere termed as *racio-speciesism*, a couplet that effectively combines both racism and speciesism in order to construct the target subject as essentially non-human animal disenfranchised of the attendant rights that constitute the human.[38] Precisely as Foucault says, the critical spatialization of the distance between human and animal through the use of both symbolic and physical bars was crucial in enabling the operation of the biopolitical caesura and its systems of division. The spatialization of the biopolitical caesura both vertically—along the axis of the biopolitical hierarchy—and horizontally, in the context of the asylum, the zoo and the exhibition grounds with their segregated and barred spaces—ensured that the sane, reasoning, white human subject "would not compromise itself by too close a resemblance."

I want to elaborate further on the specificity of the repertoire of techniques constitutive of animal domestication that Foucault catalogues as they are, again, shadowed by yet another unspoken history:

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35 Ibid., 72.

36 See, for example, Lilian Thurman, *L'invention du sauvage: Exhibitions* (Paris: Actes Sud and Musée du quai Branly, 2012); Lynette Russell, *Savage Imaginings* (Melbourne: Australian Scholarly Publishers, 2001); and Anne Maxwell, *Colonial Photography* (London: Leicester University Press, 1999).

37 Foucault, *Madness and Civilization*, 72–3.

38 Pugliese, *State Violence*, 41–2.

> Sufferers were generally chained to the walls and to the beds . . . At another hospital, in Bethnal Green, a woman subject to violent seizures was placed in a pigsty, feet and fists bound . . . an iron bar was placed between her legs, attached by rings to her ankles and by a short chain to handcuffs . . . at Bethlehem [a man was] attached by a long chain that . . . permitted the attendant to lead him about, to keep him on a leash, so to speak.[39]

Nowhere in Foucault's text is the European practice of slavery broached. As one of the distinguishing features of Europe's "classical period," it remains a glaring omission that, despite the author's elision, insists on marking itself in his text. It is here, in this abject scene of cuffed, ringed and chained human subjects, that European slavery metonymically enunciates its displaced historical materiality. And again, the critical distance or spatialization essential to the maintenance of the biopolitical caesura finds its material articulation in the spaces of animal-like segregation within which the mad are confined: cages, stables and pens.[40] These are precisely the same terms used to describe the spaces within which human slaves were confined on the vast slave plantations of North America.[41] As a number of historians have argued, the practice of European slavery is informed at virtually every level by its historical and biopolitical precursor: the enslavement of animals. Marjorie Spiegel, for example, proceeds to stage a largely descriptive yet important articulation of the "dreaded comparison" between the enslavement of animals and practices of human slavery by evidencing how "the domination of animals . . . was in many cases used as a prototype for the subjugation of blacks."[42] She unfolds a history of the manner in which Western societies, from the sixteenth century onwards, developed systems of human slavery that closely paralleled humans' treatment of animals, including the use of shackles, auction, branding, stalls and pens, and so on. As I remarked above, the issue of slavery, as constitutive in the development of biopolitical formations founded on racism, is almost entirely absent from Foucault's genealogical accounts of either madness or biopolitics. Yet when arguing, in his theorization of biopolitics, that "the pressure exerted by the biological on the historical had remained very strong for thousands of years," Foucault presents an alternative point of departure for the

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39 Foucault, *Madness and Civilization*, 72.

40 Ibid., 72–3.

41 Marjorie Spiegel, *The Dreaded Comparison: Human and Animal Slavery* (New York: Mirror Books, 1996), 30.

42 Ibid., 30.

critical study and elaboration of his concept of biopolitics.[43] In pursuing this anachronic perspective on biopolitics I am, in effect, attempting to flesh out an occluded aspect of the historical conditions of emergence of biopolitics. Derrida identifies in Aristotle's *Politics* the articulation of a "zoo-politics" that effectively "opens the debate" on biopolitics;[44] Roberto Esposito gestures to this "pre-history" of biopolitics when he posits "the question of the relation of modernity with its 'pre,' but also that of the relation with its 'post.'"[45]

As a fundamentally colonial formation of power premised on the pivotal role of racism in governing subject peoples and assigning them positions on racialized hierarchies of life that spanned the right to genocidal extermination (of Indigenous peoples) and of enslavement (of black Africans), biopolitics is informed by a parallel history of speciesism that extends back to the very establishment of human civil and political society—as premised on animal enslavement ('domestication'). Derrida traces the contours of this founding relation:

> The socialization of human culture goes hand in hand with . . . the domestication of the tamed beast: it is nothing other than the becoming-livestock [*devenir-bétail*] of the beast. The appropriation, breaking-in, and domestication of tamed livestock (*das zahme Vieh*) are human socialization . . . There is therefore neither socialization, political constitution, nor politics itself without the principle of domestication of the wild animal . . . Politics supposes livestock.[46]

Politics supposes livestock precisely as it also supposes the enslavement of animals and the constitution of a biopolitical hierarchy: "for the ox," writes Aristotle, "is the poor man's slave";[47] and in Aristotle's zoo-politics, the enslaved animal comes last in an ascending sequence that includes wife, house and,

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43 Michel Foucault, *The History of Sexuality: An Introduction, Volume 1*, trans. Robert Hurley (London: Penguin, 1990), 142.

44 Jacques Derrida, *The Beast and the Sovereign, Volume 1* (Chicago: University of Chicago Press, 2009), 349, 330.

45 Roberto Esposito, *Bios: Biopolitics and Philosophy* (Minneapolis: University of Minnesota Press, 2008), 42. See also: Cary Wolfe, *Before the Law: Humans and Other Animals in a Biopolitical Frame* (Chicago: University of Chicago Press, 2013); Dinesh Joseph Wadiwel, "The War Against Animals: Domination, Law and Sovereignty," *Griffith Law Review* 18 (2009): 283–297; and Dinesh Joseph Wadiwel, "Cows and Sovereignty: Biopower and Animal Life," *Borderlands ejournal* 1:2 (2002), accessed 10 June 2014, http://www.borderlands.net.au/vol1no2_2002/wadiwel_cows.html.

46 Derrida, *The Animal That Therefore I Am*, 96.

47 Aristotle, *Politics* (Los Angeles: IndoEuropean Publishers, 2009), 2.

at the apex, man. The political ramifications of this historical enslavement of animals can be further elaborated: "Not only did the domestication of animals provide the model and inspiration for human slavery and tyrannical government," Charles Patterson writes, "but it laid the groundwork for western hierarchical thinking and European and American racial theories that called for the conquest and exploitation of 'lower races,' while at the same time vilifying them as animals so as to encourage and justify their subjugation."[48] Jim Mason amplifies Patterson's thesis arguing, in his interlinking of the enslavement of animals with larger colonial formations of power, that the establishment of "agri-culture" operated as "a license for conquest."[49]

In a reflexive moment in his history of madness, Foucault names the anxiety that drives the enforced and violent separation of the human/animal nexus: "The negative fact that 'the madman is not treated like a human being' has a very positive content: this human indifference . . . is rooted in the old fears which since antiquity . . . have given the animal world its familiar strangeness, it menacing marvels, its entire weight of dumb anxiety."[50] Articulated here is the cluster of affects that interlinks anthropocentric understandings of the animal world with the moment of colonial encounter: familiar strangeness, menacing marvels and dumb anxiety. In the colonial context, it is dumb anxiety that proceeds to dominate the encounter: as, soon after the strangeness and marvel of the first encounter dissipate, a biopolitical regime of violent mastery, subjugation and even extermination is mobilized in order to allay the weight of this dumb anxiety. The biopolitical dimensions operative in the collapsing of the designated other—in this case, 'the mad'—into undifferentiated animality can be further clarified in the wake of Foucault's marking of this moment of indissociability:

> The animal in man . . . has become his madness, without relation to anything but itself: his madness in the state of nature. The animality that rages in madness dispossesses man of what is specifically human in him; not in order to deliver him over to other powers, but simply to establish him at the zero degree of his own nature. For classicism, madness in its ultimate form is man in immediate relation to his animality, without other reference, without any recourse.[51]

48 Charles Patterson, *Eternal Treblinka: Our Treatment of Animals and the Holocaust* (New York: Lantern Books, 2002), 27.

49 Jim Mason, *An Unnatural Order: The Roots of Our Destruction of Nature* (New York: Lantern Books, 2005), 23.

50 Foucault, *Madness and Civilization*, 73.

51 Ibid., 73–4.

Delineated here is anthropocentrism in virtually all of its key attributes: the animal is unreasoning, entirely immanent and unmediated, and thus nature without culture, dumb noise without language, devoid of any possible other reference and, furthermore, irredeemably so: *without recourse*. Foucault's recourse to the definite article—"The animal"—evidences the violent operations of homogenization, totalization and genericity that are operative in the binary logic of anthropocentrism: "the animal" as always already undifferentiated, interchangeable and fungible in anthropocentrism's epistemic and biopolitical economies. Inscribing anthropocentrism's insistent use of the definite article is what Derrida identifies as Western philosophy's absolute limit, a limit that reduces the multiplicity of animals into a "single and indivisible" unit.[52] Revisiting the opening lines of *Madness and Civilization*, "What is originative is the caesura that establishes the distance between reason and non-reason," it is clear now that this caesura is inarguably biopolitical as it is founded and constituted by the human/animal division. The "return to that zero point" advocated in the opening lines of Foucault's work is here fulfilled, as "the madman" has now been located "at the zero degree of his own nature": the animal. As such, the madman was, as was the animal, disenfranchised of the capacity to suffer: "The animal solidity of madness, and that density it borrows from the blind world of beasts, inured the madman to hunger, heat, cold, pain."[53] The solidity, density and blindness of animality here reference the Heideggerian animal as defined, in its quintessential animality, by its constitutive privations and captivations in relation to the world.[54] "Unchained animality," Foucault writes, "could be mastered only by *discipline* and *brutalizing*."[55] The biopolitical regimes of disciplinarity and brutality founded on the domestication of animals is now effectively transposed to mastering the mad through blows "'as beasts of burden.'"[56] This violent disciplinary regime can be seen to be applicable to the series of figures—animals, the mad, slaves, natives—produced by the operations of the biopolitical caesura and that I have attempted to show in the context of their otherwise effaced system of historical and discursive relations.

Once animality is "perceived as the natural locus of madness," the ground zero of madness is shown to be inscribed by "a secret of animality which is its own truth, and in which, in some way, it is reabsorbed."[57] The coextensiveness

52 Derrida, *The Animal That Therefore I Am*, 40–1.

53 Foucault, *Madness and Civilization*, 74.

54 Martin Heidegger, *The Fundamental Concepts of Metaphysics: World, Finitude, Solitude*, trans. William McNeill and Nicholas Walker (Bloomington: Indiana University Press, 1995), 266–9.

55 Foucault, *Madness and Civilization*, 75.

56 Ibid., 76.

57 Ibid., 77, 76.

of the one with the other is what enables the production of a singular truth that offers the possibility for a "cure": "In reduction to animality, madness finds both its truth and its cure; when the madman becomes a beast, this presence of the animal in man, a presence that constituted the scandal of madness, is eliminated: not that the animal is silenced, but man himself is abolished".[58] The presence of the animal in man is eliminated precisely because the two can no longer be differentiated. Significantly, the animal is not silenced because it continues to rage in its unbridled bestiality and through its incoherent rants and grunts; what is abolished, in the process, is the human: "man himself."

3 Anthropocentrism's Aporias

Foucault's unpacking of the co-constitutive status of animal/madness culminates in a complex meditation on the philosophical and historical relation of animal to human. He identifies an aporetic moment in anthropocentric thought in which animality is at once "perceived as the natural locus of madness," even as animals are relegated to a space outside of nature: "It has doubtless been essential to Western culture to link, as it has done, its perception of madness to the iconographic forms of the relation of man to beast. From the start, Western culture has not considered it evident that animals participate in the plenitude of nature, in its wisdom and its order."[59] What emerges from this aporetic moment are the contours of what can be termed *anthropologocentric* thought, in which animals—as devoid of the logocentric attributes of speech, reason and the order of law—are outlawed to a domain on the hither side of the "plenitude of nature" and "its wisdom and order"— a domain now fully arrogated and coextensive with the figure of the *anthropos*/human: "In fact, on close examination, it becomes evident that the animal belongs rather to an anti-nature, to a negativity that threatens order and by its frenzy endangers the positive wisdom of nature."[60] At once inhabiting, aporetically, the 'natural locus' of madness *and* also exiled to an outside of nature devoid of the *logos*, animality can now proceed to incarnate its mad animal, self-evidently non-human subjects.

In the wake of the exile of animals to "anti-nature," Foucault immediately proceeds to raise, for the purpose of this chapter, his most challenging questions: "Why should the fact that Western man has lived for two thousand years

58 Ibid., 76.
59 Ibid., 77.
60 Ibid., 77.

on his definition as a rational animal necessarily mean that he has recognized the possibility of an order common to reason and to animality?"[61] The fact is that the Western human subject (a tautological construction) has largely operated on the refusal to recognize the possibility of an order of reason that also inscribes non-human animals' being in the world. Foucault then asks: "Why should he have necessarily designated, by this definition, the way in which he inserts himself in natural positivity? Independently of what Aristotle really meant, may we not assume that for the West this 'rational animal' has long been the measure of the way in which reason's freedom functioned in the locus of unreason, diverging from it until it constituted its opposite term?"[62] Reason's freedom functioned in the locus of unreason/animals up until the historical moment of emergence of the *anthropos* as, by definition, the opposite of the animal. Foucault rightly qualifies and delimits the emergence of this biopolitical caesura to the West. A study of Indigenous cultures, including Aboriginal, Native American and Hawaiian, evidences both epistemologies and cosmologies that are not predicated on this biopolitical caesura.[63]

As I suggested at the opening of this chapter, Foucault's exhortation in the incipit of his Preface—that "We must describe, from the start of its trajectory, that 'other form' which relegates Reason and Madness to one side or the other of its action as things henceforth external, deaf to all exchange, and as though dead to one another"—profoundly resonates on an entirely other level that remains largely unsaid in his text: that that other form that animates and haunts the foundational scission between reason and madness that Foucault so meticulously tracks is the biopolitical caesura between human and animal. The various practices of confinement, enchainment, brutalization and domestication that Foucault unfolds in the course of his history not only run parallel with his mapping of madness, they are at every turn inscribed, rendered intelligible and, critically, authorised by the West's biopolitical governance of animals. Situated in this context, his landmark *Madness and Civilization* can be read as an extended commentary on the very madness of anthropocentrism: on its epistemic structures of denegation; its unthought aporias; on the disavowals

61 Ibid., 77.

62 Ibid., 77.

63 See, for example, Yalata and Oak Valley Communities, with Christobel Mattingley, *Maralinga: The Anangu Story* (Crows Nest: Allen and Unwin, 2009); Andrea Smith, *Conquest: Sexual Violence and American Indian Genocide* (Cambridge, MA: South End Press, 2005), 62–4; Martha H. Noyes, *Then There Were None* (Honolulu: Bess Press, 2003), 7; and Valerie L. Kuletz, *The Tainted Desert: Environmental and Social Ruin in the American West* (New York and London: Routledge, 1998), 213–29.

that are mobilized in order to maintain a scission between categories that are ineluctably co-constitutive; on the practices of subjugation, disenfranchizement and extermination that it licenses with regard to its target subjects—all rendered generic and fungible through the strategic deployment of the definite article: *the animal* and the serial order that it constitutes: the mad, the native, the Other; and on its predication on economies of what Derrida terms "autoimmune auto-indemnification" against the killing of whatever is designated as Other.[64] Reading Foucault's *Madness and Civilization* through a deanthropomorphizing lens, what is disclosed is "a secret of animality" that, as the "presence of the animal in [hum/]man, a presence that constitutes the scandal of madness," must be eliminated at every turn in order to occlude the inextricable manner in which animals and humans exist "in relation to each other, in the exchange that separates them."[65]

In his reflective essay on "The Life of Infamous Men," Foucault attempts to bring into focus what he terms "an anthology of existences" that would otherwise remain historically unremarked and discursively marginalized: "fragments of discourse trailing the fragments of a reality in which they take part."[66] Faced with these obscure, "lowly lives reduced to ashes in the few phrases that have destroyed them," he questions why "it had been so important in a society like ours to 'suppress' (as one stifles a cry, smothers a fire or suffocates an animal)" these same lives.[67] Here, in the suspensive cage of the parentheses, an animal appears—only to be quickly put down. Traversing *Madness and Civilization* is a cavalcade of animals that informs the very ground for Foucault's meditation on the historicity of madness. Foucault's animals briefly morph into symbols or embodied existences that give weight and legitimacy to the exercise of carceral logics and corporal violence before they are once again "suppressed" and "suffocated" under the iron fist of anthropocentric thought. Caged in the parenthetical prison of speciesist language, they have been ruled by the "snares, weapons, cries, gestures, attitudes, ruses, intrigues for which the words have been the instruments."[68] As conjurations of a quintessentially anthropocentric discourse, they figure as mere fragments of a reality in which they take part.

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64 Jacques Derrida, "Faith and Knowledge: The Two Sources of 'Religion' at the Limits of Reason Alone," in *Religion*, ed. Jacques Derrida and Gianni Vattimo (Cambridge: Polity Press, 1998), 42.

65 Foucault, *Madness and Civilization*, 76, x.

66 Michel Foucault, "The Life of Infamous Men," in *Michel Foucault: Power, Truth, Strategy*, ed. Meaghan Morris and Paul Patton (Sydney: Feral Publications, 1979), 76–91 (76, 79).

67 Ibid., 77.

68 Ibid., 79.

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CHAPTER 2

Chinese Dogs and French Scapegoats: An Essay in Zoonomastics

Claire Huot

> Il paraît que la vérité vient doucement, à pas de colombe.
> La force, elle, laisse sur la terre des griffes de sa course.
>
> MICHEL FOUCAULT, "*La force de fuir*" (1973)

⁂

1 LeDogue, Foucault's Virtually Invisible Dog

I am prepared to swear on Mao Zedong's head that Michel Foucault did not live with a dog. Had he been living with a canine companion in the 1960s, when he wrote his chapter-length analysis of Velasquez's 1656 painting *Las Meninas*, he might have read it less anthropocentrically. 'Might have' because many of us, Foucault readers, art lovers and academics, who did not live with a dog in the 1970s and even 1980s, also did not then read much into the presence of a dog in the Velasquez painting. Foucault lists and describes eight characters (*personnages*), in the foreground and middle ground of the painting.[1] In fact, there are clearly nine, and the ninth is the mastiff who lies in the forefront of all of the others. Today, as the human-animal relationship has come front and centre in academic, as well as mainstream discourse, it is hard to believe that in the numerous threes, trios, triples, triangles and trilogies emerging from Foucault's analysis of *Las Meninas*, the dog is totally excluded. Eagle-eyed and expert decoder that he was, Foucault wrote page upon page on the representation of representation, on the visible and the invisible, on the multiple gazes and perspectives in this painting . . . all without acknowledging the dog's role.

1 Michel Foucault, "Les suivantes," in *Les Mots et les choses: une archéologie des sciences humaines* (Paris: Gallimard), 27. "Las Meninas," in *The Order of Things: An Archaeology of the Human Sciences* (New York, Vintage Books, 1970), 12.

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Laura Hobgood-Oster first noted Foucault's blindness to the dog.[2] She quotes the short passage regarding the dog in Foucault's chapter:

> The entire picture is looking out at a scene for which it is itself a scene. A condition of pure reciprocity manifested by the observing and observed mirror, the two stages of which are uncoupled at the lower corners of the picture: on the left canvas with its back to us, by means of which the exterior point is made into pure spectacle; *to the right the dog lying on the floor, the only element in the picture that is neither looking at anything nor moving, because it is not intended, with its deep reliefs and the light playing on its silky hair, to be anything but an object to be seen.*[3]

Hobgood-Oster aptly comments that "[t]hough 'man' is a recent invention, 'animals' must still be the consummate other and always remain object."[4] She does not pursue the matter further, except to say that she disagrees with Foucault's interpretation precisely because the dog is not given a role. Ironically, there are two mistakes in her very brief Foucault passage, which reenacts the virtual invisibility of the dog in Foucault's own analysis. First, Hobgood-Oster states that the dog "happens to be taking a nap," but he is sitting upright, therefore more likely awake and looking at something outside the frame; and, secondly, the text reads: "the image would be incomplete *with* the 'animal.'" Here a typo seems to have eluded both the critic and her editors; the text should read "*without* the 'animal'."[5]

Furthermore, Hobgood-Oster ignores two admittedly brief mentions of the dog in Foucault's chapter. He writes that, on the bottom left of the painting, it is the corner of the canvas that forms the tip of the perspectival figure X in the first plane and, on the right, the dwarf, to which he adds parenthetically: "(whose shoe is placed on the dog's back)."[6] Today, awakened to the animal in us, one glance at the painting corrects this glaring mistake. It is obvious to us now that the dog, not the dwarf, acts as counterpoint. The second mention of the dog is equally mystifying: Foucault states that the princess is surrounded "by a swirl of courtiers, attendants, *animals and buffoons.*"[7] No matter

2 Laura Hobgood-Oster, *Holy Dogs and Asses: Animals in the Christian Tradition* (Champaigne, IL: University of Illinois Press, 2008), 12–13.

3 Ibid., 12. Italics are mine.

4 Ibid., 13.

5 Ibid., 13.

6 "Les suivantes," 28.

7 Ibid. Translation and italics are mine.

how much I zoom in on and scan the painting, I see only a single non-human animal: the mastiff.

Because Foucault is the Foucault whose attention to detail is legendary, I/we cannot attribute the quasi invisibility of the dog, its lack of agency and of singularity, to Foucault's inattentiveness. I believe that what precludes him from including the dog in his analysis of the painting is language. Categories, as Foucault so clearly demonstrated, are created in language, appearing and disappearing with the discursive formations of a particular historical period. Foucault's 'man' in "'l'homme' est une invention récente" is historically datable to writings before the 1970s, where 'man/l'homme' was meant to include 'woman/la femme.' In English, "[t]he use of 'person' to replace the suffix '-man' in word compounds, in order to avoid sexist connotations, is first recorded in 1971 (chairperson)."[8] Even today, French-(men) continue to use 'l'homme' as referring to an all-encompassing: "Être humain (*sans considération de sexe*)."[9] Foucault was writing within a discursive formation that also separated man from animal. Hence, the painting's eight '*personnages*'; he cannot see nine. A *personnage* is a person who holds a certain position in a particular situation, including important people and characters in a theatrical representation. Foucault's choice of that term is correct but limiting. In English, 'personage' also exists as the 'body of a person,' and was originally just a longer word for 'person' which came from Old French, and which is no longer in use. Hence, in the English translation, *personnages* are rendered as 'figures,' 'characters,' and, in the case of royals, as 'personages.'[10] Had Foucault written his analysis in English and chosen the more encompassing term 'figures' or 'characters,' he might have counted up to nine figures or nine characters and increased his 'threesomes' exponentially.

Foucault, undeniably a lover of the *mot juste*, enjoys assigning the correct terms to things. He refers to everyone in the painting, including the dwarves and the attendants, by name and position, even though he tells us that naming each *personnage* in this way is but a reassuring identification of the individuals and certainly not a way of explaining away the painting. Given that the dog is

8 Online Etymological Dictionary, www.etymonline.com. All the following etymological explanations for English words come from this source.

9 Centre national de ressources textuelles et lexicales (CNRTL), www.cnrtl.fr/etymologie. All the following etymological explanations for French words come from this source.

10 *The Order of Things*. No translator named but on the Web, Alan Sheridan is credited as the translator. He lists it as his on his web page. Accessed May 8, 2013. http://alansheridanauthor.com/translation-philosphy.html.

in his eyes an object, it is not surprising that it has no proper name.[11] Slightly disconcerting is the fact that Foucault does not even give this particular dog, a tan-coloured hound, a more specific identity than 'dog.' In French, Foucault could have used the term 'mastiff,' or 'molosse' or 'dogue,' all terms that refer to large, solidly-built dogs instead of his non-committal 'chien' or worse, 'animal.' His lack of vocabulary here may indicate his indifference to certain beings. Chances are that the mastiff in the painting had a given name; he appears in another portrait as the hunting companion beside a King Felipe IV in hunting gear and on horseback. It is recorded that the King cherished his numerous dogs, large, medium and small, and that Diego Velasquez, his beloved court painter, shared with him this affection.[12] Having a proper name individuates, makes one, if not a person, at least a character. Let's call that figure in the painting LeDogue.

Nicolasito Pertusato, who is indiscriminately called by Foucault 'the Italian buffoon,' or 'the dwarf'[13] has one foot on LeDogue's back. He seems to be attempting some kind of balancing act and he is the only figure in the painting to look at the dog. One can imagine that he is attempting to amuse himself or the others by toying with LeDogue; or that he is nudging LeDogue to make him/her more attentive. Foucault repeatedly employs the term 'attentive' in describing his personages. The dog is the only figure not paying attention to the other personages, in or out of the painting. Yet LeDogue is extremely attentive. LeDogue is intently looking down at something outside the painting, precisely what we will never know. What/who is being scrutinized by LeDogue is far more of a mystery than the reflection in the mirror in the background that has excited art historians and theoreticians for so long. LeDogue is indifferent

11 I have not been able to find the name given to King Felipe IV's dog in French or English texts. Perhaps it is mentioned in Spanish texts. But maybe not: the Spaniards, like the French and the English, have only recently paid some attention to non-human companions in biographies and historical records. Whereas in China Emperor Qianlong had names for each one of his ten favourite dogs, for instance "Star-Gazer" and "Magpie", as can be read on their portraits.

12 The king and Velázquez shared common interests in *horses, dogs and art*, and in private formed an easy, relaxed relationship over the years. R. A. M. Stevenson, *Velazquez* (London: G. Bell Sons, 1912), 7. From Wikipedia page of King Felipe IV: en.wikipedia.org/wiki/Philip_IV_of_Spain. Italics are mine.

13 In both the French and English version, Nicolasito Pertusato has been further diminished by a drop of two letters in French, Nicolaso (Foucault, *The Order of Things*, 25) and three in English, Nicolas (9). His role in the painting is attributed barely more significance than LeDogue's.

to the other characters' looking games. On one point regarding the dog in the passage quoted above, Foucault is right: LeDogue is not moving.

That stillness should not turn LeDogue into an object strictly to be seen. LeDogue is acting as a dog: keeping still, watching, until movement is required and opportune. In French, this notion of the still dog is not a typical representation of canines. Dogs in French connote motion. In a group, they are not, as in English, a reified 'pack,'[14] but an active *meute*, a term that comes from the Latin *movere* in its past participle, *movitus*, or 'moving.' The same etymology applies to 'riot, uprising, mutiny,' which in French are *émeutes*. From the twelfth to the sixteenth century, the word *meute*, a pack of dogs, also meant 'uprising, riot, expedition.' The one-letter prefix *é* has since erased the connection between dogs and rebellious upheavals. The *meute* has been muted. In Foucault's analysis of *Las Meninas*, the idea of canine agency is not even moot.

2 Foucault's Disembodied Cynics

In 1983, almost twenty years after the publication of *The Order of Things*, Foucault delivered six lectures in English that were posthumously compiled under the splendid title *Fearless Speech*. The lectures deal with the concept of truth, or *parrhesia* in Greek.[15] The fifth lecture focuses on the Cynics as heroic practitioners of truth. Of course, a classically trained scholar like Foucault does not fail to note that the origin of the word 'cynic' is Greek and means 'dog-like' (*kynikoi*); he also points out that the most representative Cynic philosopher, Diogenes of Sinope, was called 'The Dog' by none other than Aristotle in his *Rhetoric*.[16] But here Foucault abandons canine references. Throughout the lecture, the dog is left outside the room, out of the discussion. Is this omission what Paola Cavalieri calls a 'missed opportunity';[17] or is it a willed defiance to state the obvious? Foucault fails even to provide the Greek word for dog: *kuōn*. Diogenes was nicknamed Dog, '*kuōn*,' which is not 'dog-like,' '*kynikoi*,' but dog *tout court*. Having airbrushed LeDogue out of the painting, Foucault

14 It is noteworthy that the term 'pack' for a group of animals is only used for dogs and wolves. The far more encompassing term is 'herd.' More on this topic in Section 5.

15 Michel Foucault, *Fearless Speech*, ed. Joseph Pearson. (Los Angeles: Semiotext(e), 2001), 115–133.

16 Ibid., 122.

17 Paola Cavalieri, "A Missed Opportunity: Humanism, Anti-humanism and the Animal Question," in *Animal Subjects: An Ethical Reader in a Posthuman World*, ed. Jodey Castricano (Waterloo: Wilfrid Laurier University Press, 2008), 97–123.

now brushes aside not only superficial but more profound links between the canines and the philosophers called the Cynics.

And yet, Foucault knows these philosophers well. He knows that their practice of truth is a practice of embodying it, not of speaking or writing about it: "Even though Cynic philosophers wrote books just like other philosophers, they were far more interested in choosing and practicing a certain way of life."[18] He tells us that their way of life was outdoors, or in the liminal indoor/outdoor space of the agora. In a style unusual for him, Foucault strings together several adjectives: "[The Cynics] thought that their teachings had to consist in a very public, visible, spectacular, provocative, and sometimes scandalous way of life."[19] Other attributive adjectives Foucault uses frequently in this lecture on the Cynics' life-style and attitudes are 'radical,' 'natural' and, several more times, 'scandalous.'

Foucault is not known for an excessive use of epithets. Perhaps he is refusing to give in to the obvious and widely used metaphorization of humans into canines by piling on modifiers to qualify his description. Perhaps the unusual style comes from the fact that he delivered these lectures in English and that they were transcribed and edited by someone else, and after his death.[20] His exceptional sense of logic is certainly at work as he discerns three forms, or techniques of *parrhesia* or bold speech used by the Cynics. 1) The inversion of roles: Alexander the Great is ordered by Diogenes to step out of his sun ray; 2) the displacing or transposing of rules to make them arbitrary: Diogenes crowns himself, and also a horse during an athletic competition; 3) the universalizing of rules to absurd ends: if eating is fine in public, then masturbation, also a satisfying of bodily needs, can be done in public.[21]

These performative actions on the part of the Cynics clearly have more impact than their speeches. They are obviously meant as transgressions of social and political orders. But they are also imitating the behavioral patterns of canines. Who has not observed the way a dog basking contentedly in the sun will not be budged by anyone. Here I would like to introduce three Chinese proverbs involving dogs, which can be used to describe the Cynical situations or techniques identified by Foucault. The first *parrhesia*, the inversion of roles, might be evoked in the proverb 'Commoner Zhi's dog barks at Emperor Yao': the dog shows no respect for hierarchy. A second proverb, 'A dog catches

18 Foucault, *Fearless Speech*, 115.

19 Ibid., 117.

20 I have been unable to find any comment about the quality of the translation. Strangely enough, *Fearless Speech* has been translated into German and Italian, but not into French.

21 *Fearless Speech*, 120–122.

mice,' that is, the dog usurps the cat's job, displaces the rules and makes them arbitrary. A third proverb, 'A dog will always eat shit,' connotes a deviant sexual habit that transgresses the social norms of human behaviour.[22]

I have given examples from the Chinese, the oldest still-extant language and civilization because it was from very early on extremely knowledgeable about the ways and traits that are common to both canines and humans. Humankind's very first Other was the dog. In the Chinese written system, the dog has a special status unlike any other animal as stand-alone and stand-in for the human. The most striking word for dog, *quan* (coincidentally very similar phonetically to the ancient Greek word for dog, *kuon*) is identical to that for human, except for the addition in the top right-hand quadrant of a dot. The written character for human is a stick figure, 大 and that for dog, 犬. A human can also be written thus: 人 or tilted sideways as 亻. One character combines the character for 'man' 亻 with that for 'dog' 犬 to form 伏, an extremely polyvalent word that can refer to many actions, including to bend over, to fall, to subside, or to tame, none of which are more human than animal. It is a word that indicates the absolute interdependence of these two species from the very beginning of civilization. Even the name of the legendary founder of Chinese polity contains this word: Fu Xi 伏羲.

In Western thought, the dog also occupies a position of preeminence among the non-human animals. Most histories of Western philosophy cite Plato as the first to invoke the figure of the dog, forgetting that the Cynics did so before him. Accounts of dogs in early philosophy tend to dwell on the rationality of the hunting dog, Chrysippus' calculating dog, or again to offer an anthropomorphized image of the loyal dog.[23] But the Cynics came first, and they not only spoke of, but acted like dogs. They did not boast ownership of a smart dog; rather, they lived with the dogs. They laughed and scorned humans, and were in turn laughed at and scorned like dogs, and finally brushed aside into the margins of history.

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22 The Chinese proverbs are taken from 漢典 [Handian—Dictionary of Chinese], http://www.zdic.net/. Here are the original proverbs: 跖狗吠尧, 狗拿耗子, 狗改不了吃屎.

23 Plato speaks of the philosophical dog: "The dog changes his behaviour towards man depending on whether he knows him or not, thus he acts on the basis of knowledge and 'shows a true love of wisdom.'" *Republic* II, 375a–376c, Greek ed. with Eng. tr. by P. Shorey (Cambridge, Mass.: Harvard U.P., 1930) vol. I, 173. According to Olympiodorus, Socrates himself used the oath 'by the dog' because of the rationality of the animal. The above is quoted by Luciano Floridi in "Scepticism, Animal Rationality and the Fortune of Chrysippus' Dog," *Archiv für Geschichte der Philosophie* 79 (1) (2007): 27–57. Accessed May 6, 2013. http://www.philosophyofinformation.net/publications/pdf/sar.pdf.

Like dogs, the Cynics lived a liminal existence, either outdoors, or in the marketplace. They had no property. They were the first western pariahs. It is interesting to note that the term 'pariah,' which comes from the Tamil word *parai*, literally meaning 'to say or tell something,' applies to both humans and dogs as outcasts or lower caste.

Foucault mentions, if only briefly, another link between the Cynics and Asian philosophies. Although he supports Farrand Sayre's hypothesis that the Cynics were in a sense a consequence of expanding conquests of the Macedonian empire, which exposed Greeks to various Indian philosophies, including the Gymnosophists and other ascetic groups, Foucault elaborates no further. A number of details would have given more weight to this suggested Asian connection. For example, the fact that the Gymnosophists were called the 'naked philosophers' because they disdained food and clothes. Although the Cynics vociferously called for the satisfying of bodily needs, they were generally clothed in rags and, like feral dogs, had to make do with what was tossed their way. What is noteworthy and common to both Gymnosophists and the Cynics is the importance accorded to the body as a vital ground for philosophy, and also the view of the human as an integral part of nature rather than separate and superior to it. Asian philosophies, whether Indian or Chinese, seek unity with nature. The Daoist philosopher Zhuangzi declared that there is nowhere where the Dao is not. When pressed to locate the Dao, he answered, 'in shit and piss.'[24]

In his lecture, Foucault strangely disembodies the Cynics, and insists on incorporating them within the tradition of Greek logocentric philosophy: "The Cynic attitude [...] is an extremely radical version of the *very Greek* conception of the relationship between one's way of life and knowledge of the truth."[25] His Cynics seem meek, their 'fearless speech,' timid. Foucault's inability to see the Cynics' affirmation of the body and their resistance to anthropomorphism as critically important to his own philosophical enquiry may be symptomatic of what he himself calls an "unproblematic field of experience, or a set of practices, which [are] accepted without question, which [are] familiar and 'silent,' out of [the] discussion."[26]

The truth of the matter is that the Cynics' contribution to 'our' world may be situational humor, a humor of a kind that does not fear salaciousness, vulgarity, self-deprecation. Indeed, being cynical is not merely having a low—Cynics

24 "在屎溺。" 庄子 [*Complete Works of Zhuangzi*], Section XXII. 97. http://classnet.yizhong.xm.fj.cn/zyw/admin/edit/UploadFile/20084218361719 6.pdf

25 Foucault, *Fearless Speech*, 117. My italics.

26 Ibid., 74.

might say a realistic—opinion of humanity; the Cynic makes fun of humanity, with him or herself as the first target. Cynicism brings humans down from their pedestal. Such a philosophy would perceive humans less like gods and more like dogs.

3 Canine Wisdom

It is uncertain to what degree cynicism came to Greece from Asian sources back along the route of the former's imperialist expansion. What is now more certain, thanks to recent scientific revelations, is that the origin of the *Canis familiaris* is Chinese. Recent mitochondrial DNA research indicates that those pariah dogs with whom the Cynics hung out originally came from China—not, as previously thought, from India, or from multiple sites in Asia and Africa. China, according to genetic research, may be the sole originating center of dogs.[27] It is therefore not surprising that canine knowledge is solidly imbedded in Chinese writing. What may surprise some is that, in the structure of the written Chinese language, dogs are not scapegoats, but rather active partners of the human, and oftentimes stand-ins for us. Although silenced, when it is not completely erased, the dog as metonymical figure for the human can be discerned in the Chinese writing that dates back to the latter half of the second millennium BCE. It is nevertheless true that since the Song Dynasty, 12th century or so, Chinese, in comparison to other languages, contains the greatest number of derogatory terms using the dog. The Chinese dog is a linguistic scapegoat for human deviancy. In the past, the dog's status in China was high—somewhat similar to the present caniphilia of the West, if you discount the dog as food in early China.

In Chinese, a written character consists of one or more components, most frequently a semantic component and a phonetic one. I've mentioned the quasi-graphic identity of the characters for human and dog. Now I would like to briefly display words containing the semantic component 'dog,'[28] to show

27 Jun-Feng Pang, Cornelya Kluetsch, et al., "mtDNA Data Indicate a Single Origin for Dogs south of Yangtze River, Less than 16,300 years Ago, from Numerous Wolves," *Molecular Biology and Evolution* 26:12 (2009): 2849–2864, accessed May 4, 2013, doi: 10.1093/molbev/msp195.

28 Depending on the position of the radical in the character, it can appear as the character itself, 犬 or turned sideways: 犭. Compare with the 'human': 大 or 亻. For more details on the graphics of Chinese characters for 'dog,' 'human,' and the implications, see my research

the range of abilities and attributes assigned to the human via the 'dog' written as 犬 or 犭.

The word 獨 means 'alone, individual, solo,' sometimes also 'sovereign.' China's first dictionary, the *Shuowen Jiezi* 说文解字 [Explaining and analyzing characters] highlights the presence of the 'dog' component in that word by saying that the dog acts as an individual, in contrast to herded cattle.[29] The dog is the shepherd.

The Chinese word for 'self' is the character for 'nose': 自. In many cultures, it is customary to point to one's own nose instead of one's heart to refer to the self. Dogs also point with their nose, although not to themselves. The nose in Chinese writing is not exclusively human; one could say it is foremost canine. The character for 'to smell' is composed of 'nose' and 'dog' 臭, acknowledging the dog's indisputably superior sense of smell.

The primary sense in Western philosophy, the gaze, is also constructed in Chinese with the component 'dog' 犬 to which you add the 'eye' 目: 昊. This is the sovereign fixating look, where the dog stares and surveils. It is the sustained look of Velasquez's LeDogue, which Foucault oversaw.

The mouth, in Chinese, is also combined with a dog component: two mouths 口口 along with a dog 犬 comprises the word 'to cry': 哭. Originally the word meant 'to howl,' but by the time of the first dictionary in 121 CE, it referred to that action considered until recently to be the sole property of humans: 'to weep.' That the dog would figure in many words related to noise, such as barking, yelping, snarling is easily understandable, but in this case the dog is associated with this presumed exclusive human expression of sorrow.

It is highly likely that in the near future, the Chinese will erase the canine dot that differentiates human from dog in the word 'to weep.' Since the Song dynasty, they have been eliding the dog component for words that have no felt connection with dogs but rather with humans: 'to laugh' or 'smile:' 笑; 'to reward,' or 'award': 奖, for instance. Another word that shows human/canine cognitive skills is the word 'to infer' 猜 which as yet remains untouched even though it has the 'dog' component. On the other hand, several words that carry the dog component and connote thinking processes or actions that humans are not always ready to claim as theirs alone will most likely be left with the 'dog' indicator: to guess, to scheme: 猷; to violate, transgress: 犯; to feign: 狀;

article "The Dog-Eared Dictionary: Human-Animal Alliance in Chinese Civilization," *The Journal of Asian Studies* 74:3 (2015): 589–613, doi: 10.1017/S0021911815000571.

29 SHUOWEN.ORG. 2006–2015. Shuowen jiezi 說文解字 [Explaining and analyzing characters]. Accessed March 7, 2015. http://www.shuowen.org/

to be mad: 狂; cunning: 猾; obscene: 狃. These negative behavioural patterns will be left to the linguistic scapegoat that is the dog.

Returning to French and English, we can distribute the qualities and behaviours ascribed to dogs (and to humans) into two camps: on the one hand, the Greek-philosopher dogs who are calculating—they will adopt an attitude of servility out of self-interest, for example; and on the other, the Cynics and their entourage of dogs who, in a sovereign fashion, ignore rules—in other words, the deviants.

4 French/English Scapegoats

The deviants Foucault studied—the lepers, the mad, the insane, the diseased, the criminals, and always somewhere included with them, the homosexuals—are in fact scapegoats, personages oppressed in a particular situation and time. For their deviance and defiance, they are reined in, treated as dogs, or segregated like chained beasts. Foucault employs terms usually reserved for non-human animals as they are used in historical records. That is particularly the case in Chapter 5, "Les Insensés" (The Insane) of his *History of Madness*.[30]

Foucault often uses the term '*animalité*' in a way that actually maintains its original meaning in Latin, and in Old French, from the end of the 12th century onward: "the set of faculties which characterize living beings."[31] In this early definition, the term includes human beings. However, by 1778, as attested in Jean-Jacques Rousseau's work, the term meant "the set of characteristics of the animal (as opposed to those of man [sic])." And by 1788, with Buffon, it referred to "the animal part of man, as opposed to his soul." While 'animalité' comes from the Latin word '*animalitas*,' Rousseau and Buffon's exclusion of the human has no basis in Latin and probably evolved from the French term 'animal.'[32]

Interestingly, the English word for '*animalité*,' 'animality' did not travel the same route as the French: it was borrowed directly from the French, not the Latin, and at a late date, some time in the seventeenth century by which time the term had already bifurcated into animal versus human. This explains

30 Michel Foucault, *Histoire de la folie à l'âge classique* (Paris: Gallimard, 1972); *History of Madness*, trans. Jonathan Murphy and Jean Khalfa (London: Routledge, 2006).

31 CNRTL, op. cit. 'animalité' entry.

32 This latter term, 'animal' also included humans, from its Latin inception onward, whether in French or in English. It meant: a living being, being which breathes; 'animal' itself came from the Latin 'anima', that is 'breath, soul.'

why the English term, which appears synonymous to the French, is not its equivalent: it more exclusively opposes animals to humans. Undoubtedly this explains why the English translation of Foucault's 'animalité' varies throughout the chapter. The single French word is lost in its translation as 'bestiality,' more frequently adjectivally as 'animal,' or as a syntagm such as 'animal violence,' 'animal world,' and twice only, as 'animality.' None of these English solutions preserve the French etymological force that Foucault implies in his use of 'animalité.' His 'animalité' does not refer to the animal versus human 'world' or 'nature'; nor to bestial versus civilized beings. It is inherently part of us humans and nowhere implies negative connotations. 'Animalité' is instead infused with the power of manifestation, of demonstration, which comes from a fierce will. Foucault seems to suggest that the will to power is that 'animalité.' This is not obvious in English.

The natural fury of the insane is a testimony of the immediate (non-mediated) violence of 'animalité' (the immediate animal violence) (197; 147).[33] The insane are violent and have outbursts of fury, which is rendered in English as 'the insane in their moments of frenzy' (198; 147). Foucault also frequently uses the term 'fureur,' which is weakened in English by translating it as 'frenzy.' 'Frénésie' means furious delirium and Foucault's vocabulary is cautiously non-psychological. He never uses the term passion, either. 'Fureur' is, to use a cliché, a force of nature, such as the furor of waters unleashed in Corneille's *Cinna*.[34] 'Unleashing,' 'déchaînement,' is actually a term Foucault employs frequently, as in "le déchaînement de leur fureur [. . .] imaginé sous les espèces d'une liberté animale," which the English translation conveys as: "these fits of madness are seen as a kind of animal freedom" (198; 148).[35] Again here, the translation reduces the infinitive power of the terms: 'fits' instead of 'unleashing,' 'kind,' as in 'sort of,' instead of a 'species' as in 'biology.' The term 'liberté' is also used liberally by Foucault; most often, it is translated in English as a behavioural 'liberty,' never as the 'freedom of' expression, association, or freedom *tout court*. In the above English version, animal freedom is mitigated by the phrase 'kind of,' that modifies it. Indeed, the English translation opts for a psychologizing

33 The first page number is the French pagination; the second, the English. *Histoire de la folie à l'âge classique*/ *History of Madness*, op. cit.

34 Online CNRTL: 'fureur' entry.

35 To be fair, the translators use the term 'unleashing' once for Foucault's pet term 'déchaînement.' However, when they do, the term 'frenzy' again weakens the assertion: "a space of unpredictable liberty where frenzy was unleashed" ("un espace d'imprévisible liberté où se déchaîne la fureur") (201; 150).

vocabulary most of the time: 'dérangement de moeurs' becomes 'behavioural disturbances' (190; 141); 'dérèglement,' a mechanistic 'unhinging' (185; 137).

Applying Foucault's grammatical method of analysis to the translation, the '*animalité*' words have lost their substantial substantive force in English (156; 209);[36] they have been turned into meek adjectives, or worse, tropes (as in 'kind of'). 'La force de scandale' becomes 'such scandalous force' (191; 142) rather than 'the force of scandal'; 'le scandale toujours possible,' 'the scandalous possibility' (207; 155) rather than 'the still (or always) possible scandal'. Foucault uses forceful language, very close to its etymology, as in this case: the noun 'scandale' (which he uses repeatedly in his speech on the Cynics) carries its etymological meaning of 'bad noise.' Scandal here carries no moral connotations, but rather is used by Foucault to defy moralist interpretations.

Foucault places a great deal of weight into his words, for example, on the substantive 'will.' "That individual power of man [sic] which is [his] will" (185)[37] is decodable as 'animal.' When humans are their own sole referents, what lies at degree zero is our '*animalité*':

> L'animal en l'homme n'a plus *valeur d'indice* pour un au-delà; il est devenu sa folie, sans rapport à rien d'autre qu'à elle-même: sa folie à l'état de nature. L'animalité qui fait rage dans la folie dépossède l'homme [sic] de ce qu'il peut y avoir d'humain en lui; mais non pour le livrer à d'autres *puissances*, pour l'établir seulement *au degré zéro de sa propre nature*. (The animal in man no longer has the indexical value of a beyond, but has become his madness, with no link to anything other than itself, his madness in a natural state. The animality that rages in madness dispossesses man of what human element may be in him; not so that he might be delivered to other powers, *but rather to simply set him at the degree zero of his own nature*.)[38]

36 When Foucault discusses the loss of the noun 'déraison' and its vestigial presence as an adjective. In the chapter under discussion, he uses the obsolete noun several times.

37 The English translation is a grammatical contortion, implying the opposite of agency: "the individual power given to man in his will" (137).

38 The English translator chose the past tense for this passage. I believe that goes counter to Foucault's intemporal, ongoing present: "The animal in man was no longer the indicator of a beyond, but had become in itself his madness, with no reference to anything other than itself, his madness in a natural state. The animality that raged in madness dispossessed man of his humanity, not so that he might fall prey to other powers, but rather to fix him at the degree zero of his own nature." (198; 148).

The animal, the madness are here indicators of a will that is human, *because it is* animal agency. The powers are not powers that be, they are powers of our *animalité*, our common denominator, which is also our degree zero.

Animalité as inherent to the human was clear to the Cynics, and remains embedded in the Latin, English and French languages' common roots. Foucault uncovers, dusts off these animal roots. "It was probably essential for Western culture to link its perception of madness to imaginary relations between men and animals. *It was never absolutely clear that animals were part of the fullness of nature*, its wisdom and [good] order; [. . .] *maybe not yet today*."[39] Had Foucault lived two more decades, he might have written The Birth of the Kennel.[40]

Foucault, in his at times terse manner, states that Western philosophy became anthropology (203; 151). He is claiming that Western philosophy has been focusing on the strictly human, on human remains and has not remained a philosophy encompassing all living beings, something to which most Asian philosophies aspire. He ends his chapter with allusions to Nietzsche and Freud who have opened up the register of what is human, especially to 'the animal in us'. We would have to wait for Nietzsche for scandal to regain "its power of manifestation" (152–3). "Contemporary man [sic], since Nietzsche and Freud, finds within himself a black spot that threatens all truth, and is able to read *the signs of fragility* from where unreason threatens [. . . .] (157, translation modifed).

In the footsteps of Nietzsche and Freud, Foucault adds that man is a passing postulate.[41] Whatever was previously conceivable as strictly human does not exist. Individual will is an animal agency. Foucault unfortunately died before posthumanist studies emerged.

5 The Howling Hound

Foucault is regarded as "plausibly the most authoritative French heir to the Nietzschean tradition."[42] And yet, unlike Nietzsche, Foucault has no 'bestiary.' We have seen that Foucault does not consider relations between species and even less, breeds. Although Foucault is, like Nietzsche, interested in potenti-

39 Michel Foucault, *History of Madness,* 151. Translation modified.

40 Donna Haraway's tongue-in-cheek addition to Foucault's list of 'Birth of' books (clinic, prison, bio-politics) in her homage to Foucault in her lecture of the same name, delivered in August 2000. Accessed May 11, 2013. http://www.egs.edu/faculty/donna-haraway/articles/birth-of-the-kennel/

41 "L'absence d'oeuvre," annex to *Histoire de la folie,* 582.

42 Paola Cavalieri, "A Missed Opportunity", 98.

alities, in power relations, he works in a totally different register. He weighs words, their sounds, their etymology and their rhetorical use, but never plays with them like the German philosopher-philologist, Nietzsche.

Nietzsche deploys his characters, including the 'I,' to perform, to act out roles. The non-human animal players are not divided into a binary of the 'wild' versus the 'herd.' For Nietzsche, the dog, very much like the human, is an example of a being with the potential to be both wild and part of the herd; either in turn or at the same time, the tail-wagging sycophant and the howling wolf hound. Indeed, the dog is also always more than that: the dog is an integral part of the human experience. "I have given a name to my pain and call [it/him] 'Dog.' [He] is just as faithful, just as obtrusive and shameless, just as entertaining, just as clever as any other dog—and I can scold [him] and vent my bad mood on [him], as others do with their dogs, servants and wives."[43] This tongue-in-cheek declaration offers a sampling of the dog's cognitive abilities, and also presents the dog as the scapegoat one beats into docility. It also recognizes the dog as an integral part of the human experience.

It is perhaps, in *Zarathustra*, that the dog is most prominent.[44] Here, the dog is contrasted with the wolf, as the slavish person is to the Super person: "Virtue for [the bedwarfed] is what maketh modest and tame: therewith have they made the wolf a dog, and [the hu]man himself [the hu]man's best domestic animal."[45]

But Nietzsche's dogs are most often markers of the life force itself, a *force de la nature*. "Is the wind not a dog? It whineth, it barketh, it howleth. Ha! Ha!"[46] This Nietzschean dog is a Chinese dog. In Chinese writing, two dogs together refers to noisy quarreling: 犬; three dogs running together refers to sudden,

43 This is Gary Shapiro's translation of Aphorism 312 of *Gay Science* in "Dogs, Domestication, and the Ego," in *A Nietzschean Bestiary: Becoming Animal Beyond Docile and Brutal,* ed. Christa Davis Acampora and Ralph R. Acampora (Oxford: Rowman & Littlefield Publishers, 2004), 55. I have switched the neutral 3rd person to the masculine because a dog, 'Hund' in German, like the word 'pain,' 'Schmerz,' is masculine. And in any case, 'it' is not a person. Nietzsche's complete works in German can be found online. Accessed December 5, 2015. http://www.textlog.de/nietzsche.html

44 So claims Gary Shapiro in his article, "Dogs, Domestication, and the Ego". Although I am taking a different track, I remain indebted to this scholarly article and consider that I am following Shapiro's lead.

45 *Thus Spake Zarathustra*, part III, 49, Two. Trans. Thomas Common. Project Gutenberg. Accessed December 5, 2015. http://www.gutenberg.org/files/1998/1998-h/1998-h.htm. I have substituted the word 'man' for 'human' and 'person,' which corresponds to the German 'Mensch.'

46 *Zarathustra,* Part iv, 79, Eight. Op. cit.

swift and clamorous moves: a gush, a gust of wind: 猋. In Chinese, dogs are noisy creatures like Nietzsche's howling hound, the '*heulende Hund.*'

Given Foucault's anti-metaphoric style, one can say that dogs, like the Cynics, are the force of *scandale* which, at root, is noise. It is fair to say that Nietzsche and Foucault share an affinity with the unleashed, the creatures who transgress conventions. In Chinese, the idea of transgression contains the 'dog' component, 犯. Foucault also constructs ideas and concepts with words that have maintained something of their etymology, something that has been erased over time.

By contrast, Nietzsche revels in figures of speech, from the metaphor to the allegory; he does not fear anthropomorphizing, superlatives and exclamations. This notwithstanding, I would like to show how, in Nietzsche, the dog is always both metonymically human *and* a figure of speech. This dual positioning is enacted in "The Vision and The Enigma" of *Zarathustra*.[47] Here we encounter 'I' speaking softly, then suddenly hearing a dog howling nearby. This sends 'I' back to relive a childhood memory, also about a dog howling. At that time, the dog had seen a ghost and had been terrified. The 'I' tells us that this elicited his commiseration. And now the dog howling elicits the 'I''s commiseration once more. After wondering whether he is dreaming or not, the 'I' then discovers there is also a man there. It is unclear where 'there' is, but dream or not, the dog, the man and the 'I' are together in this scene. At this point, we realize that the man is a shepherd. We now have an alliterative trio: the Hirt (shepherd) has joined with the Hund (hound) and the Herr (man). But, once the latter is identified as a shepherd, the dog disappears. Why?

Perhaps the dog has become the shepherd, the one who controls the herd (Heerde, same word in English), who wills others to move on, in the Chinese sense of the dog as herd guardian. The dog disappears as the one who howls and joins the other leaders of the pack, not as a member of the herd but as a Held (a hero). The letter 'H' has been at the heart of this enigmatic passage, wherein canines and humans become interchangeable.

The shepherd as dog *and* as human becomes more obvious as the rebus-like story unfolds. The canine teeth come into play. The 'I' tells the shepherd to bite; the shepherd bites as instructed: "No longer shepherd, no longer [hu]man—a transfigured being, a light-surrounded being, that laughed! [...] I heard a laughter which was no human laughter,—and now gnaweth thirst at me, a longing that is never allayed. My longing for that laughter gnaweth at me; oh, how can I still endure to live! And how could I endure to die at present!" The commonality of the human-animal in its *animalité* is manifest

47 *Thus Spake Zarathustra*, part III, 46, Two. *Op. cit.*

here. Even more so, when one considers that, in German, there are two words for the action of eating, 'essen' and 'fressen,' and the latter with its additional fricative is usually reserved for non-human animals. It is *fressen* that Nietzsche employs in the quote above. In English, *fressen* is aptly translated by 'to gnaw.' But it lacks the alliterative *frisson*.

In his article on Nietzsche and dogs, Gary Shapiro concludes: "And the shepherd, in his superhuman laughter, becomes something other than a shepherd. He will no longer be either domesticated or domesticator, for reflection on the canine condition reveals that these are two sides of the same coin."[48] This yin and yang, heads or tails image is on the mark. One might read the canine-human complementarity more radically: without the canine, there is no human, and vice versa. Nietzsche's enigma reveals the fiction of the fixity, singularity and exclusivity of the agent or of the single individual. What is enacted is a radical individualism, a sovereignty of the individual that is dynamic *and* shared. The will to live, the *force de la nature*, the *force de scandale*, is animal in its all-encompassing potentiality. That is made clear in Foucault's text for an exhibition of dogs behind bars entitled "Prisoners": the French word *force* is repeatedly used in connection with dogs and human prisoners in their will to access verticality and power, to stand up and howl.[49]

In Chinese, the dog is Nietzsche's howling hound and wind and is also Foucault's will-to-power that he refers to as 'animalité.' Indeed, the two common words for dog, 犬 [pronounced 'quan'] and 狗 [pronounced 'gou'] embody even phonetically those life force qualities: the dog 'gou' is so named because it can bark, 'kou' 叩. The dog 'quan' calls forth two homonyms of '*force*' as 'maverick' 全 and 'powerful' 权 [also pronounced 'quan'].[50]

Hence my bewilderment to discover scholars reading Foucault's *animalité* as inextricably linked with madness and/or wildness;[51] or linking Nietzsche's human to 'animals' in general.[52] The German language differs from the French (and the English) when it comes to naming animals and naming that condition or potentiality Foucault speaks of at length, *animalité*. Unlike English, German

48 Shapiro, "Dogs, Domestication, and the Ego", 59.

49 "La force de fuir," a text for the exhibition "Prisonniers" of Paul Rebeyrolle's paintings, which represent dogs behind fences. *Derrière le miroir* 202 (1973): 1–8.

50 Ancient Chinese dictionaries apposed like-sounding words, in lieu of a definition. Paranomasia was not used lightly: homonyms were quasi-synonyms.

51 See Clare Palmer's article "Madness and Animality," in *Animal Philosophy: Essential Readings in Continental Thought*, ed. Peter Atteron and Matthew Calarco (New York: Continuum, 2004), 72–84.

52 See Paola Cavalieri, "A Missed Opportunity", 99–100 and Note 10, 114.

has no similar sounding noun. The German for animals is *Tieren*. Nietzsche refers to specific animals, such as the hound. Nietzsche's choice of species may be motivated by a desire to use the masculine, and not the neutral. No animal in French is neutral. But in German, the 'animal,' *Tier* is neutral, whereas dog for instance, *Hund*, is masculine. In Aphorism 215, the word 'animal' is nowhere to be found, except in the title that is '*Opfertiere*,' which means 'sacrificial animal.'[53] In the online translation, this is translated as 'victim.' Perhaps, in order to retain the interchangeability of human and animal so dear to Nietzsche's heart, 'scapegoat' would be a more fitting rendering.

Foucault, who read German, did not adopt the word *animalité* from Nietzsche, who was partial to particular animals for particular situations. Yet, Foucault's *animalité* is closer to the German word for 'animalness,' *Tierhaftigkeit* or *Tierischheit*. In the French language, the suffix *–ité*, indicating concepts is the equivalent of the suffix *heit/keit* in German. English words ending in -ity often originate from the French, and then take on another meaning. Foucault wrote from within his own language's logic, etymology and grammar. Writing and reading across languages can help bring to the fore coincidences, forgotten etymologies, but also *faux amis*, false cognates, which are rampant in French and English so-called abstract terms. A translingual practice[54] may prove to be useful in deciphering what is translated and not translated in philosophical texts (among others).

6 *C'est du chinois.* AHAHAHAHAH! 哈哈! Ha ha!

One onomatopoeia is grosso modo the same in languages, the 'Ha ha' of laughter, the sound of which can be repeated to indicate the degree of mirth, from the reserved to the hearty haha-ing. Nietzsche laughs with the dog and Zarathustra. Foucault laughs with Borges. In his preface to *The Order of Things*, Foucault admits, thrice, that Borges' Chinese classification of animals, the "Celestial Emporium of Benevolent Knowledge" makes him laugh. It's not Nietzsche's frank roaring, but a joyous laughter. He's laughing at a French translation of a Spanish rendering of the 'animal' entry of a mock Chinese encyclopedia.

53 Ibid., where she quotes, therefore, validates a 1997 translation by R. J. Hollingdale of Nietzsche's *Daybreak*, Aphorism 215.

54 'Translingual Practice' is a term coined and used by Lydia H. Liu to present the complex network of adoption, rejection and adaptation of other cultures and languages at the onset of modern China. *Translingual Practice: Literature, National Culture, and Translated Modernity—China, 1900–1937* (Stanford: Stanford University Press, 1995).

What makes him laugh is the stark impossibility to think this. In French, one would say: *c'est du chinois*. The equivalent in English: it's Greek to me. Both expressions refer to incomprehensible speech by comparing it to a written system that is not the Latin alphabet and so incomprehensible. Foucault laughs because the fourteen categories that supposedly encompass all animals for the Chinese make no sense. There are overlaps, meta-entries, hold-alls and glaring omissions. The reassuring Linnaean classification that orders and hierarchizes living beings is absent. The list containing heterogeneous entities is an 'atlas of the impossible' which gives both this *and* that, which lacks the little 'is', has no locators, and no common denominator. That 'animal' entry is transgressive.

Foucault nevertheless questions our Indo-European way of ordering as just one among so many possible other ways. Language is the grid upon which categories are deployed, language determines what is the same and what is different. Foucault notes that people with aphasia, for whom words are difficult to put in sequence, also cannot string together things in their 'proper' way. They are grammatical deviants. Foucault studies and roots for liminal creatures, those who act fiercely, and unconventionally.

Near the end of the preface, and again at the very end of *The Order of Things*, Foucault insists that 'man' (sic) is Western culture's invention and that it may very well be just a fold in our knowledge, a passing thing, "as soon as that knowledge has discovered a new form."[55]

Foucault is opening the door to other cultures and languages. To languages that classify things in ways that we can only understand if we think translingually. François Jullien, a French sinologist and comparative philosopher, wrote a book a decade or so after Foucault's death, entitled *Detour and Access: Strategies of Meaning in China and Greece*, in which he discusses the fundamental differences between Chinese and Greek thinking. His criticism of Western (Greek) thought is its insularity: "And yet, as consumed as it is to surpass itself, Western philosophy continues to question itself only from within."[56] This accords with Foucault's "already encoded gaze"[57] that prevents us from understanding the so-called Chinese encyclopedia, and also with his critique of philosophy as being a critique of the Same.

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55 Foucault, *The Order of Things*, xxiii; 398.

56 François Jullien, *Le Détour et l'accès: stratégies du sens en Chine, en Grèce* (Paris: Éd. Bernard Grasset, 1995): "Néanmoins, si éprise qu'elle soit de son dépassement, la philosophie occidentale ne s'interroge toujours que du dedans," 467. My translation.

57 Foucault, *The Order of Things*, 12.

Jullien's analysis of Chinese ways of ordering things, or of Chinese philosophy *tout court*, makes it at times antipodal to Western thinking: "rather than be revelatory, [Chinese philosophy] seeks to indicate."[58] However, most of the time, Jullien shows that this other order is not absent in Western philosophy, but has been brushed aside: it is the list.

> A type of enunciation that is particularly concise and bare of logical articulation [...] the simple list [...] works as an aphorism, it constitutes an autonomous and complete development like an anecdote, a maxim or a dialogue. That the open rubric does not offer the homogeneity we expect, that instead of being leveled and reducing itself to a continuous alignment, the series knows rupture and turning, should not for all that lead us to believe that this chosen procedure ignores all systematization (that it might be whimsical: that lovely disorder we so willingly grant to those 'Orientals' ...) [...] instead of attempting to erect a general point of view, a theory that would embrace all diversity, under the planning gaze of reason, [it] follows a logic of the *itinerary*; instead of opening onto a panorama, it signposts a particular circuit. Via twists and turns, it opens up the greatest number of possible lookouts.[59]

A definition, as Nietzsche decried, has universality as its criterion; it assumes that we all get the parameters that fence the word in. For example, a dog is a domesticated carnivorous mammal. The little word 'is'—or the colon [:]—gives the impression that it is logical, even scientific. Contrastingly, in China, the first Chinese dictionaries used homonymy instead of a definition and also provided an indication of a situation.

The following enumeration consists of words that like 犬 [quan] and 狗 [gou] also signified 'dog' in the very first Chinese written records. The list, once translated into English, echoes Borges' weird, illogical Animal entry. I like to think that it would also have delighted Foucault:

- black hunting dog 盧
- dog that catches rabbits in the grass 莽
- hunting dog 獀
- big dog 猃
- dog to roast or smoke 猲
- short-legged dog 猵

58 Jullien, *Le Détour et l'accès*, 471.

59 Ibid., 472.

- castrated dog 猗
- dwarf dog 猧子
- hairy dog 尨
- dog that knows the human heart 獒
- fierce dog 猘
- dog with a big mane 狮
- precious, small dog that looks like a fox 犴
- red dog 狄
- surprised dog who barks 獿.

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CHAPTER 3

Violence and Animality: An Investigation of Absolute Freedom in Foucault's *History of Madness*

Leonard Lawlor

In an interview given in 1978, Foucault asks the following question: "[on the basis of the interplay of reason and power in the West] could we not conclude that the promise of the *Aufklärung* [of the Enlightenment] to attain freedom through the exercise of reason has in fact reversed itself into a domination of reason itself, a reason that more and more usurps the place of freedom? This is a fundamental problem with which all of us are struggling."[1] If the domination of reason over freedom is *a* or even *the* fundamental problem—not only in Foucault, but also perhaps still for all of us today—then his very first book takes on special importance. It takes on importance because the *History of Madness* is *not* a history of reason; it is, as its original title suggested ("Folie et Déraison"), a history of *unreason*.[2] We must conclude that the *History of Madness*—as a history of what goes against, runs counter to, and negates the domination of reason—concerns nothing but freedom. The most general description of the book leads us immediately to this conclusion. The *History of Madness* goes from the Renaissance when the mad are placed in ships where they travel "the freest and most open of all routes" to the nineteenth century when they have

1 Michel Foucault, "Entretien avec Michel Foucault," in *Dits et écrits IV, 1980–1988* (Paris: NRF Gallimard, 1994), 73; English translation by James D. Faubion as "Interview with Michel Foucault," in *Essential Works of Foucault 1854–1988, Volume 3: Power*, ed. James D. Faubion (New York: The New Press, 2000), 273, translation modified.

2 Michel Foucault, *History of Madness*, trans. Jonathan Murphy and Jean Khalfa (New York and London: Routledge, 2006), 77. In the citations produced in this essay, I have frequently modified the 2006 English translation. The 2009 paperback edition contains some corrections to the 2006 hardback edition of the English translation. The following secondary sources have been consulted in the writing of this essay: Jeremy Carrette, *Foucault and Religion: Spiritual Corporeality and Political Spirituality* (London: Routledge, 2000); Frédéric Gros, *Foucault et la folie* (Paris: Presses Universitaires de France, 1997); Thomas R. Flynn, *Sartre, Foucault, and Historical Reason: Toward an Existentialist Theory of History* (Chicago: University of Chicago Press, 1997); Lynn Huffer, *Mad for Foucault: Rethinking the Foundations of Queer Theory* (New York: Columbia University Press, 2010); Edward F. McGushin, *Foucault's Askesis: An Introduction to the Philosophical Life* (Evanston: Northwestern University Press, 2007).

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their freedom confined within asylums.[3] From beginning to end, the *History of Madness* recounts the story of the Western concept and practice of freedom over a three hundred year period. The *History of Madness* however does more than recount this story. It also lays out the structure of what Foucault, one time in the book, calls "absolute freedom."[4] Here is the basic definition of what Foucault calls absolute freedom. One must notice that it is a structure (or process) that is indeterminate. Absolute freedom lies not in "the freedom of the subject," not in reason's selfsame relation to itself, not in autonomy.[5] Absolute freedom in Foucault is heteronomy. But, more precisely, it is less than heteronomy.[6] Like heteronomy, it is a relation to alterity, but this other is not the laws of nature and it is not the laws of another human. Despite its association with heteronomy, it is not any form of servitude. No matter what, freedom in Foucault *is* freedom, and *not* slavery. Absolute freedom in Foucault is this: a movement between forces that come from elsewhere—from "the outside," as Foucault would say[7]—and images and language, or more generally conducts.[8] Most importantly, this movement is fragmented, broken, based in a negativity that allows language and conduct to escape from all forms of determinism and all forms of others. Its ability to escape from all forms of determinism and all others is what makes freedom, in Foucault, be absolute. Indeed, the most general purpose of this essay lies in the investigation of absolute freedom in the *History of Madness*.

This general purpose, however, is subordinate to others. The investigation of the absolute freedom in which we shall now engage will allow us to take up two interrelated problems. *On the one hand*, the analysis will allow us to put a dominant Western value into question. Because freedom is absolute, because

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3 Foucault, *History of Madness*, 11 and 41.

4 Ibid., 157.

5 Michel Foucault, *The Archaeology of Knowledge*, trans. A. M. Sheridan Smith (New York: Pantheon, 1972), 112.

6 Amy Allen has convincingly argued that Foucault transforms Kant's concept of autonomy. See Amy Allen, *The Politics of Ourselves* (New York: Columbia University Press, 2008), Chapter Three, "The Impurity of Practical Reason," especially 65.

7 See Michel Foucault, "The Thought of the Outside," trans. Brian Massumi, in *Essential Works of Foucault 1954–1984, Volume 2: Aesthetics, Method, and Epistemology*, ed. James D. Faubion (New York: The New Press, 1998), 147–169.

8 The word "conduct" does not belong to the lexicon of the *History of Madness*. Yet, Foucault's comments on the libertines (especially Sade) and criminals indicate something like the idea of conduct that he will develop later in his career in *Security, Territory, Population: Lectures at the Collège de France 1977–1978*, ed. Michel Senellart, trans. Graham Burchell (London: Palgrave Macmillan, 2007), 192–193.

it escapes from all forms of determinism, it calls into question the value of positivity. If we put the value of positivity into question, then we must reconsider how we think of the mad, as Foucault has shown us. But, Foucault also shows in the *History of Madness* that, whenever the mad have been conceived, they have been conceived in relation to animals.[9] Therefore, by defining absolute freedom in Foucault, we shall also be able to attribute to *animals* a kind of "animal freedom" that will force us (we humans) to rethink animal life and our relation to it.[10] This relation has been, for too long, one of violence. Or, to use the terminology Foucault uses later in his career, the relation has, too long, been one of power.[11] Just as Foucault reconceived madness and our relation to the mad, we must reconceive animal life and our relation to it. *On the other hand*, the problem of the violent relation to animal life opens up the more general problem of apocalypse. The violent relation to animal life (including the way they are manufactured for food and thus for our survival) has the paradoxical result that it is we, not the animals, who are the beasts. It is we, not the animals, who exhibit, not animal freedom, but animalistic freedom. It is we who have the tendency toward the worst violence. But perhaps this tendency toward the worst is unavoidable; perhaps it is part of what is irreducible in absolute freedom. As we have already indicated and as we shall see, the kind of freedom that Foucault envisions in the *History of Madness* is deeply connected to destructive forces. The rage and fury of the madman seems to be nothing more than a way of "going beyond . . . reason *with violence*."[12] The madman's way of going beyond reason makes our question more precise. Our question

9 Foucault, *History of Madness*, 156.

10 Foucault wonders why exercise power over someone if that person is not free. The same could be said for animals. See Michel Foucault, "The Subject and Power," trans. James D. Faubion in *Essential Works of Foucault 1854–1988, Volume 3: Power*, ed. James D. Faubion (New York: The New Press, 2000), 342: "freedom must exist for power to be exerted." Also, Michel Foucault, "Ethics of the Concern for Self as a Practice of Freedom," trans. P. Aranov and D. McGrawth in *Essential Works of Foucault 1854–1988, Volume 1: Ethics, Subjectivity and Truth*, ed. Paul Rabinow (New York: The New Press, 1997), 300: "The basis for all this [control, determine and limit the freedom of others] is freedom, the relation of the self to itself and the relationship to others."

11 Through the idea of power Foucault refines what he had said about violence in the *History of Madness*, where it seemed to be restricted to unbridled physical violence. In particular, with power, he is able to speak of an absolutely irregular but calculated (and not therefore unbalanced or unbridled) use of violence. See Michel Foucault, *Psychiatric Power: Lectures at the Collège de France 1973–1974*, ed. Jacques Lagrange, trans. Graham Burchell (New York: Palgrave MacMillan, 2006), 14.

12 Foucault, *History of Madness*, 535, my emphasis.

is: is it possible to go beyond reason—and thus exercise freedom—*without violence*, go beyond reason not with the most violence, but with the *least* violence? Is it possible to enter into this freedom, the freedom of unreason, without that freedom extending itself into the worst violence? Undoubtedly, the question of the worst violence is related to the value of positivity. The value of positivity overpowers the mad, the abnormal, the monsters, animals, and even children through operations of objectification, forcing whatever invisibility they possess into visibility, forcing them to be available for capture. In short, the value of positivity does not let the animals be what they are—free.

Thus the essay you are about to read has three aims. *First*, it aims to make a scholarly contribution to the understanding of Michel Foucault's first major work and indeed to his thought in general. Little work has been done on the *History of Madness* and its relation to his entire itinerary.[13] Therefore, on the one hand, the essay aims to define the basic movement of the book. Moving, as we have already indicated, from the freedom of the ship of fools to the confinement of the asylum, the *History of Madness* describes a movement of desacralization that ends up purifying freedom. We move from absolute freedom to the relativizing division between "good freedom" and "bad freedom." On the other hand, by developing the concept of absolute freedom in Foucault, I hope to be able to claim that an unbroken line runs from the beginning of Foucault's career in 1961 to its end in 1984. Frequently, at the end of his career, Foucault reflects on the title of his chair at the Collège de France: "history of the systems of thought." The analyses in which Foucault engages throughout his career aim at the conditions that modify and form thought, taken in the sense of an "act that posits a subject and an object along with their various possible relations."[14] For Foucault, the act that undergoes the formations and modifications is freedom, freedom of thought. In 1961, free thought is called "libertinism"; in 1984, it is called "parrēsia." Free thought brings us to the *second aim*. Since free thought is a thinking that negates the modes into which it has been formed, we should be able to put the value of positivity at risk. We shall put the value of positivity at risk if we are able to show that positivity always depends on—cannot be thought in separation from—negativity. As we shall see, positivity depends on distance but distance is always indeterminate, allowing whatever has been

13 There is however Saïd Chebili's work. Saïd Chebili, *Foucault et la psychologie* (Paris: L'Harmattan, 2005), and *Figures de l'animalité dans l'œuvre de Michel Foucault* (Paris: L'Harmattan, 1999).

14 Michel Foucault, "Foucault, Maurice Florence," trans. Robert Hurley in *Essential Works of Foucault, 1954–1984, Volume 2: Aesthetics, Method, and Epistemology*, ed. James D. Faubion (New York: The New Press, 1998), 459.

determined positively to escape. The idea of escape brings us to the most difficult aim of the essay. The negativity of distance, the fact that it always escapes, suggests violence; it suggests the violence of wild animals. Thus, the *third aim* of the essay concerns precisely "violence and animality." At issue with the third aim is not only the violence of animals, but also and more importantly, the reaction to this violence, which itself seems to approximate the worst violence: apocalyptic violence, total destruction. The question is: are we able to react to violence without the tendency toward the worst violence? The answer to this question lies in what I am going to call a "hyperbolic letting-be." However, as we shall see, even this hyperbolic answer is not a sufficient reaction to violence, and that insufficiency is why Foucault says, late in his career, that the work of freedom is indefinite. Before we turn to the insufficiency of "hyperbolic letting-be," let us reconstruct the movement of the *History of Madness*. Only this reconstruction will disclose for us what absolute freedom is in Foucault.

1 From the "Elsewhere" of the Renaissance to the "Here" of the Nineteenth Century: Desacralization

The History of Madness concerns the Classical Age, that is, the seventeenth and eighteenth centuries.[15] The specificity or singularity of the Classical Age, for Foucault, lies in the fact that it made a division between the practices in relation to the mad and the knowledge of madness.[16] The Classical Age is the age of

15 The Classical Age runs from the time of Descartes' *Meditations* (in 1641) to the time of Kant (in the 1780s), to, in other words, the Enlightenment. In fact, Foucault also provides us with political historical markers for the period: Louis XIV's edict of 1653—the edict of Nantes—for the confinement of the indigent and Philippe Pinel's liberation of the mad from the Bicêtre hospital in 1793, a liberation that is one of the episodes from the French Revolution. Foucault also calls the Classical Age "the age of understanding" (*l'âge de l'entendement*) in order to emphasize the idea of a division. See Foucault, *The History of Madness*, 171, 206.

16 That is, during the Classical Age, there was the practice of interning the mad in "General Hospitals" across France, but this practice did not produce knowledge of the mad. Correlatively, medical thought developed knowledge of the mad by classifying phenomena of madness, but it did not engage in any dialogue with those interned. For Foucault, the division ended up confining the madman as subject but as a subject who was bestial and counter-natural, while at the same time turning the madman into an object of investigation, eventually determining the truth of the madman as something wholly natural and positive.

division.[17] Yet, as in all of Foucault's histories, it is impossible to understand the singularity of one age without comparing it to others. Foucault's discussions of the late Middle Ages and the Renaissance form one border of the Classical Age. The other border is what he calls "the Modern Age," that is, the nineteenth and twentieth centuries, approximately our times. The Classical Age then for Foucault is a kind of passage, a passage that Foucault describes as one of desacralization.[18] What Foucault calls desacralization is what we commonly call the secularization of Western culture. But, unlike the word "secularization," the word "desacralization" (referring more directly to the decline of Christianity) contains the association to transcendence.[19] Due to desacralization, no longer, in the West, was life on earth understood by "the great Platonic metaphor," that is, it is no longer understood by the metaphor according to which life on earth is an image of another, transcendent and ideal world (like heaven).[20] No longer is life on earth understood through verticality. Desacralization therefore is a leveling movement from "elsewhere" to "here."[21]

As Foucault indicates throughout the *History of Madness*, the movement of desacralization has a profound effect on the practices in relation to the mad and on the knowledge of madness. At first, as the lepers were before, the madman is understood through a "sacred distance."[22] Although excluded from society and the church, the mad, like the lepers, still made God manifest. But soon, as verticality starts to disappear, the reference the mad made is displaced

17 "Division" renders the word "partage." For more on "partage," see Michel Foucault, "Préface à la transgression," in *Dits et écrits I, 1954–1975* (Paris: Quarto Gallimard, 2001), 261–78, especially 266; English translation by Donald Bouchard as "A Preface to Transgression," in *Essential Works of Foucault, 1954–1984, Volume 2* (New York: The New Press, 1998), 69–87, especially 74. Here Foucault says, "Perhaps [transgression] is nothing other than the affirmation of division [*partage*]. Still it would be necessary to unburden this word of all that recalls the gesture of cutting, or the establishment of a separation or the measure of a divergence, only retaining what in it which may designate the being of difference" (translation modified). The ambiguity in the word "partage" that Foucault describes here—with the idea of distance—animates the entire *History of Madness*.

18 Foucault, *History of Madness*, 61 and 493.

19 At this moment, "transcendence" is a positive term for Foucault, meaning "going beyond"; Foucault's use of the term in the *History of Madness* resembles Heidegger's use of the term. See especially Foucault, *History of Madness*, 238. Foucault also associates transcendence to verticality (289). Later, Foucault rejects the word and idea of transcendence. See Foucault, *L'archéologie du savoir* (Paris: NRF Gallimard, 1969), 148 and 263–67; English translation by A. M. Sheridan Smith as *The Archeology of Knowledge*, 113 and 202–04.

20 Foucault, *History of Madness*, 18.

21 Ibid., 62.

22 Ibid., 5.

to this world.[23] The mad seemed no longer to manifest God, but to possess a secret knowledge of the truth of the world.[24] Just as the mad themselves raged and were furious, the knowledge they possessed is about the rage and fury of the world, its disorder; they seemed to know about the "great unreason of the world."[25] Indeed, the fury of the mad took on the significance of death being already here. No longer was death an absolute limit, over there, elsewhere; it was now, through madness, internalized within the world.[26] Therefore, during the Renaissance, just before the Classical Age, the mad had the significance of being counter-natural, containing a secret knowledge or wisdom of the world, a truth that the world was to be engulfed in the apocalypse. This significance is what made the mad and images of them objects of fascination.[27]

At the other end of the Classical Age (approximately three hundred years later), in the nineteenth century, this truth of the world has become more internalized. The disorder, the "counter," indeed, the "negativity" of the unreason of the world becomes internalized as "the secret truth at the heart of all objective knowledge of man."[28] No longer fascinating, man and especially the madman is an object of the gaze. The "sacred distance" from which we started has become the "proximity of alienation."[29] Repeatedly in the *History of Madness*, Foucault exploits the fact that French psychiatry uses the word "alienation" to describe mental illness; it is also, of course, a word of Hegelian dialectic. As Foucault says, "the madman therefore found himself in the eternally recommenced dialectic of the same and other."[30] The dialectic works in this way. What defines the sameness of man, his very nature, is freedom.[31] Yet, mental illness, madness, alienates or distances man from his natural freedom. As alienated, the madman is able to be captured in the objectivity of truth.[32] Then just as death functioned in the Renaissance, determinism and necessity, mechanism and automatism, function as the forms of the alterity of freedom. And if there is a secret in this alterity, its discovery opens the way for a cure, for a return to the truth of man, to true subjectivity, which is autonomy. No

23 Ibid., 27.
24 Ibid., 21, 23.
25 Ibid., 12.
26 Ibid., 14.
27 Ibid., 25.
28 Ibid., 373 and 462.
29 Ibid., 103, 376, and 528. Foucault in fact describes the *History of Madness* as "an archaeology of alienation." See Ibid., 80.
30 Ibid., 527.
31 Ibid., 438.
32 Ibid., 528.

longer being a verticality, alienation is now a circular movement.[33] In short, just after the Classical Age, in the nineteenth century, the mad have the significance of being natural, an object of the gaze, containing a secret knowledge of man, a truth that man would return to, moving from freedom to determinism and back to freedom. Now however, we see that the movement of desacralization was not only a movement of internalization—going from elsewhere to here—it is also a movement of moralization. Insofar as the madman's freedom was inalienable he was guilty, and yet insofar as he was subject to illness, he was innocent.[34] In order to understand this moralization, we must turn to the moment at the close of the Classical Age when psychology is born.

2 The Birth of Psychology: Object of Knowledge and Responsible Subject

For Foucault, one large movement of desacralization runs from the Middle Ages to the Modern Age. As we saw, this movement is one of internalization. Just as death is internalized to life, the distance of the transcendent eventually comes to be internalized to man himself. As we know already, the internalizing process of desacralization takes place across the Classical Age. The process taking place across and within the Classical Age means two things. On the one hand, the movement of desacralization which internalizes unreason and the mad within the "here" determines the Classical Age. Yet, on the other, the Classical Age makes, within the "here," the practices in regard to the mad and knowledge of madness external to one another. The process of *externalization* (yet within internalization) is made concrete in "the great confinement" of the seventeenth century, the result of Louis XIV's edict of Nantes: the poor, the indigent, the mad, the libertines, anyone who made disorder are ordered to be interned in one of France's general hospitals. The establishment of general hospitals has no other purpose than confinement; it provides no cognitive benefit in relation to madness. Yet, at the same moment, just as the mad have no contact with knowledge, medical knowledge has no contact with the mad. And yet, without dialogue with the mad, medical knowledge develops knowledge of madness. In other words, always within the internalization of madness in the "here," the Classical Age concretely alienates the madman from society, while medical knowledge of madness develops externally from the spaces of

33 The *History of Madness*' final chapter is called "The Anthropological Circle." This chapter anticipates the famous "Man and his Doubles" chapter of *The Order of Things*.

34 Foucault, *History of Madness*, 131.

confinement. The Classical Age is, as we have already noted, the age of division. This division between practice and knowledge is what is overcome "on the threshold of the nineteenth century."[35] If it is the case, as Foucault says in the 1961 Preface, that, in the *History of Madness*, he ended up writing "a history of the conditions of possibility of psychology . . . itself," we find these historical conditions precisely in the period of the French Revolution.[36]

Let us see, following Foucault, what these historical conditions are and how they function. In order for the Classical division of practice and knowledge to be overcome, what happens first, according to Foucault, is that the mad emerge distinctly from the undifferentiated population of the houses of confinement.[37] Foucault provides a twofold explanation for the differentiation. On the one hand, from within the houses of confinement, the criminals protest that they no longer want to be locked up with the mad; the criminals think that being locked up with the mad is inhumane for the criminals themselves. On the other hand, "physiocrats and economists" recognize that the labor value of the unemployed is not being exploited if they are hidden away in houses of confinement; the unemployed must be put to work.[38] The mad therefore come to be distinguished from the criminals and from the working poor. The result is that a special place is required to care for the mad, and this special place is the asylum.

In order for the asylum to be constituted, what must happen is a change in the space of confinement. Just as the French Revolution was to begin, there were projects of reform for the houses of confinement.[39] In these reforms, what remains of the old idea of confinement is that confinement is an enclosure.[40] As always, the distance of confinement and moreover distance in general seems to guarantee the protection of the population from the mad. What the reforms change, however, according to Foucault, is the internal space of confinement.[41] At the end of the eighteenth century, the internal space of confinement is no longer to be the absolute abolition of freedom. Still enclosed, the space would be one of restrained and organized freedom; the

35 Ibid., 295.

36 This quote is from the 1961 Preface, xxxiv of the *History of Madness*. The French is found in *Dits et écrits I, 1954–1975*, 187–195. This citation is found on 194. Foucault makes a similar comment in the book's final chapter (529).

37 Foucault, *History of Madness*, 394–95.

38 Ibid., 406–10.

39 Ibid., 427.

40 Ibid., 435.

41 Here Foucault refers to Jacques-René Tenon's *Mémoires sur les hôpitaux de Paris*.

madman would be allowed "to take some distance" from things so that he is able to consider them, express himself about them, and react to them.[42] But having been freed of constant constraints, the madman did not express himself in violence and rage. In a moment, we shall see why the madman, liberated within the new space of confinement, comes to behave more like a tamed animal. The important point now however is the fact that, through this "semi-freedom," the mad seem to be cured. Through the "internal restructuring" of space, confinement takes on the value of a cure. And, therefore, according to Foucault, when confinement becomes the space of the cure for madness, the "essential step" in the formation of the asylum is taken. Formerly, the houses of confinement had no medical supervision; now, doctors are allowed to enter the asylums.[43] With the doctors, the houses of confinement are open to knowledge. The space of the asylum becomes "the space of truth."[44] Indeed, the truth of madness now appears. According to Foucault, at the time of the French Revolution, madness comes to be considered from the viewpoint of the rights of free individuals.[45] Earlier in the Classical Age (and going far back into juridical thought), people had their freedom taken away, were confined, if they were mad.[46] Now however, the madman is confined, the madman is indeed mad, because his freedom has been compromised.[47] Freedom has become "the foundation, secret, and essence of madness"; it has become, as we anticipated, "man's nature."[48] From this point, the entire dialectic of same and other, the dialectic of alienation, is able to develop.

That madness is now conceived in terms of man's nature understood as freedom has an effect inside on the practices of the asylum. In the asylum, there is to be an "exact measurement of the [madman's] use of freedom."[49] The exact measurement of freedom determines the extent to which madness has alienated the madman from his freedom. Then the amount of constraint applied on him would be in conformity to that amount of alienation. To make this exact measurement of freedom, what is required is a new perception.[50] Because the asylum is *still* an enclosure, it is free of all influences that might

42 The phrase "take some distance" translates the word Foucault uses to describe this new semi-freedom: "recul" (recoil or withdrawal, taking some distance) (435).

43 Foucault, *History of Madness*, 436–37.

44 Ibid., 436.

45 Ibid., 438. Here Foucault refers to Pierre Jean Georges Cabanis.

46 Ibid., 127–29.

47 Ibid., 438.

48 Ibid., 438–49; also 126–31.

49 Ibid., 439.

50 Ibid., 102.

give rise to illusions about madness, illusions based on the interests of families, or political power, or even the prejudices of medicine. Only in the asylum then do we find "an absolutely neutral gaze," a "purified gaze."[51] Having this purified gaze, the guardians who "watch over the limits of confinement [become] the sole persons who had the possibility of a positive knowledge of madness."[52] The new gaze however is not purified of language. Foucault stresses the "curious idea" of the "asylum journal."[53] The asylum journal added a vocabulary to the gaze. In this way, "[Madness] became communicable, but in the neutralized form of offered objectivity"; it is offered as "a calm object, put at a safe distance without anything in it stealing away, opening without any reticence onto secrets that do not disturb."[54] This new gaze is no longer Renaissance fascination with the mad, in which there were "complicities" between the one who gazes and the one gazed upon.[55] The new gaze sets up a distance so that the "object . . . is attained through the sole intermediary of a discursive truth that is already formulated."[56] The madman therefore appears "clarified" (clarified in the sense of sediment being removed from a liquid) in the abstraction of madness, his individuality, indeed his face, having no other function than adding to the truth of madness. With this purified asylum gaze, madness takes its place in the "positivity of things known."[57]

The positivity of madness, its truth, being determined in the asylum at the end of the eighteenth century, however, was not yet a psychology. Psychology and the knowledge of all that is internal to man is born, according to Foucault, when "bourgeois consciousness" (which Foucault also calls "revolutionary consciousness"[58]), becomes the "universal judge."[59] For "bourgeois

51 Ibid., 441.

52 Ibid., 441. "Watch over" in this passage translates the French verb "veiller," as in "surveiller": supervise or survey. This kind of watching of course is one of the themes of *Discipline and Punish*, whose French title is *Surveiller et punir*. Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (New York: Vintage, 1995).

53 Foucault, *History of Madness*, 441. This idea is developed by Cabanis, according to Foucault.

54 Ibid., 442.

55 Ibid., 442.

56 Ibid., 552.

57 Ibid., 443.

58 Ibid., 449.

59 Ibid., 449. In fact, an intermediate step in the transformation of punishment, according to Foucault, is a reorganization of the police. The reorganization of the police led to idea of the "citizen" being reconceived. The police were not only to apply the law but also to judge. Likewise, the citizen becomes both the sovereign authority that designates

consciousness," scandal becomes an instrument for the exercise of its sovereignty. To know of a criminal case is not merely to judge, but also to make public so that the "glaring spotlight of its own judgment was itself a punishment."[60] Through the gaze of scandal, punishment becomes shame and humiliation. As Foucault says, "In this consciousness, judgment and the execution of the sentence were unified through the ideal, instantaneous act of the gaze."[61] In other words, while in the Classical Age what was scandalous was to be shut away and hidden, confined, now at this moment, in "bourgeois consciousness," everything scandalous must be made public and visible. All that had been previously concealed, all the deepest obscurity of fault, has to be converted into manifest truth. In this demand for visibility, we have the new psychology coming into being. According to Foucault, "psychology and the knowledge of all that was most interior to men, [that is,] . . . psychological interiority was constituted on the basis of the exteriority of scandalized consciousness."[62] Therefore, with the birth of the asylum, and the punishing gaze of scandal, there could be no secrecy. Despite whatever negativity we might have thought the madman possessed, now he possesses only known positivity. Despite whatever interiority we might have thought the madman possessed, now he possesses only an interiority made external He possesses only an interiority destined to be made visible and completely present.

According to Foucault then, the new psychology would not have been possible without the reorganization of scandal in the social consciousness. The purified gaze (or the "universal gaze of bourgeois consciousness"[63]) requires that the link between the fault of a crime and its origin be made manifest. Thus knowledge of the individual, that is, knowledge of heredity, the past and motivations, becomes possible. Although the demand for knowledge of the origins of criminal behavior seems to be a demand strictly for knowledge, what actually happens according to Foucault is "a restructuring of the equilibrium" between psychology and morality.[64] On the one hand, the demand for knowledge alone voids the old sensibility concerning passions; what fills

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someone as an undesirable element and the judge who determines the boundaries of order and disorder. The citizen is now both a man of the law and a man of the government. The change in the conception of the citizen then led to a change in the conception of punishment. Scandal now counted as punishment.

60 Ibid., 447.

61 Ibid., 447.

62 Ibid., 449.

63 Ibid., 450.

64 Ibid., 455.

in this emptiness is psychological mechanisms. These psychological mechanisms result in the madman not being responsible for his actions: the madman is judged innocent. On the other hand, as Foucault stresses, innocence here must not be taken in an absolute sense.[65] So that these mechanisms render a madman innocent, it has to be the case that his actions indicate an elevated morality. For instance, if a crime of passion is done out of extreme fidelity, then the madman could be judged innocent. In contrast, no determinism would be able to excuse crimes bearing no relation to "heroic" virtues. These crimes indicate moral madness, bad madness, and they receive only absolute condemnation.[66] Psychology therefore takes up residence within what Foucault calls "a bad conscience," that is, within the play between the values that people in a society usually exhibit and the elevated values that society demands from people.[67]

Now we can learn why the rearrangement of the internal space of confinement seems to cure the mad. According to Foucault, one of the asylum's main innovations was the use of fear to control the mad.[68] Unlike the Classical Age where the madness hidden in the houses of confinement struck fear into society, in the asylum fear is to be struck into the madman. The innovation, however, is not merely the use of fear, but the way fear is brought about. Inside the asylum, the superintendants and doctors instill fear by means of constant surveillance, by means of constant judgments on the madman's actions, and through repeated punishment for those actions. The most important of these means is the repeated judgments, speech.[69] Through discourse, fear goes not through the mediation of the frightening instruments, but directly from the attendants and doctors to the patient.[70] Through discourse, fear transforms freedom into "simple responsibility."[71] Because the psychological truth of madness now says that mechanisms determine conduct, the madman is not guilty of his illness, of being mad. Nevertheless, through the use of fear, the superintendents and doctors force the madman to think of himself as responsible for all the actions that result from his madness, for all the actions that disturb the asylum and by extension society and its morality.[72] Therefore, the use

65 Ibid., 455.
66 Ibid., 458.
67 Ibid., 456.
68 Ibid., 483; also 500–3, and 325.
69 The operation also used silence. See *History of Madness* 495–97.
70 Ibid., 484. Foucault shows how religion plays a large role in this operation of fear.
71 Ibid., 484.
72 Ibid., 495.

of fear in the asylum results in the fact that the madman himself develops a bad conscience.[73] Once again, the punishment for being responsible for one's actions and truth is shame and humiliation.[74] The ones who felt fear, who feel shame and humiliation were the "good" patients; they made "good use" of their freedom. Those, however, who resist this fearful "moral synthesis," are simply locked away. The confinement in the asylum therefore reproduces the societal division between the "good madness" of an excessively virtuous crime and the "bad madness" of crimes which no determinism could excuse. With this division, the asylum continues to protect society from the mad, and thanks to this division, inside the asylum, "the society of the good mad" is protected from the "bad mad." The vertical distance with which we started in the Renaissance has now been horizontally displaced across society and the asylum.

3 Absolute Freedom

If we think about the movement of desacralization that Foucault recounts in the *History of Madness*, we see that the movement displaces distance. In the Renaissance, there was the distance between the other world, the "elsewhere," and this world, the "here." That distance between elsewhere and here is then internalized, located in this world. Desacralization is internalization. Then, located in this world, the distance between elsewhere and here becomes the distance between the houses of confinement and society. The distance also appears as the division between the practice of confining the mad and the knowledge of madness. While maintaining the distance of confinement, the asylum overcomes the distance between practice and knowledge. It does this by means of the circular structure (like the houses of confinement, there seems to be no escape from the circle) of alienation. On the one hand, the asylum grants some distance (from chains and bars) to the madman. Through this distance, the madman becomes alienated from his freedom insofar as he becomes an object gazed upon. On the other hand, as an object supervised and judged, the madman is made to feel responsible for his reactions to his objectification. At one and the same time, the madman is reduced to the status of an object of knowledge and is elevated to the status of a responsible subject. The dialectic means that the madman's so-called "semi-freedom" is his enslavement to bad conscience. He makes "good use" of his freedom, and no longer

73 Later Foucault takes up the idea that punishment aims at the soul, not the body, in *Discipline and Punish*. See Foucault, *Discipline and Punish*, 16.

74 Foucault, *History of Madness*, 499.

rages like a beast. We have moved from desacralization to internalization and from internalization to moralization, and from moralization, we move to purification. The enslavement in the asylum purifies the madman of counternatural, violent animality, leaving only an animality "associated with the tranquility and happiness to be found in nature."[75] What has been conjured away is what Foucault calls "animal freedom."[76] Or, more precisely, what has happened is that freedom has been made relative to "bourgeois values" such as loyalty, honor, fidelity, courage, sacrifice, and work.[77] The absoluteness of freedom has disappeared—although those who remain beasts and resist the purification never stop haunting the asylum.

What is this freedom that has undergone purification? We just saw that Foucault qualifies the word "freedom" with "animal." He also calls it the "freedom of the mad," the "freedom of unreason," and "constitutive freedom," but most importantly, he calls it "absolute freedom."[78] For Foucault, absolute freedom is paradoxical.[79] The paradox lies in the fact that "the freedom of the mad is only ever in that instant, in that imperceptible distance that makes him free to abandon his freedom and chain himself to his madness: freedom is there only in that virtual point of choice, where we decide to 'place ourselves within the inability of using our freedom and correcting our errors'."[80] In this passage, we can see that Foucault defines freedom as a distance-instant. Moreover, being in that "virtual point," in that "not yet" mad, freedom is prior or a priori, "originary" and "from the origin," it is deeper and more subterranean.[81] What is it deeper than and more subterranean to? The priority of absolute freedom implies that freedom is prior to all oppositions, contradictions, and antinomies.[82] More specifically, as the phrase "distance-instant" implies, absolute freedom is deeper than space and time; it is also prior and deeper than "determinism" and "mechanism," that is, prior to all repeatable forms—and it is prior to "all the forms of freedom."[83] That absolute freedom is prior

75 Ibid., 373.

76 Ibid., 148. This animal freedom could be called a "ferocious freedom." See Michel Foucault, *"Society Must Be Defended": Lectures at the Collège de France 1975–1976*, ed. Mauro Bertani and Alessandro Fontana, trans. David Macey (New York: Picador, 2003), 149.

77 Foucault, *History of Madness*, 457.

78 Ibid., 513, 158, 514, 157. It is to this absolute freedom that, as Foucault says in the 1961 Preface, the discourse on madness must always be relative. See Ibid., xxxv.

79 Ibid., 514. Foucault also speaks of what is "essential in freedom".

80 Ibid., 518. Here, Foucault is quoting Boissier de Sauvages.

81 Ibid., 514 and 157.

82 For the antinomies, see Ibid. 519–21.

83 Ibid., 156.

to mechanistically repeatable forms and to all the forms of freedom implies that absolute freedom is informal. It is this informality that allows Foucault to say that freedom is a "very originary, very obscure moment of departure and of division that it is hard to characterize."[84] It is hard to characterize because this moment is, simultaneously, a becoming (a departure that would be a continuity) and a scission (a division that would be a discontinuity).[85] The paradox is that absolute freedom is a "unity" of continuity and discontinuity that is "indivisible."[86] Being an a priori indivisible unity of continuity and discontinuity, absolute freedom is "ambiguous" or "equivocal."[87] But, that ambiguity really means undecidability.[88] Absolute freedom is prior to all decisions—"where we decide to 'place ourselves within the inability of using our freedom and correcting our errors'"—and determinations. Because, however, this unity is also, as Foucault says, "a fault," "an absolute tear," a "caesura," or even a "fall," the "equilibrium" of the unity can be made and unmade.[89] Therefore its undecidability can seem to be decided, determined, and its truth made visible.[90] We must stress the "seem" here, since any decision made can be unmade; any truth determined and exhibited is not terminal.[91] Absolute freedom may seem to be decided and determined in one way or another, it may seem to have a content, but in fact absolute freedom is an emptiness, a nothing and non-being. In a word, absolute freedom is a negativity. It is this negativity, the very distance of the "un" of "un-reason" (of the "dé" of "déraison"), that makes absolute freedom

84 Ibid., 514.

85 For simultaneity, see Ibid., 347. For scission, see Ibid., 206.

86 Ibid., 352.

87 Ibid., 514 and 38.

88 If we were going to give it a precise linguistic expression, we would have to say that absolute freedom is an infinitive, a verb: "to free."

89 Ibid., 514, 484, 39, and 169.

90 Foucault speaks of a "caesura" in the 1961 Preface. See Ibid., xxviii.

91 In the "Introduction" to Part II, Foucault speaks of the four forms of consciousness of madness. He says, "Since the time when the tragic experience of insanity disappeared with the Renaissance, each historical figure of madness implies the simultaneity of these four forms of consciousness—at once their conflict and their unity that is constantly unknotted. At each instant, the equilibrium of that which, in the experience of madness, comes from a dialectical consciousness, from a ritualistic division, from a lyrical recognition, and finally from knowledge, is made and unmade. The successive faces that the madness takes in the modern world receives what there is most characteristic in their features from the proportion and connections that are established among these four major elements. None ever disappears entirely, but sometimes one of them is privileged, to the point of maintaining the others in a quasi-obscurity where the tensions and conflicts that reign below the level of language are born."

be solitary.[92] And, it is this solitude that gives the madman his "punctual existence" as a "singular other."[93] Finally, it is this solitude or better singularity that makes freedom be impure, dis-uniform, delirious, always in retreat, and resistant to all uniformity, all monotony, all generality, all types, and all groups (either cognitive or social). Absolute freedom is not, as in the asylum, a frightened freedom, but a "frightening freedom."[94] What frightens is the fact that the singularity of absolute freedom makes the mad be able to escape from every decision, every determination, and every truth about him or her.[95] Indeed, what defines absolute freedom in Foucault is nothing but escape.

The negativity of absolute freedom can be understood in two ways. On the one hand, it is an impulse. While describing the asylum production of the responsible subject, Foucault speaks of "an impulse [*un élan*] from the depths, which exceeds the juridical limits of the individual."[96] On the other, in the context of the history leading up to psychoanalysis, Foucault says that "an agency [*une instance*] is at work here that gives non-reason its distinctive style."[97] What is this agency? Foucault says that "other deep forces are at work here, forces foreign to the theoretical plane of concepts."[98] These forces are the

92 Foucault, *History of Madness*, 156, 351, and 499.

93 Ibid., 180–81.

94 Ibid., 18.

95 Ibid., 514.

96 Ibid., 499.

97 Ibid., 206–07. The word "instance" appears in the context of the history leading up to psychoanalysis. It a clear allusion to the fact that Freud uses the word "Instanz" to refer to the parts of the psyche. In reference to the term "instance," one should examine the entry on "agency" in Jean Laplanche and Jean-Bertrand Pontalis, *The Language of Psychoanalysis*, trans. Donald Nicholson-Smith (New York: W. W. Norton and Company, 1973), 16. Here, Laplanche and Pontalis say, "when Freud introduces the term 'agency'—literally 'instance,' understood in a sense, as Strachey notes, 'similar to that in which the word occurs in the phrase 'a Court of the First Instance'"—he introduces it by analogy with tribunals or authorities which judge what may or may not pass." Lacan of course takes this term up. See Jacques Lacan, "The Instance of the Letter in the Unconscious or Reason Since Freud," in *Écrits: The First Complete Edition in English*, trans. Bruce Fink (New York: Norton, 2007), 412–443. Lacan's "L'instance de la letter dans l'inconscient ou la raison depuis Freud" was originally published in 1957.

98 Foucault, *History of Madness*, 206. For more on negation, see Michel Foucault, "A Preface to Transgression," in *Essential Works of Foucault, 1954–1984, Volume 2: Aesthetics, Method, and Epistemology*, 74–5. The Kantian idea of *nihil negativum* seems to motivate what Foucault says about negativity here. It is the idea of an "empty object without concept" because the concept of that object is self-contradictory and therefore cancels itself. Being conceptless, *nihil negitivum* probably explains Foucault's comment that the forces are

impulses of passions. Undoubtedly, Foucault speaks of passions in relation to freedom because he is writing about the Classical Age, the age of Descartes. Yet it is important to retain the word "passions" because passions in the Classical Age are not yet instincts. Not only are instincts objects of scientific knowledge, determined by the gaze, but they also are defined by determinate purposes. As such, instincts could have nothing to do with freedom. In contrast, passions are felt from the body or, more generally, from "elsewhere" and they push the mind to think and imagine. The passions are the "intertwining" of the body and the soul.[99] But most importantly, what really distinguishes the passions from instincts is that the passions can be violent. They can be so violent that their violence fragments the intertwining, resulting in the imagination, thought and actions, becoming dreamlike. In this case, the imagination generates more and more images. The passions force the agency of the imagination to exceed any determinate purpose.[100] Violated by the "the anarchy that passion brings," the movement of imagination becomes unlimited. Imagination works the images over, hollows them out, and distends them, making them go beyond truth and reality; the images become ungrounded.[101] The movement, in other words, escapes, and escapes into the unreal, into errors, or at least, into a difference

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foreign to the theoretical plane of concepts. Two other comments from *History of Madness* ("The Transcendence of Delirium") seem particularly important with regard to the negativity that defines the essence of freedom. First, Foucault says, "What is this act [of secret constitution by the madman]? It is an act of belief, an act of affirmation and negation, a discourse that sustains the image and at the same time works it, hollows it out [*la travaille, la creuse*], distending it through reasoning, and organizing it around a particular segment of language" (233). This comment shows the complexity of the act of freedom: it believes in the image, affirms it, and at the same time hollows out, negates its truth or reference to reality. Even more, due to the affirmation, it makes "words and gestures that do not follow" (233) and yet are logically consistent with the hollowed image ("distends [the image] through reasoning"). Foucault also says, speaking of a deeper delirium, that "in short, beneath the obviously disordered delirium reigns the order of a secret delirium. In this second delirium, which is, in a sense, *pure reason*, reason that has slipped off the external rags of dementia, the paradoxical truth of madness is to be found" (234, my emphasis). The reference to Kant is obvious.

99 Foucault, *History of Madness*, 228.

100 Foucault locates the same process in the nineteenth-century psychiatric discussions of sexual aberrations. However, here pleasure plays a role in addition to imagination. See Michel Foucault, *Abnormal: Lectures at the Collège de France 1974–1975*, ed. Valerio Marchetti and Antonella Salomoni, trans. Graham Burchell (New York: Picador, 2003), 280.

101 Foucault, *History of Madness*, 230. Foucault notes that the essence of the image is to be taken for reality and as well reality is able to mime the image (Ibid., 330 and 232); the image is the purest and most total form of quid pro quo (Ibid., 39–40). This means that,

from truth and reality.[102] The movement of imagination then becomes the "pantomime" of non-being.[103] Absolute freedom therefore is the ungrounded relation between the forces of the passions—that come from elsewhere and repeat nothing determinate—and the unlimited movement of imagination—that goes elsewhere and anticipates nothing determinate. Absolute freedom consists in a finitude (the passions) that at the same time opens out onto an infinite movement (imagination).[104] If we now wanted to utilize the terminology of *The Archaeology of Knowledge*, we could say that the forces make freedom be material while imagination makes it be repeatable: "repeatable materiality" as freedom.[105] As we already know, this freedom is very close to madness; it can also however, according to Foucault, lead to "transfiguration."[106] Indeed, the question we have been pursuing throughout this essay is one of transfiguration. Our question has been: is it possible to go beyond reason without violence?

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when imagination hollows out an image, it turns it into a repetition without a determinate object being repeated.

102 Ibid., 232–33.

103 Ibid., 347, 350.

104 Ibid., 228. In this regard, we must see this absolute freedom as meeting a criterion for history that Foucault lays out late in his career. In *The Birth of Biopolitics*, he says, "Instead of deducing concrete phenomena from universals, or instead of starting with universals as an obligatory grid of intelligibility for certain concrete practices, I would like to start with these concrete practices and, as it were, pass these universals through the grid of these practices." It seems to me that what we are here calling "absolute freedom" (following Foucault's use of the phrase in *History of Madness*) is not a universal. It is a relation of heterogeneity (a fault) between a limitation and an unlimitation (forces and potentialities). The actual practices forms, deformations, and reformations of this relation; other practices are able to form, deform, and reform the actual ways this relation has been instituted. It also seems to me that this definition of absolute freedom corresponds to a definition of freedom that Foucault also gives in *The Birth of Biopolitics*: "Freedom is never anything other—but this is already a great deal—than an actual relation between governers and governed, a relation in which the measure of the 'too little' existing freedom is given by the 'even more' freedom demanded." Michel Foucault, *The Birth of Biopolitics: Lectures at the Collège de France 1978–1979*, ed. Michel Senellart, trans. Graham Burchell (London: Palgrave MacMillan, 2008), 63.

105 Foucault, *The Archaeology of Knowledge*, 105.

106 Foucault speaks of transfiguration at the very end of the *History of Madness* in reference to Goya and Sade (530). For Foucault, Goya and Sade have nothing in common except for the movement of transfiguration (532). Both Goya and Sade transfigure, that is, hollow out images found in the Classical Age, turning them into counter-natural images.

4 Conclusion: Violence and Animality

At the beginning we outlined three aims for this essay. First, we stated that we want to make a contribution to the understanding of the *History of Madness* and its relation to Foucault's thought in general. Second, we stated that we want to put the value of positivity into question and thereby transform the way we think of animal life and our relation to it. Then third, we stated that we want to take up the question of violence, the idea of the worst violence, apocalyptic violence: total destruction. Now, in the conclusion, let us turn to each of these aims.

4.1 *The Contribution to the Understanding of the* History of Madness *and its Relation to Foucault's Thought in General*

The *History of Madness* is a history of freedom. The history of freedom that Foucault writes consists in a movement of desacralization. At first, with the Renaissance, the ravings of the mad refer to the "elsewhere" of divine or supernatural forces that will bring about the end of the world. Desacralization moves those forces to "here." Internalization transforms those forces into passions, but then it transforms them into the determinism of psychological laws. At the same time, internalization is moralization. The movement of moralization purifies the freedom of those forces and ravings, making freedom relative to "good freedom" (just as madness is made relative to "good madness"). By the nineteenth century, freedom is relative to "bourgeois values." It is captured in the gaze of scandal and in the asylum gaze.

If it is the case that the *History of Madness* is a history of freedom, then we see a continuous line running from 1961 to Foucault's late works around the time of his death in 1984.[107] We started with Foucault's question about the reversal

107 Undoubtedly, it is *The Archaeology of Knowledge* that seems most to disrupt this continuity. In *The Archaeology of Knowledge*, Foucault rejects all ideas associated with phenomenology, indeed, with anything that could be subjective, with anything that could be considered negative. In fact, as is well known, Foucault says, "[To describe a group of statements] is to establish what I am quite willing to call a *positivity* [Foucault's emphasis]. To analyze a discursive formation therefore is to deal with a group of verbal performances at the level of the statements and of the form of positivity that characterizes them; or, more briefly, it is to define the type of positivity of a discourse. If, by substituting the analysis of rarity for the search for totalities, the description of relations of exteriority for the theme of transcendental foundation, the analysis of accumulation for the quest of the origin, one is a positivist, then, well, I am a happy positivist and it is easy for me to fall into agreement with this characterization. Similarly, I am not in the least unhappy about the fact

of the Enlightenment promise of attaining freedom through reason. Our investigation of absolute freedom allows us to see the precise moment when, for Foucault, the Enlightenment promise gets reversed into the domination of reason over freedom. Or better, it allows us to see the point from which that reversal emanates. This point is perhaps not surprising. It is Descartes' exclusion of madness from the methodical doubt of his *Meditations*.[108] However, beyond this well known claim about Descartes' exclusion (well known because of Derrida's essay), we see that the decision is an ethical decision; it is a choice made against unreason. The choice for reason then sets out on "the trajectory of a freedom [*une liberté*: also, "one freedom"] that is the very initiative of reason."[109] It is this rationalist choice that reduces absolute freedom down to one of its forms, "the freedom of reason"; it is this choice that relativizes absolute freedom to one of its appearances, to its appearance as a semi-freedom, to its appearance as "simple responsibility."[110] Unformed and abstract freedom is reduced to the simple responsibility measured—that is, "judged and sentenced"—by "a [or one] pure morality and an [or one] ethical

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that several times (*though in a way that still a bit blind* [my emphasis]) I have used the term positivity to designate from afar the tangled mass that I was trying to unravel." Michel Foucault, *L'archéologie du savoir*, 164–65; *The Archaeology of Knowledge*, 125. (For a similar characterization, see Foucault, *L'ordre du discours* [Paris: NRF Gallimard, 1971], 72; English translation by A. M. Sheridan Smith as "The Discourse on Language," in *The Archaeology of Knowledge*, 234.) We must note here, as I have emphasized in the quote, that Foucault adds that this positivism is "a bit blind." The phrase "a bit blind" implies that, with the word "positivity," Foucault is not entirely certain about that to which the word refers. Or, more precisely, it indicates that Foucault is in the process of redefining the term "positivity." In this regard, it is important to recognize that, in *The Archaeology of Knowledge*, Foucault constantly makes use of negative definitions to determine this "positivity." In particular, he says, "Language, in its appearance and mode of being, is the statement; as such, it belongs to a description that is *neither* transcendental *nor* anthropological [my emphasis]." Foucault, *L'archéologie du savoir*, 148; *The Archaeology of Knowledge*, 113. This quote means that Foucault's positivity is different from the negativity of a transcendental subjectivity and the positivity of an empirical human being. But this rejection of the well known opposition between the transcendental and the empirical does not mean that Foucault's positivity is not deeply bound up with some sort of negativity. In 1976, in *"Society Must be Defended"*, he says, "It is not an empiricism that runs through the genealogical project, nor does it lead to a positivism in the normal sense of the word." Foucault, *"Society must be Defended",* 9.

108 Foucault, *The History of Madness*, 44–47, and 139–40.

109 Ibid., 139.

110 Ibid., 151.

uniformity."[111] Therefore, the explanation for Foucault's turn, late in his career, to ethics becomes clearer. He examines the ethical constitution of the subject in the ancients in order to help us forget this *one* ethical uniformity with which we find ourselves today. He does this to help us forget "the good use of freedom" in order to remember the dispersion of other uses of freedom. One of these dispersed uses is the Greek idea of *parrēsia*, speaking out or speaking frankly. Such a use of freedom, as Foucault has shown in the 1983 course at the Collège de France, *The Government of Self and Others*, is not evil, but it is dangerous.[112] Through speaking out, one puts oneself at risk.

4.2 *The Putting at Risk of the Value of Positivity*

The dangerous exercise of freedom puts the accepted values of a culture at risk. If absolute freedom is defined in terms of negativity, then the value that it puts most at risk is positivity. This putting at risk is important if it is the case that, today, we still live in the "positivist age."[113] A value is put at risk if we can show that its priority is built on a condition that contradicts it. In other words, it is put at risk by means of a criticism of that priority, a criticism that reverses the value into its opposite. As we saw, the internal restructuring of confinement space forces the madman to appear in visibility and manifestness without any secrecy; he becomes an object which psychology can start to know in a positive way. This "essential step," as Foucault calls it, is of course a step of distance. Distance was maintained. On the one hand, the houses of confinement still confined; keeping society external to the houses protected society from the dangers of madness. On the other hand, internally, as the chains were undone, and the confined were granted some distance to move about, they were then able to be gazed upon, surveyed and supervised, in a word, grasped (with the most resistant mad being returned to strict confinement). It is this distance that at once protects those who gaze and captures the mad as the object of that gaze, that is, as something visible, or, we might even say, as something fully present.

What is the status of this distance that has animated the entire movement of the *History of Madness*? In order to answer this question, we must think

111 Ibid., 102 and 493.

112 Michel Foucault, *The Government of Self and Others: Lectures at the Collège de France, 1982–1983*, ed. Frédéric Gros, trans. Graham Burchell (New York: Palgrave MacMillan, 2010), 67. See also, Michel Foucault, *The Hermeneutics of the Subject: Lectures at the Collège de France, 1981–1982*, ed. Frédéric Gros, trans. Graham Burchell (New York: Palgrave MacMillan, 2005), 369–409.

113 Foucault, *History of Madness*, 395.

about vision. For vision to function, it is essentially necessary that what one gazes upon be far enough away from one's eyes. If the thing upon which one is gazing rests directly on the surface of one's eyes, it would block out the light and extinguish vision. In other words, it is necessary that what one is looking at *not* be in immediate proximity to one's eyes. In order to see, the thing seen must not be too close. This distance is an absolute and necessary condition for the object manifesting itself in visibility. As Foucault recognized (but the phenomenological tradition had already discovered this), the distance between the seer and the seen is an absolute and necessary condition for positive knowledge. Yet, the distance is paradoxical. If I am looking at an object, it is necessary that the object be distant from me. If however I want to turn that distance, the distance between me and the object, itself into an object, if I shift my eyes to look at what is between me and the object, I transform that "between" into another object that itself requires distance. The distance always and necessarily retreats into invisibility. The distance cannot therefore be captured. Every time I turn my eyes on it, it escapes and goes somewhere else. It never manifests itself as such. It remains a secret. Insofar as the secret, however, always escapes, it seems to be a secret without any content; it seems to be a secret without a secret. The distance always and necessarily remains nothing, which means that nothing positive can be said about it. Yet, the distance is necessarily required for positivity itself. Positivity therefore depends on negativity. The value of positivity has then been reversed. Or more precisely, we cannot think about positivity without negativity. Instead of deciding for positivity and against negativity, we find ourselves in the position of being unable to decide. We are now in the undecidability of the distance. One more consequence follows from this criticism of positivity. The thing seen always includes, within itself, the invisibility of the condition. The inclusion of invisibility within the thing seen implies that the seer cannot completely see the thing seen. Thus we cannot know—in the strong sense of knowing something in complete presence—completely where the thing seen is, what it is thinking, or what it might do. The secret of the thing seen then is not really nothing. The secret is that the thing seen contains forces that cannot be controlled, forces that could in fact terrorize like the violence of beasts.

4.3 *Not the Worst, but the Least Violence*

If we have entered into the experience of undecidability, then we must change not only how we think of the mad but also how we think of animal life. As Foucault saw, each time there is a change in the Western thinking of the mad, there is a change in the thinking of animal life. The parallel movement of the mad and the animals means that just as Foucault argues that the mad must

be thought in terms of an absolute freedom, a freedom prior to all determinations, we must think of animal life in terms of the same kind of freedom: "animal freedom." Indeed, the essential indetermination of the distance that conditions the very appearance of objects implies that the knowledge about animal life never exhausts what the animals might be, do, or express. In other words, all the mechanisms and determinism, all the naturalisms and evolutionisms that arise with positivism do not exhaustively determine animal life. By attributing such a freedom to animal life, we must expect that animal freedom might be the docile behavior of tamed animals. But, we must also expect that animal freedom might be animalistic. This animalistic use of freedom would be counter-natural and irrational. And then we see that the animalistic use of freedom, being irrational, would not be the self-imposed law of autonomy; it would not be the good use. This use of freedom would be certainly dangerous, if not evil. With this expectation of evil—and that means violence coming from the unknowable—the distance that once looked like it protects, now appears penetrable, permeable, and porous. Now, the distance appears as a door that cannot be locked or a border that cannot be closed. The question becomes then one of the reaction to this impossibility of closure. If the porosity of the entrance means that I cannot stop the beasts from coming in and conversely that I cannot stop them from going out, then do I react to this inability to stop them with violence? What happens if the beasts penetrate everywhere, if they keep coming, if their violence approximates the total destruction of the apocalypse? Recall our starting point in the Renaissance. As Foucault shows, at that moment the mad refer to the unreason of the world, an unreason that would make the world come to an end in madness. If it looks like the apocalypse is coming, do I react with more violence, with the most violence, to suppress and even exterminate the beasts? If their violence becomes hyperbolic, do I match their violence with a hyperbolic reaction? If we react in this way, then we react in a way that is just as mad and animalistic as that against which we are reacting. Having gone beyond reason, we would have, like the beasts, exceeded reason *with violence*. Yet, is it possible to go beyond reason *without violence*, not with the worst violence but with the least violence? Maybe we could make the movement of hyperbolization go in the reverse direction. We could do the reverse of stopping the beast from entering or exiting. We could let them come in or go out. Since we cannot close the border and lock the door, we could let the border be open and we could let the door be unlocked. And we could even let the openness be hyperbolic: let all the beasts in; let all the beasts out. This hyperbolic letting-be would seem to do the least violence to *all* the animals.

We have argued that the hyperbolic reaction of the worst violence mirrors the escalating violence of the beasts. They mirror one another because both approximate total destruction. However, would not the hyperbolic letting-be of the animals also mirror the worst violence? Would not the hyperbolic liberation be just as apocalyptic as the hyperbolic violence of the beasts? The answer to this question must be "yes." The hyperbolic liberation mirrors the apocalyptic violence because it approximates a kind of *non-violence* that would be total just as the hyperbolic *violence* would be total. The hyperbolic letting-be would approximate a kind of peace that would negate and violate all violence. Then the non-violence of hyperbolic liberation would be an end just as the apocalyptic violence would be an end. Like the apocalypse, it would be a totalization that stops all movement. Even this reaction of hyperbolic-letting be would not be sufficient. Such a total end however is necessarily impossible.[114] No matter how destructive the violence may be, no matter how peaceful the peace may be, something remains. That something always, necessarily remains should give us solace, it should even make us joyful and optimistic since something remaining keeps the future open.[115] Something, someone, is still coming, some other "elsewhere" is still out there. However, this joy in the prospect of

114 I have an argument to support this claim, one modeled on Derrida's argument for "origin-heterogeneous." See Jacques Derrida, *Of Spirit: Heidegger and the Question*, trans. Geoff Bennington and Rachel Bowlby (Chicago: University of Chicago Press, 1989), 107–08. Just as Derrida's "origin-heterogeneous" asserts that the past continues indefinitely, what I call "end-heterogeneous" asserts that the future continues indefinitely. The argument for this assertion is as follows: Let us imagine an end of the world. Let us even say the obliteration of the world. However we would think of that devastation, as an explosion, extinction, or cataclysm, etc., no matter how destructive or catastrophic, it would leave behind something residual. We cannot imagine destruction without something left over. Whatever this leftover might be, however we would think of this residual something, as energy, micro-particles, dense matter, space, gases, light, micro-organisms, it would necessarily continue. It would necessarily continue to have some sort of effects, and thus it would continue to have a future, something coming. "End-heterogeneous" means that it is necessarily the case that something else or other is always still to come from or in the future. Foucault suggests a similar criticism of the idea of a total end when, in "Nietzsche, Genealogy, History," he says that history "goes from domination to domination." See Michel Foucault, "Nietzsche, Genealogy, History," trans. Donald F. Bouchard and Sherry Simon in *Essential Works of Foucault 1954–1984, Volume 2: Aesthetics, Method, and Epistemology*, ed. James D. Faubion (New York: The New Press, 1998), 369–391 (377–78).

115 On optimism, see Michel Foucault, "Est-il donc important de penser?", in *Dits et écrits IV, 1980–1988* (Paris: NRF Gallimard, 1994), 182.

something still coming does not appear alone. That something remains indeed means that the future remains open. But it is possible that what is still coming could be even worse than what has come before. We do not know what is coming. Is it more violence or less violence? Unknowable, the event coming must produce fear. Nevertheless, together this joy and this fear, both of these feelings imply, as Foucault says in his 1984 "What is Enlightenment," that "the work of freedom is [and remains forever] indefinite."[116]

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116 Michel Foucault, "What is Enlightenment?" in *The Essential Works of Foucault, Volume I* (New York: The New Press, 1997), 315–16.

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CHAPTER 4

The Order of Things: The Human Sciences are the Event of Animality[1]

Saïd Chebili
Translated by Matthew Chrulew and Jeffrey Bussolini

The Order of Things is a book that, when it considers the origins of natural history together with the definition of man[2]—a concept that appeared only in the nineteenth century—finds itself confronted with the problematic of animality.

Let us therefore try on the one hand to grasp its contour and key ideas, and on the other to identify how the discourses on natural history and man encounter the theme of our investigation. From the preface on, Foucault emphasises the continuity of his reasoning with the *History of Madness*. Let us read its significant lines. "The history of madness would be the history of the Other—of that which, for a given culture, is at once interior and foreign, therefore to be excluded (so as to exorcise the interior danger) but by being shut away (in order to reduce its otherness); whereas the history of the order imposed on things would be the history of the Same—of that which, for a given culture, is both dispersed and related, therefore to be distinguished by kinds and to be collected together into identities".[3] How does Foucault seek to assemble the history of the Same? As he says in an interview with Madeleine Chapsal, what sustains things in time and space is the system, or the set of relationships that persist and change independently of the things that they connect.[4]

More precisely, in the preface to the English edition of *Les Mots et les choses*, he distances himself from the usual approach of the historian of science. In fact, he seeks "to reveal a *positive unconscious* of knowledge: a level that eludes

1 Translated from chapter IV of Saïd Chebili, *Figures de l'animalité dans l'œuvre de Michel Foucault* (Paris: L'Harmattan, 1999), 113–133. © Editions l'Harmattan [Trans.]

2 We have often retained the use of "man" for "l'homme" following the translation of *Les Mots et les choses* and indicating its historical gendering. [Trans.]

3 Michel Foucault, *The Order of Things: An Archaeology of the Human Sciences* (London & New York: Routledge, 2002 [1966]), xxvi.

4 Michel Foucault, "Entretien avec Madeleine Chapsal," in *Dits et écrits I, 1954–1975*, ed. Daniel Defert and François Ewald (Paris: Gallimard, 2001 [1966]), 541–546 (542).

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the consciousness of the scientist and yet is part of scientific discourse, instead of disputing its validity and seeking to diminish its scientific nature".[5] Thus Foucault's initial hypothesis is that the intellectual activity of a given period obeys laws that transcend the individual.

To demonstrate this he chooses three discourses, on living beings, language and wealth, to try to highlight a basis common to them. This, eluding the consciousness of the scientist, he calls the "*épistémè*".[6] *Epistemes* differ according to the period. Foucault individualises three: the Renaissance *episteme*, the Classical *episteme*, and the modern *episteme*.

Before going into the detail of the text, let us emphasise that *The Order of Things* opens with a tale by Borges that refers to animality and triggers Foucault's laughter. Borges cites a certain Chinese encyclopedia where it is written that "'animals are divided into: (a) belonging to the Emperor, (b) embalmed, (c) tame, (d) sucking pigs, (e) sirens, (f) fabulous, (g) stray dogs, (h) included in the present classification, (i) frenzied, (j) innumerable, (k) drawn with a very fine camelhair brush, (l) *et cetera*, (m) having just broken the water pitcher, (n) that from a long way off look like flies'."[7] This classification of Borges is indicative of the modern *episteme*. Before studying it in detail Foucault makes a return to the Renaissance to bring to light the order-creating structure, which operates on the principle of resemblance. Let us note here on in that the *epistemes* impose a certain discourse on animality peculiar to each period considered, and a certain use of the reference to animality.

1 The Renaissance *Episteme*: The Coexistence of the Rational and Irrational in the Description of the Animal

Holding sway until the end of the sixteenth century, the Renaissance *episteme* allowed the world to wind upon itself, and painting to imitate space, in a kind of constant and infinite repetition. How were things similar to one another? Foucault notes the essential forms of resemblance.

– La Convenientia (Convenience)
  The convenient things have a relationship of proximity and touch each other at the edges, the extremity of one coinciding with the beginning

5 Foucault, *The Order of Things*, xi–xii.

6 Foucault italicises and accents "*épistémè*" to mark its lineage from the Greek "*epistēmē*"—an emphasis often elided in translations of his work. [Trans.].

7 Ibid., xvi.

of the other. What is important resides in that contact, between the elements, which allows the exchange of properties. Thus "in the vast syntax of the world, the different beings adjust themselves to one another; the plant communicates with the animal, the earth with the sea, man with everything around him."[8] This similitude tied to space abrades the differences between plants, animals, and men, with the result that the world is linked together as a chain.

– L'Aemulatio (Emulation)
  Emulation is defined as a convenience without point of contiguity, which defies the law of distance, but proceeds from a mechanism for reflection and mirroring making it a "sort of natural twinship existing in things".[9]
– L'Analogia (Analogy)
  An ancient concept of the very strong power of resemblance, because this is not necessarily that of the things themselves, but that of relationships. Thus a figure, a trait, a bond enable it and give it a universal field of application whose privileged point is man, who "stands in proportion to the heavens, just as he does to animals and plants, and as he does also to the earth, to metals, to stalactites or storms."[10] All the analogies converge towards the human being who sends them back towards the objects to give them meaning.
– La Sympathia (Sympathy)
  Sympathy gives rise to connections between the most diverse substances in the world, in the direction of the identical, the same. The universe would be frozen without the inverse play of antipathy. Through this preeminence of the pair sympathy-antipathy the cosmos remains what it is, objects, animals and men maintain the same figures.

How can we read the presence of these characters, this *episteme*? This system of resemblances, that was binding all while keeping distant, was inscribed in the universe in the form of signs that man was able to decipher. Signatures are characterised by circularity. These are the sympathies and emulations that indicate analogies. Emulation is recognisable due to analogy and convenience which itself is by sympathy. "Every resemblance receives a signature; but this signature is no more than an intermediate form of the same resemblance. As a result, the totality of these marks, sliding over the great circle of similitudes, forms a second circle which would be an exact duplication of the first, point by point, were it not for that tiny degree of displacement which causes

8 Ibid., 20.
9 Ibid., 22.
10 Ibid., 24.

the sign of sympathy to reside in an analogy, that of analogy in emulation, that of emulation in convenience, which in turn requires the mark of sympathy for its recognition."[11]

Foucault carefully draws all the consequences of the configuration of this *episteme*. Knowledge is at once plethoric and poor. Plethoric because, for resemblance to make sense, it must be read in terms of all the analogies inventoried; poor by the very great monotony of this summation of resemblances. In the sixteenth century, as before, the notion of microcosm dominates, which functions as a veritable category of thought. In fact each thing will find, as in a mirror, its double on the scale of the macrocosm. Microcosm and macrocosm will correspond closely in the play of resemblance. This is hardly surprising when one is aware that, in this period, the world is closed and finite. As Foucault says, "Nature, like the interplay of signs and resemblances, is closed in upon itself in conformity with the duplicated form of the cosmos."[12] This proximity, in which resemblance assumed the role of organising third-party, enabled a solidarity between the signs of things and their meaning. This led to a knowledge that was as much erudition as magic. Erudition, because deciphering the marks inscribed on the earth's surface is equivalent to reading the divine scriptures in the sacred books. Magic, because the resemblance of its four characters opens onto the supernatural and the magical. Forms of knowledge that took into account the aspects of existence or human activity were obeying common but transformable criteria, called by Foucault "epistémè." Foucault thus studied the wealth that man produces, circulates, exchanges, the language which he uses to communicate, and finally the group of living beings to which he belongs. In the latter domain, Foucault will be confronted with the study of natural history, and he will try to grasp what mark, what specificity, the *episteme* imprints on the discourse on the animal. In the first place language, in the sixteenth century, is not considered as a set of independent signs. It is rather an opaque and mysterious thing, part of the distribution of similitudes and signatures, being lodged in the world. Originally there exists a perfect similitude between language and the world, which is lost in the Classical age, yielding the multiplicity of languages. Of these, only Hebrew carries the trace of this similitude, it being the common idiom of God, Adam and the animals. During the Renaissance the perspective changes and it is maintained that, in nature, writing precedes speech. In our study we will only address language and wealth when necessary, by way of comparison with natural history. The latter will occupy the crux of our thinking.

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11 Ibid., 32.

12 Ibid., 35.

> When one is faced with the task of writing an animal's *history*, it is useless and impossible to choose between the profession of naturalist and that of compiler: one has to collect together into one and the same form of knowledge all that has been *seen* and *heard*, all that has been *recounted*, either by nature or by men, by the language of the world, by tradition, or by the poets. To know an animal or a plant, or any terrestrial thing whatever, is to gather together the whole dense layer of signs with which it or they may have been covered.[13]

As in Foucault's previous writings, animality here consists of a figure evoking the fable. The animal is linked to everything that exists in the world and, to describe it, one must enumerate its anatomy, its mythology, its heraldic figures, its habitat, and its medical and magical uses. Animality is read like the other elements of nature, blurring it into a semiological indistinction, where the animal and plant kingdoms are deciphered by the interpretation of signs. Natural history does not yet exist with its classificatory concern. This figure of legend is possible while in the Renaissance the system of signs in the world is ternary: commentary, marks on things, text. In the Classical age the intellectual concerns change, and there will be a discontinuity with the previous period. The fundamental question can be stated: how can a sign be in relation to that which it signifies? It will be answered that it is linked by representation. Three main consequences will follow. Language will only be a particular case of representation, the preeminence of writing disappears, and finally words and things will separate and therefore, as for the animal figure, it becomes clearer and loses its polysemy. The description of the animal will abandon the mythological and symbolic dimension in favour of scientific objectivity alone.

2 The Classical *Episteme*: The Animal Subjected to the Rigours of Taxonomy

In the early seventeenth century thought moves away from resemblance. "Resemblance, which had for long been the fundamental category of knowledge [...] became dissociated in an analysis based on terms of identity and difference; moreover, whether indirectly by the intermediary of measurement, or directly and, as it were, on the same footing, comparison became a function of order; and, lastly, comparison ceased to fulfil the function of revealing how the world is ordered, since it was now accomplished according to the order

13 Ibid., 44.

laid down by thought, progressing naturally from the simple to the complex."[14] Foucault rigorously draws the detailed consequences of the establishment of this new *episteme*:

1) It substitutes analysis for analogical hierarchy.
2) Resemblance is subjected to proof by comparison.
3) The complete enumeration of all similitudes will then prove feasible.
4) The activity of the human mind changes. It will no longer be for it to bring things together, but to discriminate and establish identities.
5) The Cartesian characteristics of clarity and distinctness will take on a great importance for defining knowledge.

The new *episteme* will maintain a different relationship with the *mathesis* that is the universal science of order and measure. Relationships between beings subjected to it will concede to universal method's analysis of character. Furthermore, the Leibnizian project to establish a mathematics of qualitative orders will strongly permeate all Classical thought. In correlation with *mathesis*, a certain number of domains, whose existence was not epistemologically possible until then, will tend to be uncovered. These are general grammar, natural history, and the analysis of wealth, "sciences of *order* in the domain of words, beings, and needs".[15] Meticulous observation and description of living beings (humans and animals) will attain the status of reality and a new discipline, natural history, will become autonomous with its own rules and methods. Famous names will fly the flag for these three sciences: Bopp for general grammar, Cuvier for natural history and Ricardo for the analysis of wealth. Disciplines whose appearance is correlated with the relation the Classical *episteme* maintains with mathesis. This relation to order is, to the Classical age, what interpretation was to the Renaissance.

Three variables, which take as their object the sign, substitute for resemblance in the knowledge of three new empirical domains:

– the sign makes sense only through an act of knowing that gives it its certainty or probability;
– the connection of the sign with what it signifies is variable. However, time and space are not abolished as with similitude;
– the sign is formed by convention; it is an element drawn from things and constituted as sign by knowledge. "Archaeologically," the dissociation of

14 Ibid., 60.

15 Ibid., 63, emphasis added.

> sign and resemblance allows the revelation of new procedures of knowledge: probabilities, analysis, combination, system and universal language. But—an element of crucial importance—the sign is held to represent, and this representation is found to be itself represented within it. Double representation or, in other words, a dual theory of the sign characterises the Classical age.

A configuration detectable in the model of the picture, for the latter "has no other content in fact than that which it represents, and yet that content is made visible only because it is represented by a representation."[16] The Classical *episteme* ceaselessly traversed this space to read there simple natures as well as complex representations. Foucault grasps here that which expresses the theory of language, classification and money, by relating them to a doctrine of signs and of representation. We will leave aside the analysis of language and money to focus on the problems posed by the classification of living beings.

Henceforth, it becomes appropriate to classify man as a distinct species or place him among those with whom he presents the most similarities. Linneaus, for example, locates *Homo sapiens* at the head of the mammals, in the order of primates. To this may be added the problem of continuity or discontinuity within the living world as a whole. As is shown in the work of Luc Ferry and Claudine Germé, Lamarck said, thanks to the use of comparative anatomy, that the particular state of organisation of man "has been acquired gradually after a long time, with circumstances that are found favourable."[17]

According to Foucault we are unable to elaborate a history of biology in the eighteenth century. This subject does not make sense because life itself, as a concept, did not exist. One counted only living beings, the objects of a natural history. "Mechanism from Descartes to d'Alembert and natural history from Tournefort to Daubenton were authorized by the same *episteme*."[18] In the sixteenth century one could read histories: of birds, of plants, of snakes . . . In the eighteenth century, finally, is born a natural history of quadrupeds, vertebrates and reptiles. The difference between history and natural history is considerable. In the first the separation between observation, document and fable was missing because signs belonged to things. The second is enabled when signs will entail, in the eighteenth century, modes of representation. In the sixteenth century, Aldrovandi was doing the history of animals when he

16 Ibid., 71.

17 Luc Ferry and Claudine Germé, *Des animaux et des hommes* (Le livre de poche, Biblio, Essais, 1994). (In *Recherches sur l'organisation des corps vivants*. [Trans.])

18 Foucault, *The Order of Things*, 140.

gathered everything that concerned them, from anatomical considerations to legends and medicines made from their substances. In short, with Aldrovandi, we find that "the history of a living being was that being itself, within the whole semantic network that connected it to the world."[19] We note that there is then no distinction between observation and fable because signs formed part of things. Aldrovandi would welcome, for each animal, a thesaurus forming the compilation of everything that has been written in Hebrew, Greek, Latin as well as in modern languages. As Liliane Bodson says, "each real or imaginary animal, such as the phoenix, 'the fish in a monk's habit' or 'in a bishop's cassock,' the 'winged serpents commonly called dragons' etc., is selected to be the subject of a manual intended to be exhaustive".[20] One will note the inclusion of practical, symbolic and proverbial instruction in the animal encyclopedias. The naturalist Gesner, contemporary of Aldrovandi, reproduced an illustration of a wolf that hardly inspires sympathy: "the apparent thinness and bushy tail render more striking the clawed paws and above all the famished tongue and the mouth studded with fangs".

For Buffon, Aldrovandi has drowned his subject under a mountain of foreign matter. The former seeks to make an exact description of each animal, its anatomy and its way of life. However, the study of anatomy remains incidental, whereas the explanation of natural phenomena occupies a prominent place. Buffon maintains that matter tends to organise itself, organic molecules combining to form an animal, for example, through the "inner mould." As Jean Varloot noted in the preface to the *Natural History*, "the theory of the world made it possible to explain at the same time nutrition and, thanks to excess molecules, reproduction, and thus the continuity of the species and of life. All this within a 'physical hypothesis' without recourse to supernatural action, left to the guarantee of the 'wisdom of the creator'".[21]

2.1 *Animality as Figure of the Knowable*

The animal must manifest itself in its own being, in its nature. Thus natural history finds its place in this distance, this space between words and things. And, made characteristic at the time of Linnaeus, this discipline will impose a strict order of description for the animal, with the name, theory, kind, species,

19 Ibid., 140.

20 Liliane Bodson, "L'histoire des animaux," in *Si les lions pouvaient parler: Essais sur la condition animale*, ed. Boris Cyrulnik (Paris: Gallimard, 1998), 230–255 (238–239).

21 Comte de Georges-Louis Leclerc Buffon, *Histoire Naturelle*, ed. Jean Varloot (Paris: Gallimard, 1984), 16.

attributes, use, and *litteraria*. Gardens and zoos henceforth furnish the landscape. Is this a new interest in botany and zoology?

No, because it had been there for a long time. We witness instead a change of perspective. "To the Renaissance, the strangeness of animals was a spectacle: it was featured in fairs, in tournaments, in fictitious or real combats, in reconstitutions of legends in which the bestiary displayed its ageless fables. The natural history room and the garden, as created in the Classical period, replace the circular progression of the 'show' with the arrangement of things in a 'table'. What came surreptitiously into being between the age of the theatre and that of the catalogue was not the desire for knowledge, but a new way of connecting things both to the eye and to discourse."[22] A very decided contrast opposes these two perspectives.

In the Renaissance, we observe a polysemy of animal meanings favoured, as we have seen, by history. The animal remains a source of fear although it attracts us and appears close to us. From there, this scene is a spectacle. The spectacle allows, by the rigour of its staging, a mastery of the violence of the beast just as much as of the anxiety induced in humans. The spectacle would include a cathartic quality for the human. In addition, thanks to the composite figures of these new bestiaries, we witness an attempt at mastery of the animal. The "show" of beasts lets escape the joy felt at the display of this furious tamed other that is the animal.

This sequence where urges and instinctual proliferation dominate gives way to the calm of the table of the Classical age. Animals are described as objects in a catalogue, disregarding any commentary. The Classical age then revives a conception of history identical to that of the Greeks, especially Herodotus. The latter saw in it an inquiry well suited to a science of observation. Natural history is the science of what is immediately observed in nature and words will be applied directly to things. In the canvas triumphs the order where everything has its place. There is no more perceptible fear. Each pictorial element makes sense in relation to the others. It is a sign, like a language. These signs are like the atoms of language of which Wittgenstein speaks. Everything corresponds term by term. One will be entitled to say, by continuing the analogy with analytic philosophy, that animality in the Classical age is a figure of *Bild*. The animal enters into the ordering of nature in the same way as plants. Does its importance come from the fact that it is the highest of living beings? For Foucault, in fact, man is absent from the landscape of the Classical age, as he demonstrates in his analysis of Las Meninas by Velasquez, the famous Spanish painter, in which the subject is missing. The principles of plant classification

22 Foucault, *The Order of Things*, 143.

will be extrapolated to the animal which will now be identified, collected, to allow the preparation of catalogues, inventories and indexes. This is henceforth possible because language and things, although separated, remain in the domain of representation.

We should clarify the taxonomic system erected by Linnaeus. To classify, it defines four variables (number, form, proportion, situation) likely to create unanimity among scholars. "Each visibly distinct part of a plant or an animal is thus describable in so far as four series of values are applicable to it."[23] These four values will define its structure.

To describe plants and animals one will use analogies based on the human body, the parts of which will constitute standards of measure. This structural arrangement inscribes the animal and vegetable kingdoms into language, and the "book becomes the herbarium of living structures."[24] The animal that is the carrier of meaning will extend to acquire the status of a figure of knowledge for itself. In comparison to the animal this will mean that we witness the accuracy of descriptions concerning it. But does this amount to knowing more? Certainly not, because "[t]he plant and animal are seen not so much in their organic unity as by the visible patterning of their organs. They are paws and hoofs, flowers and fruits, before being respiratory systems or internal liquids. Natural history traverses an area of visible, simultaneous, concomitant variables, without any internal relation of subordination or organization."[25] This knowledge, fragmented whole that it is, reflects an improvement on the overabundant descriptions of the animal that we encountered in the preceding *episteme*. The attempt to determine its being, its nature, dominates, resulting in the knowledge of the whole botanical and zoological field codified by the four variables that we have cited.

2.2 *Animality as Figure of the Visible*

However this organisation confers on the animal a status of figure of the visible, because these four marks are external. This can be explained by the loss of interest in dissection, a highly esteemed science in the Renaissance, in favour of botany. The latter consequently proves capable of correctly describing natural history in its double task of designating all natural beings and submitting them to comparisons and resemblances. Hence the importance of the character that takes on the meaning of a common noun and can be conceived in two ways. One the one hand, the system of Linnaeus, who chooses a finite and

23 Ibid., 146.

24 Ibid., 147.

25 Ibid., 149.

limited set of characteristics the permanence and variability of which he then studies among all beings. On the other hand, Jussieu and Buffon take character for a method or technique of analysis by subtraction. They first fully describe a plant. Then, of a second they retain only the differences from the first, and so forth, in such a way that the distinctive criterion of each genus is the only one retained. This method, given the large number of animal and plant species, can not detail them all, but only inventory the large families. Thus it is that "beginning with the ferret and the wolf, the dog and the bear, we shall come to know sufficient about the lion, the tiger, and the hyena, which are animals of the same family."[26]

System and method seem two ways of conceiving natural history as a language. A uniqueness of method will be adjoined to a plurality of systems, each resting on the same archaeological foundation. Animals and plants would constitute atoms from which a structural homology would allow them to be linked to the propositions of language. We find here, without Foucault mentioning it, the ontological postulate already present in the *History of Madness*. Note that the fundamental feature of the Classical *episteme*, what Foucault calls representation, recalls what Wittgenstein names the form of representation. In proposition 2.17 of the *Tractatus*, the latter states: "What a picture must have in common with reality, in order to be able to depict it—correctly or incorrectly—in the way it does, is its pictorial form."[27] And again, in 2.151: "Pictorial form is the possibility that things are related to one another in the same way as the elements of the picture."[28] The parallel is obvious with the table of the Classical age where each element can be assembled with the others, and takes its place as in a jigsaw puzzle.

In the sixteenth century, the identity of animals was secured by a sign, a positive character. This beast hunted by day, another by night. Each had its specificity compared to the others.

From the seventeenth century, an animal was doubly defined: by its own determinations and by what distinguishes it from others and makes it different from them.

Between these two periods, the character, the ontological figure marks time. Without going into detail for the moment, let us say that from Cuvier, one will study the animal starting from its differences from others, differences based on internal structures and functions (circulation, locomotion, respiration).

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26 Ibid., 155–6. (Foucault is quoting Adanson, *Cours d'histoire naturelle*. [Trans.])

27 Ludwig Wittgenstein, *Tractatus Logico-Philosophicus*, trans. D. F. Pears and B. F. McGuinness (London & New York: Routledge, 2001 [1921]), 11.

28 Ibid., 10.

Two sets of complementary phenomena, in the Classical age, will ensure the existence of natural history. That of the continuity of beings, as Buffon and Linnaeus envisage it in their classifications. And that, discontinuous, of events, ordered in compositions that are congealed in the continuous line of time. Contemporaneous with language, natural history is unable to constitute itself as biology.

Nature consists of three kingdoms: vegetable, mineral, animal. The boundaries between them remain imprecise, as scientists do not develop a theory of life, but rather a system of language that makes use of words for the taxonomy of species. Thus in the seventeenth and eighteenth centuries language, wealth, and natural history are thought of starting from representation, which not only prescribes their concepts and methods, but as a scaffold, assures them of a certain mode of existence. In the following century, a change of *episteme* becomes operative in which speech, living, and need, will free themselves from representation, an upheaval whose contemporaneity with Sade Foucault assures us. Everything is ready for the birth, at the end of the eighteenth century, of a new discontinuity, following the example of that which had shattered the *episteme* of the Renaissance at the end of the seventeenth. How do the new knowledges we call philology, biology and political economy arise? Foucault's answer: through a profound modification of the Classical *episteme* that will occur between 1775 and 1795.

3 The Modern *Episteme*: The Ambiguity of the Animal

In the domain of natural history, character always serves as a modality of classification, but it was now based "upon a principle alien to the domain of the visible—an internal principle not reducible to the reciprocal interaction of representations. This principle (which corresponds to labour in the economic sphere) is *organic structure*."[29] Organisation will manifest itself in four ways.

1) In the form of a hierarchical system of characters where it is no longer directly established on visible structures.
2) Characters support functions. Thus the digestive system, of major importance in the animal kingdom, hierarchically occurs first. This is because it is a vector of the alimentary activity that surpasses all others.
3) The notion of life henceforth takes a predominant role in the classification of natural beings. Concealed organs ensuring the vital mechanisms

29 Foucault, *The Order of Things*, 246.

establish a fundamental relationship with those that will remain on the surface.

4) Demarcation and designation of classes of beings falls apart. For a classification to conform to the new principle, it will need to go from the study of superficial signs to those of the deep organs and thence to the vital functions.

Lamarck has been the standard-bearer for this type of analysis. "To classify [...] will mean, in a movement that makes analysis pivot on its axis, to relate the visible, to the invisible, to its deeper cause, as it were, then to rise upwards once more from that hidden architecture towards the more obvious signs displayed on the surfaces of bodies."[30] This brilliant intuition, by separating the order of words from that of things, enabled the emergence of biology in place of natural history. Furthermore, we see the disappearance of the tripartite classification, which is replaced by the opposition between organic and inorganic. The inadequacy of representation has legitimised this change. And, henceforth, separates the secret organisation of beings and representation (domain of subjectivity and of the psychological).

With the modern *episteme* two fundamental changes present themselves to us:

1) We witness a mathematisation of the sciences of observation and an attempt to constitute a unitary epistemological field, from biology to economics, underpinned by the possibility of operations of synthesis that are no longer based in the space of representation.
2) Due to the influence of Kant, the unity of mathesis is shattered. Then opens a transcendental field consisting of "transcendentals", such as life, work, and language, that develop outside of knowledge but make possible an objective knowledge of living beings, the rules of the economy and forms of language.

Foucault builds up the myth of Cuvier, double of the myth of Pinel who, one day at the end of the eighteenth century, will carry out dissection on animals preserved in jars at the Museum of Natural History, a gesture that expresses the beginning of the modern *episteme* and the end of history in the sense of Tournefort, Linnaeus and Sauvages. Cuvier has united the taxonomy of living beings to internal structures. For him, function takes precedence over the organ and defines it. The limited number of functions allows, by analogy,

30 Ibid., 249.

the identification of resemblances between species. We have, here, the premises of biology. "When the Same and the Other both belong to a single space, there is *natural history*; something like *biology* becomes possible when this unity of level begins to break up, and when differences stand out against the background of an identity that is deeper and, as it were, more serious than that unity."[31] The primacy of function enables a new vision.

In a system, all the organs balance each other and there is a connection and a hierarchisation of systems between them, suggesting the existence of an organising plan: all the functional activities of the organism depend on the brain and the nerves. Compared to the Classical age the gap proves decisive. Classification is synonymous with living and the general taxonomy of the animate and the inanimate disappears. Cuvier, although he has been accused of fixism (and he sometimes still is, as Pierre Pellegrin notes in the introduction to his recently reprinted *Preliminary Discourse* (19)) introduced discontinuity and historicity into the kingdom of the living. The notion of life implies a plan that defines the essential organic functions. The historicity introduced by Cuvier opens on to the question of animality. History takes on the features of animality. Foucault makes use of a very strong passage: "The plant held sway on the frontiers of movement and immobility, of the sentient and the nonsentient; whereas the animal maintains its existence on the frontiers of life and death. Death besieges it on all sides; furthermore, it threatens it also from within, for only the organism can die, and it is from the depth of their lives that death overtakes living beings. Hence, no doubt, the ambiguous values assumed by animality towards the end of the eighteenth century: the animal appears as the bearer of that death to which it is, at the same time, subjected; it contains a perpetual devouring of life by life. It belongs to nature only at the price of containing within itself a nucleus of anti-nature."[32] Unlike the plant whose existence passes for static, the animal is borne by a dynamic process. In it struggle Eros and Thanatos in an unremitting process, showing a form of organisation higher than that of the plant. Animality maintains an ambiguous figure regarding this mixture of life and death, especially due to this latter concern. In this period—in which, we should emphasise, man in the Foucauldian sense has not appeared—the animal, higher species, remains the prototype of processes of life and death. The coexistence of these two principles provokes disquiet, and places death on the side of anti-nature. But it exercises at the same time a condemnation of the animal that possesses this "nucleus of anti-nature."

31 Ibid., 288–9.

32 Ibid., 302.

3.1 *The Experience of Life Functions as an "Untamed Ontology"*

For Foucault this figure of animality refers to the different senses of life current in the nineteenth century in an exemplary way. "The experience of life is thus posited as the most general law of beings, the revelation of that primitive force on the basis of which they are; it functions as an untamed ontology, one trying to express the indissociable being and non-being of all beings."[33] Animality serves as a model for the biological processes of life and death, revealing the precariousness of human existence. It underlines that all beings are subject to destruction, which subjects them to finitude. What is important in Foucault's reasoning is that animality bears the figures of life and death. Since existence acquires a paramount importance for the living, in the animal is released the processes of life and death, anabolism and catabolism. Why does this particularly show through in the animal? Because at the time of Cuvier, comparative anatomy and dissection, techniques widely utilised, are being practiced mostly on animals. The strangeness of the beast lies in the fact that death is a process that takes place on the inside of organs. Its invisibility confers on it a distressing occult nature. Let us add that this human awareness of the death that coexists with life awakens all of his unconscious nightmares. Death, of course, existed before Cuvier, but it was not investigated rigorously and scientifically in the living. The beast plays the role of the spectre on which the human projects his primitive fears, especially as animality finds a formidable power. These conceptions are formulated in a new language, that will lose its classificatory function in order to stand as close as possible to nature and to describe it as accurately as possible. Language had hitherto possessed a content laden with history, of which it must rid itself for the appearance of universally valid forms of the linguistic function. In Classical thought man, he for whom representation is meaningful, is not revealed in the picture or table, witness to his inexistence. Indeed, we know that the Classical *episteme* did not isolate a specific domain to man.

Why do we have this absence of man? Due to the impossibility of there existing a being who knew nature and himself as a natural being. At the crossroads, the intersection between being and representation, where the Classical age located language, the modern *episteme* sees man. In other words, as Classical language consisted in a "common discourse" between representations and things, no "science of man" was possible, but when representation and being no longer coincide, it reveals its existence and takes the place that was missing on the canvas. This was achieved when Cuvier defined the being of the living through life. Accordingly, "[t]he representation one makes to oneself of

33 Ibid., 303.

things no longer has to deploy, in a sovereign space, the table into which they have been ordered; it is, for that empirical individual who is man".[34]

Man inherits the power to give himself representations and finds himself at the centre of work, life and language. Among the animals he occupies an organising place. But in a very ambiguous way, man comes to life only through his works (which pre-exist him), his organism and his productions. The animal not only precedes him phylogenetically, but derives its meaning only thanks to him. Paradoxically, it is through his knowledge that man discovers his finitude. His knowledge constitutes his power as much as his weakness. Indeed they would be lacking if "man [...] was trapped in the mute, nocturnal, immediate and happy opening of animal life".[35] This is a characterisation of the animal that we must do away with! In the Classical age, language, by its representational function, maintained a link between nature and human nature. In fact, man, without being creator, explained nature, being only a creature among other species. Consequently man is conspicuous by his absence, as Foucault explains in his analysis of the painting of Velasquez. When man manifests himself he becomes subject and object of his own knowledge, thus revealing his limit. "Man's finitude is heralded—and imperiously so—in the positivity of knowledge".[36] What, finally, is man? He who can only be comprehended in a mediate way though life, language and wealth. The animal, for its part, is immediately perceived. This "happy," animal life—would it not have a relationship with this state of nature imagined by Rousseau where two principles prevail: pity and self-preservation? Note also that Foucault shows his originality by qualifying man by his lacks, his finitude, whereas usually one saddles the animal with these qualifiers.

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34 Ibid., 341. (The full sentence continues: "..., the phenomenon—perhaps even less, the appearance—of an order that now belongs to things themselves and to their interior law." [Trans.]).

35 Ibid., 342.

36 Ibid.

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PART 2

Power and Discipline

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CHAPTER 5

"Taming the Wild Profusion of Existing Things"? A Study of Foucault, Power, and Human/Animal Relationships

Clare Palmer

1 Preface

It may seem at first sight that a paper on Foucault, power, and human-animal relations is awkwardly placed in relation to debates about environmental ethics.[1] Such a subject, especially given that the paper, in part, discusses domesticated animals, may seem insufficiently 'environmental'. This perception, though, seems to depend on a particular construction of *environment* as referring to the 'wilder-lands'—to places and creatures perceived to be apart from the human. But other, broader, constructions of environment include the agricultural, the urban, and the domestic as environments equally raising questions for philosophical and ethical reflection, as several recent papers in this journal have suggested.[2] And it is in these other, less wild, environments that most human encounters and relationships with animals take place. With a broad understanding of the word *environment*, such encounters and relationships are no less 'environmental' than those which might take place in a national park.

This paper is also 'environmental' in another sense: it emphasises the significance of the specificity of particular environments and contexts, whether one views animals as part of the environment, or whether one views the environment as the arena in which human/animal relationships occur. Indeed, it is this very context-specific nature of Foucault's thinking that contrasts with much current philosophical thinking about human/animal relationships. Such philosophical approaches have tended to adopt universalising frameworks, where (for instance) the possession of some particular characteristic (such as

1 This essay was first published in *Environmental Ethics* 23:4 (2001): 339–358. It has been slightly amended for compatibility with this volume. [Eds.]

2 See Alistair Gunn, "Rethinking Communities: Environmental Ethics in an Urbanised World," *Environmental Ethics* 20:4 (1998): 341–360; Roger King, "Environmental Ethics and the Built Environment," *Environmental Ethics* 22:2 (2000): 115–132.

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sentience, or being subject-of-a-life) is both necessary and sufficient for moral standing. All animals possessing whatever is regarded as the key characteristic are then, it is argued, entitled to the same ethical treatment.[3] Foucault rejected (in principle, at least) generalisation and universalisation in favour of considering specific and particular contexts and environments; and was reluctant (most of the time) to make universal normative judgements. Throughout his work he explored a wide range of power relationships operating in different human contexts and spaces at different times. It is this focus on power relationships, in the context of specific human-animal relations, which I will be developing in this paper.

Curiously, even within the Anglo-American tradition, there has been very little work on animals by theorists of power.[4] Certainly, political and social theorists have written about the roles of new social movements, including the animal liberation movement, in shaping contemporary politics.[5] But there has been little work exploring human/animal relationships in terms of power. By focusing on Foucault, who has produced some of the most influential recent work on power, I hope to make a few preliminary forays into this area.

This paper is divided into two parts. The first is intended as a justification for undertaking such a project at all, and addresses questions such as "How does Foucault use the word *power*? What does he say, if anything, about power and animals? Is it appropriate to use his work in this context?" In the second part of the paper, I consider how a broadly Foucauldian approach might be used to explore human/animal power relations in different contexts and environments.

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3 See for instance Peter Singer, *Animal Liberation* (London: Jonathan Cape, 1976) and Tom Regan, *The Case for Animal Rights* (London: Routledge, 1984). Although their approach differs somewhat from mine, J. Baird Callicott and Mary Midgley, in Eugene C. Hargrove, ed., *The Animal Rights/Environmental Ethics Debate*, (New York: State University of New York Press: 1992) are examples of two philosophers who have developed more nuanced approaches to thinking philosophically about animals.

4 Linzey Clarke and Tom Regan in *Political Theory and Animal Rights* (London: Pluto Press, 1990) include a number of extracts on animals in political theory very broadly construed; but very little of this is specifically related to power, and even less is of modern origin.

5 See for instance Alberto Melucci, *Nomads of the Present: Social Movements and Individual Needs in Contemporary Society* (Hutchinson Radius, 1989).

2 Foucault: A Strange Place to Look?

Foucault's work may seem a strange place to begin in thinking about human/animal relations. Indeed, there is little evidence from his written work that Foucault had much interest in animals. I might, therefore, have begun by criticising Foucault for his anthropocentrism—and in so doing, add one more to a whole series of not dissimilar complaints. Many feminists argue that Foucault's work is androcentric and fails to take feminism seriously.[6] Postcolonial theorists maintain that Foucault's work is almost entirely Eurocentric (indeed, Francocentric) and that he has no real interest in their problems of exclusion, confinement, and domination.[7] Environmental writers report that he deliberately walked away from beautiful wild environments saying "My back is turned to it!"[8]

Yet given that Foucault never did directly address questions of feminism, colonialism, or the environment, his work has had a powerful and lasting impact on all three areas. Much postmodern feminist theory engages with and makes use of Foucault's work.[9] Edward Said's *Orientalism*, the ground-breaking work in postcolonial theory, was inspired by Foucault's writing;[10] while recent work in environmental studies has drawn extensively on some of his ideas.[11] That Foucault's work may be anthropocentric, and that he never addressed

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6 See for instance, Isaac Balbus, "Disciplining Women," in *After Foucault: Humanistic Knowledge, Postmodern Challenges*, ed. Jonathan Arac (New Brunswick: Rutgers University Press, 1988), 138–160 (150) and Sandra Lee Bartky, "Foucault, Femininity and the Modernization of Patriarchal Power," in *Feminism and Foucault: Reflections on Resistance*, ed. Irene Diamond and Lee Quinby (Northeastern University Press, 1988), 61–86.

7 See Edward Said, "Michel Foucault 1926–1984," in *After Foucault: Humanistic Knowledge, Postmodern Challenges*, ed. Jonathan Arac (New Brunswick: Rutgers University Press, 1988), 1–11.

8 Éric Darier, *Discourses of the Environment* (London: Sage, 1998), 6.

9 See for instance Bartky, "Foucault, Femininity and the Modernization of Partriarchal Power"; Jane Sawicki, "Feminism and the Power of Foucauldian Discourse," in *After Foucault: Humanistic Knowledge, Postmodern Challenges*, ed. Jonathan Arac (New Brunswick: Rutgers University Press, 1988), 161–177; Nancy Fraser, *Unruly Practices: Power, Discourse and Gender in Contemporary Social Theory* (Minneapolis: University of Minnesota, 1989).

10 Edward Said, *Orientalism* (Harmondsworth: Penguin, 1979).

11 Darier, *Discourses of the Environment*; Josef Keulartz, *The Struggle for Nature* (London: Routledge, 1998).

himself to questions about animals, then, is no reason why his work should not be of interest in thinking about human/animal relations.[12]

3 The Meanings of Power

The meaning of *power* is, of course, hotly contested. Leading theorist of power, Stephen Lukes, argues that no single definition of power is adequate and that what unites definitions is no more than "thin and formal".[13] This complexity is compounded when thinking about animals and power, where questions are also raised about whether animals can be thought of as part of a 'society' or a 'community' with humans. Some power theorists specifically exclude animals from their studies of power on the grounds that animals are not part of society, and therefore do not fall within the scope of 'power relations'. Dahl, for instance, defines power terms as "subsets of relations among *social units* such that the behaviour of one or more units (the responsive units *R*) depends in some circumstances on the behaviour of other units (the controlling units *C*)" and concludes that "By this broad definition then, power terms in the social sciences exclude relations with inanimate or even nonhuman objects; the control of a dog by his master or the power of a scientist over a nuclear reactor would fall by definition into a different realm of discourse".[14] Animals here do not count as social units; thus, interactions with them cannot be described as power relations.

Other writings about power, such as those of Bertrand Russell, who defines power (rather simply) as "the production of intended effects," automatically *include* animals within the scope of power relations. Indeed, Russell considers human/animal relationships to be the paradigmatic case of power: "forms of power are most naked and simply displayed in our dealings with animals,

12 There are some exceptions; see David Macauley, "Bewildering Order," in *The Ecological Community*, ed. Roger Gottleib (London: Routledge, 1997), 104–138; Kay Anderson, "Culture and Nature at the Adelaide Zoo: At the Frontiers of 'Human' Geography," *Transactions of the Institute of British Geographers* 20 (1995): 275–294; and Kay Anderson, "A Critical Geography of Domestication," *Progress in Human Geography* 21:4 (1998): 463–485; Jennifer Ham, "Taming the Beast: Animality in Wedekind and Nietzsche," in *Animal Acts: Configuring the Human in Western History*, ed. Jennifer Ham and Matthew Senior (London: Routledge, 1998), 145–164; Chris Philo and Chris Wilbert, eds., *Animal Spaces, Beastly Places* (London: Routledge, 2000).

13 Stephen Lukes, ed., *Power* (Oxford: Blackwell, 1986).

14 Robert Dahl, "On Power," in *Power*, ed. Stephen Lukes (Oxford: Blackwell, 1986), 40.

where disguises and pretences are not thought necessary".[15] While one might take issue with Russell's claim that disguises and pretences are not adopted in human dealings with animals, it is clear that for Russell the concept of power includes animals.

These issues about what power means, and whether society is construed as including or excluding animals, are questions raised by Foucault's work that I now pursue further. However, as a cautionary note, it should be pointed out that Foucault was not attempting to construct a full-blown theory of power (as Sawicki suggests, Foucault uses power as a "grid of analysis" rather than as a theory);[16] that his thoughts about power and the centrality which he accords it changed at different times in his life and found different expression in his earlier and later works; and that debate amongst Foucault scholars about how Foucault understood power is still ongoing. Consequently, my summary of Foucault's thoughts about power will be of, necessity, incomplete and somewhat partial.

4 Foucault and Power

In his most famous characterisation of modern power, his essay "Disciplinary Power and Subjection," Foucault describes power as a net-like organisation, as embedded within relationships, something that circulates, a chain.[17] Power, he argues, does not have a metaphysical existence and cannot be "possessed" by someone or some group. Rather, power is simultaneously both exercised and experienced by individuals. Understanding power in this way, Foucault chooses to analyse and model it not as something exercised from "the top" or "the centre" and trickling-down through society, but rather as a network of relationships from below, or "at the extremities" where "power becomes capillary in its more regional and local forms and institutions". Indeed, he argues that it is these local forms and institutions of power that are "invested, colonised,

15 Bernard Russell, "The Forms of Power," in *Power*, ed. Stephen Lukes (Oxford: Blackwell, 1986), 20.

16 Sawicki, "Feminism and the Power of Foucauldian Discourse," 164.

17 He makes this distinction in several places, although in slightly different terms. See Michel Foucault, "The Subject and Power," in *Michel Foucault: Beyond Structuralism and Hermeneutics*, ed. Hubert Dreyfus and Paul Rabinow (Chicago: University of Chicago Press, 1982), 208–226 (221); and Michel Foucault, "The Ethic of Care for the Self as a Practice of Freedom," in *The Final Foucault*, ed. James Bernauer and David Rasmussen (Cambridge: MIT Press, 1988), 1–20 (3).

utilised, involuted . . . by ever more general mechanisms and by forms of global domination".[18]

It is these capillary forms of power in which Foucault is interested; what he calls the *microphysics* of power: the study of power in particular environments, instances and relationships. Indeed, he maintains that there is little that can be said about power in general; its manifestations are varied and heterogeneous. But while manifestations of power are heterogeneous, they are also ubiquitous; he argues that power "permeates, characterises and constitutes the social body" and that there are no relationships which are not, in some sense, manifestations of power. Central to this understanding of power, especially in Foucault's earlier work, is discourse: "these relations of power cannot themselves be established, consolidated nor implemented without the production, accumulation, circulation and functioning of a discourse".[19] It is relations of power that produce "discourses of truth": the truth delineating what can be thought and said and what remains unthought and therefore unsaid within the social body.

In his later work on power, Foucault extends his interest in power from discursive practices to non-discursive cultural practices and actions.[20] He insists that he is not interested in exploring power at the "level of conscious intention or decision, from an internal point of view"; but rather power at the "point where its intention, if it has one, is completely invested in its real and effective practices". These practices may be both discursive and non-discursive.[21] It is this focus on practices and actions, which Foucault often calls the techniques and instruments of power, that are manifest in his well-known studies of madness, medicine, penality and sexuality.

Fundamental to Foucault's work on power is his argument against many more traditional conceptions of power that view its manifestations as exclusively repressive. Certainly, especially in his work on madness and penality, Foucault does explore the repressive nature of power and the "techniques and tactics of subjugation" used within what he calls "disciplinary societies". However, in his later writing he moves away from this repressive focus, and argues more

18 Michel Foucault, "Two Lectures" in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (Brighton: Harvester Press, 1980), 78–108 (99).

19 Ibid., 93.

20 Hubert Dreyfus and Paul Rabinow, eds., *Michel Foucault: Beyond Structuralism and Hermeneutics*, (Chicago: University of Chicago Press, 1982), 184.

21 Foucault, "Two Lectures," 97; Michel Foucault, "The Confession of the Flesh," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (Brighton: Harvester Press, 1980), 194–228 (197); and Foucault, "The Subject and Power," 224.

strongly that power is *creative*. This is, for instance, one of the central conclusions of the papers collected in *Power/Knowledge*, and, as is well known, forms one of his core arguments against the "repressive hypothesis" of sexuality in *History of Sexuality*, vol. 1. Power, truth and right are intricately related because power produces truth; it produces knowledge; it constructs particular kinds of people; and it creates particular kinds of societies. Alongside this stress on the creativity of power, Foucault also wrote extensively about resistance to it (indeed, acts of resistance are one of the creative effects power can produce). Throughout his work, Foucault ties power and resistance closely together (indeed, in "The Subject and Power" he suggests that "in order to understand what power relationships are about, perhaps we should investigate the forms of resistance . . ."[22]).

One of the (many) difficulties raised by this kind of approach to power is its seeming inability to come to terms with structural power relations, and in particular, structural relations of domination (where effective resistance is not possible). A number of feminist writers have found this aspect of Foucault's work seriously problematic.[23] However, Foucault does, in part, address such concerns in his later work, where he draws some new distinctions in his understanding of power, creating a kind of "power spectrum". Within this spectrum, Foucault distinguishes what he calls "power relations in general" from what he calls relationships of "domination" and also from what he calls "governmentality" or "governmental technologies".[24] Central to these distinctions is how far the relationships involved are persistent and non-reversible, and how far those over whom power is exercised are free to opt for other possibilities. Power relations in general, Foucault maintains, are constantly unstable, and resistance is always present. This resistance may in itself generate so much power that in turn, it overcomes the initial force and causes a reversal of roles. At the other end of the spectrum, relations of domination (such as racism or sexism) are stable and hierarchical, persisting over time with no real possibility of effective resistance or reversal. Relations of domination may involve violence or physical restraint; when the situation eliminates all forms of possible resistance,

22 Foucault, "The Subject and Power," 211.

23 See for instance Nancy Hartsock, "Foucault on Power: A Theory for Women?" in *Feminism/Postmodernism*, ed. Linda Nicholson (London: Routledge, 1990), 169.

24 This characterisation of power maybe a distinctively modern one—in earlier eras, for instance, Foucault argues that power was exercised primarily by the monarch (in the public spectacle of execution, for instance). This is not to say, presumably, that one could not have analysed some social practices during these earlier periods by using Foucault's instruments/tools.

Foucault maintains that this has passed beyond the realm of power, because the acted-upon is entirely passive. (Foucault uses as an example a shackled slave who is unable to move.) But he is reluctant to accept that there are many instances of complete domination, since he comments that even where power is completely "unbalanced" the unempowered party may "still have the opportunity to commit suicide, jump out the window or kill the other"(!).

Between these poles of unstable power relationships in general and stable relationships of domination lies "governmentality"—the strategic, technological and programmatic power exercised by the liberal state. Foucault calls this "pastoral power" as it aims to promote the well-being of the "subjects" of the state by regulating and "disciplining" their lives. Such techniques of regulation, control and discipline may be repressive (as are some of the pastoral power techniques Foucault explores in *Madness and Civilization* and *Discipline and Punish*) but they are also creative—constructing subjects in particular ways amenable to the state, so that they are appropriately socialised, develop desirable habits and values and believe that the state operates with their consent as autonomous citizens. Although such pastoral power regimes are fairly stable and not easily overturned, points and acts of resistance are possible at places within them, and changes/reversals of power at these places may follow.

Obviously, there is much more that can be said about Foucault's work on power, a little of which becomes evident below. However, I want to move on now to consider how any of this might relate to animals, and in what ways it might be appropriate and/or helpful to use Foucault's work.

5 The Use of Foucault

Since Foucault rarely talked about animals, a certain amount of creativity is necessary when thinking about Foucault, animals and power. Foucault himself was no stranger to such creativity: he comments on his own use of Nietzsche: "For myself, I prefer to utilise the writers I like. The only valid tribute to thought such as Nietzsche's is precisely to use it, to deform it, to make it groan and protest. And if the commentators say that I am being faithful or unfaithful to Nietzsche, then that is of absolutely no interest".[25] In this paper, no doubt, I will deform Foucault's thought and make it groan and protest, but broadly speaking, I hope to make use of what Foucault called his "tools" or "gadgets" of

25 Michel Foucault, "Prison Talk," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (Brighton: Harvester Press, 1980), 37–54 (53–4).

approach,[26] albeit in a novel area, and to work within, at least, what one might call 'a Foucauldian tradition'.

While creativity is needed, human/animal relations are not entirely alien to the kind of 'subject' matter with which Foucault's empirical projects have dealt; that is, what Fraser calls "the politics of everyday life" or what Foucault calls, ironically, "ignoble" materials.[27] He focuses on power relationships in a variety of environments: schools, factories, prisons, hospitals, sexual liaisons; on what he calls "micro-practices" in such locations; on the human body; and on what we might think of the commonplace and the mundane—that which is so commonplace and so mundane that, despite the fact that it forms part of the fabric of our everyday lives, we rarely stop to examine it. Human relationships with animals are equally commonplace and mundane; they are the kinds of interactions in which most people participate relatively frequently (sometimes, indeed, more than they interact with other people) but, nevertheless, there is little reflexive insight into such relationships. As Myerson and Rydin argue, perhaps this is because "It is difficult to be reflexive about what we do naturally and what we appear to know without effort. Ironically such knowledge is hard because its object is why we do certain things so easily".[28] The relative paucity of non-scientific academic literature on animals perhaps also supports this conclusion (together with the thought, maybe, that there is something insignificant or unworthy about human/animal relations as a focus for philosophical reflection or study). As Wolin says: "Preoccupied with deep questions of history's meaning, man's fate, and universal truths, theorists, according to Foucault, mostly ignore the relationships and systems of meaning which actually constitute human life."[29] Foucault's willingness to investigate and explore such relationships and systems of meaning suggests at least that this paper is not moving in an area entirely alien to his thought.

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26 Michel Foucault, "Questions on Geography," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (Brighton: Harvester Press, 1980), 63–77 (65).

27 Fraser, *Unruly Practices*, 26; Foucault, "Prison Talk," 37.

28 George Myerson and Yvonne Rydin, *The Language of Environment: A New Rhetoric* (London: UCL Press, 1997), 1.

29 Sheldon Wolin, "On the Theory and Practice of Power," in *After Foucault: Humanistic Knowledge, Postmodern Challenges*, ed. Jonathan Arac (New Brunswick: Rutgers University Press, 1988), 179–201 (181).

6 Can Foucault Talk about Power and Animals?

Difficulties immediately arise when we try to deal with the fundamental question: can Foucault's ideas about power be applied to human/animal relationships? To address this question, we need to consider several things that might be meant when talking about human/animal power relationships in a Foucauldian context.

First, and most straightforwardly, we might be referring to human interpretation of and discourse about animals and how this understands, classifies, and constructs animals, hence operating as a form of power. We might ask questions such as: how are animals constituted as objects of our knowledge? How are we constituted as subjects in relation to our knowledge of animals? Does our discourse about animals relate to our construction of ourselves as human subjects? Such a Foucauldian approach to human/animal power relations is, certainly, an entirely appropriate extension of existing work by Foucault himself, in particular in *The Order of Things* and *Madness and Civilization*.

But this sense of human/animal power relationships does not move beyond the level of interhuman understanding of, and discourse about, animals. Can Foucault's analysis of power be extended to include animals directly, that is, the ways in which humans and animals interact; their practices; their methods of attempting to control and discipline one another? Foucault never directly addresses the question whether, in this sense, animals fall into the category of the 'kind of thing' which can be caught up in the 'net' or 'chain' of power. As I suggested earlier, some power theorists, either directly, or indirectly, exclude animals from the scope of power relations. Does Foucault?

The best place to look in Foucault's writing to consider this question is his paper "The Subject and Power," one of his later and most systematic attempts to explore power. Here Foucault distinguishes what he calls "capacities" from what he calls "power relations". Capacities are "what is exerted over *things* and gives the ability to modify, use, consume or destroy them".[30] Power relations, on the other hand, are about relations between "individuals" or "groups" or "partners" and the ways in which certain actions modify others: "the action of men on other men". But where are animals in this division between *things* and *people*? We need to know what it is about "things" in Foucault's analysis of power that differentiates them from "people"—and thus, whether it is possible for Foucault to speak of power relations between humans and animals.[31]

30 Foucault, "The Subject and Power," 217 (emphasis added).

31 One might, of course, want to question Foucault's own "dividing practice" here between capacities and power relations; by doing so (and being "less faithful" to Foucault), one would not need to follow the kind of argument trajectory I take.

Obviously, we need to focus on what Foucault understands by relationality in respect of power, since it seems to be the lack of relationality that distinguishes "exerted capacities" from power. Foucault is quite clear that what he means by relationality in the context of power is the alteration of the actions of one party by the actions of another party. It is not, Foucault says "a mode of action which acts directly and immediately upon others" (such as brute violence, for instance). Rather "a power relationship can only be articulated on the basis of two elements which are each indispensable if it is really to be a power relationship: that 'the other' (the one over whom power is exercised) be thoroughly recognised and maintained to the very end as a person who reacts; and that faced with a relationship of power, a whole field of responses, reactions, results, and possible inventions may open up".[32]

By using the term *person* here it is clear that Foucault thinks he is talking only about humans—like Dahl, albeit implicitly rather than explicitly, he does not envisage society as including animals. But the passage does not obviously lose its sense if we replace *person* with *being* (or even *organism*) here. What Foucault is emphasising is the reactivity of the party over whom power is exercised (and the possibility that the reaction may be one of resistance). But such reactivity is not confined only to humans. Hindess, pondering Foucault's ideas on resistance comments: "In fact, much of the insistence on resistance in Foucault's work reflects the Nietzschean character of his conception of power. Nietzsche's will to power is also the will to resist constraints imposed by other powers. It is the common condition of all living things: as much an attribute of the mushroom which forces its way up through a layer of concrete as of those humans who aim to subordinate others or who choose to risk death in their fight for freedom".[33]

Hindess' reference to Nietzsche here is interesting. Nietzsche repeatedly emphasises that the will to power is part of man's 'animal' or even 'organic' self and something that is not exclusive to human beings.[34] Further, Nietzsche's understanding of what it is for a living being to exert its will to power is similar to Foucault's: "Will can of course operate only on 'will' and not on 'matter': one must venture the hypothesis that wherever 'effects' are recognised, will is operating upon will".[35] But ultimately, Foucault's conception of power relations differs from Nietzsche's. He severs Nietzsche's analytics of power from its animal roots and applies it, ostensibly at least, only to interhuman relations. But, nonetheless, there seems no reason why Foucault's emphasis on reactivity and

32 Foucault, "The Subject and Power," 220.

33 Barry Hindess, *Discourses of Power: From Hobbes to Foucault* (Oxford: Blackwell, 1996), 151.

34 Friedrich Nietzsche, *Beyond Good and Evil* (Harmondsworth: Penguin, 1990), 66–7.

35 Ibid.

the possibility of resistance could not be extended beyond the human sphere (although to apply it to plants as well would require considerable creativity).

The principal reason why this extension of Foucault's analysis of power to animals is relatively unproblematic is because of his insistence that, while the actions of the party exercising power must be in some sense internalised by the other, and result in altered behaviour, this process need not be conscious. "What I want to show is how power relations can materially penetrate the body in depth, without depending even on the subject's own representations. If power takes hold on the body, this isn't through its having first to be interiorised in people's consciousnesses . . ."[36] What is crucial is not consciousness, but that the effects of power are unpredictable because those over whom power is exercised must be free. "Power is exercised only over free subjects, and only insofar as they are free. By this we mean individual or collective subjects who are faced with a field of possibilities in which several ways of behaving, several reactions and diverse comportments may be realised."[37]

This analysis, at least without substantial modification, excludes plants and probably a large number of other living organisms from the sphere of power relations, understood in a tightly Foucauldian sense at least.[38] It would be difficult to maintain that such organisms were able to respond in a variety of ways and that they had freedom in this sense. However, many animals—such as mammals and birds—do not seem to be excluded. That animal behaviours can be affected by human actions; that animals interiorise elements of their relationships with humans (and with one another) and that their reactions to human behaviours may be many and unpredictable are presupposed by commonplace interactions which humans have with animals (when we talk for instance about 'training' and 'disobedience').[39]

But is this conclusion to include animals too easily in the category of power relations? Does it really make sense to talk about animals offering 'resistance' to human behaviours? In 1995, in his article "Animals, Geography and the City," Chris Philo raised the question whether animals could 'resist' human power.

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36 Michel Foucault, "The History of Sexuality," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (Brighton: Harvester Press, 1980), 183–193 (186).

37 Foucault, "The Subject and Power," 221.

38 There may be, however, metaphorical or poetic ways of talking about plants resisting.

39 And, if we should follow this line of argument, it is worth noting that we should not assume these relationships to be all one way (the humans as having power; the animals as reactive) because animal behaviours can, of course, affect human behaviours; humans may interiorise elements of their relationships with animals and change their behaviour accordingly; and humans may have many and unpredictable reactions to animal behaviours.

He writes: "The possibility is also raised here of thinking about animals as a social group with at least some potential for what might be termed 'transgression' or even 'resistance' when wriggling out of the cages, fields and wildernesses allotted to them by their human neighbours". However, Philo concludes that—partly because he thinks that the idea of resistance implies agency or intentionality—he prefers to use the term *transgression* and avoid the term *resistance*.[40] Transgression, Philo maintains, using a definition of Cresswell's, is about results and reactions which may not be consciously intended, whilst resistance is about intentional overstepping of limits. However, recently Philo has been more positive about the use of the expression "animal resistance",[41] and Wilbert, utilising Ingold's argument that animals have a "practical consciousness," maintains that animals are sufficiently intentional to meet Cresswell's definition of resistance.[42]

From a Foucauldian perspective, it is probable that what Philo thinks of as transgression would count as resistance. Foucault repeatedly insists that he is not interested in intentions where power relations are concerned, but in effects (that is, results and reactions). Hence, his argument that responses to power, whether these are responses of resistance or not, need not first be interiorised in the consciousness. What is important seems to be not that any particular response to power is *intended*, but rather that many different responses are *possible*. As long as this freedom exists, even where different options are not consciously chosen, there is, in Foucault's thought, the possibility of resistance. As Paul Patton argues, in response to Charles Taylor's critique of Foucault on

40 Chris Philo, "Animals, Geography and the City," *Environment and Planning D: Society and Space* 13 (1995): 655–681. He offers other reasons too: partly because questions are raised as to whether "it is appropriate to conceive of transgression or resistance occurring in a situation where the parties involved . . . seemingly cannot even begin to share the same systems of (political) meaning" (656); and partly because the use of such language risks being anthropocentric (by reading inappropriate concepts into the nonhuman world).

41 Chris Philo and Chris Wilbert, "Animal Spaces, Beastly Places: An introduction," in *Animal Spaces, Beastly Places*, ed. Chris Philo and Chris Wilbert (London: Routledge 2000), 1–34 (13).

42 Chris Wilbert, "Anti-this, Against-that: Resistances Along a Human-non-human Axis," in *Entanglements of Power: Geographies of Domination/Resistance*, ed. Joanne Sharp et al. (London: Routledge 2000), 238–254. Tim Ingold, "What is an Animal?" in *What is an Animal?*, ed. Tim Ingold (London: Unwin Hyman, 1994), 84–97 argues that animals can be autonomous agents and can "act back" in response to human behaviours towards them; they are on occasion able to anticipate or predict human behaviour and act in the light of this anticipation.

freedom, Foucault is operating with a very thin conception of agency here, "the sense of being free to act in the minimal, positive sense of the term".[43]

One further question, however, does remain, concerning where on the "power-spectrum" human/animal power relations fit. Should they be considered as falling into the unstable, reversible category of "power relations in general", do they fall under the pastoral regimes of governmentality, or are they relationships of domination? In particular, could one argue that the power relationship between humans (as a class) and animals (as a class) is so unbalanced, stable and irreversible that it can only be called domination; and this domination is so extreme that it approximates to a "physical determination"—leaving animals not even the equivalent options to jumping out the window, committing suicide, or killing the other? If so, even if animals had the capacity to resist in principle, such resistance could not be put into practice and thus, if you like, they would "fall off" the domination end of the spectrum of power relations.

This question about group or class is not, essentially, a Foucauldian question. His emphasis is on the heterogeneity of power—its micro-physics, its particular instantiations—rather than on power in general and on homogeneous oppressive structures. A Foucauldian approach would accept that while there might be what we can think of as globalised human/animal oppressive structures, these have come about by the colonising of existing heterogeneous discourses and micro-practices, and it is these discourses and practices on which we should focus. So we might approach such an analytic of power by considering the diverse nature of human/animal power relationships and how differently situated they can be—the different power relationships of people with animals in wilder environments, in domestic contexts, in a laboratory environment, in a zoo, and in agricultural environments (and, indeed, even these classes may be too wide to be very meaningful). Looked at from this perspective, there are a huge variety of power relationships between humans and animals, with their own instabilities and points of resistance.

Yet this perspective, inescapably, brings us back to questions about domination in human/animal power relationships. Certainly, it seems that humans and animals do have what Foucault calls "power relations in general". There are plenty of individual human/animal interactions in which animals, when faced with a range of possible responses to human actions, exhibit behaviour

43 Paul Patton, "Taylor and Foucault on Power and Freedom," *Political Studies* XXXVII (1989): 260–276 (271). Having said this, in one of his more puzzling later comments on power, Foucault does insist that power is intentional—but that it is also non-subjective; however, there is not space to discuss this issue further here.

that can be called resistance (the trapped wild animal which lashes out at the trapper; the horse which throws its rider or refuses a jump). Yet, while accepting these actions as resistance, there is surely a deeper level at which animal resistance is unlikely ever to be successful in the way that human resistance to other humans can sometimes be. It is hard to think of many human/animal power relationships which contain within them the possibility of power reversal, perhaps because of the ways in which humans affect the *constitution* of many animals and/or because of the probability that sufficient resistance on the part of an animal to human power will result in humans moving along the power spectrum to domination—and ultimately to physical violence or death which "drops off" the edge of the power spectrum (the trapped wild animal may be shot; the bucking horse can be sent to the knackers). That such sanctions exist, are asymmetrical, and often may be resorted to without great difficulty, indicates that even though resistance is possible, it is within the context of fairly stable regimes of inequality. In some senses, this resembles my earlier characterisation of governmentality: pastoral power regimes which are not easily overturned, but within which points and acts of resistance are possible.[44]

Perhaps human/animal power relationships more closely resemble what Foucault explicitly describes as domination in his interview "The Ethic of Care for the Self as a Practice of Freedom". Here he comments: "In the traditional conjugal relation in the society of the C18 and C19, we cannot say that there was only male power; the woman herself could do a lot of things: be unfaithful to him, extract money from him, refuse him sexually. She was, however, subject to a state of domination, in the measure where all that was finally no more than a certain number of tricks which never brought about a reversal of the situation". Thus, from a Foucauldian perspective perhaps we can think of human/animal relations as, broadly, consisting of multiple individual micro-situations in a variety of environments where animals may respond unpredictably, resist human power, and even exercise power themselves; but these micro-situations are "invested, colonised, utilised, involuted . . . by ever more general mechanisms and by forms of global domination".[45]

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44 Yet this raises the problem of pastorality: that idea that such regimes are acting for the common good. Where animals are concerned, whilst some regimes may putatively at least operate for the good of the animal population (such as for instance, programmes of vaccination or sterilisation), most (such as in agriculture or the experimental laboratory) work for the good of the human population rather than the animal population. So it is hard for such regimes to describe themselves as pastoral from the perspective of animals (though there have doubtless been some attempts to do so).

45 Foucault, "Two Lectures," 99.

I have been arguing so far that we can talk about human/animal power relations from a Foucauldian perspective. In the second part of this paper, I briefly consider some aspects of such an approach to human/animal power relations.

7 Human/Animal Power Relations

There are many ways in which one might think about human/animal power relations from a broadly Foucauldian perspective.[46] One of the most obvious is through thinking about the relationships between humans and animal bodies. McHoul and Grace characterise Foucault's work on the 'disciplining' of the human body as focusing on "techniques of training, optimalisation of the body's forces and capacities; the fostering of the body's usefulness and docility, the integration of the body into the machines of production to obtain productive service from individuals in their concrete lives".[47] The human body is subject to techniques which "forge a docile body which may be subjected, used, transformed and improved."[48]

Obviously, terms such as *training, optimalisation, usefulness, docility* and *productive service* can be, and indeed often are, also used in relation to animal bodies. Indeed, there are grounds for arguing that, on occasion at least, interactions with animal bodies have been the model for interactions with particular human bodies (most commonly where particular constructed classes of humans such as the mad, the criminal or the savage, are placed on the animal side of a human/animal opposition).[49] Similarly, relations between some humans and some animal bodies seem to be modelled on interhuman kin relations: most prominently in the case of pets who, when regarded as members of 'the family', receive medical attention which in many ways (with the interesting exceptions of sterilisation and euthanasia) resembles that accorded to

46 Some work already exists on power relations involved in particular discourses about animals, particularly classificatory discourses; see for instance Harriet Ritvo's book *The Animal Estate* (Cambridge: Harvard University Press, 1987)—although Ritvo does not explicitly mention Foucault.

47 Alec McHoul and Wendy Grace, *A Foucault Primer: Discourse, Power and the Subject* (Melbourne: Melbourne University Press, 1993), 77.

48 Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (Harmondsworth: Penguin, 1979), 178.

49 See, for instance, Foucault's own work on the displaying of the mad like animals in menageries in *Madness and Civilization: A History of Insanity in the Age of Reason*, trans. Richard Howard (Vintage: Random House, 1973) and Kay Anderson's suggestion ("A Critical Geography of Domestication") that the project of 'domesticating' savage natives was modelled on the project of domesticating animals.

human bodies—or at least to privileged human bodies. Already, some idea of the obvious diversity of the relationships between humans and animal bodies is emerging. I want to think about some of these relationships through the lens of a broadly Foucauldian approach.

To begin with, it is worth noting that the main (although not the exclusive) focus here will be on the way humans *behave towards* animals and the ways in which animals *react* to them, since (as with Foucault's work on those classified as 'mad' and 'criminal'), the situation is broadly that of a group that in a most general sense has power over others; constructing, as I have already suggested, a fairly stable regime of inequality. But the idea of a 'regime of inequality' masks so many different forms of power relationship (which may be all be unequal but are unequal in a multitude of ways) that it is more interesting to look, as Foucault suggests, at particular contexts and micropractices between humans and animal bodies.

Let's start by thinking about practices of such extreme violence/domination that animals have no opportunity to resist at all: where they are in the situation equivalent to Foucault's shackled slave. This includes direct violence to animal bodies where escape or resistance is not possible. Clearly, such situations are commonplace for animals. Further, much of the time animals, not sharing human language, will not recognise that they are being threatened, or in what precise way they are being threatened, which may prevent them from exhibiting resistance, even if they were in principle able to respond in such a way. Of course, just such situations can also pertain between humans, where a mutual language is not spoken or where one party is being kept in ignorance of the threat. As with human beings, and contra Bernard Russell, an animal can be deceived as to the nature of the threat (as when an animal is caressed before it is euthanased) or even deceived into exposing itself to inescapable and fatal violence (as in the context of faked animal cries during hunting.)[50]

Foucault maintains that such relations are not power relations because they are not instances of actions of one party changing the behaviour of another party; the "others" are prevented from acting. It is tempting to want to "resist" Foucault's delineation of power relations here, because such behaviour *does* correspond to what we normally think of as power relations. It seems odd to say that if I were to try to beat a cat that was free to resist (by scratching, biting, jumping out the window etc.) I am engaging in a power relationship with it, but if I tie its paws together before gagging and beating it I am not engaging in a power relationship with it. A more usual response might be to suggest that in

50 See Paul Taylor's idea of "deception with intent to harm" in *Respect for Nature* (Princeton: Princeton University Press, 1986).

the latter case more power—and perhaps different power—was being exhibited by me, but that it was still a power relationship.

However, Foucault's reasoning here can be defended. The difference between these two cases (the free cat and the bound cat) is that in the former case the capacity for unpredictability and response is maintained. I move to kick the cat; it might jump aside; it might bury its claws in my foot; it might leap on me; it might dive through my legs. Ultimately (assuming the cat cannot run away) I am sure to triumph in this encounter. But it is an encounter of interaction, in which its behaviour is altered by my behaviour—and my behaviour is altered by what it does. There is some form of communication, albeit hasty, violent, and not consciously deliberated over on either side: I am treating the cat—indeed, to triumph, I am forced to treat the cat—as (in Foucault's words) a being who reacts.

But this is not the case with a bound and gagged cat that cannot respond. There is no relationship, no possibility for it to be a being who reacts. All spontaneity and almost all communication is removed from our brutal encounter. Thus it cannot be a power *relationship*. If we return to Foucault's earlier distinction between 'capacities' and 'power relations' he maintains that "capacities are what is exerted over things and gives the ability to modify, use, consume or destroy them"; whilst power relations are about relations between individuals, groups or partners, and the "actions of men on other men". Foucault doesn't specifically go on in his paper to argue that when humans (like the shackled slave) are denied the possibility of reaction, they pass from the category of the 'reactive other' to being a 'thing' over whom capacities are exerted rather than power relations exercised, but it seems to be the logical conclusion of his argument. Similarly, although animals can be thought of as individuals who react in a Foucauldian sense, when they are placed by humans in situations or environments where no reaction or response from them is possible, they are being treated *as things*—even though they, like the shackled slave, *could have* been treated as beings who react. I'm suggesting here, therefore, that whether a being falls into the category of thing/person on any particular occasion depends not on its 'nature', but rather whether, on that occasion, it behaves as a being which reacts. Where reaction is not permitted, the being is being treated in this context as a thing—an object to which things are done—however much one might want to maintain that, in other contexts, the being is not just a 'thing'.

Perhaps a prime example of the way in which animal bodies are thus treated as 'things' are in what I call 'constitutive practices'—that is, human practices which affect the biological constitution and form of animals. Predominantly, these practices are domestication, selective breeding, and biotechnology,

normally in order to make animal bodies more 'docile' or 'productive' and to optimalise those features of the body or temperament which are most desirable for human ends. Animal resistance to these practices is frequently impossible. Many such practices take place under sedation or in other circumstances where animals would have no possibility of resistance. Further, some of them, at least, aim at physiologically and psychologically changing animals in ways that reduce their capability to resist. Thus, one result of treating animals as things by adopting particular breeding practices is that offspring animals become less and less capable of resistance in situations where their forebears might have resisted.

We might think of this as physiologically internalising dominance previously expressed by external restraint on behaviour. This pattern is one with which, in other contexts, Foucault was familiar. In *Discipline and Punish*, for instance, Foucault traces the historical change in punishment regimes from the public display, torture and death of criminals to systems of supervision, surveillance and discipline where, ultimately, criminals learned to internalise particular rules and to police themselves and their own behaviour. The process of domestication and some forms of biotechnology reflect a similar trajectory, albeit one of physical rather than psychological change. In this context, animal discipline and non-resistance is achieved by inscribing on the very genetic make-up of the animal body preferred physical and behavioural characteristics. Despite the repressive appearance of such practices, it is worth noting that, like the forms of power Foucault discusses, such constitutive practices are creative. They create new kinds of animal body with different physical and psychological characteristics; they can produce new lives in ways it was impossible to produce life before.

The same might be said of other kinds of human practices in relation to animals, which are more clearly power practices in a Foucauldian sense. There are, for instance, *internalised practices*. These may or may not follow on from constitutive practices and are human disciplinary practices which affect the subjectivity of animals, much as disciplinary practices affect and construct the subjectivity of humans. Examples might be techniques of training, taming, breaking and teaching which in a variety of ways (including the offer of reward and affection) make animals more useful to human ends. Where these practices are concerned, resistance is generally possible (even though this resistance may ultimately only be 'tricks' which cannot reverse the situation).

A second category is *external practices*: practices which affect the external bodies and/or circumstances of animals, such as confinement; isolation from other members of the species; castration and other bodily mutilations of various kinds; physical punishment; eviction from habitat and a wide variety of

uses of space, space being, as Foucault comments "fundamental in any exercise of power".[51] Of course, such practices cannot easily be separated from internalised practices, as confinement, physical punishment, isolation and so on, have substantial effects on animal subjectivity (as, for instance can be witnessed by the ritualised behaviour of animals confined in small spaces in zoos).

In thinking about how all these different practices might work out, and in order to help us to think about power relations with animals in particular cases, it might be helpful, in conclusion, to work through a particular example. Let's take, for instance, the real-life case of Yuri, a young male pet cat, located in a particular domestic environment.

8 The Case of Yuri

Yuri is a Russian Blue. That is to say, he is what we think of as a 'pedigree'. His silvery fur colour, his eye colour, the angle of his ears, the length of his body, the shape of his face, have all been produced by generations of human constitutive practices. Those characteristics which are found appealing by humans have been exaggerated; whilst those found unappealing have been 'bred out'. For generations prior to his birth, his ancestors have had their sexual partners selected for them, by humans who have pored over charts of cat ancestry to find mates of suitable pedigree to produce his body. His body has been judged by cat breeders; he has a certificate as evidence. If his 'owner' wished, he could be exhibited alongside other Russian Blues; he could sit in a cage at a cat show and be admired, stroked, kissed by hundreds of humans who would all agree that his silvery fur, his eye colour, the angle of his ears, the length of his body, the shape of his face are just right for a Russian Blue; although it may be that in a cage alongside him there might be another Russian Blue just that touch more perfect, without that small black spot in the iris of his otherwise incontestably magnificent eye, without that slight kink in the tail when lifted (I am sorry to say) to urinate on the furniture.

And here lies one of the first difficulties in the relationship between Yuri and his 'owner'. In admiring the beauty and perfection of Yuri's form, Yuri's owner is admiring human handiwork. Yuri looks like he does because of the generations of human constitutive practices inscribed on his body; his body is a mapping of human preferences in shape, colour and form; preferences which, because

51 Michel Foucault, "Space, Knowledge and Power," in *The Foucault Reader*, ed. Paul Rabinow (Harmondsworth: Penguin, 1984), 239–256 (253).

of the nature of selective breeding could never have been effectively resisted by his ancestors (about as far as they could go would be to reject a potential sexual partner; but offered no other choices, generally speaking they would accept what was on offer). But although the shape, colour and form of Yuri's body is a product of human preference, he is still a young, fertile, male cat. Young, fertile male cats mark their territory by urinating.

Yuri's owner, however, lives in a second floor apartment with no garden. In addition, he regards Yuri, as a pedigree cat, to be too valuable to let outside. So the apartment becomes the arena for an intense set of power relations located around Yuri's body. Yuri is trained to use a litter tray. He internalises this practice (as indeed, his owner did too, with the toilet, many years before). But this training does not relieve his need to mark his territory—so he still urinates on the furniture. His owner (a "person who reacts") tries any number of power tactics to change this habit. He uses discouraging sprays and powders; he rubs Yuri's nose in his urine; he spanks him. He rewards Yuri with cat treats when Yuri uses the litter tray in an attempt to encourage him to 'behave'. But Yuri resists all these practises, ignoring sprays and powders, scratching and biting, hiding inaccessibly under the bed once the transgression is committed. The owner tries to control Yuri's environment, shutting him out on the balcony for hours on end. The cat responds by digging up the pot plants on the balcony, howling, scratching at the door. The pungent evidence of the functions of Yuri's body, the sounds, smells and behaviour of a maturing male cat, and the inability of the owner to discipline his body by limited violence, by controlling space, or by internal practices of instilling discipline become too much. The owner decides to move, if I might use the term, to a different ball game; Yuri must be (in the current terms for these things) 'neutered'. (We might, in more straightforward but rarely used terms, say that Yuri is to be 'castrated'—the use of these other words is surely an instance where, to use Foucault's terms, a discourse is being used to mask a practice).

The 'neutering' of pet animals is a process much recommended by animal welfare organisations. It prevents, they argue, the production of 'unwanted litters'—that is to say, litters unwanted by humans. This, in itself reveals power relationships of a kind. But, of course, the practices of 'neutering' and 'spaying' of male and female animals are not just about making them sterile. If that were so, male cats might simply receive vasectomies. These procedures are, instead, much more extensive operations designed to desexualise animal bodies, and in addition, to produce particular behavioural changes: placidity, docility, less tendency to roam and a slackening in territoriality (and accompanying habits, like peeing on the furniture). Neutering and spaying remove the evidence of animal sexuality from the domestic environment: animal sexuality which

might be disturbing for any number of reasons (a constant reminder of that which is kept hidden in human relationships; a reminder that a pet is an adult mammal rather than an infant; the cause of transgressive displays or behaviours). It is time for Yuri's troublesome sexual concreteness to be removed.[52]

At this point, Yuri's engagement in power relations with his owner comes, temporarily, to a halt. Yuri cannot resist his own castration; indeed, he can have no idea what is to be done to him. His owner has moved along the power spectrum from "power relations in general" to dominance; although Yuri may struggle to resist being put in a basket, howl all the way to the vets, attempt to bite the vet's hand; these are but "tricks which cannot reverse the situation". He returns, some hours later, asleep and castrated; when he wakes up he no longer urinates on the furniture; his behaviour is calmer, less aggressive, he sleeps more, sits on his owner's lap more. The external practice of castration has changed his behaviour; now he fits more comfortably into his owner's environment and disciplinary regimes. Of course, the power play between them does not cease; Yuri's body is the site of constant struggle (over what he eats, where he sleeps, with what he plays). Ultimately, if the power play becomes too difficult, or Yuri's presence becomes too time-consuming or expensive, his owner can have him 'put to sleep' or, (less euphemistically) killed—a more final end to power relations.

The case of Yuri is intended to illustrate how Foucault's analyses of power might be used in thinking about everyday, mundane relationships between humans and animals, in ordinary domestic environments. It suggests something about the ways in which, where "power relationships in general" between humans and animals do not clearly result in the desired disciplining of animals, measures of dominance are frequently adopted such that animals become "things which cannot resist". No generalisations or universalisations are intended here; in different situations, locations, and environments with different humans and animals at different times, a wide variety of relations can subvene. But such is the nature of the structural inequality between humans and animals that, in most cases, the resort to 'thingification' of animals is likely to be available.

9 In Conclusion

In this paper, I have attempted to outline some key aspects of Foucault's approach(es) to power and have argued that it is possible, in broad terms, to

52 Terminology drawn from Elizabeth Grosz, *Space, Time and Perversion: Essays on the Politics of Bodies* (London: Routledge, 1995), 38.

speak of Foucauldian human/animal power relations. I've also suggested a few areas which a human/animal power analytics starting from a Foucauldian perspective might explore further (there are many more, in particular relating to his ideas about biopower and wild animals, which I have no space to explore here).[53]

Although I located this paper in the context of ethical writing about animals, I have not attempted to draw any general ethical conclusions about the power relations I have discussed. The reason is obvious: the emphasis on the complexity and diversity of human/animal power relations, and the very specificity of particular contexts and environments in which they may be located, is in tension with universalistic ethical frameworks such as utilitarianism or rights theory. This emphasis fits more comfortably with some kinds of moral pluralism, in particular, one based on context and relationality, as suggested by many ecofeminist writers. It is with such work that ethical developments of these ideas about power might be linked.[54]

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53 But see several papers in Clare O'Farrell, ed., *Foucault: The Legacy* (Kelvin Grove: Queensland University of Technology, 1997).

54 See, for example, papers in Karen Warren, ed., *Ecological Feminism* (London: Routledge, 1994).

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CHAPTER 6

Dressage: Training the Equine Body

Natalie Corinne Hansen

> Understand that rigid wills are those
> Most apt to fall, and that the hardest iron,
> Forged in fire for greatest strength, you'll see
> Is often broken, shattered. And with only
> A small sharp bit, I've noticed, spirited
> Horses are disciplined. For grand ideas
> Are not allowed in someone who's the slave
> Of others . . .
>
> KREON from *Antigone* lines 521–8



Damien, a high-priced six-year-old dressage horse from a prized lineage, is housed at one of the most elite training facilities in the United States.[1] He will spend 20–22 hours a day in his 14 × 14 foot stall for the next 10 to 15 years of his performance and active breeding career. During the other two to four hours a day, he will take part in highly programmed training exercises designed to develop his strength, stamina, and skill at producing the movements required of dressage horses. The bars of his stall prevent him from making direct contact with the horses in adjacent stalls, but he is able to lean his head into the barn isle to greet the human team who appears like clockwork at dawn to start the day. With the appearance of the grooms, the routine of feeding, cleaning, exercising, and attending to the intricate demands of this stable full of painstakingly bred and meticulously trained competition horses begins.

Damien's breeding traces back centuries, reflecting the concentrated effort needed to create the perfect combination of mind and body that may result in a world-class dressage horse. His sire, on whom his breeding reputation depends, is himself the offspring of distinguished lineage and winner of

1 "Damien" is a composite (as is his environment) drawn from various horses within the author's experience and represents one way that horses live within the human world.

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multiple international championships. As a result, a sizable fee is required for breeding privileges to this sire. His ejaculate, collected by means of a "phantom" mare and an artificial vagina, is cooled and transported to a carefully selected live mare who is then artificially inseminated with the stallion's sperm. Her job as broodmare is to carry the foal for the 11-month gestation period and raise it until weaning at around six months. She may then be reinseminated while the filly or colt moves to pasture with other young horses, as did Damien until he was three and the training process began. Only some of these young horses will end up demonstrating the talent required to become a top-level show horse. The others will be sold as lower-level sport or pleasure horses, adding to an overabundance of horses needing homes. Broodmares, if they are able to produce talented prospects on a regular basis, stay at this job their entire lives, often until late into their middle age, with one pregnancy after another, each offspring removed after a short period of time. Mares who are poor producers are sold to less prestigious breeding facilities or may end up transported out of the country and slaughtered to end up overseas as horsemeat.

Training a prospective dressage horse begins with such things as accustoming the horse to living in an enclosure, to wearing a halter and being lead by a rope, to grooming and having all parts of his or her body handled by humans, including sensitive areas such as feet, genitals, ears, and mouth. Optimally, riding doesn't begin until growth plates in the legs are fused at age five or six. Damien, because of his performance potential as a breeding stallion, has not been castrated, as many young stallions are who fail to demonstrate adequate talent or the behavioral conformity required to undergo intensive training. Damien's day continues after his first of four carefully measured meals, his menu designed by a nutritionist to fulfill his specific metabolic needs. This morning his exercise session consists of a workout with his rider in the dressage arena, a rectangle 66 feet wide and 198 feet long (20 × 60 meters). After a short warm-up period, he is asked to demonstrate the movements specific to his age and level of training, moving freely at walk, trot, and canter, with some collection and lateral work to develop his strength, balance, and flexibility.

After his workout and cool-down, Damien is groomed and retuned to his stall, where his midday meal is waiting. Mid-afternoon, a groom takes Damien for a 30-minute walk in-hand. Stallions at this facility are not allowed free turnout in the paddocks for fear they will become overly excited and strain their legs or jump fences trying to get to mares. Alternatively, if Damien's morning routine was not overly strenuous, he might have an afternoon session in the AquaTrainer, a water treadmill for horses that is used to enhance stamina and develop strength without the strain of a rider or the constraint of a bridle and saddle. The daily routine varies and alternately includes massage therapy,

chiropractic adjustments, or visits from the farrier to reset shoes or from the veterinarian for vaccinations or medical assessment. Damien's day ends with an early evening meal, a quick stall cleaning, and, finally, a last feeding before the lights go out and the workday ends. Damien's post-career prospects are good if he is owned by individuals who are willing to provide for his needs until his death of old age in his twenties or of cancer, colic or serious injury requiring euthanasia. He might, like the storybook ending of *Black Beauty*, end up in retirement under the care of his former mistresses and his favorite groom. Other options are less promising, including the prospect of serious injury that would lead to the end of his show career or even to an early death.

1 Disciplinary Practices and Docile Bodies

Training practices, in their creation of certain types of bodies and relationships, are political practices, invested in the maintenance and negotiation of power relations. Applying elements of Foucault's biopolitics to the training of equine bodies in the practice of dressage underscores how the politics of training disappear within the practice. As Dinesh Wadiwel points out, humans do not normally include nonhuman animals under the rubrics of politics nor do we understand nonhuman animals as politically significant actors.[2] Politics, conventionally conceived, concerns human animals who have access to language and who live within societies organized by rules and regulations, both spoken and unspoken, that regulate behavior. I argue here that horse-training practices are invested with social and political implications that shape how bodies and selves can be considered. Although Foucault's work does not focus on nonhuman animal lives, his theorization of bodies and politics offers important tools through which to understand the traditional exclusion of nonhuman animals from Western humanist political traditions. Such understanding can contribute in turn to addressing harmful effects of exclusion from social and political considerations. My analysis centers on the particular domestic relationship between humans and horses, in which horses are positioned liminally between companion animals, who share our homes and domestic spaces, and livestock, whose bodies are cultivated and consumed as agricultural products. In human-horse training relations we can trace "the *microphysics* of power: the study of power in particular environments, instances and

2 Dinesh Joseph Wadiwel, "Cows and Sovereignty: Biopower and Animal Life," *Borderlands e-journal* 1:2 (2002), http://www.borderlandsejournal.adelaide.edu.au/vol1no2_2002/wadiwel_cows.html

relationships."[3] Examining the history of dressage practice, I ask how horses are subject to a type of biopolitical control through the disciplining of their bodies. In what ways are horses produced as docile bodies? What defines the disciplinary relationship within horse training practices? And, finally, does the resistance that exists as part of such training relationships express agency on the part of the nonhuman actor?

The term "dressage" is famously deployed by Michel Foucault in *Discipline and Punish* to describe the training of soldiers, schoolboys, hospital patients, and factory workers within systems of disciplinary power through mechanisms of surveillance and control. The training of bodies becomes a central focus within the disciplinary practices characteristic of the "classical age," the seventeenth and eighteenth centuries: "The classical age discovered the body as object and target of power."[4] This is a body that is "manipulated, shaped, trained, which obeys, responds, becomes skilful and increases its forces."[5] Two "registers" of disciplinary power here involve the management of the body itself and the documentation of its management, the "question, on the one hand, of submission and use and, on the other, of functioning and explanation: there was a useful body and an intelligible body."[6] This dual engagement of power with the body renders material flesh the object of disciplinary discourse, discourse that in turn circumscribes the possibilities of flesh. As such, disciplinary power is "a general theory of *dressage*, at the centre of which reigns the notion of 'docility', which joins the analysable [sic] body to the manipulable body."[7] This "notion of 'docility'" describes the ways that bodies may be "subjected, used, transformed and improved."[8]

In contrasting a "classical" with an "ancient" relationship to bodies and to the control of bodies, Foucault specifies aspects of disciplinary power unique to the seventeenth and eighteenth centuries. There is a difference in "the scale of the control: it was a question not of treating the body, *en masse*, 'wholesale', as if it were an indissociable unity, but of working it 'retail', individually; at the level of the mechanism itself—movement, gestures, attitudes,

3 Clare Palmer, "'Taming the Wild Profusion of Existing Things'? A Study of Foucault, Power, and Human/Animal Relationships," *Environmental Ethics* 23:4 (2001): 339–358 (343).

4 Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (New York: Random House, 1977), 136.

5 Ibid.

6 Ibid.

7 Ibid.

8 Ibid.

rapidity: an infinitesmal power over the active body."[9] The body is thus subject to individual scrutiny at the same time as its expression is translated through systematized understanding. The body became an "object of control: it was not or was no longer the signifying elements of behaviour or the language of the body, but the economy, the efficiency of movements, their internal organization."[10] Understanding the body as individual and as subject to systematic control "implies an uninterrupted, constant coercion, supervising the processes of the activity rather than its result."[11] The process of 'supervision' fragments the body's movements into processes that require shaping—interpretation—and reflects the management of bodies that Foucault identifies as "disciplines," "methods, which made possible the meticulous control of the operations of the body, which assured the constant subjection of its forces and imposed upon them a relation of docility-utility."[12] The particular nature of these disciplines in the early modern period is that they function as "general formulas of domination."[13] It seems no accident that training horses in the "art" of dressage dates to this period of European history.

Dressage training is a "discipline" as it regulates the very movements of the horse's body in adherence to specific, normalized rules and standards. It is an expression of power such that "[t]he term 'power' designates the relationships between 'partners,'" the "ensemble of actions that induce others and follow from one another."[14] Dressage exemplifies the workings of "*power relations*."[15] In its relationality, power requires "that 'the other' (the one over whom power is exercised) is recognized and maintained to the very end as a subject who acts; and that, faced with a relationship of power, a whole field of responses, reactions, results, and possible interventions may open up."[16] Dressage is a "practice," understood "as a 'way of doing things' oriented toward objectives and regulating itself by means of a sustained reflection."[17] Dressage can be

9 Ibid., 137.

10 Ibid.

11 Ibid.

12 Ibid.

13 Ibid.

14 Michel Foucault, "The Subject and Power," in *The Essential Foucault: Selections from Essential Works of Foucault, 1954–1984*, ed. Paul Rabinow and Nikolas Rose (New York: The New Press, 2003), 126–145 (135).

15 Ibid., 137.

16 Ibid., 138.

17 Michel Foucault, "The Birth of Biopolitics," in *The Essential Foucault: Selections from Essential Works of Foucault, 1954–1984*, ed. Paul Rabinow and Nikolas Rose (New York: The New Press, 2003), 202–208 (203).

considered as a type of "government" in Foucault's use of the term: "power is less a confrontation between two adversaries or their mutual engagement than a question of 'government.'"[18] Government here understood is "the way in which the conduct of individuals or of groups might be directed."[19] Such an understanding of government does not require affiliation with state power or allegiance to rational or arbitrary rule of law: "The relationship proper to power would therefore be sought not on the side of violence or of struggle, nor on that of voluntary contracts . . . but, rather, in the area of that singular mode of action, neither warlike nor juridical, which is government."[20]

Dressage was developed as and continues to be the art of disciplining both human and horse bodies. Jeffrey Jerome Cohen suggests a precursor to dressage in the training of medieval knights.[21] The importation of the technology of the stirrup from Asia in the 9th century meant "mounted combatants were seated with greater stability in their saddles, allowing more complicated battlefield maneuvers."[22] The stirrup allowed for greater control within the rider-horse relationship, "enabling [the horse] to become more responsible to its rider within an augmented tactile syntax between equine and human flesh."[23] The stirrup created "a new type of control" for both human and horse in the form of "a new regimen of training and corporeal response," which relied on the "*intersubjective* docility" of horse and rider.[24] Both human and horse bodies needed to "be trained extensively to foster endurance and coordination, to implant in both animal and human flesh the corporeal knowledge of how to embody the charge."[25] Cohen suggests that the training to which the medieval knight and steed were subject falls under Foucault's rubric of self-disciplining practice: "The dominion that the knight learned to exert over his animal companion paralleled the controlled responsiveness he taught his own flesh."[26]

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18 Foucault, "The Subject and Power," 138.

19 Ibid.

20 Ibid.

21 Jeffrey Jerome Cohen, "The Inhuman Circuit," in *Thinking the Limits of the Body*, ed. Jeffery Jerome Cohen and Gail Weiss (Albany: State University of New York Press, 2003), 167–186 (173).

22 Ibid.; for more discussion of the use of the stirrup see Donna Landry, "Learning to Ride in Early Modern Britain, or, the Making of the English Hunting Seat," in *The Culture of the Horse: Status, Discipline, and Identity in the Early Modern World*, ed. Karen Raber and Treva J. Tucker (New York: Palgrave Macmillan, 2005).

23 Cohen, "The Inhuman Circuit," 173.

24 Ibid., 174.

25 Ibid.

26 Ibid., 177.

The development of dressage training in the early modern period as a "formula of domination" represents even more directly the type of formalization that Foucault underscores as disciplinary practices that emerged within institutions including "'universities, secondary schools, barracks, workshops."[27] Certainly, riding is about control of the body (both horse and human bodies), about the manipulation of a horse's will to coincide with that of the rider, which can only happen if the rider's body is itself trained. However, what makes the formal practice of dressage training so useful to Foucault as an analogy are the ways that dressage training became institutionalized in the early modern period, the ways that it developed to regulate the individual horse (and human) body, while at the same time developing as a regulatory system of standardized breeding and equine husbandry practices.[28]

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27 Michel Foucault, *The History of Sexuality. Volume 1: An Introduction*, trans. Robert Hurley (New York: Random House, 1980), 140.

28 Horse trading played a role in early modern "global politics and economics" as demand for more refined riding and performance horses led to importation of "exotic" breeds (Arabians, Barbs, Turks) from Middle Eastern countries (Karen Raber and Treva Tucker, eds., *The Culture of the Horse: Status, Discipline, and Identity in the Early Modern World* (New York: Palgrave, 2005), 11). The development of breeding as a formalized practice in Europe and Britain during the early modern period reflects aspects of nationalism arising during this time (Raber and Tucker, *The Culture of the Horse*, 28; extensive coverage of breeding practices can be found in Margaret E. Derry, *Bred for Perfection: Shorthorn Cattle, Collies, and Arabian Horses since 1800* (Baltimore: The Johns Hopkins University Press, 2003)). Simply to note the most obvious of links to disciplinary practices, breed registries developed during this time as a type of "disciplinary writing" (Foucault, *Discipline and Punish*, 190), alongside the many training and husbandry manuals produced in the early modern period. Specific breeds were being developed across Europe and in Britain in response to shifting patterns of use for horses. For example, the Lipizzan breed came into being in the late sixteenth century in Austria, using "imported Spanish and Barb horses to breed with the native Karst stock" (Raber and Tucker, *The Culture of the Horse,* 29). Similar crosses between horses imported from different regions in Europe, Britain, and the Middle East led to development of specific breeds in Germany, for example the Oldenburg, Friesian, Hanover, and Trakehner. The intent of such breeding was to develop a superior "light" horse useful for riding, driving, and for a cavalry armed with guns, reflecting a shift in military practice that gave advantage to soldiers whose horses were faster and more agile than the solid, slower moving horses who carried knights in armour and engaged in hand-to-hand combat (Raber and Tucker, *The Culture of the Horse*, 29). Breeding aimed at developing horses fulfilled human desires in terms of temperament (tractability), appearance (aesthetics), and utility (performance in whatever sport or activity desired).

Breeds were also developed for specific purposes in Britain and America in the seventeenth and eighteenth centuries, some for work purposes and some in response to

It is not only behavior that is subject to control but how this behavior is elicited; it is both the regulation of behavior and the means by which regulation is standardized and enforced. Foucault points to a new development in how bodies were figured in the early modern period, such that a body's "utility" was linked to its "obedience"; the body becomes "more obedient as it becomes more useful," and less useful if less obedient.[29] The systematic regulation of bodies in order to ensure this link involved "a policy of coercions that act upon the body, a calculated manipulation of its elements, its gestures, its behaviour."[30] The control here exists both at the level of "how one may have

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the interest in horse racing as it developed during this time. The development of the Thoroughbred horse in England is well documented (see Richard Nash, "'Honest English Breed': The Thoroughbred as Cultural Metaphor," in *The Culture of the Horse: Status, Discipline, and Identity in the Early Modern World*, ed. Karen Raber and Treva J. Tucker (New York: Palgrave, 2005); and Rebecca Cassidy, *The Sport of Kings: Kinship, Class and Thoroughbred Breeding in Newmarket* (Cambridge: Cambridge University Press, 2002)), as is the development of specific American breeds, the Quarter horse and the Morgan horse. The importance to the present discussion of these developments in breeding is to underscore the growth of scientific theories and practices and the meticulous accounting that developed to keep track of both performance and "blood lines" (see chapter one, "Modern Purebred Breeding: A Scientific or Cultural Method," of Margaret Elsinor Derry's *Horses in Society: A Story of Animal Breeding and Marketing, 1800–1920* (Toronto: University of Toronto Press, 2006), 3–25). Maintenance of standards as a function of the "disciplinary writing" of horse breeding practices "made it possible to integrate individual data into cumulative systems in such a way that they were not lost; so to arrange things that an individual could be located in the general register and that, conversely, each datum of the individual examination might affect overall calculations" (Foucault, *Discipline and Punish*, 190). The disciplinary practices that shaped modern horse breeds functioned to "normalize," judging quality and economic worth according to "standards" set by human actors in specific socio-historical contexts: "The perpetual penality that traverses all points and supervises every instant in the disciplinary institutions compares, differentiates, hierarchizes, homogenizes, excludes. In short, it *normalizes*" (ibid., 183). Also part of this process is the "examination," which is a function of the "normalizing gaze" (ibid., 184). Different European breeds have performance standards by which breeding and registry decisions are made. The examination combines "the ceremony of power and the form of the experiment" (ibid., 184); "At the heart of the procedures of discipline, it manifests the subjection of those who are perceived as objects and the objectification of those who are subjected" (ibid., 184–5); "The examination is, as it were, the ceremony of this objectification" (ibid., 187). Significant to the examination is not only the "knowledge" produced and the procedures through which knowledge is produced but also the way that this knowledge "is transformed into political investment" (ibid., 185).

29 Foucault, *Discipline and Punish*, 138.

30 Ibid., 138.

a hold over others' bodies, not only so that they may do what one wishes, but so that they may operate as one wishes, with the techniques, the speed and the efficiency that one determines."[31] Together these aspects of disciplinary power produce "subjected and practiced bodies, 'docile' bodies."[32] Obedience and utility function as organizing principles for individual bodies at the level of populations as individual regulation is coupled with "a biopolitics of the population."[33] These two, the "administration of bodies" (or "the subjugation of bodies") and "the calculated management of life" (or "the control of populations"), together represent the two poles through which power emerged as "bio-power."[34] The outcome of this approach to power over bodies and populations is a new enfolding of the body into politics such that "biological existence was reflected in political existence."[35] Disciplinary power is "an *anatomo-politics of the human body*."[36]

In thinking of the body as a site where meaning accumulates, as shaped through interactions, as "a series of uncoordinated potentialities that require social triggering, ordering, and long-term 'administration,'" bodies acquire meaning within encounters and need to be understood in terms of active production:[37] "the body, or rather, bodies, cannot be adequately understood as ahistorical, precultural, or natural objects in any simple way; they are not only inscribed, marked, engraved, by social pressures external to them but are the product, the direct effects, of the very social constitution of nature itself."[38] The same is true for nonhuman animal bodies, whose materiality is shaped through specific encounters within discrete cultural contexts. Human-animal relations are politically endowed social relations that are framed by conventional practices and ideological expectations. Foucault's stated project in *The History of Sexuality* is "to make [the body] visible through an analysis in which the biological and the historical are not consecutive to one another . . . but are bound together in an increasingly complex fashion in accordance with the development of the modern technologies of power that

31 Ibid.

32 Ibid.

33 Ibid., 139.

34 Ibid., 140.

35 Ibid., 142.

36 Ibid., 139.

37 Elizabeth Grosz, *Space, Time, and Perversion: Essays on the Politics of Bodies* (New York: Routledge, 1995), 104.

38 Elizabeth Grosz, *Volatile Bodies: Toward a Corporeal Feminism* (Bloomington: Indiana University Press, 1994), x.

take life as their objective."[39] The project of making bodies visible becomes "a 'history of bodies' and the manner in which what is most material and most vital in them has been invested."[40] In what follows, I argue that the formalization of the practice of dressage, the development of this systematic method of training horses, as it emerged in the seventeenth and eighteenth centuries in Europe, acts out on the equine body what Foucault identifies as "a certain mode of detailed political investment of the body, a 'new micro-physics' of power" and has left us a legacy of training practices deeply infused with disciplinary power.[41]

2 Dressage: History and Practice

The term "dressage" comes from the French verb "dresser": "To make or set straight: put in proper position" and "to cover with, array in, or add something that improves the appearance or heightens the effectiveness of."[42] "Dresser" and "dressage" thus contain the idea of making proper, improving. This can be in reference to an action such as "to groom and curry (an animal)" and "to make ready or put in order for use or service."[43] Dresser extends to food preparation including "to prepare a (fishhook) for fishing" and "to prepare (food animals) for market, usually by bleeding and cleaning," as in "dressing out" a carcass.[44] Dresser can also mean to "cultivate" or "tend."[45] The theme of purification is apparent in "to free (as grain or ore) of impurities or irregularities."[46] An obsolete noun form that has since morphed into the word "redress" is "the action of making right or setting straight."[47] Finally, "dressage," appearing in the *Oxford English Dictionary* in 1936, is defined for contemporary audiences as "the art of riding and training a horse in a manner that develops obedience, flexibility, and balance."[48] In *Webster*'s more elaborate detail, the contemporary definition of

39 Foucault, *The History of Sexuality*, 152.

40 Ibid.

41 Foucault, *Discipline and Punish*, 139.

42 *Websters Third New International Dictionary, Unabridged* (Springfield, MA: Merriam-Webster, Inc., 1993), s.v. "dressage."

43 Ibid.

44 Ibid.

45 Ibid.

46 Ibid.

47 Ibid.

48 *Oxford English Dictionary Online*, s.v. "dressage," http://www.oxforddictionaries.com/definition/english/dressage.

dressage is "the execution by a horse of maneuvers involving changes of gait, pace, and airs in response to barely perceptible movements of a rider's hands, legs, and weight; *also*, the systematic training of a horse in obedience and deportment."[49] Other terms associated with dressage include "haute école" ("high school" in English), referring to the most advanced levels of dressage training, and "manège," which is the French term for school-riding and refers to "the elaborate movements practiced in the manège, or riding arena."[50]

The association of dressage training with the manège is important in considering the development of dressage as a disciplinary practice. Early modern schools of dressage are linked to the Renaissance rediscovery of Xenophon's fourth-century BC training manual, *On Horsemanship* (alternatively translated as *On the Art of Horsemanship*).[51] This short text is understood to have influenced the shift away from more overly forceful training techniques in favor of "humane" approaches based on "a rational foundation."[52] As Karen Raber and Treva Tucker describe the shift, "In sixteenth-century manuals of horsemanship, training the horse in the movements of the manège is achieved by the trainer's forceful domination of the horse. Recommended techniques for overcoming resistance or subduing rebellion often are quite brutal, and there is little talk of the horse as anything other than an irrational obstacle in the trainer's quest to produce a correct performance."[53] The change in training methodology retains the goal of achieving obedience but shifts the narrative and methods through which such obedience is cultivated. Submission is translated as an act of cooperation within a "partnership" between horse and human.

Xenophon's *On Horsemanship* offers advice on selecting a horse, training, husbandry, and outfitting the horse and rider for military exploits. Xenophon's text is noteworthy for arguing that horses should be treated with kindness in

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49 *Websters Third New International Dictionary*, s.v. "dressage." From the *Oxford English Dictionary Online*, the verb "to dress" means "To make straight or right; to bring into proper order; to array, make ready, prepare, tend." Also, "To 'form' in proper alignment," as in soldiers at drill. "Dressage" is defined as "The training of a horse in obedience and deportment; the execution by a horse of precise movements in response to its rider." The etymology of the French *dresser* is "to train or drill."

50 Treva J. Tucker, "Early Modern French Noble Identity and the Equestrian 'Airs above the Ground'," in *The Culture of the Horse: Status, Discipline, and Identity in the Early Modern World*, ed. Karen Raber and Treva J. Tucker (New York: Palgrave Macmillan, 2005), 282.

51 Xenophon, *On the Art of Horsemanship*, Gutenberg, accessed November 10 2009, http://www.gutenberg.org/files/1176/1176-h/1176-h.htm.

52 E. Schmit-Jensen, "Technical Commentary," in *A General System of Horsemanship*, ed. William Cavendish (London: J. A. Allen, 2000), np.

53 Raber and Tucker, eds., *The Culture of the Horse*, 14.

order to produce an animal that is "gentle, tractable, and affectionate."[54] He suggests strategies for producing this temperament even before mounted training begins:

> [L]et the animal connect hunger and thirst and the annoyance of flies with solitude, whilst associating food and drink and escape from sources of irritation with the presence of man. As the result of this treatment, necessarily the young horse will acquire—not fondness merely, but an absolute craving for human beings. A good deal can be done by touching, stroking, patting those parts of the body which the creature likes to have so handled.[55]

Horses subject to captivity and without independent access to food, water, shelter, or social relations with other horses will respond positively to human provision of these resources. Xenophon suggests a certain approach to cultivating equine tractability and articulates a fundamental awareness of horses' responsiveness to different types of treatment. The emphasis, Xenophon asserts, is that the horse must be taught "not by cruel, but by gentle handling."[56]

Xenophon's understanding of equine sensitivity extends to a critique of the rider's technique. He insists that training must be practiced under conditions of emotional control on the part of the rider: "The one best precept—the golden rule—in dealing with a horse is never to approach him angrily."[57] The most effective method by which to achieve desired results is "wherever the animal performs his service well, reward and humour him."[58] Contrasting his gentle approach with forcing the horse to perform by applying the whip, Xenophon insists that "far the best method of instruction . . . is to let the horse feel that whatever he does in obedience to the rider's wishes will be followed by some rest and relaxation."[59] Introducing a metaphor that has endured as a contemporary figure for dressage practice, Xenophon explains that "what a horse does under compulsion he does blindly, and his performance is no more beautiful than would be that of a ballet-dancer taught by whip and goad. . . . What we need is that the horse should of his own accord exhibit his finest airs and paces

54 Xenophon, *On the Art of Horsemanship*, Section II.

55 Ibid.

56 Ibid.

57 Ibid., Section VI.

58 Ibid., Section X.

59 Ibid.

at set signals."[60] The idea here is that the horse should come to align his or her own movements with the desires and demands of the human who is in control of his or her bodily, embodied, will.

Early modern shifts in training methodology reflect the changes in social and political organizations of the time. As Elizabeth LeGuin suggests, "the adoption of Xenophon's humane and commonsensical approach around 1550 marks a turning point, not only in the military purposes that had dominated horse training for millennia, but in basic European understandings of how power and command work upon selfhood."[61] Changing political structures, the move away from absolute monarchy, necessitated different articulations of power and self-control. As Raber and Tucker note, changes in "civility, manners, courtesy, *politesse* . . . involved increased 'policing' of the self by the self—a control and discipline voluntarily imposed from within rather than from without."[62] This standard of internalized control was extended from human to horse, establishing expectations of 'self-carriage' and control: "The gradual increase in self-discipline and self-control among members of the elite thus facilitated a similar increase in their control over their horse: as one trained oneself, so one was able to train one's horse."[63]

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60 Ibid. Other suggestions are "If you would have a horse learn to perform his duty, your best plan will be, whenever he does as you wish, to show him some kindness in return, and when he is disobedient to chastise him" (ibid., Section IIX). However, pains need to be taken to "avoid enraging a spirited horse by not annoying him" and "coaxing him rather than compelling him, using patience and taking the longer route rather than the short cut (ibid., Section IX).

61 Elizabeth LeGuin, "Man and Horse in Harmony," in *The Culture of the Horse: Status, Discipline, and Identity in the Early Modern World*, ed. Karen Raber and Treva J. Tucker (New York: Palgrave Macmillan, 2005), 177. In 1550, Frederico Grisone published the first training manual clearly influenced by Xenophon: "Grisone founded one of the first schools for horsemanship in Naples in the 1530s, and others soon appeared throughout the Italian peninsula" (Raber and Tucker, *The Culture of the Horse*, 9). Members of the nobility from across Europe traveled to Italy to train at Grisone's school, and one of these students, Antoine de Pluvinel, "established the first noble riding academy in Paris in 1594, and his 1623 text, *Le Maneige royal*, was one of several contributions to the growing literature on the style of riding that eventually came to be know as the *haute école* (literally, 'high school')" (ibid.). Antoine de Pluvinel (1555–1620) was the écuyer (riding master) for Louis XIII of France (William C. Steinkraus, "Introduction," in *A General System of Horsemanship*, ed. William Cavendish (London: J. A. Allen, 2000), np).

62 Raber and Tucker, *The Culture of the Horse*, 18.

63 Ibid.

Tucker identifies this shift toward self-regulation as occurring between the beginning of the sixteenth century, when the training of a nobleman centered on developing "his potential efficacy as a heavy cavalryman," to the end of the century, when "the types of mounted skills that a nobleman was expected to master had more to do with the display of grace and *sprezzatura* than they did with his military abilities."[64] Linking this shift to the new "courtly ideal" touted by Baldessare Castiglione in *The Book of the Courtier* (*Il cortegiano*, first published in Italian in 1528), Tucker describes the changes this new ethos wrought in aristocratic values, which shifted from honor in military service to the internalized values of grace and "sprezzatura," defined by Tucker as "an attitude of nonchalantly poised self-confidence, the primary purpose of which is to disguise the courtier's efforts so that everything he does or says appears to be natural and spontaneous."[65] As I discuss below, this illusion of effortlessness remains the ultimate goal of high-level dressage today. As with dressage training in which individual expression became regulated through disciplinary practice, more rigorous oversight and regulation of the nobility by the court meant greater control over individual autonomy.

It is apparent that as the organization of social and political relations shifted in the early modern period toward bio-politics, with disciplinary power coming to bear over individual bodies through regulatory practices and institutions, similar shifts emerge in horse training practices. Raber suggests, "Early modern literary depictions of horse and rider generally affirm the place of good horsemanship as an image of good rule, whether over the passions in the individual, or over the state as a collective."[66] The shift in control toward internalized regulation represents "an increase in political control over the elite by their rulers in precisely the same way that the shift in the way horses and training were viewed facilitated an increase in control over horses by their trainers."[67] Individuals, horse and human, remodel themselves as docile bodies. An interesting outcome of endowing the individual with self-discipline is that, when translated into training narratives, the horse is figured as "an independent intelligence, . . . someone to be negotiated with, rather than something to be

64 Tucker, "Early Modern French Noble Identity and the Equestrian 'Airs above the Ground'," 281.

65 Ibid., 280.

66 Karen L. Raber, "'Reasonable Creatures': William Cavendish and the Art of Dressage," in *Renaissance Culture and the Everyday*, ed. Patricia Fumerton and Simon Hunt (Philadelphia: University of Pennsylvania Press, 1999), 46.

67 Raber and Tucker, *The Culture of the Horse*, 19.

deployed."[68] There is a new emphasis on coercion and self-control over force, a shift that some argue requires a level of participation from the equine partner that may or may not involve subjective agency.

As a "technology of power,"[69] dressage training in the manège exemplifies how "discipline proceeds from the distribution of individuals in space."[70] The various "techniques" by which disciplinary power achieves control include "enclosure, the specification of a place heterogeneous to all others and closed in upon itself. It is the protected place of disciplinary monotony."[71] Having been brought indoors and functioning as a school for training aristocrats, the manège subjects both human and equine bodies to training procedures in order to produce movement that demonstrates obedience to authority.[72] The architectural layout of the manège itself created a self-contained "world" dedicated to all things horse. With individual stalls in which horses were kept separate from each other and different locations within the manège complex dedicated to distinct activities, including a riding arena with seating for spectators, the manège exemplifies "the principle of elementary location or *partitioning*."[73] The stabling of horses in the manège involved the division of disciplinary space "into as many sections as there are bodies or elements to be distributed"[74] In this space, "[e]ach individual has his own place; and each place its individual."[75] Keeping horses in individual stalls makes them easily accessible and subject to intensive management, enabling keepers "to know where and how to locate individuals, to set up useful communications,

68 LeGuin, "Man and Horse in Harmony," 177.

69 Foucault, *Discipline and Punish*, 194.

70 Ibid., 141.

71 Ibid.

72 Dressage training was limited to the aristocracy as it required significant wealth and leisure time: "The stable itself could cost as much as or more than a grand country house, and the architecture of noble stables became a separate art and science during the seventeenth century" (Raber and Tucker, *The Culture of the Horse*, 10; and 10–11 on the various types of horses used for different types of work on an aristocratic estate and the costs associated with purchase and maintenance). A major shift in training practice occurred with the development of manège riding as "stables and riding court [moved] from the outdoors in, integrating them more closely into the domestic space" (ibid., 19). This change in architecture and enclosure reflects the move away from riding practice as primarily a function of military service to that of display and performance associated with courtly practice (Tucker, "Early Modern French Noble Identity and the Equestrian 'Airs above the Ground,'" 281).

73 Foucault, *Discipline and Punish*, 143.

74 Ibid.

75 Ibid.

to interrupt others, to be able at each moment to supervise the conduct of each individual, to assess it, to judge it, to calculate its qualities or merits."[76] The "analytical space" of the stable is "aimed at knowing, mastering, and using."[77] Other components of the disciplinary space of the stables are the organization in time and space of training, exercise, feeding, cleaning, in other words, all the aspects of horse husbandry that function to "establish rhythms, impose particular occupations, regulate the cycles of repetition."[78]

With such regulation, each interaction with the horse is devoted to a specific purpose. As with training soldiers in formation, the movements taught to the horse in dressage training are progressive and each "is broken down into its elements; the position of the body, limbs, articulations is defined; to each movement are assigned a direction, an aptitude, a duration; their order of succession is prescribed."[79] As with the soldier, the utility of the equine body was prescribed by its obedience to command. Moreover, with the training of the rider as well as the horse, "Disciplinary control does not consist simply in teaching or imposing a series of particular gestures; it imposes the best relation between a gesture and the overall position of the body."[80] The utility of the body, related in turn to its docility, is managed within a systematic valuation of movement, an economy of action: "In the correct use of the body, . . . nothing must remain idle or useless: everything must be called upon to form the support of the act required."[81] Unique to the horse-rider unity is the coordination of gesture between rider and horse, the "obligatory syntax" that will produce the desired behavior.[82] The "obligatory syntax" means that each gesture of the rider demands a specific response from the horse, with their work requiring intimate coordination in producing the accuracy of movement demanded. As such, Foucault identifies that "disciplinary power appears to have the function not so much of deduction as of synthesis, not so much of exploitation of the product as of coercive link with the apparatus of production."[83] The dynamic exchange between these two actors constitutes the relationship of power. Their essential co-constitution, their mutual dependence in producing

76 Ibid.
77 Ibid.; also see 172 on the function of architecture.
78 Ibid., 149.
79 Ibid., 152.
80 Ibid.
81 Ibid.
82 Ibid., 153.
83 Ibid.

the disciplinary relations, is what renders the mechanism of disciplinary power invisible.[84]

3 Cavendish

The ideological shift in approaches to training, as they reflect larger shifts in organizations and distributions of power, is well illustrated in William Cavendish's *A General System of Horsemanship*. Exiled to Antwerp for taking the royalist side in the civil war, Cavendish, Duke of Newcastle, wrote his first training treatise, *La Méthod Novelle et Invention Extraordinaire de Dresser Les Chevaux*, published in 1568. In 1667, Cavendish published a training manual in English titled *A New Method and Extraordinary Invention to Dress Horses*. Eventually, in 1743, an English translation of the earlier text was published with the title *A General System of Horsemanship*. This text was influential over the next century and remains in print today. Cavendish's approach and methods influenced François Robichon de la Guérinière, whose manual *École de Cavalerie* from 1733 is still used today in the Spanish Riding School in Vienna.[85] Cavendish's manuals demonstrate the distinct move away from overt cruelty in training that is linked to the shift toward courtly manners and away from training the aristocracy and their horses for military purposes to training for performance and leisure activities.

An informative analogy from Xenophon's text reappears in William Cavendish's Introduction to *A General System of Horsemanship*. Xenophon compares the horse to a young man or boy whom the father "apprentices . . . to some art or handicraft."[86] In the opening paragraph of *A General System of Horsemanship*, Cavendish compares the process of training a young boy to read to that of teaching a horse the elements of dressage, noting that no amount of beating can produce reading comprehension in the boy until he has learned his alphabet. "Dressing" a horse is teaching a sort of alphabet that, through practice, results in the articulate equine body: "The horse is taught first to know, and then by frequent repetition to convert that knowledge into

84 "Traditionally, power was what was seen, what was shown and what was manifested and, paradoxically, found the principle of its force in the movement by which it deployed that force. . . . Disciplinary power, on the other hand, is exercised through its invisibility; at the same time it imposes on those whom it subjects a principle of compulsory visibility" (ibid., 187).

85 Schmit-Jensen, "Technical Commentary," np.

86 Xenophon, *On the Art of Horsemanship*, Section 11.

habit."[87] Cavendish attributes intelligence to horses, noting that, like humans, horses, "draw their reasonings from things themselves."[88] Horses experience physical sensations and make observations just as humans do, just without the use of, as Cavendish says, "marks express'd in language."[89] Cavendish suggests that this lack appears as an advantage insofar as horses "Never err as men do," that is, they are not mislead by words in the ways that men are.[90] Cavendish credits equine intelligence, suggesting a parity with human intelligence: "Some [men] are pleased to say, that horses are void of understanding, because men get the better of them: but when the horse gets the better of the man, which frequently happens, is the man then void of understanding?"[91] These acknowledgments of equine intelligence and agency place Cavendish in opposition to a reigning belief in the hierarchy of intelligences (the "Great Chain of Being") that placed man at the apex, which Cavendish recognizes as a certain form of prejudice: "The learned will hardly be brought to allow any degree of understanding to horses; they only allow them a certain *instinct*, which no one can understand; so jealous are the schoolmen of their rational empire."[92] The credit Cavendish attributes to equine intelligence is unusual in training manuals; however, within the disciplinary context, this attribution nonetheless functions to underscore the need for the rider to obtain obedience from his mount.

Cavendish notes "the hand and the heels are all that is required to make a perfect horse; but there are other things requir'd to make him perfectly obedient to the hand and heels."[93] I quote at length here a passage that clarifies the nature of some of these "other things" required to make the horse "perfect":

> It is impossible to dress a horse before he obeys his rider, and by that obedience acknowledges him to be his master; that is, he must first fear him, and from this fear love must proceed, and so he must obey. For it is fear creates obedience in all creatures, in man as well as in beast. Great pains then must be taken to make a horse fear his rider, that so he may obey out of self-love, to avoid punishment. A horse's love is not so sage to

87 William Cavendish, *A General System of Horsemanship. Facsimile Reproduction of the Edition of 1743. Introduction by William C. Steinkraus with a Technical Commentary by E. Schmit-Jensen*. (London: J. A. Allen, 2000), 11.

88 Ibid., 11.

89 Ibid., 12.

90 Ibid.

91 Ibid.

92 Ibid., 13.

93 Ibid.

> be trusted to, because it depends on his own will; whereas his fear depends on the will of the rider, and that is being a dressed horse. But when the rider depends on the will of the horse, it is the horse that manages the rider. Love then is of no use; fear does all: for which reason the rider must make himself feared, as the fundamental part of dressing a horse. Fear commands obedience, and the practice of obedience makes a horse well dressed.[94]

From fear, to self-love, to obedience, the disciplinary process creates a docile body. Fear represents an aspect of equine sensibility (in partnership with hope) as it does for humans:

> There are but two things that can make an accomplish'd horse, [that is] the hope of reward, or the fear of punishment, which all the world are influenc'd by; and, as far as we know, God has no other means of exciting his people to virtue, but by the largeness of his infinite rewards, and the terror of the pains that are prepar'd for their crimes.[95]

Praise and punishment are the two means by which to control equine behavior, or, as Cavendish points out, the behavior of sensible beings in general. Cavendish makes it clear that force should not be the primary method of training horses, although there are also many moments when he does advocate force, not the least of which being his descriptions of the use of spurs, "Nothing has so much effect as the spur, in making a horse fear his rider,"[96] and bits, both of which have no other function than to elicit the horse's obedience through his or her fear of physical pain.

Cavendish acknowledges that horses resist training, and the attentive reader recognizes agency in this resistance: "Horses generally resist what you would have them do, not from a natural simplicity, but with malice and subtilty [sic]."[97] Horses are figured as willfully disobedient, as "cunning and artful in their disobedience to the rider,"[98] moving their bodies in ways altogether undesired by the rider. In terms of how disciplinary power works, this disobedience, the horse's resistance, is part and parcel of the workings of power: "Resistance is not something separate from power relations; it is instead an integral part of

94 Ibid., 139.
95 Ibid., 12.
96 Ibid., 139.
97 Ibid., 99.
98 Ibid., 100.

those relations."[99] Resistance demonstrates the instability of power relations and is "one of the creative effects power can produce."[100] The horse's resistance is "integral" to the dialogue of the training relationship. Resistance is communication: "it is an encounter of interaction, in which its [the animal's] behavior is altered by my behavior—and my behavior is altered by what it does."[101]

4 "Partnership"

As Cavendish, and Xenophon before him suggest, obedience is to be obtained through coercion not force, with the emphasis on developing "partnership" and "cooperation" between horse and rider. This narrative of "partnership" suggests "the possibility of a dialogic relationship between trainer and trained."[102] Raber suggests that "Cavendish's emphasis on riding as a partnership, and on the rational, characterful nature of the horse, invests the horse with a nascent subjectivity, an individualized and self-motivated identity which mirrors cultural and political transformations of human subjectivity across class lines in seventeenth-century England, and one which . . . ultimately subverts his ostensible purpose."[103] Although generous in sentiment, portraying the training relation as a partnership in which the horse expresses agency ultimately functions to mask the power-over relation. This particular "partnership" is a relationship of power that involves coercion and obedience. What kind of partnership is this?

Cavendish's ideal, the appearance of a seamless unity of horse and rider, reflects the horse's absolute obedience to the rider's will: "the perfection of a well-managed horse consists in his following the will of his rider, so that the will of both shall seem to be the same."[104] A contemporary articulation of this idea as representative of the practice of dressage is expressed by Alois

99 Dawn Coppin, "Foucauldian Hog Futures: The Birth of Mega-Hog Farms," *The Sociological Quarterly* 44:4 (2003): 597–616 (610).

100 Palmer, "'Taming the Wild Profusion of Existing Things'?," 344.

101 Ibid., 354.

102 LeGuin, "Man and Horse in Harmony," 178.

103 Raber, "'Reasonable Creatures'," 61.

104 Cavendish, *A General System of Horsemanship*, 105. The passage continues: "He must be forced a little, but not long, because force will make him worse. I have never yet seen that force and passion have prevailed the least upon a horse: for the horse having less understanding than his rider, his passion is so much the stronger, which makes him always get the better of the horseman, and shews [sic] that violent methods will not do" (ibid., 105).

Podhajsky, director of the famous Spanish Riding School in Vienna during the 1940s:

> [Dressage is] a performance which has been built up through systematic physical training and in which the two creatures have *blended into one*. It is a performance in which the rider thinks and the horse executes the rider's thought. The horse should be guided by his rider in such a way that the onlooker is unable to detect any aids nor should the horse realize that he is being guided. Both horse and rider should present the image of two happy creatures.[105]

The horse here becomes the physical expression of human thought, a process that requires such a finely tuned level of coordination that the horse fails to realize his/her own submission to an other's commands, rather like the well-trained ballet dancer in Xenophon. For the rider, the synchronicity of riding involves the extension of the human body through equipment, including bridle and saddle, into and onto the horse's body to allow for command and control, or "communication" in the discourse of partnership.

Articulating the ideal of reciprocity within the training relationship, Vicki Hearne describes high-level equestrian performance being "as though the rider thinks and the horse executes the thought, without mediation or any sort of cuing; but it is also the other way around on the back of a great horse—it is as though the horse thinks and the rider creates, or becomes, a space and direction for the execution of the horse's thoughts."[106] Hearne argues for an embodied symbiosis that emerges within the intimacy of coordinated movement between well-trained rider and well-trained horse. Jeffrey Cohen, referencing Deleuzian "assemblage," offers the image of the human-horse conjunction as a 'transubstantiation' of human into horse and horse into human as "[o]bjects lose their materiality to become conduits and agents.[107] He suggests, "[t]he Deleuzian assemblage indicates the limits of the human as a conceptual category"[108] and that the human-horse assemblage "acknowledges that a body is not a singular, essential thing but an inhuman circuit full of unrealized possibility for rethinking identity."[109] This strikes the contemporary reader

105 Alois Podhajsky, *My Horses, My Teachers*, trans. Eva Podhajsky (Garden City, NY: Doubleday, 1968), 69–70.

106 Vicki Hearne, *Adam's Task: Calling Animals by Name* (New York: Vintage, 1986), 163.

107 Cohen, "The Inhuman Circuit," 179.

108 Ibid., 179–80.

109 Ibid., 180.

as a compelling refiguration, but it does nothing to account for equine subjectivity and agency, which remains constrained by the asymmetrical power relationship in a practice such as dressage. Moreover, the idea of the "inhuman circuit," although productive for posthumanities, obscures the history of disciplinary power that has produced the bodies engaged in this relationship. As J. J. Clark states,

> The horse does not 'ask' for subjugation, and the horse is not complicit in it. Otherwise, we would not have verbs like 'breaking,' 'taming,' and 'training,' not to mention equipment like bridles and bits and spurs and whips. Humans must constantly bear in mind that the horse was never given the opportunity to decline to participate in the human/horse relationship, nor does the horse possess the capacity to exit the relationship.[110]

The narrative of "partnership," of communication between horse and human as a two-way process as opposed to overt dominance of one will over an other, of one body over an other, is at the center of a contemporary genre of training practice known as "natural horsemanship," an approach to training that became popularized in the United States during the 1980s and 1990s as a humane "alternative" approach to training. "Natural horsemanship" was brought into the popular imagination in Nicholas Evans's 1995 book *The Horse Whisperer* and in the movie that followed, both of which used a real-life horse whisperer, Buck Brannaman, as the model for the fictional narrative.[111] The purported strength of natural horsemanship is its focus "on kindness, with particular emphasis on communicating with—and learning to understand from the horse's point of view—the natural behavior of horses."[112] Horse whispering is not new, but these training practices are noteworthy for their widespread popularity and cross-disciplinary appeal within equestrian circles, with one author even calling natural horsemanship a "revolution" in horse-training methodology.[113]

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110 J. J. Clark, "The Slave Whisperer Rides the Frontier: Horseface Minstrelsy in the Western," in *Animals and Agency*, ed. Sarah E. McFarland and Ryan Hediger (Leiden: Brill, 2009), 157–180 (179).

111 More recently, we have seen the popularity of the documentary film *Buck* (2011), which chronicles the compelling personal and professional story of horse whisperer Buck Brannaman.

112 Linda Birke, "'Learning to Speak Horse': The Culture of 'Natural Horsemanship,'" *Society and Animals* 15 (2007): 217–39 (218).

113 Robert M. Miller and Rick Lamb, *The Revolution in Horsemanship* (Guilford, CT: The Lyons Press, 2005).

Popularizers of natural horsemanship methods suggest that they open new channels of communication with horses and alter our understanding of the human-horse relationship. However, there is a tension within natural horsemanship practices that echoes Cavendish's understanding of horses, on the one hand, as intelligent, agential beings and, on the other, as creatures who must ultimately demonstrate absolute obedience to (human) riders or handlers. In her reading of natural horsemanship discourses, Linda Birke suggests that the tension is between the stated desire for greater emotional connection with horses and the cultivation of "emotional control" as the unseen coercion producing the experience of human-horse "partnership."[114] Birke notes, "while humans seek to express their emotions more fully, the horse is effectively denied such expression," because, in order to be a good "partner," the horse has to learn "not to display a full range of emotional expression—[the horse has] to learn to manage [her or his] emotions when working with a human."[115] Natural horsemanship may reflect another shift in the human-horse relationship wherein affective connection is the desired outcome of the relationship. The problem is that training requires obedience, regardless of how we choose to describe the process or the relationship. This tension between discourses and practices expresses the difficulty of reconceptualizing human-horse relations, which requires shifting paradigms away from the long history of instrumental functionality that continues to define horse-human relationships and toward considering horses' agential specificity. This difficulty is reflected in the fact that, although in training discourses such as Cavendish and natural horsemanship horses are represented as relational partners with agency and subjectivity, the context remains one of asking a horse to perform specified tasks, which is "still asking them to do something on human terms."[116] Paul Patton describes the human-horse training relationship as "fundamentally coercive,"[117] insofar

114 Birke, "'Learning to Speak Horse'," 109.

115 Ibid., 123.

116 Ibid., 120. Once again, J. J. Clark makes perfectly clear what is at stake in imagining agency for horses within training relations: "Suggesting that the horse does possess this sort of agency is to suggest that it is within the control of the horse to defend itself against abuses through a termination of the human/horse relationship. The implication is that by not exiting the relationship, the horse is satisfied with its treatment at the hands of the human, which in turn gives humanity permission to overlook any exploitation of the horse. Thus, to misidentify the amount of power the horse wields in the human/horse relationship is to exaggerate the ability of Horse to defend Horsekind against human abuse" (Clark, "The Slave Whisperer Rides the Frontier," 179).

117 Paul Patton, "Language, Power, and the Training of Horses," in *Zoontologies: The Question of the Animal*, ed. Cary Wolfe (Minneapolis: University of Minnesota Press, 2003), 83–99 (86).

as "coercion" means "causing the animal to act in ways that it would not otherwise have acted."[118] Training involves "a fundamental asymmetry at the heart of the relation between horse and rider."[119] The "partnership" narrative of human-horse training relations is predetermined by the relational context: "The conversation between horse and rider in the arena takes place entirely in respect of tasks that are set by the rider. The primary purpose of the communication between them is the transmission of orders. [U]ltimately what they [riders] aim to achieve is absolute obedience from the trained animal"[120]

Vicki Hearne points out that shifts in and "Quarrels about training technique are almost never about whatever the surface issue appears to be."[121] As a manifestation of micro-power, the popularity of natural horsemanship discourses indicates broader concerns and explorations within cultural practices: "Power and resistance are dynamic and, as such, the specific configurations of power can always be unexpectedly altered."[122] These alterations offer changes not only in how humans treat horses but in how humans imagine themselves. Practitioners and adherents of natural horsemanship frequently cite personal transformation as a result of learning these "alternative" (non-traditional) training methods, including and beyond improved relationships with their horses. Believers might argue that "[w]hat NH [natural horsemanship] wrought . . . was not only a different way of being with horses; more importantly, it was a different way of being."[123] In her interviews with horsepeople, Birke found that respondents were drawn to the emphasis on developing a relationship to a horse that is individual and to developing tools to build what is experienced as meaningful communication between human and horse.[124] Is horse whispering a symptom of a historically contextual rethinking of human-horse relationships, an attempt, as some argue, to decenter the human by accounting for equine agency? Ultimately, Birke argues, these discourses

118 Ibid., 92.

119 Ibid., 90.

120 Ibid. Andrew N. McLean, "The Positive Aspects of Negative Reinforcement," *Anthrozoos* 18.3 (2005): 245–54, explains how horse training requires negative reinforcement methods, a requirement that sets horse training apart from the positive training methods used with certain other human-animal partnerships such as dog/human. Although much can be accomplished using positive reinforcement methods such as clicker training, traditional riding practices rely on negative reinforcement.

121 Hearne, *Adam's Task*, 118.

122 Coppin, "Foucauldian Hog Futures," 612.

123 Birke, "'Learning to Speak Horse'," 222.

124 Ibid., 223.

may largely function as "a metaphor for communication,"[125] and, if I understand Birke correctly here, she is suggesting that humans are representing the horse-human relationship in terms of partnership as a way of representing our own needs and desires for connection and communication. The focus on shared affect does not displace the fundamental production of docile bodies. Far from rethinking the fundamental human-horse relation, within training relations, horses remain objects within these discourses, subject to a relentlessly colonial imagination in which they figure in our narratives as willing partners in disciplinary practices.

Challenges to the entrenched instrumentalism that characterizes human-horse relations must ask how horses as embodied beings are constituted by relations of power, how they are implicated in political relations, how our training relations with horses are not "innocent" of ideology and entitlement. Foucault helps here to highlight the power relations that are integral to training practices: "from a Foucauldian perspective perhaps we can think of human/animal relations as, broadly, consisting of multiple individual micro-situations in a variety of environments where animals may respond unpredictably, resist human power, and even exercise power themselves."[126] None of this removes the power relationship, but it does challenge us to recognize the "structural inequality between humans and animals," which, as such, figures animals as "'things which cannot resist'" within practices of domination.[127] Understanding the ways that power is played out within training relations and understanding how "[t]he exercise of power is a 'conduct of conducts' and a management of possibilities,"[128] renders visible the ways that training narratives limit the possibilities for our engagements with horses. In thinking of the limits at which human relations with domestic animals "structure the possible field of action of others,"[129] Lee Hall asks:

> Are we taking a hard look at how our good instinct to help and care has turned into a custom that forces other beings to look to us for care, and to be trapped inside this reliance? When we bring into existence other animals whose very being involves dependence upon us, a dependence they

125 Ibid., 234.

126 Palmer, "'Taming the Wild Profusion of Existing Things'?," 352.

127 Ibid., 358.

128 Foucault, "The Subject and Power," 138.

129 Ibid.

> cannot outgrow, the unequal relationship is not mitigated by caring. Do we not need an ethic that questions the inequality?[130]

As creatures engaged in social relations, and more meaningfully in the sociality of mutual becomings, horses and humans are shaped by socio-cultural expectations and the discourses of power that reside within these expectations. This is where our responsibility to our equine companions begins.[131]

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130 Lee Hall, *On Their Own Terms: Bringing Animal-Rights Philosophy Down to Earth* (Darien, CT: Nectar Bat Press, 2010), 30.

131 Alternative views of horse-human relations have begun to appear in popular formats, such as the documentary film *The Path of the Horse* (dir. Stormy May, Stormy May Productions, 2008) and Linda Kohanov's inspirational book *The Tao of Equus: A Woman's Journey of Healing and Transformation through the Way of the Horse* (Novato, CA: New World Library, 2001). One online network is www.horseconscious.com. Alternative training practices are presented in Gerd Heuschmann's *Tug of War: Classical Versus "Modern" Dressage: Why Classical Training Works and How Incorrect "Modern" Riding Negatively Affects Horses' Health* (trans. Reina Abelshauser, North Pomfret, VT: Trafalgar Square, 2007) and in studies such as Stephanie Shanahan's "Trailer Loading Stress in Horses: Behavioral and Physiological Effects of Nonaversive Training (TTEAM)," *Journal of Applied Animal Welfare Science* 6:4 (2003): 263–74. A sampling of studies that focus on revisioning relations between humans and horses include Antonia J. Z. Henderson's "Don't Fence Me In: Managing Psychological Well Being for Elite Performance Horses," *Journal of Applied Animal Welfare Science* 10:4 (2007): 309–29; Martine Hausberger, Helene Roche, Severine Henry, and E. Kathalijne Visser, "A Review of the Human-Horse Relationship," *Applied Animal Behaviour Science* 109:1 (2007): 1–24; and M. Hausberger and C. Muller, "A Brief Note on Some Possible Factors Involved in the Reactions of Horses to Humans," *Applied Animal Behaviour Science* 76 (2002): 339–44.

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CHAPTER 7

Foucault's Menagerie: Cock Fighting, Bear Baiting, and the Genealogy of Human-Animal Power

Alex Mackintosh

1 Introduction: "The Animal is Replaced by Man"[1]

In 1757, the French servant Robert-François Damiens was hung, drawn and quartered over the course of several hours for the attempted murder of King Louis XV. For Foucault, this spectacular punishment—the last of its kind in France—marked the high point of a particular configuration of power, one in which the power of the sovereign was displayed through violence inflicted directly on the body of the condemned. Within eighty years, public torture would be replaced by a system of disciplinary power that would aim to regulate the living body and mind not only of prisoners, but also of schoolchildren, factory workers, psychiatric patients, and citizens.[2] This new form of power was represented, famously, by the Panopticon, where the possibility of surveillance disciplined the bodies and behaviour of inmates even in the absence of any physical coercion. In his lectures at the Collège de France, Foucault speaks of a move from sovereign power—the right "to take life or let live"—to biopower—the right "to 'make' live and 'let' die."[3]

This sense of a major historical transition in the operations of power, so central to Foucault's thought, has so far been almost entirely absent from the growing body of work addressing the application of Foucault's ideas to human-animal relationships. As several writers have convincingly argued, the treatment of animals in modern agricultural facilities displays a form of power that appears to be deeply biopolitical in nature.[4] The bodies of

1 Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (London: Penguin Books, 1977), 203.

2 Ibid.

3 Michel Foucault, *"Society Must be Defended": Lectures at the Collège de France 1975–76*, ed. Mauro Bertani and Alessandro Fontana, trans. David Macey (London: Penguin Books, 2003).

4 See, for instance, Lewis Holloway and Carol Morris, "Exploring Biopower in the Regulation of Farm Animal Bodies: Genetic Policy Interventions in UK Livestock," *Genomics, Society and Policy* 3:2 (2007): 82–98; Richard Twine, *Animals as Biotechnology: Ethics, Sustainability and*

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individual animals—to a greater extent even than those of humans—are shaped by breeding, genetic manipulation, and careful nutritional and medical regimes (anatomopolitics), while biopower also acts on livestock species, through the statistical management of animal populations (biopolitics). Their 'subjectivities'—if such a word can meaningfully be applied to animals operating outside human language—have also been shaped by techniques that could be considered as disciplinary.[5] What has not yet been addressed in any depth is the extent to which the various forms of power operating in human-animal relations can be mapped onto the historical shifts identified in Foucault's work. Does a similar transformation from sovereign power to biopower and disciplinary power occur in human-animal power relations over the same period? Can these forms of power tell us something about how power operates on *all* bodies and minds, both human and nonhuman?

Several writers have touched on the relevance to animals of Foucault's genealogy of power, but few engage with the question in any historical depth. Paola Cavalieri dismisses the very possibility of a history of animals, arguing that "the power exercised over them is quite the same now as it was in the past."[6] Lewis Holloway takes the opposite view, arguing that "bovine subjectivity has a history rather than an essence,"[7] a point made adeptly by his micro-study of the way in which particular contemporary milking technologies might be said to affect the subjectivity of cows; nonetheless, his focus is strictly contemporary, and he does not attempt to describe forms of animal subjectivity that

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Critical Animal Studies (London: Earthscan, 2010), 83–89; Dinesh Joseph Wadiwel, "The war against animals: domination, law and sovereignty," *Griffith Law Review* 18 (2010): 283–297; Dinesh Joseph Wadiwel, "Cows and sovereignty: biopower and animal life," *Borderlands e-journal* 1:2 (2002). [Available: http://www.borderlands.net.au/vol1no2_2002/wadiwel_cows.html]

5 See, for instance, Matthew Cole, "From 'Animal Machines' to 'Happy Meat'? Foucault's Ideas of Disciplinary and Pastoral Power Applied to 'Animal-Centred' Welfare Discourse," *Animals* 1 (2011): 83–101; Lewis Holloway, "Subjecting cows to robots: farming technologies and the making of animal subjects," *Environment and Planning D: Society and Space* 25:6 (2007): 1041–1060; Clare Palmer, "'Taming the wild profusion of existing things'? A study of Foucault, power and human/animal relationships," *Environmental Ethics* 23:4 (2001): 339–358; Joel Novek, "Pigs and People: Sociological Perspectives on the Discipline of Nonhuman Animals in Intensive Confinement," *Society & Animals* 13:3 (2005): 221–244; Stephen Thierman, "Apparatuses of Animality: Foucault Goes to a Slaughterhouse," in *Foucault Studies* 9 (2010): 89–110.

6 Paola Cavalieri, "A Missed Opportunity: Humanism, Anti-humanism and the Animal Question," in *Animal Subjects: An Ethical Reader in a Posthuman World*, ed. Jodey Castricano (Waterloo: Wilfrid Laurier University Press, 2008), 97–123.

7 Holloway, "Subjecting cows to robots," 1055.

may have existed in the past. The most notable attempt to historicise human-animal power thus far is that of Richard Twine, who adroitly suggests that "animal breeding has been a biopolitics from the beginning," but that this form of biopower has undergone a major intensification since the eighteenth century, thanks to the work of breeders such as Robert Bakewell (1725–1795), the development of herd books in the nineteenth century, and the dramatic changes in husbandry that have taken place thanks to post-World War II animal science.[8] Twine observes that sovereign power—if we understand it simply as the right to take life—remains just as important a part of the livestock industry as ever, but that its character has changed, becoming "secretive and hidden." Twine, however, does not develop this historical narrative in detail, using it rather as a background for his own discussion of how biopower might be seen to operate in contemporary farming practices.

This essay will attempt to redress this historical blind spot in the critical literature on Foucault and animals. Clearly, a definitive history of human-animal power relations is beyond the scope of a short article such as the present one, so instead this essay will attempt to describe one particular historical phenomenon that seems to correspond closely to Foucault's notion of 'sovereign power', and which died away at around the same historical moment. The cruel animal sports of early modern England, such as cock fighting and bear baiting, share many characteristics with the public torture and execution of prisoners. This essay will begin by arguing that, like the public execution, cruel animal sports should be understood as a ritual expression of sovereign power, representing not only the power of the sovereign, but also the God-given sovereignty of humans over other species. It will go on to examine the campaign to abolish cruel sports, which shares many characteristics with the campaign to abolish public executions. By analysing this campaign using the conceptual framework developed by Foucault in *Discipline and Punish*, it will be seen that the bodies of animals and those of prisoners were closely linked, both in the dramaturgy of the sovereign spectacle itself and in the imagination of onlookers and reformers. This discussion will reveal that animals were not only *part* of the historical transition mapped by Foucault, they were *instrumental* to it. Drawing on this historical narrative, I will suggest that some of Foucault's central ideas, such as the discovery of the human 'soul' in the eighteenth century, need serious revision to account for the place of non-human animals in human power structures.

In one of his few direct references to nonhuman animals, Foucault speculates that the Panopticon might have been inspired by Le Vaux's octagonal

8 Twine, *Animals as Biotechnology*, 83–89.

menagerie at Versailles. "The Panopticon," says Foucault, "is a royal menagerie; the animal is replaced by man."[9] This revealing formulation suggests that disciplinary power should be considered merely as the application of an existing human-animal technology to intra-human relations. Animals, it is implied, are not incidental in this process, they come *first*; they are the laboratory in which is developed a new form of power. Remarkably, Foucault never follows up on this startling observation; his history of bodies and souls remains resolutely anthropocentric. This article represents a small attempt to correct this important lacuna in Foucault's work, revealing a history of bodies and souls across the species divide, a history that turns out to be central to—yet curiously disavowed by—Foucault's model of power.

2 Challenging Human Sovereignty

Two years after the execution of Damiens, a similar spectacle of violence—this time in London—was captured in an engraving by William Hogarth. As in the case of the regicide, power was expressed on suffering bodies for the edification of a watching crowd. There was, however, one crucial difference. In Hogarth's engraving, the condemned were not humans; they were fowls. This was *The Cockpit* (1759), Hogarth's engraving of one of eighteenth-century London's many spectacles of animal cruelty. Besides cock fighting, Londoners enjoyed bear baiting, monkey baiting, cock throwing, and badger baiting, alongside a plethora of similarly gruesome entertainments.[10] Such 'sports' were wildly popular in early modern England; in 1663, Samuel Pepys reported that

9 Foucault, *Discipline and Punish*, 203.

10 On the history of animal baiting, I am particularly indebted to Emma Griffin, *Blood Sport: Hunting in Britain since 1066* (New Haven and London: Yale University Press, 2007), 77–99; and Erica Fudge, *Perceiving Animals: Humans and Beasts in Early Modern English Culture* (Basingstoke: Macmillan Press, 2000), 11–28. For a general discussion of blood sports in early modern England, see Keith Thomas, *Man and the Natural World: Changing Attitudes in England 1500–1800* (London: Penguin Books, 1984), 143–145. For specific discussion of bear baiting, see Jason Scott-Warren, "When Theaters Were Bear-Gardens; Or, What's at Stake in the Comedy of Humors," *Shakespeare Quarterly* 54:1 (2003): 63–82; Giles E. Dawson, "London's bull baiting and bear baiting arena in 1562," *Shakespeare Quarterly* 15:1 (1964): 97–101; J. Leslie Hotson, "Bear gardens and bear baiting during the Commonwealth," *Publications of the Modern Language Association* 40 (1925): 276–288; Alexandra F. Johnston and Wim Hüsken, eds., *English Parish Drama* (Amsterdam: Rodopi, 1996), 65–80; Stephen Dickey, "Shakespeare's Mastiff Comedy," *Shakespeare Quarterly* 42:3 (1991): 255–275.

everyone from "parliament men" down to "the poorest prentices, bakers, brewers, butchers, draymen and what not" enjoyed watching a cockfight.[11] Within a century of Hogarth's engraving, however, such spectacles would be outlawed, just as torture and execution began to fall out of favour.

It may seem tenuous to compare the public execution to the cockpit or the bear garden; after all, animal baiting is not a punishment for any crime, and usually the violence is inflicted by animals on one another, rather than by a representative of the law.[12] A closer examination, however, reveals some striking parallels. In the case of Damiens and other public executions, the power on display is literally that of the sovereign, who exacts violent retribution for an attack on his sovereignty.[13] The sovereign is also present in Hogarth's engraving: the scene is thought to be set in the Royal Cockpit in Birdcage Walk,[14] and the monarch's presence is signified by the royal coat of arms that adorns the cockpit walls. This violence is sanctioned by royal decree; it is—ultimately—at his Majesty's pleasure; it is not for nothing that advertisements for the Bear Garden bore the legend 'Viuat Rex'.[15] Indeed, it is likely that bear baiting was considered a royal monopoly.[16] This royal seal of approval had a long pedigree. Richard III so enjoyed bear baiting that he created the post of Royal Bearward,[17] a tradition maintained by several generations of royalty. Elizabeth I was a particular fan of the sport, and would frequently entertain guests with a bear baiting;[18] James I, meanwhile, was a regular visitor at the cockpit in St James's Park, besides having "an especial place" for the purposes of baiting constructed in the Tower with "dogges, beares, bulles, bores, &c."[19]

Yet the power expressed on the bodies of the fighting animals is just as clearly that of humanity itself. The spectacle presents a ritual affirmation of the power of humans to take the lives of other animals as they wish: as the sovereign is to the crowd, the crowd is to the animals in the pit. As such, it reflects a view widely espoused in medieval and early modern philosophy: that

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11 Monday 21 December, 1663. Cited in Thomas, *Man and the Natural World*, 145.

12 There are exceptions to this rule; in the sport of cock-throwing, a cockerel is tied to a post and boys throw rocks at it until it is beaten to death.

13 Foucault, *Discipline and Punish*, 47–50.

14 See, for instance, Henry Benjamin Wheatley, *London Past and Present: Its History, Associations, and Traditions* (Cambridge: Cambridge University Press, 1891, reprinted 2011), 436–437.

15 Scott-Warren, "When Theaters Were Bear-Gardens," 72.

16 Hotson, "Bear gardens and bear baiting," 283.

17 Griffin, *Blood Sport*, 86.

18 Ibid.

19 Ibid., 91.

nature is a *political* structure, with an observable hierarchy, with God at the top, man beneath him, and the other creatures below, and sovereignty delegated from God to man with regard to the lower creation. As James Granger would put it as late as 1772, "man is the substitute or vice-roy of the Almighty, with respect to the animal creation."[20] Indeed, for Augustine, this was the only divinely sanctioned power relationship: God, says Augustine, "did not intend that His rational creature, who was made in His image, should have dominion over anything but the irrational creation,—not man over man, but man over the beasts." The biblical authority for this view could be found in Genesis 1.26: "And God said, Let us make man in our image, after our likeness: and let them have dominion over the fish of the sea, and over the fowl of the air, and over the cattle, and over all the earth, and over every creeping thing that creepeth upon the earth." In George Wilson's *The Commendation of Cockes* (1607), a defence of cock fighting against attacks by Puritans, cock fighting is presented as a natural expression of this God-given dominion over animals: God, says Wilson, gave man "Soveraigntie, Rule, & Dominion" over animals, "not onely for clothing and sustenance for his bodie; but also for recreation and pastime, to delight his minde: as with Cocke-fighting, Hawking, Hunting, and such like."[21]

If animal baiting was, in part, a ritual staging of man's sovereignty over the brute creation, it was also a place where that sovereignty was placed dangerously in question. In Foucault's analysis of the transition from sovereign to disciplinary power, he argues that the direct corporeal expression of the sovereign's power on the body of the condemned—as in judicial torture and execution—fell out of favour not because people suddenly became more humane, but rather because disciplinary power offered a more efficient way to use and control bodies. Public executions, he points out, were sites where the power of the sovereign was not only staged, but also contested; their very violence led to a dangerous instability in the sympathies of the viewing public.[22] As such, they posed a threat to the authorities, prompting them to seek more effective forms of coercion. This analysis can easily be extended to animal baiting spectacles, which were frequently sites of public disorder, as court records from the seventeenth century reveal. In 1622, for instance, Abraham Brokes of Trent was cited for bear and bull baitings that "hath lately drawne

20 James Granger, *An Apology for the Brute Creation, or Abuse of Animals censured, etc.* (London: T. Davies, 1772).

21 George Wilson, *The Commendation of Cockes, and Cock fighting; Wherein is shewed, that Cocke-fighting was before the coming of Christ* (London: Henrie Tomes, 1607), sig. B1.

22 Foucault, *Discipline and Punish*, 61–73.

much disordered company thither."[23] So widespread was this reputation that the phrase 'bear garden' was used figuratively to mean 'a place of strife and tumult' from the seventeenth century.[24] This might explain why Parliament found time to outlaw animal baiting even as the country headed towards civil war; in 1642, the House of Commons issued an order to the Paris Bear Garden in Southwark forbidding "the Game of Bear-baiting in these Times of Great Distractions."[25] The prospect of mobs gathering to enjoy a spectacle of violence in the ring, it seems, was perceived as liable to inflame the passions that were already raging outside. It is worth reiterating that while Parliament spent a great deal of time attempting to control or ban animal baiting during the seventeenth century, public executions continued unabated. In the historical transition from spectacles of sovereign power, the abolition of animal baiting was not merely an afterthought; it actually came *first*.

Parliament's 1642 ban on bear baiting was not successful, and the following two decades saw a number of attempts to reinforce the prohibition.[26] In the end, Colonel Pride settled the matter by sending a delegation of troops down to the Paris Bear Garden in February 1656. They shot dead all the bears, "only leaving one white innocent cub," as the diarist Henry Townshend reported.[27] This radical intervention proves beyond doubt that the attack on animal baiting was not motivated by any concern for animal welfare, but rather for the political danger seen to inhere in such gatherings. Finally, Oliver Cromwell himself, as Lord Protector of England, issued a general prohibition on cock fighting and bear baiting. Once again, at issue was not the welfare of the animals so much as the potential for social disturbance, "forasmuch as Treason and Rebellion, is usually hatched and contrived against the State upon such occasions, and much Evil and Wickedness committed."[28] For some observers, bear baiting did indeed seem to contain a political message that challenged established power. In 1609, Thomas Dekker observed that "the Beares, or the Buls fighting with the dogs, was a lively represetation [sic] (me thought) of poore men going to lawe

23 Johnston and Hüsken, *English Parish Drama*, 69.

24 Scott-Warren, "When Theaters Were Bear-Gardens," 63.

25 Griffin, *Blood Sport*, 97–98.

26 Ibid., 98–99.

27 J. W. W. Bund, I, ed., *The Diary of Henry Townshend* (1920), 31, cited in Hotson, "Bull and bear baiting," 286.

28 *The Writings and Speeches of Oliver Cromwell: The Protectorate, 1653–55*, iii, ed. Wilbur Cortez Abbott (Oxford, 1988), 484–5, cited in Griffin, *Blood Sports*, 98.

with the rich and mightie."[29] By stirring up the audience's sympathies in this way, the bear garden offered a direct challenge to the authorities.

If animal baiting seemed to pose a challenge to the state, it also offered a challenge to the sovereignty of humanity itself. First of all, the cruelty of animal baiting threw the humanity of the audience into question; in Hogarth's engraving, this is hinted at by the presence of a dog watching the spectacle alongside the human spectators from the top of the pit. As Erica Fudge has shown, an anxiety about the potential of such spectacles to reduce the human viewers to beasts was widespread in the early modern period.[30] Fudge cites a 1632 attack by Donald Lupton on the Bear Garden: "This may better bee termed a foule Denne than a faire Garden. It's a pitty so good a piece of ground is no better imploied: Heere are cruell Beasts in it, and as badly us'd; here are foule beasts come to it, and as bad or worse keepe it, they are fitter for a Wildernesse then a City . . ."[31] Clearly, in the bear garden or the cockpit, humans do not directly inflict torture on the bodies of the animal victims; this is carried out instead by other animals. Indeed, the very wildness and brutality of the animals in the ring is central to the spectacle. Yet, on some level, the audience must be aware that this violence has been provoked by humans and is being staged for their benefit. In this sense, humans—the instigators of bestial violence—are themselves shown to be just as bestial as the animals in the ring. In Lupton's description, this bestial violence—the sovereign power of humans over animals—is seen to be "fitter for a Wildernesse than a City." The animal that lurks inside the human poses a threat to the *polis*, which, as Giorgio Agamben points out, has been defined since Aristotle as a place that includes the animal only in the form of an exclusion.[32] The cockpit and the bear-garden, as Fudge has shown, are above all spaces of dangerous *ambiguity*, where the boundary between human and animal is tested. As such, they reflect Foucault's description of the "ambiguity in the suffering" of the condemned man on the scaffold, "that may signify equally well the truth of the crime or the error of the judges, the

29 Thomas Dekker, *Worke for Armourours* (1609), sig. B2.

30 Fudge, *Perceiving Animals*, 11–28.

31 Ibid., 19.

32 Giorgio Agamben, *The Open: Man and Animal*, trans. Kevin Attell (Stanford: Stanford University Press, 2004), particularly 12, 15–16, 21–22, 26, 19, 38, 79, 92. On the place of natural life in the polis, see Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life*, trans. Daniel Heller-Roatzen (Stanford: Stanford University Press, 1998), 1–3. See also Wadiwel, "Cows and sovereignty," 2.

goodness or the evil of the criminal, the coincidence or the divergence between the judgment of men and that of God."[33]

Sometimes, this challenge to human sovereignty was linked *directly* to a challenge to political sovereignty. This can be seen in Thomas Dekker's account of the Bear Garden encountered earlier. Like Lupton, Dekker describes the animalisation of the audience, as Erica Fudge has pointed out:

> [...] and in stead of baiting him with dogges, a company of creatures that had the shapes of men, & faces of christians (being either Colliers, Carters, or watermen) tooke the office of Beadles upon them, and whipt monsieur Hunkes, till the blood ran downe his old shoulders.[34]

Observing the bestialisation of the watching crowd, Dekker finds his sympathies transferred to the bear: "It was some sport to see Innocence triumph over Tyrrany, by beholding those unnecessary tormentors go away with scratchd hands, or torne legs from a poore Beast, arm'd onely by nature to defend himselfe against Violence."[35] The sovereignty of humans over animals is challenged in this scene in three ways. Firstly, the superiority of man over beast is thrown into question by the animalisation of the men through their violence. Secondly, the sympathies of the viewer transfer away from the human towards the animal. Finally, the bear actually triumphs over the men, sending them away with physical injuries. What is truly remarkable about this passage, however, is that Dekker immediately goes on to link the bear baiting to spectacles of intra-human sovereign power:

> [...] yet me thought this whipping of the blinde Beare, moved as much pittie in my breast towards him, as ye leading of poore starved wretches to the whipping posts in London (when they had more neede to be releeved with foode) ought to move the hearts of Cittizens, though it be the fashion now to laugh at the punishment.[36]

The inversion of human sovereignty over the brute creation is immediately matched by a challenge to the sovereignty of the law as it applies to humans. The infliction of pain on the suffering body of the animal reminds the viewers that human bodies, too, are subjected to sovereign power. Power exercised

33 Foucault, *Discipline and Punish*, 46.

34 Dekker, *Worke for Armourours* (1609), sig. B2.

35 Ibid.

36 Ibid.

directly on the body reveals corporeal matter to be somewhat interchangeable; a human body and an animal body suffer alike. A commonality of experience is revealed through the suffering body that calls into question the exercise of violent power over humans.

3 Human Souls, Animal Souls

If the bear garden of the seventeenth century revealed the commonality of human and animal suffering, so too did the public execution a century later. Foucault describes the torture and execution of Massola at Avignon, "one of the first to arouse the indignation of contemporaries."[37] Foucault doesn't pinpoint the source of this indignation, but it is clear from Bruneau's 1715 account of the punishment, which he cites. The executioner, says Bruneau, who had:

> [...] an iron bludgeon of the kind used in slaughter houses, delivered a blow with all his might on the temple of the wretch, who fell dead: the mortis exactor, who had a large knife, then cut his throat, which spattered him with blood; it was a horrible sight to see; he severed the sinews near the two heels, and then opened up the belly from which he drew the heart, liver, spleen and lungs, which he stuck on an iron hook, and cut and dissected into pieces, which he then stuck on the other hooks as he cut them, as one does with an animal. Look who can at such a sight.[38]

The spectacle is particularly shocking because of its slaughterhouse imagery; by carving up the prisoner's body in this way, the executioner denies his humanity, reducing him to the status of an animal. Foucault then goes on to cite another critic of the public execution, Damhoudère, who had complained in 1572 that the executioners exercised "every cruelty with regard to the evildoing patients, treating them, buffeting and killing them as if they had a beast in their hands."[39] Once again, Foucault fails to draw out the obvious point: it is the reduction of the prisoner to an *animal* that is so shocking in these descriptions. Sovereign power, expressed directly on the body, is seen to reduce men to their corporeality and thus their animality. Foucault argues that the legal reformers discovered a new core of 'humanity' that must be respected in the worst of murderers; what he misses in the very sources that he cites is the

37 Foucault, *Discipline and Punish*, 51.

38 Ibid.

39 Ibid.

extent to which this humanity is defined in opposition to the *animality* that sovereign power reveals within the condemned man.

Foucault places considerable weight upon this notion of the discovery of 'humanity' within the criminal, a discovery that he places at the centre of the new disciplinary technologies that would supersede sovereign power.[40] For Foucault, this newly discovered human 'soul' was the product and effect of the new mechanisms of disciplinary power. Foucault's hypothesis, however, is placed in serious doubt when we consider that it was not just humans who were suddenly deemed worthy of sympathy and protection; animals, too, were often embraced by this new sensibility. The discovery of the human soul cannot explain the sudden unacceptability of spectacles of animal pain such as cock fighting and bear baiting. To account for these closely related phenomena, we need to reach for a new way of talking about power that embraces both human and animal alike.

Just as in the case of the public execution, the political objections to animal baiting were gradually subsumed in a discourse steeped in early eighteenth-century notions of 'sympathy'. Once again, this process is not secondary to the extension of sympathy to the condemned prisoner; if anything, it precedes it. In 1699, the Earl of Shaftesbury was one of the first to formulate the new approach. In *An Inquiry Concerning Virtue, or Merit*,[41] Shaftesbury argued, *contra* Hobbes, that humans were essentially altruistic. What is surprising about his analysis, however, is that he did not confine himself to humanity; the "affections," he argued, are a universal attribute, not only of humans but of all animal species. Shaftesbury argued that each creature sought not only its "private Good and Interest",[42] but also that of its species. A morally good action was one that would contribute to the "Existence or Well-Being" of the entire "System," not only the individual.[43] He went on to make an even more radical point: a good animal is moved by its "Affections" to act not only in the interest of its own species, but in the interest of "the whole System of Animals."[44] This represents a remarkable extension of moral consideration—and even, in a sense, moral agency—to other species, one that would ultimately lead to Jeremy Bentham's

40 Ibid., especially 23–24, 29–30, 74–78, 92, 101, 141, 226.

41 Lord Shaftesbury, "An Enquiry Concerning Virtue, or Merit," in *Characteristicks of Men, Manners, Opinions, Times*, 3 volumes, 5th ed. (Birmingham: John Baskerville, 1773), Vol 2, 3–176.

42 Ibid., 15.

43 Ibid., 18.

44 Ibid., 19.

famous declaration of 1789 that "The question is not, can they reason? Nor, can they talk? But can they suffer?"[45]

The eighteenth century saw the publication of numerous tracts and sermons deploring animal baiting, no longer merely on political or religious grounds, but rather on the grounds of sympathy towards the suffering of animals. Just as a core of 'humanity' was discovered in the tortured prisoner, something equally worth protecting was found in the tortured animal. In 1776, the reverend Humphry Primatt argued for "Love and Mercy" to be extended beyond "creatures of our own rank, shape, and capacity [...] to every object of the Love and Mercy of God the universal Parent."[46] Animals and humans, for Primatt, are made of the same material; God formed them both from dust.[47] Both share "similar nerves and organs of sensation;"[48] the difference between them "is *accidental* as to the creature itself; I mean, It was not in the power or will of the creature to choose, whether it should sustain the shape of a brute, or of a man."[49] So apparently arbitrary is this distinction, he argues, that in no way "does the difference of the *Shape* of a brute from that of a man exempt the brute from feeling."[50] Here we see the logical conclusion of what Thomas Dekker had observed a century earlier in the bear garden; men and animals are made of the same flesh, and are united by their experience of pain: "Pain is pain," argues Primatt, "whether it be inflicted on man or beast."[51] Seen in this context, Jeremy Bentham's declaration of 1789 is not quite as revolutionary as it is sometimes proclaimed; it stems from a discourse of common human-animal suffering that had been founded in such spectacles of pain as the bear garden and the public execution. Clearly, this recognition of commonality between man and animal poses a direct challenge to Foucault's anthropocentric narrative, with its insistence on the discovery of a human soul. Indeed, for Primatt, animals too have a soul that may be discovered: "For the Lord GOD formed both Man and Brute of the Dust of the Ground, and breathed into their Nostrils the Breath of Life, and so Man and Brute became LIVING SOULS."[52]

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45 Jeremy Bentham, *An Introduction to the Principles of Morals and Legislation*, 2 vols. (London: W. Pickering, 1823), vol. 2, 236.

46 Humphry Primatt, *A Dissertation on the Duty of Mercy and Sin of Cruelty to Brute Animals* (London: R. Hett, 1776), iii–iv.

47 Ibid., 16–17.

48 Ibid., 13.

49 Ibid., 16.

50 Ibid., 14.

51 Ibid., 7.

52 Ibid., 99.

If animals suffered and had souls, then animal baiting might be considered morally equivalent to the public torture and execution of prisoners, and the language of many anti-baiting campaigners suggests exactly that. In a discussion of the traditional Shrove Tuesday sport of cock throwing, in which a cockerel would be tied to a stake and stoned to death by boys, Primatt discusses the spectacle almost as though it were a public execution:

> [...] how very great the cruelty I am speaking of is, you who have seen the heavy blows given to one of these poor animals, at the stake of torture, and heard his piercing screams; who have seen his wings broken, his beak dropping blood, and his body sinking, by slow degrees, in bitter anguish to the ground, need not be told.[53]

The comparison was a common one. Percy Stockdale, writing in 1802, described a bull in Lincoln being dragged to "the place of torture: here the victim exhibited a shocking spectacle, being extremely lacerated."[54] Legh Richmond, meanwhile, bemoaned the fact that "wretched animals are doomed to racks and tortures and needless death."[55] Not only were the two types of spectacle compared, they were considered by many to be closely related. In 1838, the phrenologist John Fletcher claimed to have discovered an organ "beneath the temporal bone [...] from three to six eighths of an inch above the top of the ear" that regulates the faculty of sympathy. If it is too small:

> [it] produces cruelty towards beasts, and those in its power; gives a relish for hunting, killing, destroying, witnessing public executions and such *amusements* as the fighting of men, dogs, and fowls, in bull bating, bear-bating, &c; produces a propensity for war, murder, violence, bloodshed, &c.; instigates children and others to stone, catch, torment and destroy birds, insects, and such animals as fall in their way.[56]

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53 Humphry Primatt, *The Country Clergyman's Shrovetide Gift to his Parishioners. Taken chiefly from Dr. Primatt's Dissertation on the Duty of Mercy, and Sin of Cruelty to Brutes*, 3rd edn. (Sherborne: Goadby and Lerpiniere, no date), 13.

54 Percy Stockdale, *A Remonstrance against Inhumanity to Animals; and particularly, against the savage practice of Bull baiting* (Alnwick: M&J Graham, 1802), vii.

55 Legh Richmond, *A Sermon on the Sin of Cruelty towards the Brute Creation* (Bath: S. Hazard, 1802), 17.

56 John Fletcher, *The mirror of nature, presenting a practical illustration of the science of phrenology: accompanied by a chart, embracing an analogy of the mental faculties, in their various degrees of development, and the phenomena produced by their combined activity* (Boston: Cassady and March, 1838), 39–40.

One common neurological defect leads to a propensity for cruelty towards humans and animals alike; the desire to watch animals be tortured and the desire to watch humans be tortured arises from the same cause. And indeed, just as the bear garden and the cockpit threatened to animalise their spectators, so did the public execution. During the 1790s, the radical French politician Louis-Michel Le Peletier told the Assemblé Nationale that, watching a public execution, "[the spectator's] instinct, like that of wild beasts, awaits, perhaps, only the sight of blood, to awake—and already his heart is hardened to murder."[57]

A desire to watch animals be tortured and killed was frequently linked to a desire to cause pain for human beings. John Locke had observed in 1693 that children who torment animals grow up lacking in compassion for their own species.[58] His observation became a commonplace during the eighteenth century, when any number of sermons and tracts linked the cruel pastimes of children with the murderous habits of adults. In 1751, Hogarth dramatised the link in *The Four Stages of Cruelty*, which depicts the life of a cruel youth, Tom Nero. In the first of the four engravings, Nero is seen inserting an arrow into a dog's rectum, while other boys torment various animals nearby. By the third plate, Tom has become a murderer, and by the fourth he has been hanged. Cruel animal sports have led inexorably towards the gallows. In a final twist, his executed body is shown in the final plate to be undergoing a public dissection: his own body is now itself the site of a cruel spectacle, enjoyed by the members of the audience. Society is shown as a continuum of cruelty that runs between man and beast through the medium of anguished flesh, with one spectacular torture leading to another.

Cock fighting and animal baiting were frequently criticised for leading their audience to commit acts of violence against human beings, just as Hogarth's engraving had suggested. As Edward Barry put it in 1801:

> The Heroes of a Bull bait [...] and the champions of a Cock fight, can produce I should think, but few, if any disciples brought up under their tuition, who have done service to their country, either as Warriors or as Citizens! but abundant are the testimonies, which have been registered at the gallows of her devoted victims, trained up to these pursuits.[59]

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57 Cited in G. Quinby, *The Gallows, the Prison, and the Poorhouse. A Plea for Humanity; Showing the Demands of Christianity in Behalf of the Criminal and Perishing Classes* (Cincinnati: G. W. Quinby, 1856), 187.

58 John Locke, *Some Thoughts Concerning Education* (London: A. and J. Churchill, 1693), 130–131.

59 Edward Barry, *Bull Baiting! A Sermon on Barbarity to God's Dumb Creation, etc.* (Reading: Smart and Cowslade, 1801), 10–11.

The well-rehearsed idea that watching animal baiting leads inevitably to the gallows might explain the presence of the hangman in the audience for Hogarth's *The Cockpit*, in the lower right-hand corner of the engraving, denoted by the gibbet depicted on his coat. Thanks in part to such a connection, by the time Hogarth engraved *The Cockpit*, such spectacles were already becoming socially unacceptable: baiting would finally be abolished in 1835, and cock fighting in 1849. Public executions, by comparison, would not be outlawed in England until 1868. The abolition of spectacles of animal cruelty came *first*. The campaign against animal baiting was not just a sideshow to the abolition of public executions: it preceded it and made it possible. It was not the discovery of the 'humanity' of the condemned that prompted this abolition, but the discovery of a common bond of painful animal corporeality that linked the baited animal and the tortured prisoner.

4 Humanity Restored

At the very same time as the proponents of mercy pointed to this common experience, however, their arguments sought—no doubt unconsciously—to distanciate the human from the animal in a new way. As we have seen, critics of animal baiting deplored the way that it challenged the sovereignty of humanity by reducing human spectators to little more than animals. It followed, then, that by banishing such sports, the 'humanity' of the public could thereby be restored. This is quite explicit in the works of many eighteenth- and nineteenth-century campaigners against cruel sports. The very writers who argued for the continuity of human and animal experience tended to frame their arguments in a discourse of human exceptionality. One of the first to formulate this argument was James Granger in 1772. Granger reiterates that God gave man dominion over other species, but argues that the *form* of that sovereignty had become deeply flawed: "These *lords* act absurdly and wickedly, if they affect to be the *tyrants* of the creation."[60] Just as public executions came to symbolise tyrannical power, so too did "our barbarous customs of baiting and worrying animals."[61] Granger, like many others, argued that human mercy should be extended to "every kind of being that hath the same acute sense of pain, which he finds in his own frame."[62] This, asserts Granger, is "the great *law*

60 James Granger, *An Apology for the Brute Creation, or Abuse of Animals censured, etc.* (London: T. Davies, 1772), 7–8.

61 Ibid., 12.

62 Ibid., 8.

of *humanity*."[63] We are, perhaps, so accustomed to hearing 'humanity' or 'the humane' as a description of merciful treatment that we rarely stop to consider how paradoxical it is. Granger is describing the particular cruelty of the human species, "more brutal than the beasts themselves."[64] Yet he asserts that the adoption of a more sympathetic attitude towards the brute creation is in fact a sign of greater 'humanity'. A similar contradiction is present in an 1802 sermon by Percy Stockdale; bull baiting is "one of our most inhuman sports,"[65] but sympathy to animals is nonetheless a characteristic of "universal humanity."[66] Again, the paradox leaps off the page; bull baiting is a sport practised *only* by humans, so how can it possibly be 'inhuman'? Surely it is the most human activity of all?

In their attempt to buttress humanity, campaigners often sought to subdivide the species, making some humans less 'human' than others. During the early modern period, cock fighting and bear baiting had been popular among all social classes; as we have seen, they were royally sanctioned. By the late eighteenth century, however, the bourgeoisie in particular had distanced itself from such spectacles, which had come to represent the animality of the lower orders. Writing in 1782, Soame Jenyns observes that "the nearer [man] approaches to a state of nature," the greater his propensity to cruelty:

> We see children laughing at the miseries which they inflict on every unfortunate animal which comes within their power: all savages are ingenious in contriving, and happy in executing, the most exquisite tortures; and the common people of all countries are delighted with nothing so much as bull-baitings, prize-fightings, executions, and all spectacles of cruelty and horror.[67]

Savages, children and the working class, still enjoying the old spectacles of cruelty, are now figured as a sort of intermediate species separating the 'humane' bourgeoisie from the wild beasts in the bear garden and the cockpit. A 'scientific' explanation for this intermediacy can be found in a separate essay by Jenyns 'On the Chain of Universal Being':

63 Ibid.

64 Ibid., 20.

65 Stockdale, *A Remonstrance*, 7.

66 Ibid., 3.

67 Soame Jenyns, *Disquisitions on Several Subjects* (London: J. Dodsley, 1782), 21–22.

> In the same manner this animal life rises from this low beginning in the shell-fish, thro' innumerable species of insects, fishes, birds, and beasts to the confines of reason, where, in the dog, the monkey, and chimpanzee, it unites so closely with the lowest degree of that quality in man, that they cannot easily be distinguished from each other. From this lowest degree in the brutal Hottentot, reason, with the assistance of learning and science, advances, thro' the various stages of human understanding, which rise above each other, 'till in a Bacon, or a Newton it attains the summit.[68]

Some seventy years before Darwin's theory of evolution explained how species merged into one another, Jenyns—and many of his contemporaries—were already reconfiguring the ancient idea of the Great Chain of Being in order to place the races of man into the hierarchy. A similar impetus can be seen in Peter Camper's famous illustration of racial types by facial angle (1791), which portrayed a sliding scale running from the ancient Romans and Greeks through the European to the Negro and finally the Orang-utan. The idea would reach its apotheosis a century later, in Cesare Lombroso's analysis of the skulls and facial types of criminals,[69] which located racial degeneracy in the poor and delinquent of Europe. Proceeding from a recognition of man's continuity with other species, then, the pioneers of the 'humane' movement sought to reinstate man's humanity by distinguishing between themselves and other, somehow less human, human beings.

Other writers also saw animal baiting as an indication of the depravity of the lower orders. James Macaulay, discussing the popularity of bull baiting and cock fighting in England, concludes "that in many of the counties of England the lower classes are in a state of ignorance and moral degradation quite as low as in any district of Europe."[70] William Taplin, meanwhile, claimed that bull baiting was popular with "the most unfeeling, and least humane, part of the very lowest, and most abandoned orders of the people . . . brutes; the very scum and refuse of society."[71] The least humane become the least human, and the most like brutes. The fight to have bull baiting outlawed was portrayed

68 Ibid., 9–10.

69 See, for instance, Daniel Pick, *Faces of Degeneration: A European Disorder, c. 1848–c. 1918* (Cambridge: Cambridge University Press, 1989).

70 James Macaulay, *Essay on Cruelty to Animals* (Edinburgh: John Johnstone, 1834), 44.

71 William Taplin, *The Sporting Dictionary and Rural Repository of General Information upon Every Subject Appertaining to the Sports of the Field*, 2 vols. (London, 1803), 44, 93–6; cited in Griffin, *Blood Sport*, 149.

by its opponents as an attack on the working classes. Discussing the Bill of 1835, the Whig statesman William Windham—a strong opponent of the proposed ban—noted that, "instead of being called a bill for preventing cruelty to animals, [this] should be entitled a bill for harassing and oppressing certain classes among the lower orders of the people."[72] And indeed, the early history of the Society for the Prevention of Cruelty to Animals seems to bear out his criticism. While bull baiting and cock fighting were heavily prosecuted, upper-class entertainments such as hunting and shooting were left well alone; indeed, many of the SPCA's committee were keen hunters.[73] In this respect, the SPCA (subsequently the RSPCA) can be understood as combining disciplinary techniques with what Foucault called 'the carceral', the replacement of crime by delinquency, located above all in the lower orders. Through animal rights legislation, a new police force—the SPCA—could be formed, with new powers to investigate the working lives and entertainments of the working classes, and to discipline them for minor infractions. As Harriet Ritvo points out, this would have been particularly daring at a time when the regular police were themselves a new and widely resented invention.[74] Alongside this legal intervention grew up a whole system of 'norms', of correct attitudes towards animals from which the lower orders were seen to deviate. The urban bourgeoisie, which, as Stallybrass and White have pointed out, had since the eighteenth century come to define themselves as de-animalised,[75] prosecuted those whose work brought them into contact with animals on a daily basis: farmers, cab drivers, butchers and drovers. As such, the new crime of cruelty, and the delinquent attitudes that surrounded it, formed part of the carceral net that was descending on nineteenth-century society, extending the reach of disciplinary power through capture within a delinquency that extended far beyond the prison walls and into the workplaces and recreational sites of the working man. As the chairman of the SPCA announced in the organisation's founding meeting, their aim was not merely "to prevent the exercise of cruelty towards animals, but to spread amongst the lower orders of the people . . . a degree

72 Macaulay, *Essay on Cruelty*, 55.

73 Griffin, *Blood Sport*, 149–150; Harriet Ritvo, *The Animal Estate: The English and Other Creatures in the Victorian Age* (London: Penguin Books, 1987), 130–163.

74 Ritvo, *The Animal Estate*, 145.

75 Peter Stallybrass and Allon White, *The Politics and Poetics of Transgression* (London: Methuen, 1986), 51, 93–4, 191.

of moral feeling which would compel them to think and act like those of a superior class."[76]

5 The Government of Animals, the Government of the Self

If the ban on cruel animal sports offered a means of extending the reach of disciplinary mechanisms into the lives of working class people, it also had an effect on the lives of animals themselves. As in the case of human punishment, moments of savage and intense pain were no longer celebrated, but rather minimised and, if possible, altogether eliminated. Hardly any writers questioned the right of human beings to take animal lives in order to eat meat, or to conduct important medical research, but many emphasised the importance of doing so in the most painless and swift way possible. Following Foucault, however, we should be wary of viewing this change as simply progress to a more enlightened humanity. It is worth reiterating that in many respects, the lot of farm animals in the twenty-first century is worse than at any point in human history. Just as the gallows was replaced by the prison and the carceral society, moments of extreme pain were replaced for animals by a great confinement, in the form of battery farms that drastically restricted the animal's movement in space, and biopolitical techniques to render their bodies more productive and at the same time more docile. English chickens are no longer urged to fight one another to the death, but many spend their miserable lives cooped up in tiny cages, their skin burnt by sitting in the ammonia of their own excrement, unable to express their natural behaviour or experience the simple pleasures of sunlight, reproduction, or kinship. By placing such a strong emphasis on spectacles of pain, it could be argued that the early animal welfare movement inadvertently allowed other forms of cruelty to develop unchallenged.

Furthermore, as a number of writers have shown, contemporary farm animals are immersed in many of the same biopolitical techniques as human beings.[77] The advance of these technologies in animal husbandry was contemporaneous with the development of disciplinary technologies among humans. Just as prisons and schools developed mechanisms of surveillance and timetables to discipline the bodies of their inmates, so too did farms and slaughterhouses. It is outside the scope of the present article to give a full account of the

76 Cited by Edward G. Fairholme and Wellesley Pain, *A Century of Work for Animals: The History of the R.S.P.C.A., 1824–1924* (New York: E. P. Dutton, 1924), 54–55; discussed by Ritvo, *The Animal Estate*, 135.

77 See note 3, above.

development of technologies of animal discipline and biopolitics during the eighteenth and nineteenth centuries, but a flavour of the new approach can clearly be seen in Payen and Richard's *Précis d'agriculture théorique et pratique* (1851),[78] which—like any number of contemporaneous husbandry manuals—offers a compendium of the new biopolitical science of "zootechnics",[79] ranging from breeding techniques to the precise spatial arrangement of chicken coops in order that the fowls might be "more easily surveyed" and so that "they are more tranquil."[80] Behaviour is modified through architecture, and bodies are rendered more docile and productive through the accumulation of knowledge.

The application of disciplinary techniques to human beings depended on the recognition of man as an animal that could be trained like any other. Foucault cites La Mettrie's *L'homme-machine* as a central text in the development of the 'docile body', or 'Man-as-machine',[81] yet fails to note the extent to which La Mettrie's mechanics of the human body and soul was an application to humanity of the Cartesian model of the 'bête-machine'; as La Mettrie himself put it, "man is just an animal, or an assembly of springs, that wind each other up without our being able to say at which point on the human circle nature began."[82] For the monist La Mettrie—who rejected Cartesian dualism—even morality is not unique to humans; animals, too, are subject to natural law and feel remorse when they have done wrong.[83] Just like the humanitarian campaigners, La Mettrie considers the question of the soul, and concludes that the animal soul "must be either mortal if ours is, or immortal if ours is; it must suffer the same fate, whatever that may be."[84] Having discovered the mechanical nature of the soul—whether human or animal—its springs and mechanisms could then be adjusted through the application of disciplinary techniques. Once again, Foucault's own sources reveal the discovery of a commonality between human and animal bodies and souls, even at the same time as Foucault himself seems to assert human exceptionality.

The shift from sovereign power to a disciplinary regulation of animal bodies can be seen in many of the eighteenth- and nineteenth-century texts that

78 A. Payen and M. Richard, *Précis d'agriculture théorique et pratique, etc.* (Paris: Librairie de l'Hachette, 1851).

79 Ibid., 11, my translation.

80 Ibid., 402, my translation.

81 Foucault, *Discipline and Punish*, 136.

82 Julien Offray de la Mettrie, *L'Homme machine* (Paris: Elie Luzac, 1748), 83–84, my translation.

83 Ibid., 50, my translation.

84 Ibid., 104, my translation.

criticised animal baiting. As we have seen, many of these writers couched their argument quite explicitly in terms of the form of power that man held over the brute creation, arguing that humanity's God-given dominion over other animals had turned into tyranny. In its place, many of them advocated a new form of dominion, with surprisingly consistent features. As Primatt put it:

> [...] the Power granted unto Men to rule over the Brutes, cannot be a Power to abuse or oppress them. It is the Perfection of a wise and good Government [...] to consult and provide for the happiness of every individual according to his respective station. Therefore the wise and good Lawgiver of the Universe, the King of every Creature, extends his care and concern to every subject in his vast Dominion.[85]

Every subject, human and animal, is encompassed by the gaze of the Lord, who, as Primatt reminds us, sees every sparrow fall to the ground. This loving gaze—delegated to humanity—will no longer express its power on the suffering bodies of tortured animals, but will rather concern itself with the "care, management, and protection" of its life.[86] Legh Richmond concurs: "God must have designed such beings to be happy. He therefore made man their lord and protector, in order to secure their comfort."[87] James Macaulay, too, paints a picture of a return to a "Divine government" that encompasses all animals in a grid of omniscient surveillance: "the meanest of his creatures are ever the objects of his watchful providence,"[88] once again, humans have a duty to preserve "their enjoyment of life" as the condition for the right we have to take it.[89] We have here—very clearly I think—the shift that Foucault identified from sovereignty's right to "take life or let live" to the biopolitical imperative to "make live or let die"; from the sovereign ban of the "juridico-penal system" to the interventions of "governmentality." Animals, freed as far as possible from the suffering body, are captured in a vast net of power/knowledge that monitors and regulates their lives and bodies with scientific precision.

As a result of this transition, the slaughter of animals for food—carried out on a vaster scale than ever before—became increasingly invisible, driven out of city centres often by the same campaigners who argued against animal baiting. In 1876, the hygienist and slaughterhouse reformer Benjamin Ward

85 Primatt, *A Dissertation*, 141.

86 Ibid., 135.

87 Richmond, *A Sermon*, 8.

88 Macaulay, *Essay on Cruelty*, 29.

89 Ibid., 36.

Richardson proposed a utopian vision of animal slaughter in the shape of *Hygeia: A City of Health* (1876). In the public abattoirs of Hygeia, surveillance is paramount: every animal entering the slaughterhouse and every carcase leaving it is inspected for disease. The result of this inspection regime is a penetrating field of visibility that extends even down to the realm of the previously unseen, in the form of death itself: "under this central supervision, every death, every disease of the living world in the district, and every assumable cause of disease, comes to light and is subjected, if need be, to inquiry."[90] At the same time as death itself comes within the purview of power/knowledge, however, it becomes invisible to the citizenry, out of place in a city whose explicit aim was to conquer death itself: "I have projected a city that shall show the lowest mortality."[91] Animal slaughter—an uncomfortable reminder of the mortality that has not been fully conquered—is therefore removed as far as possible from the lives of the citizens whose own life depends on the meat it provides; the abattoirs are separated by a distance of a quarter of a mile from the city.[92] Furthermore, the moment of death itself is stripped of much of its violence. In Hygeia, animals "pass through a narcotic chamber, and are brought to the slaughterer oblivious of their fate."[93] Ward Richardson later put this utopian plan for slaughtering animals into practice, in the model abattoir that he constructed in Croydon. There, slaughterers asphyxiated sheep using a mouthpiece that delivered carbonic oxide from a bag on the back of the slaughterer, just one of a range of 'humane slaughter' techniques tried by Ward Richardson, including carbon monoxide, chloroform and electrocution.[94] The humanitarian H. F. Lester wrote approvingly in 1892 that such a system could be adopted in larger abattoirs through the construction of "special anaesthetic chambers,"[95] a proposal with chilling undertones in the wake of Auschwitz.[96]

Without wishing to suggest a moral equivalence between the two, it is clear that a direct line of descent can be traced to the gas chambers not only from the slaughterhouse but also from the techniques of farming and animal

90 Benjamin Ward Richardson, *Hygeia: A City of Health* (London: Macmillan and Co., 1876), 39.

91 Ibid., 17–18.

92 Ibid., 42.

93 Ibid.

94 Christopher Otter, "Civilizing Slaughter: The Development of the British Public Abattoir, 1850–1910," *Food and History* 2:2 (2005): 29–51 (40).

95 H. F. Lester, *Behind the Scenes in Slaughter-Houses* (London: William Reeves, 1892), 17.

96 A similar effacement of the moment of death has taken place in the execution of prisoners, as Foucault himself points out: Foucault, *Discipline and Punish*, 11–12.

husbandry, as several writers have suggested.[97] The Final Solution, as hardly needs pointing out, was steeped in eugenics, the paradigmatic biopolitical technique; and eugenics drew directly from the experience of selectively breeding animals. The father of eugenics, Francis Galton, made the link quite explicitly: "If a twentieth part of the cost and pains were spent in measures for the improvement of the human race that is spent on the improvement of the breed of horses and cattle, what a galaxy of genius might we not create!"[98] Indeed, the word 'eugenics' itself, says Galton, was chosen to be "equally applicable to men, brutes, and plants."[99] His inspiration, Charles Darwin, had drawn his own idea of natural selection from the 'artificial selection' used by farmers in animal breeding.[100] Eugenics saw this insight come full circle: in a project inspired by Darwinism, artificial selection would now be carried out on humans themselves. Indeed, such techniques depended precisely on the scientific recognition—particularly since Darwin—of the continuity between humans and other species. Biopower may have addressed itself to man-as-species, but Foucault bizarrely fails to note that it had *already* addressed itself to *other* species for many generations. The continuity between man and brute that had been so feared in the animal baiting spectacle, and which the discourse of the humane had sought to disavow, was an essential precondition for the development of biopolitics.

6 Conclusion: "Politics Seen as a Matter of the Sheep-Fold"[101]

Having challenged the 'tyranny' of man's sovereign power over the brute creation, as expressed in animal baiting, the humanitarian campaigner James Macaulay urges a return to a different form of power over animals. Macaulay

97 See, for instance, Charles Patterson, *Eternal Treblinka: Our Treatment of Animals and the Holocaust* (New York: Lantern Books, 2002); Wadiwel, *Cows and Sovereignty*, 9–17.

98 Francis Galton, "Hereditary Talent and Character," *Macmillan's Magazine* (1865) <http://galton.org/essays/1860-1869/galton-1865-hereditary-talent.pdf> [accessed 19 June 2011], 165.

99 Francis Galton, *Inquiries into Human Faculty and its Development*, ed. Gavan Tredoux, (electronic edition: Everyman, 2001) <http://www.galton.org/books/human-faculty/text/galton-1883-human-faculty-v4.pdf> [accessed 19 June 2011], 17.

100 Charles Darwin, *The Origin of Species* (Oxford: Oxford University Press, 1996), 52, 90, 161, 397.

101 Michel Foucault, *Security, Territory, Population: Lectures at the Collège de France, 1977–78*, ed. Michel Senallart, trans. Graham Burchell (Basingstoke and New York: Palgrave Macmillan, 2007), 130.

points out that with regard to mankind, God is often portrayed not as a king but as a shepherd: "He shall feed his flock like a shepherd; He shall gather the lambs with His arm, and carry them in His bosom, and shall gently lead those that are with young."[102] God's love is "given under the figure of the kindness due on our parts to the lower animals."[103] Instead of merely taking life—humanity's sovereign power over other species—our duty is the cultivation and stewardship of life, both of the flock and of the individual.

Foucault himself recognised the importance of the Christian model of the shepherd to contemporary forms of power; in his lectures at the Collège de France, he argues that the 'governmentality' that has operated in the West since the sixteenth century can be traced back via Christianity to a 'pastoral' model based on the relationship of care between a shepherd and his flock; it is, says Foucault, "politics seen as a matter of the sheep-fold."[104] Whereas the leader of the Greek *polis* was usually characterised as a helmsman steering the ship that was the city-state, leaders in the pre-Christian East were seen as shepherds of men, the guides and stewards of their populations. The Christian church took on the model of the pastor, with his dual focus on the moral well-being both of the individual and of the flock, *omnes et singulatim*, and institutionalised it, implanting it in the heart of the Roman Empire, and thence of the Christian West. It is this power, the "art of conducting, directing, leading, guiding, taking in hand, and manipulating men, an art of monitoring them and urging them on step by step,"[105] that would evolve into the apparatuses of disciplinary power and biopower during the early modern period.

As Matthew Cole has pointed out, the pastoral for Foucault remains merely a metaphor for intra-human power relations; he does not stop to consider the effect of such a power structure on animals themselves.[106] Neither does he show any interest in examining the extent to which the experience of farming animals might have influenced the adoption of the model among humans. Here, as so often in Foucault's work, he seemingly fails to notice the extent to which his own ideas point towards the centrality of human-animal relations in the politics of the West. As this essay has attempted to show, nonhuman animals are strongly implicated in the history of human power structures, and our relationship to other species has shaped the forms of power that operate

102 Macaulay, *Essay on Cruelty*, 30.

103 Ibid.

104 Foucault, *Security, Territory, Population*, 130; see also 116–165.

105 Ibid., 165.

106 Cole, "From 'Animal Machines' to 'Happy Meat'," 85.

on the bodies and 'souls' both of human and nonhuman animals. Power moves across the species barrier. The same economy of spectacular power that saw humans tortured and executed in the public squares of early modern Europe also saw animal bodies torn in an expression of the power both of the monarch and of humanity itself over other species. Yet this theatre of suffering resulted in both types of sovereignty being challenged, through an awareness of the shared experience of pain that linked human and animal bodies. Animal baiting and the public execution threatened to reduce men to animals, overturning their claim to a special place in God's creation. Starting from a recognition of the shared bond of suffering that united human and nonhuman animals, bourgeois campaigners urged a return to a different kind of power based on the biblical model of the good shepherd. God's divine government, they argued, embraced men and animals, both formed from the same dust, and both given souls, differentiated only by their shape. This pastoral government, which formed the model for man's rightful dominion over other creatures, was centred not around the right to kill, but rather the duty to care for the living.

By insisting on this new form of dominion, in which humans were shepherds to animals as God was to men, the anti-cruelty campaigners sought to maintain and reinforce human exceptionality, even while maintaining that humans and animals were more similar than had previously been thought. Yet the experience of baiting—which had revealed to them that some men were, in fact, little more than animals—suggested that men, too, could be governed and tamed in the same way as animals. The anti-cruelty movement had the effect of regulating the behaviour of the lower orders, both through discursive pressure and through the creation of a private police force and a network of surveillance. The new forms of power that superseded the sovereign right to kill—disciplinary power and biopower—were themselves based on a form of power that had long been used by humans on domesticated animals.

This brief history suggests that animals, far from incidental to the genealogy of power, have played a central role in its development. Foucault himself seems to recognise this centrality with the suggestion the Panopticon might have been modelled on a menagerie; this observation, like many others to do with nonhuman animals, is left suspended in mid-air. If the menagerie rather than the prison was really the earlier attempt to organise power/knowledge through a particular visual and spatial economy, why does Foucault never stop to consider the menagerie itself as a space worth investigating on its own merits? Why, elsewhere, does he observe that biopolitics addresses man-as-species, without then stopping to consider how it might address *other* species? Throughout Foucault's work, animals are conspicuous by their absence, except as occasional metaphor. This curious blind spot, which leads Foucault to miss

a crucial component of the history of power, in some sense replicates the very anthropocentrism that his work effectively deconstructs. His insistence on the 'discovery' of the 'human soul' by disciplinary power risks repeating the assumptions of the discourses that he is critiquing; the historical evidence, as we have seen, suggests that the 'human soul' was understood sometimes in opposition to the animal body, and sometimes—even more problematically—alongside an equally valid 'animal soul' that was deemed worthy of protection and stewardship. A re-evaluation of power to incorporate its effect on nonhuman animals reveals that they do, indeed, have a history, one that is intimately intertwined with our own. Understanding the implications of that shared history is a task that has only just begun.

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PART 3

Science and Biopolitics



CHAPTER 8

The Birth of the Laboratory Animal: Biopolitics, Animal Experimentation, and Animal Wellbeing

Robert G. W. Kirk

"The congenital weakness of the sociology of science", Bruno Latour famously claimed in 1983, "is its propensity to look for obvious stated political motives and interests in one of the only places, the laboratories, where sources of fresh politics as yet unrecognised as such are emerging".[1] From the 1980s through to the 1990s the 'laboratory' became a privileged space within studies of science, medicine, and technology, a trend some thought indicative of an emerging subfield of "laboratory studies".[2] However, this was not to be. By the first decade of this century the laboratory had become a "neglected subject" despite various promising models of analysis having been "around for a decade or two and . . . much cited".[3] This essay seeks to take seriously Latour's portrayal of the laboratory as a locus of new and unrecognised politics by exploring the ways in which the nonhuman animal has contributed to the constitution of *a certain type* of laboratory alongside *a certain type* of politics.

If, as Latour claimed, within modern society it is "inside the laboratories where the future reservoirs of political power are in the making", then we might reasonably expect *this* institutional space to be the originary site within which nonhuman animals were included within biopolitical forms of power or 'biopower'.[4] Ultimately, nonhuman animals were drawn into the laboratory to promote human health. In this sense, the meaning of biopower is consistent with that articulated by Foucault, being "what brought life and its mechanisms into the realm of explicit calculations and made knowledge-power an

1 Bruno Latour, "Give Me a Laboratory and I Will Raise the World," in *Science Observed*, ed. Karin D. Knorr-Cetina and Michael Mulkay (London: Sage, 1983), 141–170 (157).

2 Karin D. Knorr-Cetina, "Laboratory Studies: The Cultural Approach to the Study of Science," in *Handbook of Science and Technology Studies*, ed. Sheila Jasanoff et al. (Beverley Hills: Sage, 1995), 140–166.

3 Robert E. Kohler, "Lab History Reflections," *Isis* 99 (2008): 761–768.

4 Latour, "Give Me a Laboratory and I Will Raise the World," 157.

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agent of the transformation of human life".[5] Yet, when one looks to the material culture of the laboratory, it becomes obvious that biopower is not limited to the transformation of *human* life. Even if this *end* remains the focus of study the material *means* of transforming *human* life requires the transformation of *nonhuman* life. Whilst it might appear that nonhuman animals were excluded when Foucault wrote of the "threshold of modernity" being "when the life of the species is wagered on its own political strategies" as nonhumans lack an obvious politics with which to place their lives at stake, this may not in fact be the case. When "modern man" placed his life at stake through his politics it was not just his life that was wagered.[6]

The "disappearance of the sick man" from medical cosmology between 1770 and 1870 was accompanied by the appearance of the nonhuman animal within medical knowledge and practice.[7] An example is that of hygiene, which, as Foucault noted, emerged as a means of regulative control of populations in late eighteenth century France focussed as much upon epizootic as epidemic phenomena.[8] Nowhere was the transformation of medicine via a dialogue between the nonhuman and human more evident than in the laboratory based practices of scientific medicine. When Pasteur mobilised the microbe, itself a form of nonhuman life, he weaved together human and nonhuman health whilst simultaneously remaking nonhuman animals as tools in the production and testing of vaccines.[9] The development and success of vaccination, of course, relied upon the formation of the sciences of statistics, hygiene, and public health, and in this way can be read as an example of biopower transforming the human population. However, attention to the practices of

5 Michel Foucault, *The Will to Knowledge: The History of Sexuality 1*, trans. Robert Hurley (Harmondsworth: Penguin, 1998), 143.

6 One might also ask the question: who spoke for the human species? Many human beings were and are excluded from 'high' politics yet Foucault almost certainly had in mind the 'low' politics which nonhuman animals might equally be said to play a role through their participation within everyday power relations.

7 N. K. Jewson, "Disappearance of the Sick-man from Medical Cosmologies, 1770–1870," *Sociology* 10 (1976): 225–244.

8 Michel Foucault, *The Birth of the Clinic*, trans. A. M. Sheridan Smith (London: Routledge, 1997), 26–36. See also Michel Foucault, "The crisis of medicine or the crisis of antimedicine?" *Foucault Studies* 1 (2004): 5–19, where Foucault reminds us that it "was the catastrophic loss of life of herds of cattle in the south of France that contributed to the origin of the Royal Society of Medicine. The Academy of Medicine in France was born from an epizootic, not from an epidemic, which demonstrates that economic problems were what motivated the beginning of the organization of this medicine" (16).

9 Bruno Latour, *The Pasteurization of France* (Cambridge, MA: Harvard University Press, 1988).

producing vaccines reveals the inescapable presence of nonhuman animals at the core of the biopolitics of modern medicine.[10] Nonhuman species as diverse as mice, guinea-pigs, rabbits, chickens, and horses, obtained new roles in the wake of the late nineteenth-century "laboratory revolution".[11] This transformation not only made nonhuman animals essential to the later work of the biomedical sciences and pharmaceutical industry but, as we shall see, gave them a central role in the governing of global health by the mid-twentieth century.

If "biopower" is that which "brought life and its mechanisms into the realm of explicit calculations and made knowledge-power an agent of the transformation of human life" then its *process* if not its *aim* was to fundamentally transform human-nonhuman relationships. This is nowhere more explicit than in the laboratory, which itself was brought into being and continues to operate through a biopolitical dialogue between the human and nonhuman animal structured about complex power relationships. Several questions follow. In what ways, we might ask, have nonhuman animals been constituted as objects of biopower? How have humans been constituted as subjects of biopower in relation to the nonhuman? How have nonhuman animals shaped the ways in which humans have internalised biopower to constitute their selves? Each of these questions engages with the nonhuman animal at a different level, yet all probe the extent to which nonhuman animals are enmeshed within biopower even when the biopolitical aim is ultimately the transformation of human life. Whilst this contribution attempts to answer some of these questions through the laboratory the answers found have wider societal significance.

But first, we will begin by examining the experimental animal from the perspective of Giorgio Agamben's rethinking of Foucault's articulation of biopolitics through the figure of *homo sacer*. We do so in order to establish the usefulness of Agamben's articulation of modern biopolitics for understanding the role of the nonhuman animal within the biomedical sciences and to distinguish its utility from that of Foucault.

10 One might also turn to the use of vaccines within veterinary medicine as a means to locate nonhuman animals within biopolitics. However, in doing so it should be noted that controlled slaughter is a viable alternative when maintaining the health of nonhuman populations in a way that is not conventionally acceptable in human populations.

11 Andrew Cunningham, "Transforming Plague: The Laboratory and the Identity of Infectious Disease," in *The Laboratory Revolution in Medicine*, ed. Andrew Cunningham and Perry Williams (Cambridge: Cambridge University Press, 1992), 209–247.

1 The Nonhuman Animal and the Birth of the Laboratory

Historical studies have revelled in asserting the difficulty of determining *what* a laboratory might be and *where* it might be found.[12] And, despite appropriating a Latourian agenda to overcome commonplace assumptions of "inside" and "outside", these studies are in the main focussed about how "objects" and "knowledge" travel from within the laboratory to the world without. Where nonhuman animals have featured in such histories they are framed about the question of how living beings have moved from nature to the laboratory and subsequently become essential 'tools' of knowledge production within the biomedical sciences.[13] From a biopolitical perspective, however, the nonhuman animal is much more than a material that passes into and out of the laboratory space. Rather, following Giorigio Agamben whose work prioritises the originary moment in determining the meanings and importance of concepts, the nonhuman animal can be said to have been constitutive of the laboratory as a physical and biopolitical space. In Britain, the passing of the Cruelty to Animals Act (1876) was the originary point at which, on the one hand, a new form of life—the experimental animal—was brought into being. And, on the other, the laboratory was established as a new biopolitical space.[14] In other words, in the late nineteenth century the experimental animal and the biomedical laboratory co-emerged so as to create a new biopolitical space within which human as much as nonhuman life was to be creatively transformed.

The Cruelty to Animals Act (1876) instituted a complex bureaucratic system which at once banned any animal experiment "calculated to give pain" whilst simultaneously empowering the Secretary of State to exempt individuals from this provision via an elaborate licensing system. In practice, anybody

12 E.g. Robert E. Kohler, *Landscapes and Labscapes: Exploring the Lab-Field Border in Biology* (Chicago: University of Chicago Press, 2002); Graeme Gooday, "Placing or Replacing the Laboratory in the History of Science?" *Isis* 99 (2008): 783–795.

13 Adele E. Clarke and Joan H. Fujimura, *The Right Tools for the Job: At Work in the Twentieth-Century Life Sciences* (Princeton: Princeton University Press, 1992); Robert E. Kohler, *Lords of the Fly: Drosophila Genetics and the Experimental Life* (Chicago: University of Chicago Press, 1994); and Karen Rader, *Making Mice: Standardizing Animals for American Biomedical Research, 1900–1955* (Princeton: Princeton University Press, 2004). Whether laboratory animals can be meaningfully approached less as tools and more as laborers is addressed by Jonathan L. Clark, "Labourers or lab tools? Rethinking the role of lab animals in clinical trials," in *The Rise of Critical Animal Studies*, ed. Nik Taylor and Richard Twine (New York: Routledge, 2014), 139–164.

14 For the historical context of this act see R. D. French, *Antivivisection and Medical Science in Victorian Society* (Princeton: Princeton University Press, 1975).

intending to conduct an experiment on living animals had to obtain various licences from the Secretary of State to do so. A personal license was required covering the experimenter as an individual, an example of how practices of regulating and conducting animal experimentation contributed to the construction of the scientific identity. In addition, the spatial location of experiment itself required a license. Thus, as well as formally instantiating a new statutory form of nonhuman animal, the 'experimental' animal, the Cruelty to Animals Act (1876) spatially constituted the physical site of the biomedical laboratory. Furthermore, it did so through reference to the material practice of manipulating biological life with the intent of making life more productive. As such, the Cruelty to Animals Act (1876) established the biomedical laboratory as a new biopolitical site.

This system allowed experiments to be conducted on animals providing the intent was "the advancement by new discovery of physiological knowledge or of knowledge which will be useful for saving or prolonging life or alleviating suffering". It is notable that the Act did not stipulate that the knowledge so produced, the life saved (and/or prolonged), nor the suffering to be alleviated, was to be restricted to human life alone. On the contrary, the scientific medicine was organised about the promotion of life regardless of species. Finally, the Cruelty to Animals Act (1876) required that experimental animals be placed "under the influence of some anaesthetic of sufficient power to prevent the animal feeling pain".[15] Though exemptions could be obtained in the form of a range of additional certificates when "insensibility [to pain] cannot be produced without necessarily frustrating the object of such experiments" the general spirit of the Act was to curtail the likelihood of experimental animals experiencing physiological pain.[16] As such, cruelty was firmly grounded within the material biology of life and physiological pain was established as the moral currency at stake.

15 "Cruelty to Animals Act, 1876" (39 & 40 Vict. C. 77) s. 3.

16 Some species, including dogs, cats, horses, assess and mules, also required addition dispensation in the form of specific certificates due to their cultural and social value within late nineteenth century Britain. Thus, Certificate A was required to dispense with anaesthetic; Certificate B to allow an animal to recover without an anaesthetic; Certificate C allowed experiments to be conducted not for the advancement of knowledge per se but for illustrative purposes (e.g. lectures) and Certificate D allowed the testing and confirmation of earlier work; for the use of dogs or cats without anaesthetic Certificate E was required or EE if the animal was to be allowed to recover without anaesthetic; finally Certificate F was needed to use horses, asses, or mules, combined as necessary. See *Final Report of the Royal Commission on Vivisection cd. 6114* (London: HMSO, 1912), 4.

All of this, importantly, was achieved through a peculiar form of inclusive exclusion comparable to that which Giorgio Agamben has identified as marking the "hidden point of intersection between the juridico-institutional and the biopolitical models of power".[17] Invoking the Aristotelian distinction between *zoé* (the fact of living common to all forms of life) and *bios* (a form of living appropriate to an individual or group), Agamben offered a "correction" or "completion" of Foucault's biopolitical thesis in which he argued that "the production of a biopolitical body is the originary activity of sovereign power".[18] For Agamben "what characterises modern politics is not so much the inclusion of *zoé* in the *polis*" (which in itself is "absolutely ancient") but rather the process by which:

> bare life—which is originally situated at the margins of political order—begins to coincide with the political order, and exclusion and inclusion, outside and inside, *bios* and *zoé*, right and fact, enter into a zone of irreducible indistinction.[19]

Through the figure of *homo sacer*, Agamben described 'bare life' as *zoé* included within sovereign power through its very exclusion. As a result, "traditional political distinctions (such as those between Right and Left, liberalism and totalitarianism, private and public) lose their clarity and intelligibility and enter into a zone of indistinction".[20] We might add to this the erasure of distinction between human and animal, which Agamben illustrated through his identification of, amongst others, the wolf man and *Muselmann* with *homo sacer*.[21] Agamben presents *homo sacer* as a figure that can navigate the otherwise unintelligible zones of indistinction inhabited by bare life. Here, it will be argued, that the experimental animal can similarly be understood as a form of bare life, or *homo sacer*, where the border between human and nonhuman is unstable and constantly in need of being remade.[22] Or, perhaps better, *animalia sacer*.

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17 Giorgio Agamben, *Homo Sacer: Sovereign Power and Bare Life* (Stanford: Stanford University Press, 1998), 6.

18 Ibid. Emphasis in original.

19 Ibid., 9.

20 Ibid., 122.

21 For the wolf man or werewolf see Agamben, *Homo Sacer*, 104–111 and for *Muselmann* see Giorgio Agamben, *Remnants of Auschwitz: The Witness and the Archive* (New York: Zone Books, 2002).

22 See Giorgio Agamben, *The Open: Man and Animal* (Stanford: Stanford University Press, 2004).

In the late nineteenth century, then, the experimental animal was brought into being by the Cruelty to Animals Act (1876) which simultaneously constituted the biomedical laboratory as a unique biopolitical space. In a double move, the Act established a ban on animal experimentation whilst simultaneously providing for individuals to be exempted from this provision by the Secretary of State allowing human and nonhuman to enter into a physical and juridical space of exemption. At the same time, a new form of life, the experimental animal, was created by its inclusion within law through the very act of its exclusion. In this sense, the experimental animal is a new and specific form of bare life, co-developing with new and specific forms of power-knowledge, both of which were inseparable from emerging biopolitical models of power. Like *homo sacer*, the experimental animal was created as a biopolitical body that could be killed without consequence.[23] Like *homo sacer*, the experimental animal existed within a space where the categories of human and nonhuman entered into a zone of indistinction. The experimental animal, for example, could only fulfil its obligations by being simultaneously similar enough to humans so as to suffer in their stead yet different enough for humanity to allow them to do so.

The nonhuman animal was not alone in being placed into a peculiar relationship to the law when entering the animal research laboratory. In 1971, the novelist Brigid Brophy, speaking at a symposium on the subject of animal experimentation, not only highlighted the indistinct position of the experimental animal but also revealed how the identity of the knowing scientist was shaped by the Cruelty to Animals Act (1876) having been constituted within law through their exclusion from the same:

> If a researcher who was experimenting on a chimpanzee were asked, by a child . . . to explain the purpose, he would very likely say he was doing it in the rational expectation of discovering something relevant to the relief of illness in humans . . . if the child said Fine, he was going straight home to acquire a chimpanzee and start imitating the researcher, the researcher would have, in fairness to the child, to warn him that it would be unlawful for the child, or indeed the child's parents to do any such thing. Then the researcher would have to explain that the citizens give him, the researcher, exemption from the ordinary laws. And if the child asks why the citizens exempt him, the researcher would have to say it is because the citizens

23 This claim I think holds despite the scientific propensity to employ a secularized version of the term sacrifice when killing an experimental animal. See Michael E. Lynch, "Sacrifice and the Transformation of the Animal Body into a Scientific Object: Laboratory Culture and Ritual Practice in the Neurosciences," *Social Studies of Science* 18 (1988): 265–289.

> are so impressed by his claim that he has a rational expectation of discovering something toward the alleviation of human suffering.[24]

Over the intervening century modern democracies had come to rely on biopolitical models of power enabled by scientific medicine in order to govern not just national populations but global health. Put another way, global health had come to rely on the experimental animal as a form of bare life. What Brophy identifies as contradictory, almost unintelligible, in the biomedical scientist's claim to be serving society when their practices appear to break society's conventions, becomes explicable in the light of *homo sacer*. From this position, we can begin to make intellectual sense of the complexities and apparent contradictions deriving from animal research. Moreover, we can see how the laboratory might operate as a unique site where fresh politics as yet unrecognised as such are emerging. But in practice, how does this help? What action does it lead to next? At this point, Agamben's otherwise provoking and productive analytic elision of biopolitical with sovereign power reaches an apparent pragmatic impasse.

A problem with biopower, and arguably the reason why Foucault failed to develop the concept, is that it occupies an uncertain position between Foucault's iconic analysis of power (through the techniques by which it is exercised) and the more traditional approach of examining juridico-political representations of sovereign power.[25] By following Agamben and conducting an analysis that privileges the consistency of originary meanings as much as representations of sovereign power, we find ourselves with only one pragmatic option. We require a revolutionary conceptual change toward "a politics no longer founded on the *exception* of bare life".[26] Put another way, and borrowing the words of Matthew Calarco, the political work becomes that of "jamming" the processes that distinguish (and thereby define) human from nonhuman.[27] These processes, which Agamben has labelled the "Anthropological Machine", sustain the material cultures of the laboratory and the knowledge that

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24 Brigid Brophy, "The ethical argument against the use of animals in biomedical research," in *The Rational Use of Living Systems in Biomedical Research UFAW Symposium 7th–8th October 1971*, ed. William Lane-Petter (London: UFAW, 1972), 51–57 (51).

25 Paul Patton, "Agamben and Foucault on Biopower and Biopolitics," in *Giorgio Agamben: Sovereignty and Life*, ed. Matthew Calarco and Steven DeCaroli (Stanford: Stanford University Press, 2007), 203–218.

26 Agamben, *Homo Sacer*, 11.

27 Matthew Calarco, "Jamming the Anthropological Machine," in *Giorgio Agamben: Sovereignty and Life*, ed. Matthew Calarco and Steven DeCaroli (Stanford: Stanford University Press, 2007), 161–179.

emanates from such sites.[28] For this reason, such a course of action would be attractive to those, such as Gary Francione, who have argued for a complete separation of human and nonhuman animal and an end to all instrumental and economic relationships between the two.[29] They would find common ground in the claim *everything* must change. Yet, epochal moments are rare outside the realm of thought. Furthermore, one might query the extent to which it is appropriate to approach the "question of the animal" as a process of "rethinking" sovereign (or any other form) of power. As long as nonhuman cognitive worlds remain closed to us any project styled as thought would appear to privilege the human. Consequently, nonhuman animals are rendered passive and incapable of contributing to or resisting political change. This is the limit of the utility of Agamben's philosophy for animal studies. With Foucault, however, we might travel further.

For Foucault, power was to be understood as relational, simultaneously exercised and experienced by individuals, whilst individuals themselves were seen to be products and processes of such power—becoming "subjects" in the dual sense of the word. To the extent to which power is understood as how individuals act upon one another, how they conduct others and themselves, as well as the changes in such processes, there appears no good reason why nonhuman animals may not be located within such relations as active if unequal participants.[30] However, whilst nonhuman animals can meet Foucault's first sense of 'subject', being "subject to someone else by control or dependence", their capacity to participate in the second, being "tied to his own identity by a conscience or self-knowledge", is less obvious (particularly to those who think twice about recognising animal consciousness or self-knowledge).[31] Yet the issue may, perhaps, more profitably be avoided—albeit temporally—by recalling that Foucault did not orientate his understanding of power about consciousness per se. On the 14th January 1976 Foucault explained that his concern was not with "conscious intention or decision" but rather the "study of power at the point where its intention, if it has one, is completely invested in its real and effective practices".[32] When, on March 17th of the same year,

28 Agamben, *The Open*, 33–38.

29 Gary L. Francione and Robert Garner, *The Animal Rights Debate: Abolition Or Regulation?* (New York: Columbia University Press, 2010).

30 Cf. Claire Palmer, "'Taming the Wild Profusion of Existing Things'? A Study of Foucault, Power, and Human/Animal Relationships," *Environmental Ethics* 23:4 (2001): 339–358.

31 Michel Foucault, "The Subject and Power," in *Power: Essential Works of Foucault 1954–1984*, ed. James D. Faubion (Harmondsworth: Penguin, 1994), 326–348 (331).

32 Michel Foucault, "Two Lectures," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (New York: Pantheon, 1980), 78–108 (97).

Foucault gave his most detailed description of biopower we may legitimately suppose his former agenda applies equally to his description of the effective practices of biopolitical models of power.

Moreover, we might also note that when describing biopolitical models of power he emphasised their capacity to "make live".[33] This, again, is consistent with Foucault"s general emphasis on the *creative* potential of power, generating truth, knowledge, societies and the living beings that populate them outside of the question of self-knowledge. This emphasis on creativity also serves to sharply differentiate Foucault from Agamben. The latter's emphasis on the exposure of bare life to death, at times, effectively abandons the creativity inherent to biopolitics in favour of a destructive thanatopolitics.[34] Whilst it might be argued that the invention of the experimental animal was a creative act, such an argument would be restricted to the ways in which representations of juridical-political power constituted the animal. Put another way, Agamben is useful in revealing how the experimental animal came into being. The experimental animal could only exist within the new biopolitical space of the laboratory as the two were constituted by the same originary moment of sovereign power exercised in the Cruelty to Animals Act (1876). In contrast, a Foucaultian emphasis on the exercise of power might reveal that in a material and biological sense the experimental animal was not created by biopower, merely subjected to biopolitical models of power within the new space of the laboratory. Only in the twentieth century did biopower create entirely new forms of life, which were utilised as a means toward the transformation of human but also nonhuman life. For analytic clarity we might distinguish this latter form of life, this *animalia sacer*, by naming it the laboratory animal. Nonhuman animals created by and caught within specific forms of biopower which sought not only to make them live but to make them live biologically productive lives.

2 The Birth of the Laboratory Animal

Foucault associated biopower with the formation of the great instruments through which the state took on responsibility for the administration of public

33 Michel Foucault, *"Society Must Be Defended": Lectures at the Collège de France 1975–76,* ed. Mauro Bertani and Alessandro Fontana, trans. David Macey (Harmondsworth: Allan Lane, 2003), 241.

34 On Agamben and thanatopolitics see Paul Rabinow and Nikolas Rose, "Biopower Today," *Biosocieties* 1 (2006): 195–217 (200–1).

health and the protection of the social body. As already suggested, these historical processes were consonant with the emergence of laboratory science and the remaking of medicine between the mid-nineteenth and mid-twentieth century. Prior to the intrusion of the state into the health of citizens, medicine had been structured about a system of individual patronage wherein disease was highly individualised and illness a personalized condition treated through the unique experience and individual skill of the physician. In the first half of the twentieth century, this was fundamentally transformed as the advent of mass health care reconfigured medical practice about a biopolitical logic that focussed upon a national population and emphasised depersonalized administrative efficiency. The principles and practices of laboratory medicine, for example, could mediate productively between the individual and population whilst operating with a scientific competence and administrative efficiency that met the economic needs of mass health care.[35] From this perspective, the 1948 founding of the National Health Service might be seen as a moment where biopower was writ large. However, this was not, and could never have been, a process wherein human life alone was the singular biopolitical object.

At a time when Britain was struggling to finance the burgeoning cost of the newly established welfare state, there was an economic need to align the new system of mass health care about an economic logic which grounded the material practices of administration, and national welfare within the principle of scientific efficiency. One approach was to emphasise the importance of non-human animals as guarantors of the national health. "The cost of laboratory animals, the cost of medical research, and the cost of maintaining the health of the population are in steeply ascending order of magnitude", wrote William Lane-Petter in 1959. "Wise policy begins at the beginning", he continued, "which is also the cheapest end of the scale".[36] Lane-Petter was the leading spokesperson for a new field of expertise seeking to establish the "laboratory animal" at the economic base of the health of the nation. This strategy simultaneously aimed to establish the importance and credibility of a new field of expert knowledge: "laboratory animal science". The laboratory animal as a scientific object co-emerged with the expertise of its making and care, much like the experimental animal and the biomedical laboratory in the late nineteenth century. Unlike the experimental animal, however, the laboratory animal was in many ways a biologically new form of life created for, within, and by

35 Steve Sturdy and Roger Cooter, "Science, Scientific Management, and the Transformation of Medicine, 1870–1950," *History of Science* 36 (1998): 421–466.

36 William Lane-Petter, "The Place of Laboratory Animals in the Scientific Life of a Country," *Impact of Science on Society* 9 (1959): 178–196 (194).

scientific medicine. Both were deeply embedded within the biopolitical project of transforming human life. But where the experimental animal gained its identity by entering the biopolitical space of the laboratory from elsewhere, the laboratory animal was created and sustained by new forms of biopower within medical science. In other words, where the experimental animal was a means to a biopolitical end, the laboratory animal was both a means and an end in itself.

In 1940s Britain, a commercial laboratory animal 'industry' as we would recognise it today was yet to form. The needs of medical science were poorly understood by animal breeders, who showed little interest in cultivating biomedicine as a valued customer. Instead, laboratories became dumping grounds for animals that had hitherto no commercial value, commonly referred to as "wasters" within the then small animal trade. Scientific demand for animals so outweighed supply that researchers had little ability to determine "quality" and as a result "[t]raffic in animals had become in many cases indistinguishable from a racket".[37] By 1947, the situation was so acute that the Medical Research Council (MRC) was forced to respond to unprecedented pressure placed on the government by the scientific community who demanded a state guaranteed national supply of standard experimental animals.[38] A new institute was established which, though initially to be called the Experimental Animal Bureau was hastily renamed the Laboratory Animal Bureau for two reasons. First, not all animals utilised by science were used experimentally. Many served as diagnostic tools to measure the potency of drugs or within various medical tests.[39] Second, there was a deliberate intention to break with past practices wherein any available animal could be brought into the laboratory. Consequently, the term "laboratory animal" was preferred as it emphasised that the imagined animals were to be new forms of life created for and of the laboratory.

The ideal of a "standard" laboratory animal placed the individual in a specific relationship to the population. One related to the other in a form of rationality that silently assumed a given biological population not only had a norm

37 Progress Report 1949–1950 Laboratory Animals Bureau, 1st May 1950, p. 3, FD1/378, Medical Research Council Archive, National Archives Kew, UK (hereafter NA).

38 Robert G. W. Kirk, "Wanted—Standard Guinea Pigs: Standardization and the experimental animal market in Britain c.1919–1947," *Studies in History and Philosophy of Biological and Biomedical Sciences* 39 (2008): 280–291.

39 In a comparable sense to the way not all animals utilized by science are model organisms; cf. R. A. Ankeny and S. Leonelli, "What is so special about model organisms?" *Studies in the History and the Philosophy of Science* 42 (2011): 313–323. The language of the 'animal model' though present at the time was yet to establish itself as the dominant discourse of animal research.

but that that norm was both uniform and healthy. Put crudely, a healthy population of animals was assumed to be physiologically uniform which in turn made for a reliable laboratory tool as physiological uniformity was equated with consistent biological responses. In this way a 'standard' laboratory animal was constructed that was thought to respond with the same results to the same experimental scenario regardless of location or user.[40] The raison d'être of the Laboratory Animal Bureau was, therefore, fundamentally biopolitical. It was tasked with bringing into existence and normalizing new populations of nonhuman life. The means of achieving this involved the adaptation of long established biopolitical models of power developed for human populations and their deployment upon nonhuman populations.

The work of creating, regulating, and sustaining a national supply of laboratory animals was led by William Lane-Petter, director of the MRC's Laboratory Animal Bureau. At the time there was next to no systematic knowledge of the present needs of the biomedical sciences and little was known as to where animals were currently obtained from or what kind of species were most used and why. Accordingly, current practices were surveyed and the information gathered proved to be the first step in constituting a "population" of laboratory animals by means of an animal census. As a state institution the Laboratory Animal Bureau was uniquely positioned to take on this work. On the one hand, the bureau could use the Home Office records of the Cruelty to Animals Act (1876) to access all sites where animal experimentation took place. On the other, and only possible by the unique social circumstances consequent to the Second World War, the Bureau acquired through the Ministry of Agriculture the details of all persons claiming animal feed for the breeding of "experimental animals". By drawing together this information a population of experimental animal users and producers was constituted that was surveyed via a detailed questionnaire. In this way, a national laboratory animal population was brought into being.[41] Importantly, the Bureau's census operated not only as an exercise in quantification but to constitute that which was

40 See for example B. Clause, "The Wistar Rat as a Right Choice: Establishing Mammalian Standards and the Ideal of a Standardized Mammal," *Journal of the History of Biology* 26 (1993): 329–349. For standardization in science generally see Geoffrey C. Bowker and Susan Leigh Star, *Sorting Things Out: Classification and its Consequences* (Cambridge, MA: MIT Press, 2000); Martha Lapland, *Standards and their Stories: How Quantifying, Classifying, and Formalizing Practices Shape Everyday Life* (Ithaca: Cornell University Press, 2009).

41 Lane-Petter, W., A. B. Barber, and H. J. King, "Survey of Laboratory Animals in Great Britain," *British Veterinary Journal* 3 (1955): 282–299.

quantified.[42] Moreover, this new surveillance technology operated across the human and nonhuman, simultaneously creating the nonhuman "laboratory animal" as well as its human producers and users. Each was co-constituted in relation to the other as objects subject to subtle techniques of governance within a biopolitical landscape that invited intervention.[43]

The survey and census positioned the Laboratory Animal Bureau as the only institution capable of interacting with the newly formed national population of laboratory animals as an object of knowledge. For example, as early as 1948 the Bureau was acting as a central point of contact placing users and producers of small animals in touch with one another. This was a deliberate strategy to create a regulated free market and eliminate local 'dealers' who had profited richly by preventing direct trade between laboratory and breeders. Eliminating middlemen established a viable market in laboratory animals and allowed animal producers to increase their profitability. Guaranteed custom, improved profitability and a stabilised market were valuable enticements which Lane-Petter subsequently used to encourage breeders to "submit to some sort of discipline" by joining a "voluntary" scheme to improve animal "quality".[44] Membership of what became the Laboratory Animal Bureau Accreditation Scheme required adherence to "standards of housing, caging, feeding and general management of hygiene . . . compatible with the production of first class animals".[45] It encouraged breeders to specialise in producing purpose bred animals for scientific use whilst initiating a process by which the animals themselves became increasingly specialised at the level of their biology.

The Accreditation Scheme formed part of a biopolitical strategy to relocate the problem of animal infection from the site of use (the laboratory) to the site of production (the breeder). Hitherto, latent infection had been a problem of the laboratory for several reasons. For one, breeders had a closer more intuitive understanding of their animals than laboratory users or the middlemen

42 For the cultural authority of census as a means to constitute "governmental objects" see M. G. Hannah, *Governmentality and the Mastery of Territory in Nineteenth-Century America* (Cambridge: Cambridge University Press, 2000). See also Michel Foucault, "Governmentality," in *Power: Essential Works of Foucault 1954–1984*, ed. James D. Faubion (Harmondsworth: Penguin, 2002), 201–222.

43 See Ian Hacking, "Biopower and the avalanche of numbers," *Humanities in Society* 5 (1982): 279–295; Ian Hacking, "Making up people," in *Historical Ontology* (Harvard University Press, 2004), 99–114.

44 Advisory Committee on the Supply of Laboratory Animals Minutes of 5th Meeting, 23rd November 1949, p. 4, NA FD1/383.

45 Outline of a scheme for the accreditation of commercial breeders of guinea pigs, rabbits and mice destined for laboratory use, NA MAF189/676.

dealers. Breeders were therefore able to quickly identify signs of infection and immediately sell such animals on (a process made all the easier by the scientific demand for animals which led concerns over quantity to trump quality). A second reason was that the unregulated ad-hoc system of animal procurement meant populations of animals of different backgrounds were frequently mixed together at each stage of life by breeders, dealers and in the animal house and laboratory. As different populations had different pathogenic backgrounds, what one could tolerate another might not—particularly when individuals were stressed by encounters with new and likely unhygienic environments as they travelled. Put simply, the ad-hoc process of animal procurement at a social, economic, material and biological level appeared to encourage the spread of infection and the outbreak of disease. In contrast, regulation through the Accreditation Scheme required breeders to produce animals predominantly, if not entirely, for laboratory use. Stock had to be self-contained, purchasing animals for resale was strictly prohibited and the introduction of new breeding stock required the permission of the Bureau. Within the scheme, animals travelled direct from breeder to user or from breeder to breeder only with the Bureau's knowledge. This allowed disease outbreaks to be efficiently traced to source and the site effectively quarantined from the national population until the problem was resolved. Accordingly, breeders internalised the new system of biopolitical governance, increasing their vigilance and learning to voluntarily suspend trade should infection be suspected. This was not because they were forced to by a state-centred repressive power. Rather, compliance was assured because it was in their interests to participate in the creation and maintenance of the new system. Lane-Petter frequently claimed that the "better breeders" had "welcomed the discipline" and they did so because it increased and stabilised their profitability.[46] In this way, the Accreditation Scheme provided a relatively sophisticated means of continuous surveillance by which the Bureau exercised control over the movement of animals, and the spread of potential infections and disease, with minimal effort. Moreover, by introducing new standards of breeding and hygiene the scheme provided a means to establish and regulate husbandry practices that could be continuously refined toward increased productivity.[47] By establishing standard approaches to breeding, nutrition, housing, and handling of

46 *Laboratory Animals Bureau Newsletter*, December 1950, 2.

47 The Scheme first covered guinea pigs and later included mice and rabbits, these being the most popular species predominantly utilized for routine medical and toxicity testing and bioassay. See William Lane-Petter, "The Accreditation Scheme for Laboratory Animals," *Monthly Bulletin of the Ministry of Health* 12 (1953): 165–175.

animals, as well as minimum levels of hygiene, the Scheme simultaneously ensured the work of creating ever better 'standard' laboratory animals would be ongoing whilst equally normalizing and improving human behaviour and health. New humans, such as the 'animal technician', were brought into being and caught within new biopolitical models of power intended to normalize (standardize) biological life through techniques that focussed equally upon the population and the individual in order to promote the health and productivity of both human and nonhuman animal populations considered as an ecological whole.[48]

A significant challenge to establishing a stable national population of laboratory animals was that animal numbers vary throughout the year with the seasons and with events (such as outbreaks of infection or sudden food shortages). When an animal becomes a commodity this makes for a highly unstable market. Whatever the cause, which might be as simple as a large laboratory undertaking a new procedure so draining available numbers of a given species from the market, shortages increased the market value of the species concerned. Breeders responded by increasing production to maximise profitability leading to gluts which, inevitably, caused prices to collapse provoking new shortages as breeders cut back on production. In extreme cases, commercial breeders were made bankrupt by unexpected collapses of the market.[49] These cycles were tamed by the introduction of a bi-monthly publication listing all British laboratory animal breeders, their available stock, and their accreditation status, which facilitated communication between users and producers thereby enabling supply to be better attuned to demand. The publication was titled *Parade State* in reference to the military practice of monthly reporting the strength of the nation's armed forces. Associating the laboratory with the military was deliberate as it invoked the important role laboratory animals played in safeguarding the national health. Both forms of "parade state" operated through the "power of writing", inscribed in the material practices of record keeping and bureaucratic administration. Just as the

48 Robert G. W. Kirk, "Standardization through Mechanization: Germ-Free Life and the Engineering of the Ideal Laboratory Animal," *Technology and Culture* 53 (2011): 61–93.

49 For example, a severe guinea-pig glut occurred between 1948 and 1950 as "shortage of the late war years, and other factors, attracted a large number of would-be-breeders immediately after the war" causing "the biggest glut in recent years". The subsequent collapse in prices and production led to a severe shortage in the summer of 1951 as "confidence in the future of the business had been badly shaken, the normal seasonal breeding programme was not undertaken". See William Lane-Petter, "Supplies guinea-pigs," *Laboratory Animals Bureau Newsletter* 2 (1951): i.

militaristic parade state had constituted the military and made it visible in a way that equally necessitated and made possible intervention and regulation, so too did the Bureau's *Parade State* publication. Moreover, both were justified in terms of their role in national defence: the former by protecting against militaristic aggressors and the latter by safeguarding health and economic production against disease and degradation.

Both the Accreditation Scheme and *Parade State* might best be viewed as examples of biopolitical models of power focussed upon life. As forms of Foucaultian biopower applied to non-human life, they illustrate how nonhuman animals became enmeshed within wider biopolitical discourses focussed upon the promotion of human health and welfare. Accordingly, the end of transforming human life required as its means that nonhuman life too be made increasingly productive at the level of biology. Moreover, with the laboratory animal, these models of biopolitical power quite literally created new life: biological beings that otherwise would not exist. New technologies developed to create first germ-free and then so-called Specific Pathogen Free (SPF) laboratory animals.[50] In 1963, Lane-Petter predicted that SPF laboratory animals were:

> the healthy animals we have been looking for for years . . . in a short time the questionable term "SPF" etc will be forgotten, because all laboratory rats, mice and probably every other species will be of this standard of health.[51]

The creation and maintenance of such highly pathogenically determined animals required a plethora of new regimes of biopower. From the construction of hygienically secure buildings, the reconfiguration of architecture to provide environments defined by their (micro)biological components, to methods of reliably decontaminating objects and regulating relations between everything from feedstuffs up to and including the human. Today, SPF has indeed been dropped and all laboratory animals are expected to be pathogenically defined and maintained in environments whose biopolitical regimes encompass the human as much as their nonhuman inhabitants. In the most secure facilities, human entrants are expected to strip, shower, and don clean clothing, whilst being encouraged to refrain from mixing with animals in the outside world so as to minimise the risk of introducing unwanted microbes to the

50 Kirk, "Standardization through Mechanization."

51 William Lane-Petter, "Discussion," in *Laboratory Animals Centre Collected Papers Volume 12: Choice of Experimental Animal* (London: HMSO, 1963), 54–55.

laboratory ecology. Analogous biopolitical models of power have emerged to impact upon laboratory animals at the genetic level. In the 1950s, intensified inbreeding produced new populations of genetically uniform laboratory animals highly standardized for specific scientific uses.[52] These and other approaches to laboratory animals have become institutionalised within the commercial laboratory animal industry which grew out of the biopolitical transformations in the decades immediately after the Second World War. More recently, new methods of genetic intervention into the nonhuman animal body has extended biopolitical creativity to govern the ways in which nonhuman life develops in the future. Famously, the OncoMouse was genetically modified in the 1980s to be predestined to develop cancer and thereby serve as a reliable tool and biomedical analogy for research into human versions of this disease.[53] Subsequently, the extension of biopolitical interventions across borders of human and nonhuman have brought into being so-called "humanized mice", rodent species which have internalised human biological material (such as tumours, tissue, organs, cells and genes). The humanised mouse is, perhaps, an example par excellence of *animalia sacer*. Here the indistinction of human and animal is literally embodied and as such it is impossible to limit the analysis of the effects of biopolitical models of power to the human in isolation. On the contrary, human and nonhuman life has been mutually constituted by and made subject to biopolitical models of power. Accordingly, more detailed study of how specific examples of biopower have operated across human-animal boundaries may reveal how active interventions become possible.

3 Being Subject to Care

The remainder of this paper examines how a specific biopolitical model of power—that of "humane experimental technique"—emerged as a strategy

52 R. F. Parrot and M. F. W. Festing, *Standardised Laboratory Animals* (Carshalton: MRC LAC, 1971). For earlier practices see Rader, *Making Mice*.

53 G. Davies, "What is a humanized mouse? Remaking the species and spaces of translational medicine," *Body & Society* 18 (2012): 126–155; D. Hanahan et al., "The origins of oncomice: a history of the first transgenic mice genetically engineered to develop cancer," *Genes and Development* 21 (2007): 2258–2270; Donna Haraway, *Modest_Witness@Second_Millennium .FemaleMan©_Meets_OncoMouse™: Feminism and Technoscience* (London: Routledge, 1997), 55–69.

to integrate practices of constituting subjects across human and nonhuman forms of life. Subjects, that is, in the dual sense of the term: as being "subject to someone else by control or dependence" and "tied to his [or her] own identity by a conscience or self-knowledge". Today, *The Principles of Humane Technique* (1959) is recognised, if at all, for having introduced the concept of the "3Rs" or the Refinement, Reduction, and Replacement of animals. In recent decades, the 3Rs have been institutionalised worldwide as *the* ethical basis for regimes of governance of animal dependent science. Nevertheless, whilst the 3Rs provided a conceptual organising structure for humane experimental technique in *The Principles*, the original aim was not to integrate this approach within legislative and administrative regimes governing animal research. Rather than law, *The Principles* presented the 3Rs as a pragmatic approach to facilitating science in realising itself as a moral and humane practice conducted by moral and humane subjects. Rather than being institutionalized, the 3Rs were to be embodied within human and nonhuman lives which, in turn, were envisaged as encountering and creating one another within the biopolitical space of the laboratory.

The *Principles* was the culmination of a decade-long project promoting the importance of the wellbeing of laboratory animals by the Universities Federation for Animal Welfare (UFAW). In spite of being a comparatively small animal advocacy organisation, albeit possessed of a unique and self-styled "scientific" approach, UFAW had considerable impact on the development of a "science" of animal welfare. For an animal advocacy organisation, UFAW had gained unprecedented credibility within the sciences via the publication of *The UFAW Handbook on the Care and Management of Laboratory Animals* (1947) which appropriated wider contemporary concern about the standardization of laboratory animals. This was the first general guide to standards of animal husbandry for all species of animals commonly used within the sciences. Its ethos was above all pragmatic, species specific chapters written by experienced scientists which established practical standards for animal house design, types of cages, as well as health, nutritional, environmental and social needs of species, whilst also indicating best practice for human-nonhuman interaction through husbandry and handling. The importance of the *UFAW Handbook* was the way in which it subtly amalgamated the practical needs of scientific practice with the moral values of animal welfare. The work of creating reliable experimental tools was made dependent upon the wellbeing of animals and as such animal welfare was moved from a political and largely rhetorical moral value to a quantifiable, scientific and biopolitical value materialized in the biology of laboratory animals. For example, the control of pain, materialized as biological and thus reimagined as quantifiable, was transformed into a condition of reliable science:

> No man wittingly brings about the failure of his own work. The great difficulty in all scientific research is to exclude complicating factors. Pain, suffering and illness are such factors. Only insofar as these are either excluded or kept under control can the research worker hope to achieve the object of his investigations.[54]

Pain retained its status as a moral value but in addition it was amalgamated within the values and practices of science. The management of pain gained new value in laboratory practices as a factor upon which knowledge production was dependent. Local practices of animal husbandry, for example, were to be standardized about normative regimes which "conform to a high standard of humaneness and will at the same time ensure that . . . [scientific] conclusions shall be thoroughly reliable".[55] In this way, *The UFAW Handbook* contributed to a new biopolitical model of power which amalgamated the needs and values of science with those of animal wellbeing. What had hitherto been a problematic biopolitical space—the suffering of animals in scientific experiments—was thereby transformed into a productive site of intervention. Moreover, good science was becoming a matter of good con(science). In a 1963 article tellingly titled "Humane Vivisection", Lane-Petter explained how "[s]uffering far from being inseparable from animal experimentation should in fact be regarded as a confusing variable whose elimination demands great effort on the part of the experiment".[56]

Within this new apparatus of biopower humans that worked with laboratory animals were subject to processes of standardization (and normalization) as much as the nonhuman animals. In this sense, the laboratory, like other sites examined by Foucault, required the moulding of docile bodies.[57] Not in a coercive sense, but rather as a result of the internalization of a specific way of being. In the words of Lane-Petter, reliable science depended on "docile dogs, contented cats and relaxed rodents", which is to say science required not just collaborative bodies but collaborative subjects. This was true for the human as it was for the animal as the laboratory encounter was envisaged as a creative

54 H. P. Himsworth, "Foreword," in *The UFAW Handbook on the Care and Management of Laboratory Animals*, ed. Alastair N. Worden and William Lane-Petter (London: UFAW, 1957), v–vi (vi).

55 T. Dalling, "Foreword," in *The UFAW Handbook on the Care and Management of Laboratory Animals*, ed. Alastair N. Worden and William Lane-Petter (London: UFAW, 1947), v.

56 William Lane-Petter, "Humane Vivisection," *The Physiologist* 6 (1963): 121–124 (122).

57 Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan (Harmondsworth: Penguin, 1979).

space wherein human and animal subjects met and constituted one another. Drawing an analogy with the clinical practices of veterinarians and paediatricians, Lane-Petter described how:

> Veterinarians and paediatricians, whose patients normally possess uncomplicated mentalities, are familiar with their ability to tolerate without distress lesions and manipulations that most human adults would find insupportable; but they also know this tolerance can only be evoked if there is a satisfactory relationship between patient and clinician. The same is true of the experimental animal.[58]

This interspecies relationship, which was of course one of power, required a certain type of human subject beholden to and constitutive of a certain type of animal subject. Though Lane-Petter made no direct reference to humane experimental technique the latter shared the same ethos. *The UFAW Handbook*, for example, identified the "psychological make up of the animal" as critically important because:

> A buck rabbit may be a vicious brute and a bear gentle. With every species the human attendant who is prepared to lavish care on his charges and makes determined efforts to make pets of them is an essential ingredient to success. An unsympathetic man will drive the best of animals into a vicious circle of suspicion and moroseness.[59]

Such logic is akin to what Foucault described as "a network or circuit of biopower, or somato-power" illustrating how "power relations can materially penetrate the body in depth, without depending on the mediation of the subject's own representations". The fact that this power relationship involves the nonhuman is of no matter: "[i]f power takes hold of the body, this isn't through it having first to be interiorised in people's consciousnesses".[60]

Nevertheless, and whilst orientated about the production of docile bodies, humane experimental technique as a biopolitical strategy facilitated the

58 Lane-Petter, "Humane Vivisection," 121.

59 R. E. Rewell, "The Choice of Experimental Animal," in *The UFAW Handbook on the Care and Management of Laboratory Animals*, ed. Alastair N. Worden and William Lane-Petter (London: UFAW, 1957), 166–175 (167).

60 Michel Foucault, "The History of Sexuality," in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (New York: Pantheon, 1980), 166–193 (186).

production of nonhuman subjects. W. M. S. Russell, primary author of the 3Rs, was quite clear that:

> the motto of the experimenter in his dealings with his subjects must be *mens sana in corpore sano* [a healthy mind in a healthy body] and he will not get the one without the other.[61]

Russell synthesized a complex (and to many readers mystifying) mixture of then emerging ideas, weaving together cybernetics, systems theory, ethology, endocrinology, psychoanalysis, zoology, genetics and biology—amongst others—to argue that living beings were constituted through their shared physical and social relations. One crucial influence on Russell's thinking was the work of the Swiss zoo biologist Heini Hediger. It was no coincidence that the latter's *Wild Animals in Captivity*, when translated into English in 1950, contained a foreword by Edward Hindle then President of UFAW.[62] In *The Principles*, Russell wrote "[e]verything about the rich physiological network suggests the possibility of much more refined effects of behavioural upon internal states".[63] Humane experimental technique was intended in part to catalyse new research exploring how physical and social environments could be manipulated so as to promote the biological productivity of the living beings that inhabited scientific spaces. Accordingly, those who worked with laboratory animals were obliged to develop new tools with which to intervene into this biopolitical space whilst remaining aware that the subject was a creative force in any activity.

It was not, however, just the nonhuman animal that was to be creatively constituted through the new models of biopower promised by humane experimental technique. Participation in the biopolitical space of the laboratory, Russell believed, placed the subjecthood of the knowing human experimenter at stake. In the final somewhat esoteric future orientated chapter of *The Principles*, Russell sketched "the factors which govern the progress" of humane experimental technique and by extension reliable biomedical knowledge. The foremost factor was the experimental "personality" which Russell mapped through an innovative adaptation of Adorno's recently published concept of the "authoritarian personality" alongside his own notion which he

61 W. M. S. Russell and R. L. Burch, *The Principles of Humane Experimental Technique* (London: Methuen &Co Ltd, 1959), 13.

62 See Matthew Chrulew, "Animals as Biopolitical Subjects," in this volume.

63 Russell and Burch,*The Principles of Humane Experimental Technique*, 12.

named the "revolutionary" personality.[64] Both personality factors were pathological and incompatible with science. The former correlated to hostile attitudes toward nonhuman animals and the latter to radical antivivisectionism (presented as detrimental to animal wellbeing due to sentimental anthropomorphism). Those with a high authoritarian factor would make poor scientists as experimental design required thinking in terms of multiple variables, which was precisely the style of thinking the authoritarian personality prevented. Further, as biomedical researchers worked with animals, they could not be "revolutionary" as they would not be antivivisectionists. By following this tautological logic Russell concluded that the future of humane experimental technique was a problem "largely of knowledge; application may be taken for granted".[65] A humane orientation toward animals was psychologically correlated to scientific personality just as humane treatment of laboratory animals was a necessary condition of scientific practice. Hence, to be a scientist required that one be humane to animals. Scientific identity was thereby grounded and made readable in the practice of one's day to day orientation toward and interactions with nonhuman animals. From this perspective, humane experimental technique was more than a biopolitical intervention to promote and protect nonhuman life. It was a practice of the "care of the self" through which the scientist constituted his or her self as a subject in relation to the nonhuman animal.

4 Conclusion

Today, codified and widely institutionalized as the 3Rs, humane experimental technique is barely recognizable as a practice of the care of the self. Instead, the *Refinement* of experimental design so as to diminish suffering, efforts to *Reduce* the number of animals used in a given procedure, and the *Replacement* of animals where possible, provide the basis of a pragmatic and legislatable approach to the ethical governance of animal dependent science. In 2010, for example, the European Union ratified a new directive governing animal experimentation which incorporated the 3Rs. In spite of a major justification for this move being a response to animal welfare having become recognized as a distinctive "cultural attitude" of European citizens, the institutionalization of the 3Rs translated humane experimental technique into an administrative check

64 Theodor W. Adorno, Else Frenkel-Brunswik, Daniel J. Levinson and R. Nevitt Sanford, *The Authoritarian Personality* (New York: Harper, 1950).

65 Russell and Burch, *The Principles of Humane Experimental Technique*, 155.

list fully compatible with bureaucracy.[66] One consequence of this move is that the 3Rs are disconnected from the human subject and so can be outsourced (a practice that has fuelled a profitable side-industry for commercial laboratory animal suppliers). What is lost here is the recognition that aspects of the laboratory, imagined as a biopolitical space wherein new forms of subjectivity co-emerge, may not be fully governable by legislation. In 1912 this point was made by Dr. George Wilson, a vocal critic of animal experimentation who served on the second Royal Commission, who acknowledged:

> strict compliance with the provisions and intentions of the Act cannot be ensured, no matter how extended or inquisitorial inspection may become; it must always mainly rest on the care, ability, and honest endeavour of the licensee.[67]

On the one hand, Russell presented humane experimental technique in 1959 as a strategic intervention through which he hoped encounters within the laboratory would be governed according to a specific ethical framework that valued the prevention and reduction of suffering (which was simultaneously assumed to promote biological productivity). Yet, humane experimental technique equally imagined animal research as a collaborative practice of creative becoming across the borders of human and nonhuman. As such, the ethical guarantor embedded within the 3Rs was established and internalized through the subjecthood of the knowing human being placed at stake in the laboratory encounter.

From the perspective of Agamben, the laboratory does indeed become a site from which, in the words of Latour, "sources of fresh politics as yet unrecognised as such are emerging". As a biopolitical space for the production of bare life, we would expect the distinction between human and animal to be unstable within the laboratory. Indeed, in the material cultures of experimental practice, Agamben's anthropological machine becomes most visible. Humane experimental technique, for all that it made the knowing human subject dependent on its relation to the nonhuman object of knowledge, nevertheless re-inscribed the human/nonhuman boundary by making ethics

66 *Proposal for a Directive of the European Parliament and of the Council on the protection of animals used for scientific purposes* {SEC(2008) 2410} {SEC(2008) 2411} COM/2008/0543 final—COD 2008/0211 (2008), 3.

67 *Final Report of the Royal Commission on Vivisection cd. 6114* (London: HMSO, 1912), 77. For Wilson's views on animal experimentation see "The Vivisection Commission," *British Medical Journal*, 20th October 1906 (ii): 1050–1051.

a human(e) practice. Without dismissing the fact that nonhuman forms of life within the laboratory are born to die and live exposed to death, *animalia sacer* need not be read as a thanatopolitics. Biopolitical models of power are, after all, creative. Through them life is subjected, used, but also improved and made to flourish. To the extent that this process can operate across species boundaries, traversing and remaking the human and nonhuman, there is, with a Foucaultian attention to the material cultures of the expressions of biopower in practice, always potential for this biopolitical space to be collaboratively remade. In 1984, toward the end of his own life, Foucault's position on the relationship between power and resistance was summarised by an interviewer in the following way:

> Politically speaking, probably the most important part of looking at power is that according to previous conceptions "to resist" was simply to say no. Resistance was conceptualized only in terms of negation. Nevertheless, as you see it, resistance is not solely a negation but a creative process. To create and recreate, to transform the situation, to participate actively in the process, that is to resist.[68]

Responding, Foucault agreed:

> Yes, that is the way I would put it. To say no is the minimum form of resistance. But of course, at times, that is very important. You have to say no as a decisive form of resistance.[69]

Can the laboratory animal resist? Even in the most unbalanced of power relations Foucault believed resistance to be possible as the weaker always "has the possibility of committing suicide". In relations of power there is always "the possibility of resistance, for if there were no possibility of resistance . . . there would be no relations of power".[70]

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68 Michel Foucault, "Sex, Power and the Politics of Identity," in *Ethics, Subjectivity and Truth: Essential Works of Foucault 1954–1984*, ed. Paul Rabinow (Harmondsworth: Penguin, 2000), 168.

69 Ibid.

70 Michel Foucault, "The ethic of care for the self as a practice of freedom," in *The Final Foucault*, ed. James Bernauer and David Rasmussen (Cambridge, MA: MIT Press, 1987), 1–20 (12). For an eloquent and incisive development of this point encountered after the writing of this chapter see Clark, "Labourers or lab tools?"

Resistance through death would be the extreme statement of "no" but also the minimum form of resistance because it is the least creative and productive. Without the laboratory there would be no laboratory animals. They exist because they are a product of specific and situated biopolitical models of power in which they do and must live. Arguably, for as long as the laboratory as a space continues it can be and should be altered to further the flourishing of the life to which it has given birth. Through more detailed analysis, perhaps we could work toward creating new models of power that give ever more opportunity to nonhuman animals to resist through creative participation in the material cultures and interspecies interactions of the laboratory. Together, we might thereby negate the nonhuman animal need for a politics of negation. Rather than saying "no", we might find ways to allow nonhuman animals to say "no but". There are few better toolkits for the analysis of how modern power and resistance interact creatively and positively than that provided by Foucault. By building on his work and extending it across species we can seek ways of choosing death together, not with resistance in mind, but with dignity. Creating a fresh politics for tomorrow as yet unrecognised today.

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CHAPTER 9

Animals as Biopolitical Subjects

Matthew Chrulew

During a 1965 interview, Michel Foucault was asked by Alain Badiou to give his opinion about animal psychology. In part of the exchange he stated that, "when a psychologist studies the behavior of a rat in a maze, what he is trying to define is the general form of behavior that might be true for a man as well as a rat; it is always a question of what can be known about man."[1] Foucault here includes the sciences of animal behaviour and mind within his developing genealogy of the human sciences as regimes of knowledge and power that objectify and subject the human subject.[2] There is of course a great deal of truth to Foucault's statement: the practices and discourses of animal psychology, zoo biology, ethology and associated fields are recognisably part of that "anthropological machine" by which the human is produced and defined in relation to the nonhuman animal.[3] But insofar as Foucault's diversion of attention back towards the human sciences disregarded the exposed animals that are the subjects and objects of such experiments—rhetorically indicated here by the proverbial lab rat in a maze—this response also indicates the overall anthropocentrism that he shared with most philosophers of his generation and milieu, a species humanism that persisted alongside, and perhaps even in support of, his celebrated antihumanism.

Yet divested of this latent anthropocentrism, Foucault's thought offers indispensable tools for the analysis not only of the natural and biological sciences, but for human-animal relations more broadly. Even if the experimental delineation of animal behaviour is "always a question of what can be known about man", it is not *only* that; indeed it is, most directly, an exercise in the production of knowledge about *animal subjects*, knowledge that relies upon and in turn helps produce and refine technologies of power over those animals. In the

1 Michel Foucault, "Philosophy and Psychology," in *Aesthetics, Method, and Epistemology: Essential Works of Foucault, 1954–1984, volume 2*, ed. James Faubion (London: Penguin Books, 2000), 249–259 (256).

2 Michel Foucault, *The Order of Things: An Archaeology of the Human Sciences* (London: Routledge, 2002).

3 Giorgio Agamben, *The Open: Man and Animal*, trans. Kevin Attell (Stanford: Stanford University Press, 2004).

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course of the same interview, Foucault made some remarks which go some way towards summing up his critical project as a whole: "I don't think psychology can ever dissociate itself from a certain normative program. . . . Every psychology is a pedagogy, all decipherment is a therapeutics: you cannot know without transforming."[4] These remarks could equally be applied to animal psychology and related sciences: even if in essentially different ways, they, too, are indissociable from normative and transformative programmes. Of course, such sciences more easily take the behavioural and biological norms they define and produce as *natural*. But as much as they might deny or eliminate the transformations that accompany their production of knowledge, every animal science is a training ground, every lab a circus, every zoo a theatre. Nothing prevents us from turning the archaeological and genealogical methods by which Foucault articulated his suspicion of the human sciences on to the sciences of animal biology, and their modes of subjection.

Indeed to properly account for human-animal relations today, we must understand animals as biopolitical subjects in the full Foucauldian sense of the term. Very few theorists of biopower deal with animal subjectivity—not to mention animal subjectification. Most accounts of biopower are, of course, concerned with the animalisation or biologisation of human politics, with the political wagering of the life of the species, and largely ignore animals themselves.[5] Those that do address the lives of nonhuman animals often consider them foremost as bare lives and vulnerable bodies, the mechanised, objectified and subjugated targets of human violence. Thus otherwise robust accounts of how animals are subjected to discipline and biopower tend to bypass or avoid the question of animal subjectivity. Yet it is precisely this dimension—that of the subjectification of nonhuman animals by various dispositives of power/knowledge—that distinguishes contemporary relations between humans and animals.

1 Foucault, Finitude and Animal Subjectivity

Two relatively unknown texts argue that the recognition of animal subjectivity is in fact an important, if somewhat implicit, corollary of Foucault's writings. In his monograph, Saïd Chebili explores figures of animality throughout Foucault's work, in relation to power, to madness, to Raymond Roussel's

4 Foucault, "Philosophy and Psychology," 255.

5 Matthew Chrulew, "Animals in Biopolitical Theory: Between Agamben and Negri," *New Formations* 76 (2012): 53–67.

literary labyrinths, and to the life, labour and language of the "empirico-transcendental doublet" that is 'man'. He asks: "Does Foucault develop a reflection on the animal itself? Animality is mostly used as a figure."[6] Nonetheless, it is clear that animals, just like humans, are subjected to discipline and biopower: "bio-politics . . . permeates every detail of the life of the population. It regulates the relations of men among themselves, and of men with other species, wielding for one and the other the same techniques of subjugation and control. . . . All life is subject to this biopolitics . . ."[7] For Chebili, Foucault does not treat the human as exceptional, dogmatically opposed to a reductive notion of instinctually driven animal life: "Foucault does not let himself be tempted by the ruinous alternative of continuity or discontinuity between man and animal, which responds to ideological and unstable argumentative uses . . . [and] ends up an aporia."[8] Rather, Foucault examines the politicisation of the living, which includes both animals and 'man', a human being whose linguistic privilege does not entail his sovereignty but only condemns him further to finitude.

Chebili argues that it is as a result of this problematisation of life as such that, in the end, Foucault's thought ultimately leads us to the question of animal subjectivity: "Indeed, for its part, naturally it [the animal] has a representation of the world populated by animals . . . The human appears in a totally zoomorphic system. The animal perceives the man by animalising him. This relatively new approach allows us to consider the animal as the subject of its experience."[9] Chebili goes on to situate Foucault as the latest to wound Western narcissism:

> Foucault, for at least two reasons—the recognition of the animality of man and the contingency of the latter—inflicted a fourth narcissistic wound on the individual. Foucault is situated in the wake of Copernicus . . ., Darwin . . . and Freud . . . Foucault, . . . punctuating his speech with inextinguishable laughter, knocked man from his pedestal by qualifying his shortcomings and stripping him of the privileged position he claims in the cosmos.[10]

6 Saïd Chebili, *Figures de l'animalité dans l'œuvre de Michel Foucault* (Paris: L'Harmattan, 1999), 140. Translations my own.

7 Ibid., 141.

8 Ibid., 146.

9 Ibid.

10 Ibid., 148.

Attending to the domain and problem of animal subjectivity is thus, for Chebili, an inevitable and profoundly disturbing outcome of Foucault's philosophy, insofar as it exposes the contingency of the positive human subject and traces the modern politicisation of all of life, human and animal.

Dominique Lestel likewise considers Foucault's archaeology of 'man' to open up the question of the animal subject. In his book on singular animals—that is, those who perform abilities not otherwise found within their species—Lestel proposes a multi-level conception of animal subjectivity: "the animal is neither object nor machine . . . *the animal responds*. . . . Hence the negotiation required. The reliability of the machine is mechanical, that of the animal is intentional."[11] This phenomenological recognition of responsiveness and intentionality leads to an analysis of animal subjectivity that is both conceptual and empirical: "All animals can be considered as 'subjects', as demonstrated by Jakob von Uexküll and some subsequent philosophers, emphasising the fact that a living being . . . orients in the world through 'meanings' that it constantly interprets."[12] Lestel, however, distinguishes between "weak subjects", "[t]he animal subject in a natural environment", and "individuals", that is, "a creature that has a personality that distinguishes it from others".[13] The definition of individual is thus reserved for particular, distinctive animals, such as among baboons, chimpanzees and elephants. Their relative freedom and explicable comportment is important: "These animals do not behave randomly or deterministically."[14]

Lestel goes on to make a further distinction, this time specifying singular animals that, in hybrid communities including humans and other species, can be conceived as *persons*. He asks:

> But what is an animal subject? What does it mean to be an individual or a person within a community that is also composed of *persons or individuals of a different nature*? The animal can be a subject in such a community, but it is definitely amongst human subjects, who differ significantly from it. In my view, this is the true scientific revolution in

11 Dominique Lestel, *L'Animal singulier* (Paris: Éditions du Seuil, 2004), 27. Translations my own, except where indicated.

12 Ibid., 35. For more on the scientific and philosophical recognition of animal subjectivity, see Dominique Lestel, *Les Origines animales de la culture* (Paris: Flammarion, 2003), 235–297; Dominique Lestel, "Portrait de l'animal comme sujet," *Revue de synthèse* 4:1 (1999): 139–64.

13 Lestel, *L'Animal singulier*, 35.

14 Ibid., 38.

> the animal science of the past twenty years: *the human being is no longer the sole subject in the universe*. Moreover, there are nonhuman subjects who can become individuals or persons. After Copernicus (man is no longer the centre of the universe), Darwin (man is an animal species), Freud (man is the plaything of his unconscious), we now encounter a fourth wound to human narcissism.[15]

There follows a long analysis of the problem of animal subjectivity, dealing with both crude and sophisticated objections, methodological questions of anecdote and interpretation, and ontological questions of both biological and cultural subjectivisation. Drawing in detail on ethological accounts of animal behaviour, intelligence and culture, Lestel offers a differentiated account of the diversity, creativity and individuality of various kinds of heteronomous animal subjects produced in diverse situations, in particular, personal and often passionate relationships to a variety of others, through processes of storytelling, interpretation and interaction. He argues that while animals are not machines but subjects, they are not subjects in the same way that humans are; however, they may be seen to develop unique and important modes of subjectivity and interiority, particularly in close contact with human cohabitants and researchers.

Culminating his argument, Lestel links the growing recognition of animal subjectivity to Foucault's Nietzschean thesis on the death of man: "Michel Foucault must be taken seriously, and his legacy is particularly fecund when dealing with animality. The era of the end of the subject actually marks that of its proliferation. Animals are indeed subjects . . ."[16] This proliferation of subjects refers, among other things, both to the scientific recognition of wild animals as social and cultural subjects by field studies in ethology, and to the political and legal recognition of new forms of animal subjects produced within human communities. Like Chebili, then, Lestel takes Foucault's thought to entail a wound to humanist narcissism not only in challenging the certitude of Man himself, but in situating the weakened human being that remains among a living multitude of likewise finite and singular nonhuman subjects.

Animal subjectivity can, thus, be profitably understood within a Foucauldian framework. Its proliferation comes in the wake of the death of man. Yet while

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15 Ibid., 59–60, italics in original. Translated by Hollis Taylor, in Dominique Lestel, "The Question of the Animal Subject: Thoughts on the Fourth Wound to Human Narcissism," trans. Hollis Taylor, *Angelaki: Journal of the Theoretical Humanities* 19:3 (2014): 113–125 (114).

16 Ibid., 78. Translated by Hollis Taylor, in Lestel, "The Question of the Animal Subject," 121.

the recognition of animals as subjects offers a much needed corrective to a long history of humanist exceptionalism and Cartesian reductionism, this understanding on its own is incomplete and, indeed, zoopolitically inadequate. Animals are not only experiential subjects in a phenomenological or zoosemiotic sense, nor merely patients of suffering and moral concern; they are subjected to power and subjectified and governed through it. Animal subjectivity is in fact the site of a consequential battle, a domain not only of knowledge but of interspecies relations of power and resistance and of modes of normative intervention and transformation. Indeed, a prominent element of animals' enrolment in dispositives of biopower today is that they are invested, not simply as bodies, but as distinctive and knowable biopolitical subjects.

2 Animal Subjectivity and Biopower: The Case of the Zoo

We can cast the question of animal subjectivity in Foucauldian terms by revisiting his late essay "The Subject and Power". This will require, of course, that we expand his minimal ontology to include differently natured and cultured nonhuman persons alongside 'things' and 'men', and move beyond his focus on human politics to consider the range of zoopolitical relations to animal others within multispecies communities. Yet there are few obstacles in his account to prevent us doing so. Foucault states at the beginning of the essay that the objective of his work has been "to create a history of the different modes by which, in our culture, human beings are made subjects."[17] He outlines "three modes of objectification" which do this work of subject-formation: those of the human sciences, dividing practices, and practices of the self. He proposes to analyse power relations through a focus on resistance and antagonism. In addition to struggles against forms of domination and exploitation, Foucault highlights the irreducible domain of struggles against subjection and submission. That subjectivity is at stake in relations of power is evident in the "two meanings of the word *subject*: subject to someone else by control and dependence, and tied to his own identity by a conscience of self-knowledge. Both meanings suggest a form of power which subjugates and makes subject to."[18]

17 Michel Foucault, "The Subject and Power," in *Michel Foucault: Beyond Structuralism and Hermeneutics*, ed. Hubert L. Dreyfus and Paul Rabinow (Chicago: The University of Chicago Press, 1983), 208–226 (208).

18 Ibid., 212.

While it is clear that human-animal relations all too often take the form of domination and exploitation,[19] there is an important dimension of animal subjection worth exploring, wherein their very subjectivity is the object and stakes of power. If Foucault understands biopower as the proliferation of pastoral power beyond the ecclesial laboratory that took as its model the relation of human shepherds with their animal flocks, this power today has abundantly returned to animal lives, concerning itself in-depth with nonhuman bodies and souls, whether as individuals or as representatives of their species. From national parks and reserves to zoos and labs, from urban centres and domestic homes to rural fringes and the ocean's depths, from conservation and rehabilitiation centres even to factory farms and abattoirs, animals are today governed according to the same goals of this-worldly salvation as the human population, such as "health, well-being . . ., security, protection against accidents."[20] And as with the government of 'men' as 'the living', this pastoral power is exercised by a set of priestly officials in the scientists, keepers, wildlife managers and other experts who govern animal lives by "structur[ing] the possible field of action of others."[21]

Perhaps the clearest example of animal subjectivity becoming the object of biopolitical power/knowledge is that of the zoological garden following its biological modernisation.[22] Too often only the exhibitionary subjectification of zoo visitors as environmental citizens is analysed, when the biopolitical subjectification of captive animals also became central to zoo operations in the twentieth century. The Swiss zoo director Heini Hediger is a clear figurehead of this reform, a manager of nonhuman life who published comprehensive and influential practical manuals on the art and technique of the effective and scientifically sound keeping of animals in captivity. His works combine descriptive biology with philosophy and protocol, occupying a domain between scientific knowledge and management practice. He was renowned as director for his long and detailed inspections and insisted on the thorough surveillance of all aspects of zoo organisation. Following Hediger and others, zoos became institutions that seek to produce authentically wild animals, in a regime of truth that orders nonhuman bodies so as to ensure the expression of their natural norms. Most important to his practice was the problematisation of animal subjectivity as that object through which power was most effectively exercised: "The

19 See, for example, Barbara Noske, *Beyond Boundaries* (London: Black Rose Books, 1997).

20 Foucault, "The Subject and Power," 215.

21 Ibid., 221.

22 See Matthew Chrulew, "From Zoo to Zoöpolis: Effectively Enacting Eden," in *Metamorphoses of the Zoo: Animal Encounter after Noah*, ed. Ralph R. Acampora (Lanham: Lexington Books, 2010), 193–219.

relations between the zoo and comparative psychology are mutual," he wrote, "and nowadays zoos may expect great help from the results of the psychological investigation of animals."[23] That is, it was specifically ethology and animal psychology—the sciences of animal behaviour and mind—that he applied to the refinement of zoo biological techniques of management and care.

The significance of animal subjectivity as an object of biopower is most visible if we contrast Hediger's ethopolitical reformation in zoo design with the previous, more famous exhibitionary and anatomopolitical revolution of German animal trader Carl Hagenbeck.[24] It was Hagenbeck who replaced the bars and walls of zoo exhibits with windows and moats, with transformative effects for human visitors, but also based on empirically tested knowledge of the animals' anatomical limits, that is, for example, the maximum distance a lion could leap or a monkey could climb. Hediger's approach was different in that, in addition to the body, it particularly problematised animal mind, the often underestimated psychological modifiers of physical capabilities. Using comparative psychological knowledge gained through experiment and anecdote, Hediger was able to construct exhibits better able to account for the perceptions and affects of their captive inhabitants: "railings and glass panes are not always needed to keep a creature in one particular spot; often psychological factors act as curbs or powerful restraining influences."[25] He thus oversaw the transition from the oppression of cages to the production and enrichment of territories.[26]

Having once been objectified as merely "bare life", anonymous and replaceable bodies subjected to violence and neglect, animals in zoological gardens progressively became subjectified as the scientifically known and individually nurtured subjects of biopolitical care. They came to be governed as subjects of their own experience, with modes of perception distinctive to their species and individual life history; to be governed as subjects who act, who perform distinctive *behaviours* that could be evaluated in detail by their keepers and

23 Heini Hediger, *Wild Animals in Captivity: An Outline of the Biology of Zoological Gardens*, trans. Geoffrey Sircom (New York: Dover Publications, 1964), 3. See also 53; Heini Hediger, *The Psychology and Behavior of Animals in Zoos and Circuses*, trans. Geoffrey Sircom (New York: Dover Publications, 1968); Heini Hediger, *Man and Animal in the Zoo: Zoo Biology*, trans. Gwynne Vevers and Winwood Reade (New York: Delacorte Press, 1969), 191.

24 Nigel Rothfels, *Savages and Beasts: The Birth of the Modern Zoo* (Baltimore & London: The Johns Hopkins University Press, 2002); Matthew Chrulew, "'An art of both caring and locking up': Biopolitical Thresholds in the Zoological Garden," *SubStance* 43:2 (2014): 124–147.

25 Hediger, *Wild Animals in Captivity*, 6. See also *Man and Animal in the Zoo*, 191.

26 Heini Hediger, "From Cage to Territory," trans. Hilda Morris, in *The World of Zoos: A Survey and Gazetteer*, ed. Rosl Kirchshofer (London: Batsford, 1968), 9–20.

thus modified and optimised towards various goals (reproduction, natural expression, health and vitality). Hediger often remarked that "[t]he animal does not live on bread alone"[27]—referring to the need for psychological, as well as physiological, natural nurture. Scientific knowledge of animal conduct here entwined closely with biopolitical intercession: "In the daily routine work of the zoo one is often able, as an animal psychologist, both to predict accurately the behaviour of an animal in a particular situation, and to take appropriate practical measures to forestall the kind of behaviour expected".[28] The subjective comportment of animals became a domain of ethopolitical intervention around which the discourse and practice of zoo biology was built. While it maintained its own necessary relationship to animal death, this biopolitics was principally concerned with *making live*, with correctly and effectively intervening to enrich and nurture the physical and psychological health, well-being and naturalness of its animal wards.[29] This was an essentially productive dispositive of pastoral power devoted to the thorough, individualised care of nonhuman living beings, in which the knowledge of zoo biology, ethology and animal psychology was indissociable from a programme devoted to the production of vital norms. Power over animal lives here passed through not only their bodies but, particularly, their souls, scientifically known and shaped by their keepers.

3 The Repressive Hypothesis and Human-Animal Relations

Thus animal subjectivities have long been fully incorporated into biopower as objects of knowledge, power and intervention. It is inadequate to understand human-animal relations entirely through the lenses of domination, exploitation, mechanisation, exclusion and violence. Foucault's thought allows us to problematise not only the negative operations of power whereby the weak are supressed and made invisible, but also power in its productivity insofar as it

27 Hediger, *Man and Animal in the Zoo*, 129; *Wild Animals in Captivity*, 120.

28 Hediger, *The Psychology and Behavior of Animals*, 2. Knowledge of animal social interactions was also of practical use: "The results of research in animal sociology are not of purely scientific and theoretical interest, but are often of prime importance for the management of zoological gardens. If we wish to handle an animal properly, be it a fish, a song-bird or a giraffe, we must know about the rules and ceremonies essential in each case for intercourse between animal and animal." (62) See also 60, 230–1.

29 Matthew Chrulew, "Preventing and Giving Death at the Zoo: Heini Hediger's 'Death Due to Behaviour'," in *Animal Death*, ed. Fiona Probyn-Rapsey and Jay Johnston (Sydney: Sydney University Press, 2013), 221–238.

opens up new domains of intervention to classification and government, to inescapable visibility.[30] The zoopolitical task is to critique *together* objectification and subjectification, both the animalising reduction and the biopolitical production of human and nonhuman life. It is certainly true that human power over animals is often one-sided to the extent that, as Foucault put it, "in the extreme it constrains or forbids absolutely".[31] But such power is "nevertheless always a way of acting upon . . . acting subjects by virtue of their . . . being capable of action"[32]—and this remains so (albeit in varying ways) in the case of nonhuman subjects in all their multiplicity.

Yet the significance of animal subjectivity and its productive investment by biopower has not yet been fully recognised in contemporary theories of human-animal relations. In Jacques Derrida's late lectures on the beast and the sovereign, he denies the significance of Foucault's "threshold of biological modernity", arguing that our relationships to animals (including those in the zoo) are still governed by the logic and structure of sovereign violence.[33] Similarly, Giorgio Agamben's analysis of the anthropological machine does not fully recognise animals as subjects of productive biopower, but rather—in his figures of the worldless tick and the bisected bee—maintains them as abject examples of bare life.[34] Even in Nicole Shukin's incisive materialist analysis of the impacts on animals of contemporary biopower and capitalism, the attention to animal subjectivity is minimal; animals are analysed through the rubric of *rendering*, a double entendre referring both to the mimetic reproduction of animals as images, and the violent reduction of animal bodies to useful or useless remains.[35]

Critiques of zoological gardens and other regimes of human-animal power relations have likewise regularly exposed their violence and domination. Yet as the example of Hediger's zoo biology shows, against this repressive hypothesis, animals are in fact understood, produced and governed today not

30 Michel Foucault, *The Will to Knowledge: The History of Sexuality, Volume One*, trans. Robert Hurley (London: Penguin, 1998); Michel Foucault, "Truth and Power," trans. Colin Gordon, in *Power/Knowledge: Selected Interviews and Other Writings 1972–1977*, ed. Colin Gordon (New York: Pantheon Books, 1980), 109–133.

31 Foucault, "The Subject and Power," 220.

32 Ibid.

33 See Jacques Derrida, *The Beast & the Sovereign*, Vol. 1, ed. Michel Lisse, Marie-Louise Mallet and Ginette Michaud, trans. Geoffrey Bennington (Chicago & London: The University of Chicago Press, 2009); Chrulew, "'An art of both caring and locking up'."

34 Agamben, *The Open*, Chrulew, "Animals in Biopolitical Theory."

35 Nicole Shukin, *Animal Capital: Rendering Life in Biopolitical Times* (Minneapolis: University of Minnesota Press, 2009), 156, 197.

only as passive, suffering victims, world-poor and naked, as bare life, reducible to machines, things and remains, but as *subjects of worlds*. The recognition of their subjective experience, behaviour and autonomy does not undermine their biopolitical management but, in a great number of cases, is precisely the scientifically knowable means of its optimisation and intensification. It is not only silent, impoverished or mechanical animals with which power is concerned but also, and perhaps today distinctively, animals as unique subjects of meaning and action, animals whose capacities of world formation, whose own species-specific and individual experiences, abilities and understandings, are the object of knowledge and intervention, are that by which certain outcomes—such as truth, obedience, productivity or wildness—are produced.

We have, then, some reason to be circumspect regarding the renaissance of animal subjectivity that is often celebrated as itself undermining the profound and wide-reaching domination of nonhuman animals. The proliferation of animal subjects that Chebili and Lestel identify as following in the wake of the death of man—whether witnessed in theories of animal rights and welfare, in attempts to provide legal personhood to great apes, or in the empirical recognition of different species' unique and meaningful modes of perception and points of view—puts paid to the Cartesian reduction of animals to machines and challenges forms of interspecies domination. Yet it does not undermine their subjection to dispositives of biopower; the subjectivity of animals has often been taken up as the very means of their management. Indeed the most effective forms of power over animals are often those that wield the most precise knowledge of animal mind and behaviour—and are thus able to intervene so as to shepherd and transform them all the more effectively and intensively.

For example, the current resurgence of interest in the *Umwelt*-theory of theoretical biologist Jakob von Uexküll often seems to take it as an antidote to the Cartesianism uncovered by thinkers such as Derrida in the history of Western philosophy, and by others in reductive forms of biology from behaviourism to sociobiology.[36] In his introduction to the new translation of Uexküll's most famous work, Dorion Sagan argues that Uexküll's attention to the semiotic elements of inner experience excluded by Cartesianism and neglected by post-Darwinian biology "is to our lasting benefit." As Sagan explains:

> The notion of a distinct perceptual universe for honeybees and other animals is Uexküllian. Uexküll sees organisms' perceptions, communications,

36 Jacques Derrida, *The Animal That Therefore I Am*, ed. Marie-Louise Mallet, trans. David Wills (New York: Fordham University Press, 2008); Eileen Crist, *Images of Animals: Anthropomorphism and Animal Mind* (Philadelphia: Temple University Press, 1999).

> and purposeful behaviors as part of the purpose and sensations of a nature that is not limited to human beings. Uexküll's conviction that nonhuman perceptions must be accounted for in any biology worthy of the name . . . is a welcome tonic against the view that nonhumans are machine-like and senseless.[37]

A welcome tonic it may be—and as many thinkers, Lestel among them, have shown, the figure of the beast-machine has been a key weapon in our society's war against animals.[38] Yet the recognition of animal subjectivity alone does little to problematise many of the ways in which animals are governed today. It is particularly inadequate to focus, as Sagan does, only on the place of Uexküll's proto-zoosemiotics within the domain of scientific knowledge, without also analysing the effects of such knowledge in the domain of power.[39]

The Uexküllian perspective on animal subjectivity is already accounted for and indeed operationalised in Hediger's biopolitical techniques and strategies. Brett Buchanan has elucidated the conceptual reception of von Uexküll's "soap bubbles" in Continental philosophy.[40] The theoretical biologist's leisurely strolls through the woods also have their practical counterparts in Hediger's brisk and thorough morning inspections of his zoos. A student of Adolf Portmann, Hediger was an anti-reductionist who insisted that animals were not at all machines but biological organisms with unique perceptual worlds—the better to keep and manage them in captivity. He used Uexküllian theories of the ways in which animals construct their phenomenal worlds and understand anthropogenic changes in their habitats in order to make practical interventions to both zoological exhibits and national park wildlife management. By taking into account the significance to animals of humans and introduced objects, he was able to more effectively intervene so as to ward off the problematic psychological impacts of captivity and to enrich their

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37 Dorion Sagan, "Introduction: Umwelt after Uexküll," in Jakob von Uexküll, *A Foray into the Worlds of Animals and Humans, with A Theory of Meaning*, trans. Joseph D. O'Neil (Minneapolis: University of Minnesota Press, 2010), 1–34 (4, 3). "With Uexküll the inner real comes back in the realization that not only do we sense and feel, but so do other sentient organisms; and that our interactions and signaling perceptions have consequences beyond the deterministic oversimplifications of a modern science that has bracketed all causes that are not immediate and mechanical." (8)

38 See, for example, Dominique Lestel, *L'Animal est l'avenir de l'homme: Munitions pour ceux qui veulent* (*toujours*) *défendre les animaux* (Paris: Fayard, 2010).

39 See, for example, Sagan, "Introduction," 25.

40 Brett Buchanan, *Onto-Ethologies: The Animal Environments of Uexküll, Heidegger, Merleau-Ponty, and Deleuze* (Albany: State University of New York Press, 2008).

experience of enclosure. Indeed the strategic application of the Uexküllian understanding of animal *Umwelten* is at the centre of Hediger's biopolitical techniques of care for and power over captive animals: "The exceptional significance of capture for the wild animal can best be explained in J. von Uexküll's terminology. . . . By capturing it we utterly destroy the animal's previous world, and put it into a different environment. The animal must construct an entirely fresh subjective world."[41] It was thus based on this knowledge of the truth of animals as subjects that Hediger developed superior techniques for their optimised subjectification in anthropogenic milieux,[42] techniques that have gone on to be further honed and employed in the management of living beings not only in zoological gardens, but in an ever increasing number of human modified environments.

Animal subjectivity has today become the domain of distinctive and important struggles. Dispositives of biopower have migrated widely into natural life, from reserves once understood as 'wild' to the mapping and manipulation of genes. Yet whether profiting from flesh or protecting biodiversity, it is through the knowledge of species-specific capacities, behaviours and modes of experience, through communicating with animals as sentient and responsive beings, that power over animals is most effectively enabled. In factory farming not only the bodies but the personalities, emotional states and behavioural traits of animals are measured to maximise both productivity and 'welfare'; Temple Grandin's autistic empathy with the cow's point of view only streamlines the production of docility and death.[43] The dispersers of feral animals and pests, alongside the managers of wildlife, know all too well what it is like for them when they design their snares and ruses. And in the programmes of reintroduction and provisioning where cooperating conservation and zoo biologists seek to make captive animals survive in the 'wild' of fragmented habitats, it is the animals' skills, knowledge and capabilities that they know, modify and rehabilitiate, ultimately to reverse their very subjection to and dependency on

41 Hediger, *Wild Animals in Captivity*, 27–28. See also Hediger, *Man and Animal in the Zoo*, 75–95.

42 Hediger refers to Uexküll's insights and theories in order to demonstrate the superiority of his zoo biology, both over naïve attempts to keep animals, and over inadequate zoological theories that fail to consider the significance of the environment to animals.

43 Anna Williams, "Disciplining Animals: Sentience, Production, and Critique," *International Journal of Sociology and Social Policy* 24:9 (2004): 45–57; Matthew Cole, "From 'Animal Machines' to 'Happy Meat'? Foucault's Ideas of Disciplinary and Pastoral Power Applied to 'Animal-Centred' Welfare Discourse," *Animals* 1:1 (2011): 83–101.

human care.[44] In these normative and transformative regimes, new modes of subjectification and forms of shared existence are created. Experimental communities of humans and apes not only provoke the empirical and legal *recognition* of great apes as agents and persons—whose rights Paola Cavalieri defends against the anthropocentrism of antihumanists like Foucault[45]—but in fact *produce* unprecedented animal subjectivities, new types of beings with singular capacities.[46] And despite the efforts of keepers to design 'natural' exhibits and replicate 'wild' behaviours, zoos can not help but elicit new comportments in their animals, to generate new interspecies relations with the public, with the keepers, with other animals. The same questions recur everywhere that humans and animals mutually transform each other in dissymmetrical yet negotiable relations of power and knowledge.

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Certainly, animal bodies have been subjugated through the reduction and occlusion of their capacities to know and to respond. But they have equally been produced and formed through the ever more accurate comprehension of their abilities and perspectives. Alongside the deconstruction of neo-Cartesian reductionism and the critique of the exclusion of a mute and animalised "bare life", it is important to recognise and analyse the persistence of a form of productive and subjectifying ethopower that operates upon nonhuman animals as experiencing subjects and resisting agents in its task of nurturing their life, health and welfare. Foucault's attention to power relations and modes of subjectification, as part of a materialist genealogy of inscribed animal bodies and souls, remains indispensible for the theoretical strengthening of animal studies as a critical field that can effectively attend, beyond animality in literary and philosophical texts, to the technologies of power and discourses of knowledge that perpetuate institutional speciesism.[47] At a time when biopower wagers

44 Matthew Chrulew, "Saving the Golden Lion Tamarin," in *Extinction Studies: Stories of Time, Death, and Generations*, ed. Deborah Bird Rose, Thom van Dooren and Matthew Chrulew (New York: Columbia University Press, forthcoming).

45 Paola Cavalieri, "A Missed Opportunity: Humanism, Anti-Humanism and the Animal Question," in *Animal Subjects: An Ethical Reader in a Posthuman World*, ed. Jodey Castricano (Waterloo: Wilfrid Laurier University Press, 2008), 97–123.

46 Dominique Lestel, *Paroles de singes: L'Impossible dialogue homme/primate* (Paris: Découverte, 1995); Lestel, *L'Animal singulier*, 47–58.

47 Cary Wolfe, *Animal Rites: American Culture, the Discourse of Species, and Posthumanist Theory* (Chicago: The University of Chicago Press, 2003); Cary Wolfe, *Before the Law:*

not only the life of the human species but all species life, entire planetary systems and ecologies, our task is a zoopolitics of truth.

What are the crucial questions regarding animals today? Perhaps we can adapt the perspective that Foucault liked to take on the Kantian question of Enlightenment, which understood "the task of philosophy as a critical analysis of our world . . . Maybe the most certain of all philosophical problems is the problem of the present time, and of what we are, in this very moment."[48] In terms of human subjectivity, this Kantian question of *Who am I, who are we today?* replaces the Cartesian question of the universal, timeless subject. And so too must we displace the mechanomorphism of the Cartesian problematic, with its reductive animal-machine, as well as the anthropocentrism of the Kantian problematic, to ask of the proliferation of nonhuman subjects that follows the death of man: not just, *Do they think?* or even *Can they suffer?* but *Who are they, these others, today?* And *Who might they—we—become?*

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48 Foucault, "The Subject and Power," 216. See also Michel Foucault, "What is Enlightenment?" trans. Catherine Porter, in *The Politics of Truth*., ed. Sylvère Lotringer (Los Angeles: Semiotext(e), 2007), 97–119.

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CHAPTER 10

Biopower, Heterogeneous Biosocial Collectivities and Domestic Livestock Breeding

Lewis Holloway and Carol Morris

1 Introduction

This chapter explores Foucault's concept of biopower[1] and its focus on the regulation and fostering of life. It examines the analytical potential of Foucault's anthropocentric conceptualisation in examples involving nonhuman animals. Specifically, it explores the empirical case study of livestock breeding in the UK, focusing on the increasing use of 'genetic' knowledge-practices in this context. It is argued that genetic techniques represent new ways of regulating life, and are associated with the emergence of a particular mode of biopower in livestock breeding which can be seen as part of a wider social process of 'geneticisation'.[2] The chapter concentrates on the idea of 'population', a central element of Foucault's discussions of biopower, but develops a more heterogeneous sense of the term via an engagement with the notion of 'biosocial collectivity'.[3] As such, the chapter attends to the conceptualisation of nonhuman actors within the set of analytical tools provided by Foucault's biopower. First, after outlining the notion of biopower, it is argued that, from the basis of its focus on life, nonhuman animals can be understood in terms of relations of biopower, drawing on conceptions of population and biosocial collectivity. Second, the chapter examines empirically how new genetic knowledge-practices might be reconstituting the populations and biosocial collectivities associated with livestock breeding. Third, it is suggested that the emergence of

1 Michel Foucault, *The History of Sexuality, Volume 1: An Introduction*, trans. Robert Hurley (Harmondsworth: Penguin, 1990); *"Society Must Be Defended": Lectures at the Collège de France 1975–76*, ed. Mauro Bertani and Alessandro Fontana, trans. David Macey (London: Penguin, 2003); *Security, Territory, Population: Lectures at the Collège de France 1977–1978*, ed. Michel Senellart, trans. Graham Burchell (Basingstoke: Palgrave Macmillan, 2007).

2 Donna Haraway, *Modest_Witness@Second_Millennium.FemaleMan©_Meets_OncoMouse™: Feminism and Technoscience* (London: Routledge, 1997); Evelyn Fox Keller, *The Century of the Gene* (Cambridge: Harvard University Press, 2000); Nikolas Rose, "The politics of life itself," *Theory, Culture and Society* 18 (2001): 1–30.

3 Paul Rabinow and Nikolas Rose, "Biopower today," *Biosocieties* 1 (2006): 195–217.

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genetic knowledge-practices might signal a new inflection of biopower, tied to new senses of population and biosocial collectivity.

Before going further, we briefly describe the shifts in livestock breeding practices that are referred to during the rest of the chapter and seen as a radical transformation by some commentators.[4] Livestock breeding has traditionally relied on a set of knowledges about animals which are in part tacit, in part informed by formal statements concerning what particular groups of animal should look like (e.g. 'breed standards'), and in part formalised records relating to specific animals (e.g. pedigree certificates). Breeding is strongly associated with the notion of 'breed', a concept emerging from the late eighteenth century and more recently, in the late nineteenth century. It is a process that has been institutionalised into breed societies, organisations which champion, catalogue and promote their particular breed.[5]

More recently, breeding technologies drawing on genetic knowledge-practices have emerged and are becoming increasingly important in how some breeders understand and manage their animals. Two technologies in particular have become important interventions.[6] First, Estimated Breeding Values (EBVs), often referred to as the 'genetic value' of an animal, are based on the principles of classical genetics and have been used by some for several decades. They are statistical calculations, based on records from individual animals and their relatives, of the probability that an individual will pass on specific heritable qualities to their offspring. The second technique, genetic

4 Alan Archibald and Chris Haley, "What can the genetics revolution offer the meat industry?" *Outlook on Agriculture* 32 (2003): 219–226; Stephen Bishop and John Woolliams, "Genetic approaches and technologies for improving the sustainability of livestock production," *Journal of the Science of Food and Agriculture* 84 (2004): 911–919.

5 Margaret Derry, *Bred for Perfection: Shorthorn Cattle, Collies and Arabian Horses Since 1800* (Baltimore: Johns Hopkins University Press, 2003); Harriet Ritvo, *The Animal Estate: The English and Other Creatures in the Victorian Age* (Cambridge, MA: Harvard University Press, 1987).

6 See Lewis Holloway, "Aesthetics, genetics and evaluating animal bodies: locating and displacing cattle on show and in figures," *Environment and Planning D: Society and Space* 23 (2005): 883–902; Lewis Holloway and Carol Morris, "Exploring biopower in the regulation of farm animal bodies: genetic policy interventions in UK livestock," *Genomics, Society and Policy* 3 (2007): 82–98; Lewis Holloway and Carol Morris, "Boosted bodies: genetic techniques, domestic livestock bodies and complex representations of life," *Geoforum* 39 (2008): 1709–1720; Lewis Holloway, Carol Morris, Ben Gilna and David Gibbs, "Biopower, genetics and livestock breeding: (re)constituting animal populations and heterogeneous biosocial collectivities," *Transactions, Institute of British Geographers* 34 (2009): 394–407; Carol Morris and Lewis Holloway, "Genetic technologies and the transformation of the geographies of UK livestock agriculture," *Progress in Human Geography* 33 (2009): 313–333.

markers, is at an experimental stage as far as most breeders and breed societies are concerned. Markers, identified from animals' blood or hair samples, are actual genetic material associated with a heritable quality, such as meat tenderness. Marker tests are commercially available, with the companies providing them arguing that they will enhance decision making regarding livestock breeding and management.

In the next section Foucault's conceptualisation of biopower is outlined in a little more detail, before an argument is developed for a more heterogeneous sense of biopower which draws on the notion of biosocial collectivity.

2 Biopower, Populations and Biosociality

Foucault developed his thoughts on biopower in the first volume of his *History of Sexuality* and in parts of two lecture courses delivered in 1976–77 and 1977–78 (published in English as *"Society Must be Defended"* and *Security, Territory, Population*). For Foucault, biopower relates to systems of knowledge and strategies for intervention which are focused on the vital characteristics of human bodies. Biopower is centred "on the body as a machine: its disciplining, the optimisation of its capabilities, the extortion of its forces, the parallel increase of its usefulness and docility, its integration into systems of efficient and economic controls . . .".[7] Biopower is divisible into two related elements, an 'anatamopolitics', which focuses on the individual human being, and a 'biopolitics', which operates at the level of a population. Foucault placed the emergence of biopower in a particular historical and geographical context, that of Western Europe in the late eighteenth century. This period demanded a strategy for managing newly concentrated populations during a period of industrial and agricultural revolution and urbanisation,[8] associated with new forms of uncertainty requiring new ways to foster and regulate circulations of people and goods. As Rose suggests, biopower comes out of a struggle to understand and intervene in the lives of subjects, "a multitude of attempts to manage their life, to turn their individual and collective lives into information and knowledge, and to intervene on them".[9] At this time, then, new human

7 Foucault, *History of Sexuality*, 139.

8 Foucault, *Security, Territory, Population*; Stephen Legg, "Foucault's population geographies: classifications, biopolitics and governmental spaces," *Population, Space and Place* 11 (2005): 137–156.

9 Nikolas Rose, *The Politics of Life Itself: Biomedicine, Power and Subjectivity in the Twenty-First Century* (Princeton: Princeton University Press, 2007), 53.

sciences (e.g. demography) and new administrative institutions associated with the establishment of the nation state, combined and produced biopower as a mode of power-knowledge which "analyses, regulates, controls, explains and defines the human subject, its body and behaviour".[10] In this mode, new phenomena, such as birth, death and morbidity rates, are given definition, and become important as targets for intervention.

Rose points to the importance of population in conceptualising biopower, arguing that biopower represents the "management of life in the name of the well-being of the population as a vital order and of each of its living subjects".[11] Consequently, defining population as the group to be intervened on is very significant.[12] Foucault's account of the emergence of biopower argues that it is associated with changing understandings of population. During the latter part of the eighteenth century, and into the nineteenth century, population became "considered as a set of processes to be managed at the level and on the basis of what is natural in these processes".[13] This emergent way of conceptualising population is important. For, instead of assemblages of individuals who can be, through force and disciplinary relations, required to perform in particular ways, populations as *natural processes* are uncertain, unpredictable and difficult to direct and regulate. As such, "if one says to a population 'do this', there is not only no guarantee that it will do it, but there is quite simply no guarantee that it can do it".[14] Population regarded as a set of natural processes pertaining to collections of bodies thus requires quite specific modes of knowledge and intervention, so that "the naturalness identified in the fact of populations is constantly accessible to agents and techniques of transformation . . .".[15] This accessibility is one produced by, in particular, quantified and statistical means of measuring, representing and knowing populations, processes of statistical normalisation which act to formalise what behaviours and other characteristics are, and are not, acceptable, and disciplinary and other modes of intervention which act to transform bodies and populations.

Significantly, in terms of the development of the understanding of biopower, Rabinow and Rose turn away from the geographically-bounded sense

10 Geoff Danaher, Tony Schirato and Jenn Webb, *Understanding Foucault* (London: Sage, 2000), ix.

11 Rose, *The Politics of Life Itself*, 52.

12 Hubert Dreyfus and Paul Rabinow, *Michel Foucault: Beyond Structuralism and Hermeneutics* (Brighton: Harvester Press, 1982).

13 Foucault, *Security, Territory, Population*, 70.

14 Ibid., 71.

15 Ibid.

of population which characterises Foucault's discussion. For Foucault, it was the populations of nation states, in particular, that were intervened on through the mechanisms of biopower. Rabinow and Rose, conversely, see the association between people and space as only one way of conceptualising populations. They write that biopower relates to "strategies for intervention upon collective existence in the name of life and health, initially addressed to populations that *may or may not be territorialized* upon the nation, society or pregiven communities, but may also be specified in terms of emergent biosocial collectivities, sometimes specified in terms of categories of race, ethnicity, gender or religion, as in the emerging forms of genetic and biological citizenship".[16] Two points arise from this. First, as already mentioned, populations do not have to be, although they *may* be, territorialized. Second, other emergent phenomena, notably 'biosocial collectivities', can also be defined and related to population. Biosocial collectivity, for Rabinow, refers to the shaping of identities and forms of group activism by the emerging 'truths' of genetic science.[17] Biosocial collectivities can therefore be interpreted as intentional groupings in which what is at stake in a set of social relationships is a fundamentally biological issue. That is, it is to do with a problem of life itself,[18] and is increasingly expressed around "new sites of knowledge (genetic, molecular biology, genomics) and power (industrial, academic, medical)".[19] This sense of the biosocial collectivity as an active formation contrasts with the notion of population as a rather more passive term. Population comes into existence as a result of power-knowledge relationships functioning external to it and giving it definition, and is something which is intervened in, although that does not mean that its processes are fully understood or under control.

Foucault's and Rabinow and Rose's writing on biopower is characterised by an assumption that the target of biopower's power-knowledge relationships and of strategies and mechanisms for intervention, is humans. Rabinow and Rose also depict their biosocial collectivities in terms of groups of people. This perspective is widened here to include nonhumans as members of

16 Rabinow and Rose, "Biopower today," 197, emphasis added.

17 Paul Rabinow, "Artificiality and enlightenment: from sociobiology to biosociality," in *The Science Studies Reader*, ed. Mario Biagioli (London: Routledge, 1999), 407–416; Sahra Gibbon and Carlos Novas, "Introduction: biosocialities, genetics and the social sciences," in *Biosocialities, Genetics and the Social Sciences*, ed. Sahra Gibbon and Carlos Novas (London: Routledge, 2008), 1–18.

18 Sarah Franklin, "Life itself: global nature and the genetic imaginary," in *Global Nature, Global Culture*, ed. Sarah Franklin, Celia Lury and Jackie Stacey (London: Sage, 2000), 188–227.

19 Gibbon and Novas, "Introduction," 3.

populations and biosocial collectivities, and the next section discusses how this can be approached.

3 Population, Biosociality and Nonhumans

Foucault's placing of the emergence of biopower in a particular time and space has not prevented many seeing its relevance in other historical and geographical contexts. Although Rabinow and Rose have been critical of some attempts to apply 'biopower' as a general label rather than examining its pertinence to specific phenomena, their set of three elements characteristic of biopower, summarised as "a knowledge of vital life processes, power relations which take human beings as their object, and the modes of subjectification through which subjects work on themselves qua living beings",[20] provides a useful model for such examination. It is noticeable, however, that relatively little attention has been paid to the nonhuman constituents of the power-knowledge relationships constituting incidences of biopower. There are some exceptions, however. Rutherford, for example, makes a case for the extension of the analytics of biopower to cover all life, not just the human, and in a similar fashion, Youatt argues that "the 'bio' in biopower should be taken seriously as involving all of life". Twine has identified biopower as an analytical tool for the exploration of how animal bodies are situated in the knowledge-practices of agricultural biotechnology and we have argued elsewhere that fertile ground for a process of testing the analytical value of biopower is provided by the cases of genetic techniques in livestock breeding and robotic milking technologies in dairy farming.[21]

Indeed, it is the very focus of biopower on the 'fostering' of life itself which makes it productive as a possible way for thinking through human-nonhuman relationships which involve the intervention by people in the bodies and lives of agricultural animals. For Twine and for Wadiwel, nonhuman life can be apprehended through the lens of biopower because of its focus on those

20 Rabinow and Rose, "Biopower today," 215.

21 Stephanie Rutherford, "Green governmentality: insights and opportunities in the study of nature's rule," *Progress in Human Geography* 31 (2007): 291–307; Rafi Youatt, "Counting species: biopower and the global biodiversity census," *Environmental Values* 17 (2008): 393–417 (409); Richard Twine, "Animal genomics and ambivalence: a sociology of animal bodies in agricultural biotechnology," *Genomics, Society and Policy* 3 (2007): 99–117; Lewis Holloway, "Subjecting cows to robots: farming technologies and the making of animal subjects," *Environment and Planning D: Society and Space* 25 (2007): 1041–1060.

vital processes—nutrition, reproduction, illness, death—which are common to different forms of nonhuman and human animal life.[22] Similarly, Haraway's understanding of biopower as "the practices of administration, therapeutics, and surveillance of bodies that discursively constitute, increase and manage the forces of living organisms" does not discriminate between the human and the nonhuman.[23] At one level, then, livestock are considerable as populations, or groupings, of one sort or another, which are the subject of power-knowledge relations, are known about in terms of processes, and are intervened on in attempts to steer those processes towards goals of productivity or efficiency, for example. Nonhuman populations can be seen as constituted by the knowledges and interventionary practices defined as relations of biopower. As such, these populations or emergent groupings of livestock can be explored in terms of their territorialized (or other) boundaries, and in terms of associated biosocial collectivities with an interest in managing the life processes of a particular grouping of cattle or sheep.

At a second level, however, Rabinow and Rose's sense of biosocial collectivity can be developed in ways that are not limited to the inclusion only of humans. Collectivity can be conceptualised in ways that allow nonhuman animals to be regarded as members, along with humans, of heterogeneous collectivities. This heterogeneous sense of collectivity draws on the insights of Foucault's writing on biopower in relation to specific types of human-nonhuman relationship, in this case in fields and farmyards and through the knowledge-practices of livestock breeding. Haraway's drawing of different species into complex entanglements[24] suggests the formulation of more relational conceptions of biopower in which people work on nonhuman others as part of their work on themselves. In redefining biosocial collectivities as heterogeneous, it is suggested that the inter-species relationships within collectivities are important in terms of how the fostering of animal life is a joint product of the human and the nonhuman.

The chapter now turns to an empirical examination of population and collectivity, drawing on in-depth interviews with the representatives of ten beef cattle breed societies and eleven sheep breed societies conducted between May and July, 2008. Breed societies in the UK are constituted as charities, and have the fundamental objectives of promoting and 'improving' their particular

22 Twine, "Animal Genomics", 99–117; Dinesh Joseph Wadiwel, "Cows and sovereignty: biopower and animal life," *Borderlands e-journal* 1:2 (2002).

23 Haraway, *Modest_Witness*, 11.

24 Haraway, *Modest_Witness*; Donna Haraway, *When Species Meet* (Minneapolis: University of Minnesota Press, 2008).

breeds and registering newly-born animals as members of the breed. Drawing on this research, the following sections explore the effects of genetic techniques in livestock breeding on, respectively, the construction of populations and the constitution of heterogeneous biosocial collectivities.

4 Beef Cattle and Sheep: Constructing Populations

A complex array of specific techniques constitutes the field of intervention in the breeding of livestock animals. These include selection 'by eye' (based on breeders' visual assessment of their animals), the use of pedigree and performance records, breed society standards and objectives, artificial insemination, embryo transfer, and the use of EBVs and genetic marker technologies. The techniques are associated with truth claims concerning the relationships between particular sorts of knowledge and the predicted quality of resulting offspring, and these truths are themselves associated with authorities ranging from breeders (whose authority derives from their standing within a breeding community), to breed societies (whose authority is associated with formalised modes of describing and recording animals) and agricultural scientists (whose authority is associated with established modes of producing scientific knowledge).

Although the truth claims being made, and the authorities which are linked to them, are interesting and are key to a conceptualisation of biopower, the focus here is on the different ways in which populations are constituted in relation to different techniques for intervening in livestock reproduction. Again there is a complex array of such populations, intertwined with and constituted alongside various interventions. The different types of population to some extent correlate with a range of both geographical scales and scales of scope. For instance, 'national' populations of animals are described, and this can relate to an entire species (e.g. cattle or sheep) or to national populations of a particular breed of cattle or sheep. The national population of a breed may itself be more complex, understood as a collection of other populations referred to as 'strains', 'types' or 'lines', on the basis of their recorded pedigree. For example, the representative of a large hill sheep breed[25] said that,

> there are three distinct types within the breed, what we call, the Lanark type, the main, the largest number, numerically it is the largest part of the breed, they tend to be the most hill type sheep, they are quite compact

25 Breed names have been removed to preserve interviewees' anonymity.

> and very hardy . . . The Perth type is rather larger, but not quite so hardy, they need to be onto some better ground, and then we have got the North of England type . . .

At the same time, however, populations can be defined through processes of intervention at both larger and smaller scales. International populations of a breed are particularly important, for example. Yet, even though such larger scale populations are constituted through transnational techniques (e.g. semen/embryo transfer or the movement of live animals), for many breed societies the emergent differences between animals of a particular breed between different national spaces is also important and reflected in the reference to distinct *national types*. At the international scale, interventions in livestock breeding are profoundly influenced by the national and international breed associations, by national political and scientific institutions which intervene in the agriculture of their respective countries, and by trade regulations. At the other end of the scale, populations can be defined in terms of the individual flocks or herds established on particular farms, and which are the subject of the interventions of the individual breeder.

Breed is clearly a key signifier—probably the most important as far as those involved in breeding are concerned—in the way that these populations are constituted. Breeds are bound up with sets of truth claims concerning the ability of animals within a breed to 'breed true' when they reproduce, the authority of breed societies to set breed standards and to record pedigrees, and specific interventions such as the maintenance of 'herd books' in the breeding of livestock to ensure, record and construct 'purity' (see below). The breed, in this sense, is constituted as a population delimited by the recorded relationships between sets of individual animals, and between living animals and their ancestors. However, the concept of breed is given new inflections in the light of genetic techniques. Two examples illustrate this.

4.1 *Estimated Breeding Values*

EBVs are produced as a result of the detailed logging of information about individual animals. Raw data are collected by breed societies, and passed to a company contracted to calculate a range of EBVs using a statistical process referred to as Best Linear Unbiased Predictor (BLUP). BLUP determines the probability that an individual animal will pass on particular qualities to its offspring, by relating that individual's data to data collected from its relatives. EBVs can be presented in various ways, for example numerically or graphically, and tend to be combined into more generalised indices such as the Beef Value, which combines EBVs relating to meat productivity, and the

Calving Value, which combines EBVs relating to maternal qualities. EBVs and indices derived from them are frequently used in marketing animals at livestock sales, on websites and in breed society magazines. Increasingly, 'good' EBVs add financial value to an animal.[26] They are also used in making decisions about which animals to breed together, with breeders being encouraged to look for animals likely to contribute particular qualities to their herds and the existence of on-line tools that predict EBVs for progeny from hypothetical matings.

As such, EBVs change the ways in which breeds are understood by adding new sets of *processes* to those which are already in place and through which the breed is understood and on which attempts are made to intervene. As discussed above, it is this understanding of populations as sets of processes which, for Foucault, marked a radical change in the power relations governing interventions in lives and life.

While we do not suggest here that genetic techniques mark the *advent* of process-defined senses of population in livestock breeding (fertility rates, growth and feed conversion rates, etc., have long been core to knowing and managing populations), such techniques can define and measure *new* and *quite different* processes, associated with and producing new modes of intervention. With EBVs, for example, processes relating to ideas of genetic improvement add new layers of data and foster new possibilities for intervention, redefining what is understood by a breed population. Examples of this are, first, the way in which certain animals come to be referred to as within the top 5% or 10% of their breed population, and second, the ways in which each animal becomes positioned in relation to a breed average, in attempts to normalise the genetic quality of the breed. For example, a continental cattle breed society representative described how,

> You're also looking at the performance figures, these EBV's, estimated breeding values, which again come from, you know, background data from, again, sire and dam, so the more information you've got, the correct accuracy of the figures and also they are measuring different weights at so many days, 200, 300, 400, 500 day weight and that's all ploughed into the system and crunched up. The muscle score is measured, the muscle depth, the fat depth, you know elements like that all go into giving you a figure for an animal. So it is giving you a figure, let's say for a bull, it's giving an estimated breeding value of +40 which puts it in the top 1% of breed or +25 puts it in the top 25% breed and also the dam.

26 Holloway and Morris, "Boosted bodies".

Certainly, then, EBVs seem to foster particular sorts of knowledge and intervention, which are defined, afforded or constituted by the technology of the EBV system. The following comment from a cattle society emphasises this way of thinking in relation to breeding.

> I don't think anybody looking into the future in the beef industry, you can't go forward without knowing the genes, the genetics. I mean just to go on appearance and colour I think is a joke.

EBVs *reinforce* the notion of breed, as the technologies used can only develop comparisons *within* existing breed populations; breeding values cannot be compared across breeds. They may also emphasise the differences *between* breeds, as, for instance, one breed society representative argued that the available EBV systems, as provided and marketed by commercial institutions, were oriented towards larger and faster growing animals than those of the breed he represented, which instead focused on meat quality based on slow growth.

4.2 *Genetic Markers*

Genetic markers, which work on the basis of the identification of actual genetic material in individual animals, are not dependent on breed relationships at all and potentially have more radical implications for breeds. This point was made by one cattle breed society representative, who felt that his breed had been unfairly criticised for being associated with a particular inherited 'problem'; "we've said that you can't be breed specific, you've got to be specific to the genetic problem, right. The genetic problem is the double muscled animal which is carrying the myostatin gene . . . and that includes native breeds".[27] The argument here is that the focus needs to be on the presence or absence of specific genetic material in *individual animals*, regardless of the reputation of their breeds.

Genetic markers, then, have the potential to destabilise the need for breeds as populations altogether. In some scenarios at least, there may be little need for *breeds* as a guarantee of pedigree and 'quality', and instead *individual* animals may be understood and managed in relation to the presence or absence of specific genetic material. Merial, for example, a company marketing marker tests, claims to have identified markers which could be used to alter breeding programmes and animal management. As Merial claims via its website in relation to its IGENITY marker test,

27 Myostatin is a muscle growth regulator. Deficiencies in myostatin, which are associated with particular markers, can produce 'double muscling' in cattle: this may be sought, as it leads to production of more meat, but it can also cause problems such as difficult calvings.

> The addition of analyses related to feed efficiency makes the comprehensive IGENITY profile more powerful to help producers make better decisions about their cattle and help reach their goals faster . . . Producers can get inside information about traits such as quality grade, fertility and now feed efficiency that are essential to profitability in the beef industry—all from a single DNA sample.[28]

In this way, new populations, associated with new processes of genetic relationality and corporeal management, and with trademarked tests for specific markers, might be constituted.

Yet the idea that breeds might become less significant in the face of genetic markers was actually not the sense gained from breed society representatives, perhaps not surprisingly. Where markers were discussed by breed society representatives, they were regarded as offering potential additional tools for intervention within existing breed population structure. They might, for instance, be incorporated within EBVs as so-called 'Molecular Breeding Values' (MBVs). Markers might thus produce new truths, new forms of molecular authority and other inflections of the notion of breed population, through the deployment of such interventions.

The genetic techniques described here are heavily reliant on systems of measurement, recording and statistical processing. These techniques are thus important in the constitution of the processes which themselves define the livestock populations under discussion. They both *represent* these processes (through, for example, tabulated or graphically-presented data showing change in a breed population's 'performance' over time) *and* produce those processes in the first place in the way that only certain bodily characteristics or performance indicators are attributed with a value that makes them worthy of measuring. The specific piece of data known as '400 day weight', for example, is constructed as knowledge which is worth having, and as data on the 400 day weights of many animals are accumulated and presented in various ways, a process of genetic variability and change within a population can be mapped. Again, this is not new: breeds are founded on meticulous recording and documentation, of ancestry in particular, and breed 'improvement' has long been associated with records of animals' productivity. But we can identify an intensification and increasing complexity here in terms of the amounts of data generated, processed and deployed in the breeding of livestock, often through

28 Merial IGENITY http://www.igenity.com/news/pressreleases/June30-2008-1.aspx. Accessed July 25, 2008.

an international network of institutions, associated with new contours of knowledge surrounding how breeding is conducted. In turn, this is likely to affect how breeders 'see' and relate to their animals, changing the criteria upon which they make breeding decisions to take account of these 'new' forms of knowledge produced within international networks of recording, calculation and prediction.

EBVs and genetic markers suggest that new truths are being produced about livestock animals by authorities increasingly positioned to be able to make such truths powerful in breeding practices, hence changing to a greater or lesser degree the scope of interventions possible in livestock breeding. Livestock populations, in particular breeds, may be both reconfirmed and challenged as this happens. EBVs, for instance, are partly a new technique applied to an already existing population, but the sense of population and the processes it is known through change as EBV techniques are deployed. In this way a population is not just a group of animals but a set of processes which can be intervened in, in attempts to guide them in particular directions while acknowledging that this guidance is highly problematic and uncertain, given the complexity of the processes and the animal bodies under consideration.

In the next empirical section, the focus shifts from populations to the biosocial collectivities associated with livestock breeding and the constitution of particular populations of animals, paying particular attention to first, the way that they can be considered as heterogeneous, and second, the particular effects such collectivities have on the lives of both humans and nonhumans.

5 Biosociality, Collectivities and Livestock Breeding

Key to an understanding of breeds as heterogeneous biosocial collectivities is the breed societies themselves, along with the specific mechanisms deployed by breed societies to establish and record breed membership—in particular, the herd or flock books in which populations are enumerated. These books are regarded as authoritative carriers of truths about their particular breed (often literally referred to as 'bibles'), whose active presence is a part of breed societies' efforts to construct and represent a population's 'purity'. The purpose of the breed society, one sheep breed representative said,

> . . . is partly to safeguard the integrity of the breed, if you like. I mean, there is a very detailed description of the breed laid out in our constitution . . . the breed is very pure, and has had nothing introduced to it and that has been maintained by the constitution.

Herd/flock books might as such be regarded as a technology; they have a material existence, purpose and effect on a livestock population. Yet these documentary technologies are also hybrid, since they list and associate both humans and nonhumans. The same sheep breed representative said of his flock book,

> It contains the details of every animal which has entered the flock, male or female, and details of all the members, council members, the annual reports and finances of the society and all that sort of thing.

This list, of animals, humans and other sorts of records and data, begins to map out a heterogeneous biosocial collectivity. This makes herd and flock books powerful instruments for interventions in the lives of animals *and humans* because they bring together and record animal populations, and form the basis for a lot of decision-making in livestock breeding. Authority and truth emerge from these heterogeneous, trans-species relationships. The following comments from the representative of a large breed society which had grown from a position in the 1960s where the breed had almost disappeared highlight this, as truths about a breed identity are constructed and a new institution is created which embodies and enacts those truths:

> . . . by 1964 the situation was really bad and there were only about half a dozen serious breeders left. They got together and they decided they had to do something, so they went around and *identified what they regarded as true* [breed name] and there were about six or seven hundred of these, that was all that was left, and *they made a concerted effort about 1971 they set up the* [*breed name*] *Society which was based on those six or seven hundred sheep that they identified*. There were no records or anything, so they were the founding [breed name] sheep. (emphasis added)

Breed societies as biosocial collectivities are important then in their interventions in livestock breeding. As well as maintaining herd or flock books, they also define in material, bodily terms just what the members of a population should be like. The representative of a smaller cattle breed society, for example, said that,

> The breed improvement committee has a couple of meetings a year . . . We have a tight classification system . . . [where] . . . on visual inspection, an animal is pointed for various different things, breed character, conformation, mobility, temperament and the score accordingly is munched into a computer and comes out with an average score.

These processes of inspection and classification do not merely describe. They are active interventions in the joint lives of breeders and animals, potentially affecting in complex ways exactly which animals are bred to which, and which animals are considered to be legitimate members of particular breed populations. This can, too, be seen in the references made to genetic techniques in attempts to guide breeders' breeding practices. Here, a cattle breed society representative describes an attempt to intervene in breeding decisions:

> Well what we say is that we've got a responsible guide to calving management. This is our responsible guide to selection of sires which kicks back to genetic evaluation . . . what we're trying to do is to pull our calving stats[29] down to the bovine norm for the pedigrees.

Within biopower, processes of normalisation in relation to populations are crucial modes of intervention,[30] and here are identified attempts to normalise one population—the breed in question—in relation to another population—the bovine species—in attempts to deflect criticism that the breed experiences more 'problem calvings' than is acceptable. In this case, both the animals (in terms of their corporeal characteristics) and the breeders (in terms of their judgements and decisions) are acted upon through the breed society's attempts to guide processes of breeding future generations of livestock.

Similarly, other modes of intervention can be recognised as the products of the heterogeneity of breed societies. A sheep breed society representative referred to the power breeders had to foster the perceived malleability of animal bodies, suggesting an almost unlimited ability to intervene in and transform bodies and lives.

> . . . with five years breeding we could make something that looks like a Texel and had a hundred and forty percent lambing, or we can make something which is sixty kilos but doing, hundred, no probably two hundred and ninety percent lambing. We got all these bloodlines in the breed . . . There is nothing that we know of currently in terms of breeding that's a real problem for us to achieve.[31]

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29 I.e. the percentage of cows suffering difficult calvings.

30 Foucault, *Security, Territory, Population*.

31 The Texel is a large 'terminal sire' used to produce meaty lambs in a cross-breeding programme. Lambing percentages refer to the mean number of lambs produced per hundred ewes: a 290% lambing percentage would mean that on average 100 ewes produced 290 lambs per year—a very high rate.

Here, the heterogeneity of the breed society biosocial collectivity is emphasised by the particular sorts of human-nonhuman relationships enacted through such statements about the power-knowledge relations being played out in livestock breeding practices.

As with populations, particular ways in which new genetic interventions in livestock breeding are transforming heterogeneous biosocial collectivities can be identified. For example, the knowledge relationships afforded by these interventions provide novel inflections on breed societies and herd/flock book records, and indeed, reliable and accurate record keeping is essential to the functioning of these new interventions. For example, a large sheep breed society representative reported on the history of particular schemes for 'improving' animals:

> It started off, there had been a group of us, I guess about 24, 20–24 members in a breeding group that was set up, called the sire reference, the [breed name] Sire Reference Scheme. They have renamed themselves this year Premier [breed name] Breeders and we've been using EBVs and indices . . . [for] a good twenty years, anyway we've been as a group using EBVs and in that time we've managed to get fat levels down and, if I'm being realistic, the sheep that have got at times, say 5–6 years ago that had very high final index scores were probably too lean.

Such comments, which name and entangle humans and sheep, emphasise that interventions in the lives of domestic livestock emerge from the heterogeneous relationships constituted by and constituting breed societies as biosocial collectivities. The objectives referred to, such as reducing fat levels, simultaneously represent strategies for intervention in animal lives and require the establishment and maintenance of formalised relationships, here institutionalised as named groups, between breeders, and between breeders and livestock animals. The comments also indicate the complexities of such interventions which are reliant on genetic indices. As the interviewee suggests, it was possible to go too far and have the unintended consequence of sheep which were too lean. Further, they point to the way in which such interventions are also to do with the construction of subjectivity and identity. To be a 'Premier Breeder' a breeder needs to engage with genetic knowledge-practices, and to intervene in particular ways in the lives and bodies of their sheep, in ways which mark them out as more 'progressive' than 'ordinary' breeders.

Each breed society and its annually-published herd or flock book can thus be seen as the nexus of a set of power-knowledge relationships crucial to the relations of biopower evident in livestock breeding. At one level, they establish

and map out a breed as a population, showing which individual animals are formally registered as pedigree members of the breed and how they are related to each other. But at another level they are co-produced along with associated populations, represent truths about populations, act as authorities in relation to a specific breed, and are essential to attempts to intervene in the processes constituting breed populations. Finally, at a third level, breed societies herd animals and humans together, herd or flock books tie humans to animals by their detailed listings of animals *and* breeders, emphasising the ineluctably close relationships between them; they are records then of heterogeneous biosocial collectivities. Genetic techniques are producing new inflections to these relationships, reconstituting these heterogeneous biosocial collectivities as these new modes of intervention affect how animal bodies are known and worked with.

6 Conclusions

Livestock breeding can be seen as a series of moments and spaces in which species meet.[32] Most obviously, humans intervene in the lives of nonhuman animals, transforming their bodies and experiences in sometimes quite radical ways. The new genetic techniques discussed herein are only the latest in a long series of interventions aiming to invest the lives of livestock and guide the processes constituting livestock populations.

Foucault's concept of biopower can be a powerful analytical tool in relation to nonhumans. In particular, the focus of biopower on life itself makes it extremely relevant to livestock breeding, and it is possible to identify specific sets of power-knowledge relationships. Within these, truths about the life of livestock are articulated and put into practice, centred around the continuing investment in animal life. As such, then, Foucault's emphasis on the constitution of particular populations, which are known about and intervened on in particular ways, relates directly to the production of different groupings of livestock at different scales. These populations are not simply predefined, but within the biopolitics and biogeographies of livestock breeding they co-emerge with the interventionary techniques, both shaped by and shaping the techniques over time.

At the same time, livestock breeding can be seen as a process of co-producing humans and nonhumans, and as it has been argued here, building on Rabinow and Rose's terminology, heterogeneous biosocial collectivities

32 Haraway, *When Species Meet*.

which include humans and livestock animals. These collectivities are, too, co-produced within particular biogeographies, incorporating animal and human bodies along with sites such as farmyards, agricultural showgrounds, breed society offices and herd/flock books. Developing this sense of heterogeneity in relation to biosocial collectivities is important in the first instance because it emphasises co-production within collectivities which are active in the sense that they have particular purposes and constitutions. They are also active in constituting populations, that is, in delimiting the membership of groupings which are subject to particular interventions and which are known in particular ways. Heterogeneity is also important in helping us to begin to deal with a key element of Rabinow and Rose's conceptualisation of biopower—subjectification. While arguing that nonhuman animals can experience the same processes of reflexive, self-disciplinary subjectification that humans (according to Foucault's theorisation) do is problematic, if the hybridity of collectivities such as breed societies is accepted, then it is possible to move towards developing understandings of a decentred, or distributed subjectivity, in which disciplinary and subjectification processes act on livestock breeders and livestock animals *together*. A more heterogeneous understanding of biopower in relation to livestock breeding is therefore produced, in which its power-knowledge relationships are important in their simultaneous subjectification of humans and material effects on livestock animals. Relations of biopower are not new in agriculture. However, biopower is not a generalisable, unchanging structure, instead its relationships take specific forms in relation to particular moments, geographies, sites and cases. Thus, the particular focus on the notion of 'population' in this chapter demonstrates the specificity of biopower to particular biogeographical circumstances. That is, populations are effected differently in relation to different breeding techniques and different scales of analysis, for example. Two final points follow.

First, in relation to genetic techniques in livestock breeding a particular mode of biopower is emerging, analogous in many ways to the forms of biopower described by Rabinow and Rose regarding biomedicine.[33] Genetic breeding techniques are associated with, *inter alia*, particular ways of knowing animals, particular types of scientific expertise in relation to breeding, an emergent biogeography associated with genetics organisations, and particular constructions of, and interventions in, animal populations. This marks them out as being established within different power-knowledge relationships as compared to other knowledges and interventions. This is evident, for example, in the new institutional relationships surrounding genetic involvement in livestock breeding, and the new ways of measuring and representing

33 Rabinow and Rose, "Biopower today".

'improvement' by which the processes constituting livestock populations are known. Yet at the same time, genetic techniques have not simply supplanted more 'traditional' modes of relating to livestock animals. Both provide inflections on the other, and there are fierce debates in breed societies and elsewhere about the relative merits of, for example, EBVs and visual selection.

In relation to this the second point is that emerging modes of biopower in livestock breeding do not supplant *other* modes of power relationship. Indeed, Foucault is clear that 'earlier' modes of power, such as sovereign power or disciplinary power, do not disappear in the face of an emergent biopower, but that instead they may re-emerge in new forms in relation to biopower. In the case of livestock animals, the *absolute* power that humans have over their lives and deaths is all too evident in particular agricultural practices.[34] And returning to earlier comments on subjectification and heterogeneous biosocial collectivities, attempts by breed societies and other institutions to discipline breeders into thinking about, and acting on, livestock animals in particular ways are identifiably part of the co-constitution of the identities and bodies of humans and livestock, as are the possible modes of resistance or counter-conduct which challenge the increasing dominance of geneticisation in livestock breeding.[35] The very material effects of new genetic techniques are thus tied to processes of subjectification within heterogeneous relations of biopower.

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34 Lewis Holloway, Carol Morris, Ben Gilna and David Gibbs, "Choosing and rejecting cattle and sheep: changing discourses of (de)selection in pedigree livestock breeding," *Agriculture and Human Values* 28 (2011): 533–547.

35 Lewis Holloway and Carol Morris, "Contesting genetic knowledge-practices in livestock breeding: biopower, biosocial collectivities and heterogeneous resistances," *Environment and Planning D: Society and Space* 30 (2012): 60–77.

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PART 4

Government and Ethics

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CHAPTER 11

Apum Ordines: Of Bees and Government

Craig McFarlane

1 Introduction

Perhaps it all amounts to nothing. That is, nothing but a historical curiosity best left forgotten by the history of thought or, at best, left to graduate students in search of a sufficiently obscure dissertation topic. Most genealogists of government accept that the art of government did not seriously penetrate English thought until the advent of liberal political economy in the eighteenth century. My historical curiosity, a long forgotten text first published in 1609 as a manual for would-be apiarists, might present a significant example of the art of government in early seventeenth century English thought. Of course, the questions remains, why bees? Why an apiarist rather than one of the well-known canonical political philosophers? Those questions are not easily answered and fall beyond the scope of this essay. Here I wish to carefully outline grounds for believing that the art of government may have been introduced into English thought far earlier than expected.

In his famous lecture on governmentality, Michel Foucault refers to Guillaume de La Perrière's *Le Miroir politique* where he discusses the king of the honey bees as an ideal example of political rule. The entire passage, which is not discussed by Foucault, reads as follows, "Every governor must also have patience, following the example of the King of the honey bees, who has no sting at all, by which nature wanted to show mystically that Kings and governors of Republics must employ much more clemency than severity towards their subjects, and more equity than harshness."[1] Comparing the 'king' of the bees to the ruler of the human political community—not to mention comparing the beehive itself to the political community—is an ancient idea, receiving consideration in both Aristotle's *Politics* and his *History of Animals*. In these works, Aristotle recognizes that bees are, in a sense, political animals but, in another sense, they are not. What Aristotle means is that while bees live in communities and work co-operatively they are not fully political in the sense of being able to deliberate on law, justice, politics, and rule. That is, bees lack the

1 Michel Foucault, *Security, Territory, Population: Lectures at the Collège de France 1977–1978*, ed. Michel Senellart, trans. Graham Burchell (New York: Palgrave Macmillan, 2007), 113n29.

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capacity to reflect upon the foundations of their community. Hence, he comments, "man is much more of a political animal than any kind of bee or any herd animal is clear."[2] Bees would also be considered by many other ancient and early Christian writers, among others, Pliny in his *Natural History*, Virgil in *Georgics*, and Ambrose's *Hexæmeron*. This is but a partial list.

The point which I'd like to make in this short essay is that bees and the art of government converge rather nicely in seventeenth century English thought. The most obvious example of bees in seventeenth century English political thought is found in Thomas Hobbes who, in each of his major political works (*Elements of Law, De Cive*, and *Leviathan*), finds it necessary to attack Aristotle's interpretation of the beehive. The point of contention for Hobbes, relative to Aristotle, is whether or not the political community must be conceived as 'natural' or 'artificial.' That Hobbes does so is interesting in itself, but it is not the point I wish to raise. Rather, I wish to discuss a long series of texts, largely written by apiarists, on bees, their politics, and the extent to which the bees provide an exemplar of governmental practice for monarchs. Like La Perrière, these writers make much of the fact that the beehive is ruled without the use of sovereign power, symbolized by the stinger, and tends to be ruled in accordance with affect, habit, and economy. While this discourse is immense, I'll limit myself to an analysis of Charles Butler's *The Feminine Monarchie*.

Reflection on the relation between bees and politics would reach unprecedented heights in seventeenth century England and continue through the middle of the eighteenth century. The central text in the political discourse on the bee is Charles Butler's *The Feminine Monarchie, or, A Treatise Concerning Bees, and the Due Ordering of These* which was published in its first edition in 1609. Subsequent editions would appear in 1623 and 1634; two separate Latin translations appeared in 1673 and 1682; and, finally, it was translated back into English from Latin in 1704. All subsequent treatises on bees, their nature, their politics, and the proper way of managing a beehive were written in relation to Butler's text: *The Feminine Monarchie* overdetermined the discourse on the bee until the mid-eighteenth century. Significant works in this genre included Thomas Hill's (1563) *A Profitable Instruction of the Perfite Ordering of Bees*, Edmund Southerne's (1593) *A Treatise Concerning the Right Use and Ordering of Bees*, Gervase Markham's (1614) *Cheape and Good Husbandry for the Well-Ordering of All Beasts and Fowls*, John Levett's (1634) *Ordering of Bees, or, The True History of Managing Them*, Richard Remnant's (1637) *A Discourse or Historie of Bees: Shewing Their Nature and Usage, and the Great Profit of Them*, Samuel

2 Aristotle, *Politics*, ed. Jonathan Barnes, vol. 2, The Complete Works of Aristotle: The Revised Oxford Translation (Princeton: Princeton University Press, 1984), 1253a8.

Hartlib's (1655) *The Reformed Common-Wealth of Bees*, Samuel Purchas's (1657) *A Theatre of Politcall Flying-Insects: Wherein Especially the Nature, the Worth, the Work, the Wonder, and the Manner of Right-Ordering of the Bee, is Discovered and Described*, John Gedde's (1675) *A New Discovery of an Excellent Method of Bee-House and Colonies*, John Worlidge's (1676) *Apiarium, or, A Discourse of Bees, Tending to the Best Way of Improving Them, and the Discovery of the Fallacies that are Imposed by Some, for Private Lucre, on the Credulous Lovers and Admirers of These Insects*, and, lastly, "the royal beemaster," Moses Rusden's (1679) *A Full Discovery of Bees: Treating of the Nature, Government, Generation & Preservation of the Bee*. Controversy surrounding bees would continue well into the eighteenth century, especially in relation to the sex of the monarch, which Butler is regarded as the first to correctly identify.[3] Interest would also remain in the comparison between the organization of the beehive and organization of human communities, the most notable example being Bernard Mandeville's doggrel poem, "The Grumbling Hive, or, Knaves Turn'd Honest" (1705) and his *The Fable of the Bees, or, Private Vices, Publick Benefits* (1714, 1723).[4] Other significant eighteenth-century English texts included John Warder's (1712) *The True Amazon, or, The Monarchy of Bees*, John Gedde's (1721) *The English Apiary, or, The Compleat Bee-Master*, John Thorley's (1744) *Melissologia, or, The Female Monarchy* and his *An Enquiry into the Nature, Order, and Government of Bees* (1765) and, lastly, John Mills's (1766) *An Essay on the Management of Bees*.

3 "The ancient parallel between human society and the beehive was never more popular than in the Stuart period when numerous published treatises on bee-keeping gave as much attention to the insects' political virtues as to their practical utility. [. . .] Writers laid heavy emphasis on the hive's monarchical structure, though the embarrassing discovery that their monarch was not a king, as had always been assumed, but a queen, remained controversial until the 1740s. 'A Queen-Bee,' explained an encyclopedia in 1753, was the 'term given by late writers to what used to be called the King-Bee.'" Keith Thomas, *Man and the Natural World: A History of the Modern Sensibility* (New York: Pantheon, 1983), 62. Thomas overstates the case. Nearly all seventeenth century authorities agreed with Butler against the ancient sources, such as Aristotle and Pliny, that the monarch was female. See F. R. Prete, "Can Females Rule the Hive? The Controversy Over Honey-Bee Gender Roles in British Beekeeping Texts of the Sixteenth-Eighteenth Centuries," *Journal of the History of Biology* 24:1 (1991): 113–44.

4 Both are collected in Bernard Mandeville, *The Fable of the Bees: or, Private Vices, Publick Benefits*, ed. F. B. Kaye (Oxford: Clarendon Press, 1957).

2 The Problematic of Rule in Early Modernity

Charles Butler was not a political theorist and, insofar as he theorized the political, he was not particularly original. The century prior to the publication of *The Feminine Monarchie* saw the publication of much more important works such as Machiavelli's *The Prince* in 1532, Jean Bodin's *Six Books of the Commonwealth* in 1576, and Giovanni Botero's *Reason of State* in 1589. Likewise, the following century saw the publication of Thomas Hobbes's *Leviathan* in 1651, Samuel Pufendorf's *On the Duty of Man and Citizen* in 1675 and John Locke's *Two Treatises of Government* in 1689. *The Feminine Monarchie* was not even the most important work of political theory published in 1609, justly being overshadowed by Hugo Grotius's *Mare Liberum*. Why then talk about a text as insignificant as Butler's? One reason is that this minor text brings into close relief how politics, but especially the relation between the ruler and the ruled, was conceived by average, educated men of the period. Another reason concerns the similitude Butler constructs between the beehive and the political community. The beehive has traditionally been used as a model for understanding human political communities; Butler's text significantly re-interprets this ancient model in light of larger contemporary discussions of politics and rule. The period between *The Prince* and the *Two Treatises of Government* saw the destruction of the medieval cosmology and its understanding of politics and the creation of modernity and its understanding of politics. That is, the slow movement from politics organized around sovereignty to one organized around government. Sitting between these two extremes, *The Feminine Monarchie* sheds light on how these problematics sorted themselves out.

The destruction of the medieval understanding of rule led to a general problem of rule in early modernity, of which the modern concepts of sovereignty and government, among others, are a result. In Michel Foucault's interpretation, sovereignty—parsed through Machiavelli—was understood as the attempt by the prince to maintain control over his territory over time while government—parsed through the "anti-Machiavellian" art of government literature—sought to articulate the interests of the state, as opposed to those of the prince, which depended upon concepts such as population, health, wealth, happiness and the like.[5] Thus, a distinction and a division was created between sovereignty and forms of government (e.g., reason of state, police, political

5 Foucault, *Security, Territory, Population*. For the distinction between the prince as a natural person and the state as an artificial person or corporation (of which the natural person of the prince is the 'head'), see Ernst H. Kantorowicz, *The King's Two Bodies: A Study in Medieval Political Theology* (Princeton: Princeton University Press, 1997) and Quentin Skinner,

economy, liberalism) and it is suggested that government displaces sovereignty as the locus of political power. In effect, sovereignty was about territory, while government was about relations, "the proper disposition of things."[6]

The Prince is identified more or less with sovereignty, in this case understood as a "synthetic" link that connects the ruler to the territory, which he has obtained through inheritance, acquisition, or conquest. Regardless of the means of possession, the prince has no natural or necessary link to the territory. Foucault argues that this link is "external" and "transcendent" because of the lack of any necessary connection between ruler and territory (i.e., obtained through inheritance, acquisition, or conquest) and because the prince constitutes the principality through the link (i.e., it is transcendent).[7] In the absence of a prince, there can be no territory, just unclaimed space—a political vacuum. Consequently, sovereignty is a form of power that seeks to hold out over time against challengers, who may come from within or without the territory, which accounts for the importance of juridical modes of power, such as the right to wage war against other sovereigns and the right to punish subjects. The goal of ruling is to protect and strengthen the *link* between the prince and his territory rather than any particular concern with the territory itself, its inhabitants, or the characteristics of either. The approach of sovereignty is negative insofar as it creates laws aimed at deduction: of money through taxes and of limbs through penal codes.

This is the entry point of the art of government, which maintains that holding on to territory over time is not the same as possessing the art of government. In contradistinction to the ruler/territory relationship, the governor/governed relationship is multiple and plural: monarchs, emperors, lords, magistrates, judges, popes, bishops, priests, and fathers among many others govern. Government, then, is not used in the contemporary sense of 'the' government, for instance the political party presently 'in power,' but in a much more general sense as 'the conduct of conduct.' As such, the ruler/territory relation is but one possible—and limited—form of government. These other forms of government can all be described as "internal" or "immanent" to that which is to be governed. In other words, there are few—if any—general principles which can be applied to all situations that are to be governed; the plurality of modes of government works in opposition to the singularity of the sovereign and

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The Foundations of Modern Political Thought, 2 vols. (Cambridge: Cambridge University Press, 1978).

6 Quoted in Foucault, *Security, Territory, Population*, 96. The discussion that follows in this section is largely adapted from ibid., 87–114.

7 Ibid., 91.

juridical mode of rule. To further complicate matters, government by or of the state is not the only form of the art of government. Many organizations and persons seek to govern and, frequently, the same "thing" is governed by a multiplicity of authorities, some of which are beyond the state.

Take François de La Mothe Le Vayer as an example. In a series of texts written in the late seventeenth century for the Dauphin, La Mothe Le Vayer argues there are three general forms of government: of the self (morality), of the family (economy), and of the state (politics). To govern the self is different than to govern the family, which are both different than governing the state.[8] However, despite their irreducibility, these forms of government are nonetheless similar in that they are non-sovereign modes of rule premised upon the 'conduct of conduct' rather than the imposition of law upon subjects. Of particular importance in these texts is the notion of an upward and downward continuity. Before a prince can govern his family, he must be able to govern himself and before a prince can govern the state, he must be able to govern his family. Hence, an upwards continuity:

self/morality→family/economics→state/politics.

The chain also works in reverse. If the prince is able to govern the state, then fathers will be able to govern their families, and if fathers can govern their families, then individuals will be able to govern themselves. Hence, there is also a downwards continuity:

state/politics→family/economy→self/morality.

Two important consequences follow: first, order at one level begets order at another level and, second, the level of the family/economy plays an essential role in the transmission of order insofar as it connects the political rule of the state to the moral rule of the individual. In other words, the economy mediates between the individual and the state.

While differences in forms of government have been shown, as has their relation to one another, the specific meaning of government as a practice has not yet been shown. For this, we must turn to Guillaume de la Perrière where he claims "government is the right disposition of things arranged so as to lead to a suitable end."[9] This idea of "things," again, is in opposition to the Machiavellian theory that rule concerns the synthetic and transcendent

8 Note that economics is still being used in the ancient sense of household management.

9 Quoted in Foucault, *Security, Territory, Population*, 96.

link between ruler and territory. This link is not a "thing" in the relevant sense. For La Perrière, things are the relations humans have with their environment: wealth, resources, the features of the territory, customs, habits, as well as accidents, famine, death, and the like. A commonly given example in these texts is the metaphor of a ship: to govern a ship is to govern sailors, to care for the vessel and cargo, to have knowledge of the shipping lanes, the ability to deal with misfortunes that may arise (illness, storms), and so on. The ultimate result is that government is not the application of *laws* (which Foucault identifies with sovereignty), but the disposition, or ordering, of things through *tactics* (which Foucault identifies with government). Government is the structuring of the field of action available to others, but it is "neither warlike nor juridical."[10] For instance, a juridical solution to underpopulation in a given country might be to force reproduction (e.g., "All women of child-bearing age must produce at least one child in the next five years"); a governmental solution would to be create a positive environment for reproduction (tax benefits tied to number of children, generous maternity/paternity leave, access to affordable daycare, etc.) and immigration (easy to obtain work permits, payments for immigration, access to cheap housing, etc.).

Lastly, the government of things depends upon "patience, wisdom and diligence."[11] Here La Perrière has recourse to the metaphor of the beehive: the "king-bee" rules without having a stinger.[12] The meaning of this, given to us by God and revealed in nature, is that the ruler does not need a sword—a traditional emblem of royal power—in order to govern well. Rather than relying upon violence and the law, the ruler should make use of his virtues: of his patience, wisdom, and diligence. It is precisely this call for patience, wisdom, and diligence that is emphasized in *The Feminine Monarchie*.

3 Honey and Silk

The bee is the "chiefe and most worthily to be admired" among all the insects because they are the only insects "bred for the behoof of men."[13] This, of

10 Michel Foucault, "The Subject and Power," in *Michel Foucault: Beyond Structuralism and Hermeneutics*, 2nd ed. (Chicago: University of Chicago Press, 1983), 208–226 (221).

11 Foucault, *Security, Territory, Population*, 99.

12 La Perrière erroneously believed that the "king-bee" did not have a stinger at all; this is not the case—see below.

13 Charles Butler, *The Feminine Monarchie, or, A Treatise Concerning Bees, and the Due Ordering of These* (Oxford, 1609), A2r.

course, is clearly not the case as other insects, especially the silkworm, were used to produce goods for human consumption. The reference to silkworms in Butler's text is significant. In January 1607, James I enacted a series of measures to encourage the introduction of a domestic silk industry.[14] Among these measures included a license to William Stallenge to print a book entitled *Instructions for the Planting and Increase of Mulberry Trees, Breeding of Silkworms, and Making of Silk* and an order that landowners purchase and plant ten thousand mulberry trees to be delivered the following spring.[15] The king himself had mulberries planted at Hampton Court Palace and there are records of the attempt lasting on his land a decade later. Finally, in 1619 after a lack of success in England, James I attempted to encourage the production of silk in North America. All these attempts failed seeing no successful introduction of silk production into England until after the expulsion of the Huguenots following the revocation of the Edict of Nantes in 1685, many of who were skilled silkworkers.

Two insects are bred for the benefit of man: the bee and the silkworm. Butler draws attention to three ways in which the bee demonstrates its superiority to the silkworm. First, the product of the silkworm only covers the body while the product of the bee "nourishes and cures the soul." Second, the product of the silkworm is only applied externally, while the product of the bee is "inwardly received." Finally, the product of the silkworm is for "comeliness and conveniency," the product of the bee is for "health and necessity."[16] The grounds for preferring the bee to the silkworm are not economic, but moral: the bee contributes to the health of the soul and body; its products are useful necessities rather than vain luxuries.[17] The silkworm's products are the

14 Measures of this sort had a long history in England because the English were jealous of the wealth generated by the silk industries in Italy and France. Attempts to introduce the silkworm into England extended as far back as Henry IV's reign. See John Feltwell, *The Story of Silk* (Phoenix Mill: Alan Sutton, 1990).

15 William Stallenge, *Instructions for the Increasing of Mulberrie Trees, and the Breeding of Silke-Worms for the Making of Silke in this Kingdom* (London, 1609), A4r–v.

16 Butler, *The Feminine Monarchie* (1609), A2r–v.

17 The moralization of luxury was, of course, not unique to Butler, but a general and pervasive feature of much Tudor era writing. See Alan Hunt, "Moralizing Luxury: The Discourses of the Governance of Consumption," *Journal of Historical Sociology* 8:4 (1995): 352–74; Alan Hunt, "The Governance of Consumption: Sumptuary Laws and Shifting Forms of Regulation," *Economy and Society* 25:3 (1996): 410–27; and Alan Hunt, *Governance of the Consuming Passions: A History of Sumptuary Regulation* (New York: St. Martin's Press, 1996). Early modern advocates of sumptuary regulation often maintained a 'domino theory' whereby individual luxury leads to social ruin. For instance, the character

complete opposite: silk is used to make ostentatious and expensive clothing; its products are luxuries rather than necessities. Stallenge does not appear to disagree with these views, noting that "our Brother the French King has since his coming to that Crown, both begun and brought to perfection the making of silks in his country, whereby he has won to himself the honour and to his subjects a marvelous increase in wealth."[18] Two points are essential. First is the conflict between rival theories of wealth; that is, does general prosperity derive from the production of necessities for the domestic market or from the production of luxuries for the world market? This question would become exceptionally important in the next century in the debate between the proponents of mercantilism and the proponents of political economy, such as Bernard Mandeville and Adam Smith. The second point is that a king pursuing a luxuries based economy has committed himself to a questionable moral decision: he is foregoing health and necessity in favour of garish decadence. The bee, unlike its close cousin the wasp and the silkworm, is a thoroughly moral and virtuous creature—a point the apiarists, but especially Butler, never tire of raising. In addition to providing a mirror image of the ideal political community, the bee also provides a mirror image of the ideal ordering of the virtues. When the kingdom and the virtues are perfectly ordered at the level of the monarch, then the proper conditions are laid for profitable—albeit not luxurious—production at the level of the commons, pointing to the continuity between the levels of government.

4 Virtue, Order, and Economy

Butler maintains that there is a close connection between the ordering of the virtues and the political structure, which is most clearly evident with bees: because their political structure is perfect, so too are their virtues; and, because they have perfectly ordered virtues, their kingdom is likewise perfectly

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Touchstone in Ben Johnson's *Eastward Ho*: "Of sloth comes pleasure, of pleasure comes riot, of riot comes whoring, of whoring comes spending, of spending comes want, of want comes theft, of theft comes hanging," quoted in Hunt, "Moralizing Luxury," 357; c.f., "And for their persons (which are lovely brown) though they be not long about it yet are they curious in trimming and smoothing them from top to toe, like unto sober matrons, which love to go neat as plain; pied and garish colours belong to the wasp, which is good for nothing but to spend and waste." Butler, *The Feminine Monarchie* (1609), B6r.

18 Stallenge, *Instructions*, B1r.

ordered.[19] A monarch following the model of the silkworm is well on his way to a disorderly and vicious kingdom. If humans could replicate either the political structure or the virtues of the bees, then the other component would follow by the force of necessity because a properly ordered community produces well-ordered virtues and well-ordered virtues produce a properly ordered community. Similarly, once the virtues and the kingdom are ordered, then the proper conditions exist for the profitable flourishing of the kingdom and its subjects. Just as there is a moral bond between the monarch and commons in the hive, there is a similar moral connection between the monarch and commons in the human community. Given the close connection between virtue and political structure posited by Butler, he had extraordinary difficulty separating the two. Discussions of political structure quickly dissolve into discussions of virtue and vice versa.

Butler constantly returns to the relation between morality, politics, and economics, all of which he believes have a natural basis, but for which he is unable to identify or isolate a consistent relation between these three elements. In the "Preface" to *The Feminine Monarchie*, Butler argues that the perfect ordering of the hive and the virtues of the bees reflect one another and, with this relation established, it is possible to talk about economy and profit. In the first chapter entitled "Of the nature and properties of Bees, and of their Queen," Butler begins with an economic argument. In parallel with the "Preface," Butler compares the bee to other insects ultimately determining that "bees are most to be admired."[20] The basis of this admiration is neither moral nor political—although the bee is most certainly admirable in these respects as well—but economic because of "all the creatures" (and here Butler moves from insects to the entirety of domesticated animals) provided by God "for the use and service of man" (referring to the donation of dominion by God to Adam in the Garden of Eden at Genesis 1:28), the bee presents its superiority in three ways: (1) the economy and efficiency of its production—"great profit, small cost"; (2) its ubiquity through the world—no other domesticated animal is as geographically dispersed as the bee;[21] and (3) "the continued labour and

19 Witness the prevalence of the word 'order' in the titles of the apiarist texts listed above—especially the near obsession with 'right ordering' and 'perfect order.' The concept of 'order' grounds the discourse surrounding the beehive such that a properly ordered hive will be productive, profitable, stable, happy, and wealthy—not just for the monarch and the higher echelons of the aristocracy, but for the entirety of the hive.

20 Butler, *The Feminine Monarchie* (1609), A1r.

21 One wonders what conclusions Butler would have drawn from African and Africanized ('killer bees') honey bees had he known of them. Might have he drawn conclusions about the relation between climate and temperament as Montesquieu did in his *Spirit of the Laws*?

consenting order."[22] It is the third point, the relation between labour and order, that claims Butler's attention for the next few pages and one he returns to frequently throughout the chapter. This connection between moral ordering and economic production bears a striking similarity to the art of government by La Mothe Le Vayer and La Perrière.

Bees, unlike other wild or domestic animals, combine efficient economic production and a virtuous political structure such that they present an image of a perfectly ordered common-weal. Note that here I write common-*weal* and not common-*wealth*. My usage here runs contrary to the actual word used by Butler, but it better preserves the meaning of his argument for my purposes. Both the words commonwealth and commonweal enter into English in the mid-sixteenth century, translating both *civitas* ('the city') and *respublica* ('the public things').[23] Given that the unit of government was not the city and not quite yet the 'public things' or 'general welfare,' a new term was needed to adequately capture the meanings English writers wanted to convey. Even at the end of the seventeenth century, John Locke felt it necessary to comment on his choice of translating *civitas* as commonwealth rather than republic:

> By *Common-wealth*, I must be understood all along to mean, not a Democracy, or any Form of Government, but *any Independent Community* which the *Latines* signified by the word *Civitas*, to which the word which best answers in our Language, is *Common-wealth*, and most properly expresses such a Society of Men, which Community or Citty in *English* does not, for there may be Subordinate Communities in a Government; and City amongst us has a quite different notion from Commonwealth.[24]

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22 Butler, *The Feminine Monarchie* (1609), A1r–v.

23 On the relation between the cluster of terms surrounding state, commonwealth, city, *civitas, res publica, res communis* and their historical development, see Quentin Skinner, "The State," in *Political Innovation and Conceptual Change*, ed. Terence Ball, James Farr, and Russell L. Hanson (Cambridge: Cambridge University Press, 1989), 91–131. Skinner does not make this observation, but 'commonwealth' is a barbarism, deriving from the Old English *wela* and the Latin *communis*. The anglicanization of *res publica*, 'republic,' did not enter into use until the early seventeenth century, nearly a century after commonwealth entered into common usage. It too combined the meanings found in 'commonwealth' and 'commonweal,' that is, both the subject of government and the object of government.

24 John Locke, *Two Treatises of Government*, ed. Peter Laslett (Cambridge: Cambridge University Press, 1960), TII, §133. Thomas Hobbes, *Leviathan*, ed. Edwin Curley (Indianapolis: Hackett, 1994), xvii, 27 likewise uses commonwealth to translate *civitas*.

Following Locke, we must enquire into why he thought it necessary to use commonwealth rather than any other word.

Contemporary usage of common*wealth* combines two meanings that early modern English frequently, but not universally, kept separate. For us, a commonwealth includes *both* what early moderns would call the common*weal* and the common*wealth*. Early modern usage distinguishes between common*weal*, meaning the common well-being, the general good, prosperity and welfare of the community (i.e., the object of government), and the common*wealth*, meaning the entire body of the people (i.e., the subject of government). 'Wealth,' in this case, did not refer to material goods or riches. Consequently, these words referred to two processes undergoing rapid change in the political theory of early modernity: (1) the purpose of the political community and (2) the identity of the constitutive political subject. Hence, in this case we need to be cognizant of what meaning is intended: the public good or the constitutive political subject.

A significant result of the seventeenth and eighteenth century revolutions—English, American and French—was that the public good and the constitutive political subject become identified with one another. The good that the commonwealth is constituted to protect is the interest of the constitutive political subject; that is, the subject and object of politics becomes one and the same. We need to be mindful of larger patterns of social organization, especially during the transition from 'the estates' to 'the state.' This movement is co-extensive with the subsumption of the common*weal* under the common*wealth*. Thus, what is at stake here is the emergence of the top strata of the third estate (i.e., the people and the nation out of the third estate, or commons) as the dominant economic and political force. At this point, it becomes possible to speak about modern republican governments where there is no hereditary head of state and the government is (more or less) popularly elected by the commons. Hence, the 'common' in 'commonwealth' ultimately comes to refer to this strata.

When Butler is speaking of the commonwealth, he is most certainly talking about the common*weal*; that is, the object of government. He is not referring to a political subject, but to the general good or public welfare of the community:

> for their order it is such that they may well be said to have a commonwealth, since all that they do is in common without any private respect [...] They work for all, they watch for all, they fight for all. [...] their dwelling and diet are common to all alike; they have like common care both of their wealth and young ones.[25]

25 Butler, *The Feminine Monarchie* (1609), A1v.

This description of the ordering of the hive is significant for two reasons. First, it confirms that Butler is not using commonwealth in the modern sense and, second, the hive in Butler's description is surprisingly similar to the late feudal order of Elizabethan England—the very regime that Butler had lived most of his life under—and the then decaying structure of reciprocal rights and duties.

At the level of the symbolic, feudalism represented itself to itself as a system of three interdependent, but separate, orders or estates. Each estate received benefit from the other two while owing them particular duties. The monarch sat outside the system of estates, in effect constituting the kingdom and ensuring order. The first estate, the clergy, was concerned with spiritual matters; the second estate, the nobility, was concerned with defense; and the third estate, the commons, was concerned with producing the necessities of life.[26] Butler's schema repeats the feudal structure—working, watching, fighting—but with a significant change: the function of the third estate appears first, the function of the first estate appears second, and the function of the second estate appears third.

Another version of this re-ordering is found in later editions of *The Feminine Monarchie*, beginning with the 1623 edition.[27] The image appears in all subsequent editions, including the Latin translation. In the image, Butler represents the hive as consisting of four orders or estates, which he calls *Princeps* (first in order; i.e., the monarch), *Duces* (dukes), *Plebs* (commoners) and *Inerros Fuci* (wandering drones). This image is partially at odds with the actual text, which continues to identify working, watching, and fighting as the primary functions.

The image rank-orders the functions *Princeps* inside the hive at the top; *Fuci* outside the hive at the bottom representing them with images of bees of different sizes, along with their relative dispersion within the hive. In Butler's image, there is one *Princep*, at the top, two *Duces*, one on either side of the hive facing *Princep* at a forty-five degree angle, three *Plebs* organized in a triangular pattern, and four *Fuci* placed *outside* the hive—two on each side, one on top of the other. The three internal functions are shown from above while the *Fuci* are shown in profile. The *Duces* and the *Plebs* are represented by the same image, *Princeps* has its own image, which is the largest and is adorned with a crown,

26 In England, the estates were called the Lords Spiritual, Lords Temporal, and the Commons. Once established, the bishops of the Church of England carried the title Lords Spiritual and sat in the House of Lords alongside the Lords Temporal. The lower echelons of the clergy—such as many of the apiarists, including Butler who was the vicar at Wootton St. Lawrence, near Basingstoke—were considered to be part of the Commons.

27 Charles Butler, *The Feminine Monarchie, or, A Treatise Concerning Bees, and the Due Ordering of These* (London, 1623).



FIGURE 11.1 *Charles Butler's imagined beehive.*

while the image of the *Fuci* represent them as a source of riotous disorder in comparison to the orderly arrangement of the *Princeps, Duces*, and *Plebs*.

The image is bordered by a series of mottos. The entire image is entitled *Apum Ordines* ("the order of the bees"),[28] the sides of the image are contained within the motto *SOLERTIA ET LABORE* ("ingenuity and labour"), which appears twice, and the bottom of the image is contained within the motto

28 Variant editions read *Quatuer apum ordines*, the "four orders of the bees."

SOCORDIAM LUIMUS ("we pay for our laziness"). Finally, an epigram appears below the entire image:

> *Miraris arte conditas mirâ domos,*
> *Opesque regales in his reconditas?*
> *Solertiâ et labore fiunt omnia.*

Or, in English,

> Do you wonder at their houses founded with remarkable skill,
> And the royal wealth hidden in them?
> All things are created by their ingenuity and labour.[29]

While the image appears to call into question the structure of the hive presented in the first chapter, the mottos and epigram actually confirm the original presentation of the structure. The key to this is found in the opposition between *solertia et labore* and *socordiam luimus*. The hive is "held in" on the sides by *solertia et labore*, while the phrase *socordiam luimus* is bookended by the two sets of drones. The image is, therefore, presenting a contrast between *princep, duces*, and *plebs*, on the one hand, and *inerros fuci* on the other. The *inerros fuci*, representing the drones who do not work, must "pay for [their] laziness" and have been banished from the hive.[30] The currency of their

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29 I would like to thank my colleague, Professor Josh Beers, of the College of the Humanities at Carleton University in Ottawa for providing these translations.

30 Regarding the drone, Butler writes the following in the fourth chapter under the heading, "The drone no labourer":

> "The Drone, which is a gross hive-bee without sting, has been always reputed for a sluggard, and that worthily for howsoever he brave it with his round velvet cap, his side gown, his great paunch, and his loud voice, yet is he but an idle person living by the sweat of others' brows. For he works not at all, either at home or abroad, and yet spends as much as two labourers, you shall never find his maw without a good drop of the purest nectar. In the heat of the day he flies abroad, aloft, and about, and that which no small noise, as though we would do some great act, but it is only for his pleasure, and to get him a stomach, and then returns he presently to his cheer." Butler, *The Feminine Monarchie* (1609), D5r.
>
> Note the connection between his laziness, ostentatious dress, and gluttony. The comparison between the *fuci* and the so-called 'masterless men,' as able-bodied but poor vagrants of the late sixteenth and seventeenth centuries were often called, is obvious:
>
> "it is still possible to conclude that vagrancy was one of the most pressing social problems of the age. [. . .] Vagrants could face felony charges under many statutes. The crime was taken so seriously because to the dominant classes vagabonds appeared to threaten

payment is banishment because their laziness is a threat to the stability of the hive as a whole: to its "ingenuity and labour." This interpretation is confirmed by the epigram that attributes "the royal wealth" to the ingenuity and labour of the hive as a whole and not, it should be noted, to the sovereign except insofar as the sovereign creates a system of order wherein prosperity is possible. Hence, *solertia et labore* is the foundation of order and prosperity within the beehive.

Returning to the "continual labour, consenting order," Butler argues that there are no internal causes or motivations that can disrupt the labouring process, with one important exception: the presence of two or more queens, which leads either to war or separation of the hive into two swarms.

> But if they have many Princes, as when two fly away with one swarm, or when two swarms are hived together; they strike one of them presently, and sometime they bring her down that evening to the mantle, where you may find her covered with a little heap of Bees, otherwise the next day they carry her forth either dead or deadly wounded. Likewise if the old Queen bring forth many Princes (as she may have six or seven, yea sometimes half a score or more which superfluity nature affords for more surety, in case some miscarry) then left the multitude of rulers should distract the unstable commons into factions, within two days after the last swarm, you shall find them that remained, dead before the hive. [. . .] For the Bees abhor as well polyarchy, as anarchy, God having showed in them unto me an express patterne of a perfect monarchy, the most natural and absolute form of government.[31]

The lesson here is that royal succession must be smooth and transparent, otherwise significant disruptions—if not the complete destruction of the hive—will occur. Labour is continuous because the order is agreeable. In other words,

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the established order. They were 'masterless' in a period when the able-bodied poor were supposed to have masters. They also broke with official conventions of family, economic, religious and political life, some even venturing down the dangerous paths of organized crime and rebellion." A. L. Beier, *Masterless Men: The Vagrancy Problem in England, 1560–1640* (London: Methuen, 1985), xiv.

Come the middle of the seventeenth century, that is, during the Civil War, the poor became much more than a mere social problem, but one of the pressing political issues of the day: were the poor a part of the people? See Christopher Hill, "The Poor and the People," in *The Collected Essays of Christopher Hill: Volume 3, People and Ideas in 17th Century England* (Brighton: Harverster, 1986), 247–73.

31 Butler, *The Feminine Monarchie* (1609), A2r–v.

the hive is perfectly structured such that there are no grounds upon which a bee would ever complain and cease to work. The only factors which may ever impede continual labour are entirely external, such as poor weather, want of resources, or a successful invasion by robbers. The only possible internal cause is that the bees are *so* happy to labour that they may labour *too much* and thus exhaust themselves to the point of death. This opens up a potential problem for Butler (and the other apiarists) which he does not appear to recognize, let alone address: how do you prevent excessive happiness and, thus, overwork? The answer, if there is one, must lie in the opposition between necessity and luxury. Overwork can only lead to overproduction. To overproduce is to produce beyond necessity, which forms the condition for the accumulation of surpluses and, thus, of luxuries. There must be strict regulation of production and consumption; that is, a police: it is good to be happy, but decadent to be *too* happy. Consequently, "their labour never ceases."[32] Ceaseless, tireless and continual labour provides an ideal model for the proper functioning of a political community: "their labour and order at home and abroad are so admirable, that they may be a pattern unto men both of the one and the other."[33] It is at this point that Butler shifts from an economic discourse to a political and moral discourse, crediting the political structure as the source of the continual labour and consenting order:

> all this under the government of one Monarch, of whom above all things they have a principal care and respect, loving, reverencing, and obeying her in all things. [. . .] While she cheers them to battle they fight; when she is silent they cease; while she is well, they are cheerful about their work; if she droops, they faint also; if she die, they will never prosper, then henceforth languish until they be dead too.[34]

Butler concludes, "God having shown in them unto me an express pattern of a perfect monarchy, the most natural and absolute form of government."[35]

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32 Ibid., 1609, A1v. The drones, despite their noted laziness, cannot be a source of disorder internal to the hive because of their precarious existence. The drones have the sole purpose of breeding and are driven out of the hive following breeding. Those drones that do not leave are killed.

33 Ibid., A1v.

34 Ibid., A2r–v.

35 Ibid., A3r. This passage has been incorrectly interpreted as a defense of absolute, divine right monarchy:

"The insectan version of divine-right monarchy is also found in a remarkable work published in 1609 by Charles Butler, *The Feminine Monarchie, or, A Treatise Concerning*

These statements are not innocent. As previously noted, Butler was writing just shortly after the death of Queen Elizabeth I and in the early years of James I's reign. The commonly accepted view was that Queen Elizabeth I, the Virgin Queen, ruled over a golden age in English history seeing the arts, commerce, and state prosper. In comparison, James I (as was his successor Charles I, during whose reign the third edition of *The Feminine Monarchie* was published) was an unpopular ruler and resistance to his rule contributed greatly to the Civil War due to his—as ascribed to him, at least, by his enemies—preference for absolutist monarchy, poor financial management, and his promotion of largely unpopular advisors and ministers at Court. Butler's subtle attacks on James I in *The Feminine Monarchie*, published in 1609, appeared just four years after the failed assassination attempt known as the Gunpowder Plot, or Powder Treason, where a group of Catholics attempted to kill the entirety of the royal family and Protestant aristocracy with a single explosion set off by Guy Fawkes. In addition to the Gunpowder Plot, 1605 also saw the return of the bubonic plague with particular ferocity in London. Hence, the first years of James I's rule saw plague and disorder, both certainly

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the [sic] *Bees, and the Due Order of Them*. This treatise, one of the earliest comprehensive treatments of beekeeping and the habits of honeybees, was published in the reign of James I, the first Stuart monarch of England. Its portrayal of honeybee societies as perfect monarchies seems to go beyond the flattering ornamental statements often prefacing works published under the watchful eye of patron sovereigns: in his opening chapter, after extolling the many virtues of honeybees, Butler marvels that 'all this [is found] under the government of one Monarch, of whom above all things [the worker bees] have a principal care and respect, loving, reverencing, and obeying her in all things.' Butler is serious about the virtues of monarchy, as he goes on to explain why, should the queen 'bring forth many princes,' the new royals will either leave the colony in a swarm or be killed off by the workers: 'For the bees abhor as well polyarchie, as anarchie, God having showed in them . . . an express pattern of a perfect Monarchie, *the most natural and absolute form of government*' (chap. 1, emphasis added). In other words, the bees will not abide more than one leader in the hive, driving off or killing off would-be oligarchs till one ruler remains; God has here provided a perfect monarchical model for people." James T. Costa, "Scale Models? What Insect Societies Teach Us About Ourselves," *Proceedings of the American Philosophical Society* 146:2 (2002): 173–4.

This error derives from two sources. First, that the book was published in the sixth year of James I's reign has little bearing on the politics of *The Feminine Monarchie*. Second, Costa relies upon an anachronistic interpretation of the meaning of 'absolute.' He confuses early seventeenth century uses of absolute with later uses. Butler is using absolute to mean 'complete, perfect.' He is not using it in the sense of 'absolute power,' a meaning which does not enter into common usage for another decade. Costa is correct, however, that the monarchy of the beehive is intended as a model of human societies, he just significantly misidentifies the model.

signs of God's disfavour with his form of rule in comparison with the form of rule adopted by Elizabeth: "if she die, they will never prosper, *then henceforth languish until they be dead too*."[36]

Butler goes on to draw out a comparison between Queen Elizabeth I and the queen bee, which is aimed against the form of rule adopted by James I. In comparison with the divine right monarchy of James I, Elizabeth I's rule was comparatively moderate. Her motto, *video et taceo*, "I see, but say nothing," should be kept in mind given the importance Butler attributes to 'watching' as opposed to acting, but also watching in the 'police' sense of surveillance. Elizabeth I, therefore, according to Butler—in direct opposition to James I, whose hostility to Parliament is well known—operated above and outside the rest of the political structure and her function was to unite the other functions under her steady hand:

> the spear she has [her stinger] is but little, and not half so long as other Bees; which, like a King's sword, is borne rather for show and authority, than for any other use for it belongs to her subjects as well to fight for her, as to provide for her.[37]

The trade-off, then, is that if the monarch is moderate, then not only will the kingdom prosper, but there will be order and peace throughout: the commons will "have a principal care and respect, loving, reverencing, and obeying her in all things."[38] In such a kingdom, a monarch only needs a "little spear" to maintain order and ensure prosperity because these emerge out of governmental management rather than sovereign violence. The health of the commons and of the queen are mutually implied. A moderate ruler ensures that their own good is in tune with the good of the whole, while an immoderate ruler places their own good above the rest. Hence, moderation/immoderation (politics), necessity/luxury (economy) and virtue/vice (morality) are all closely associated with one another. Similarly, should the monarch pursue moderation, virtue and necessity, the fact of having a "little spear" will not be important because the monarch will have no reason to make use of the tools of sovereignty: of commands, of laws, and of violence. However, if the monarch is immoderate and decadent, then the monarch will no doubt have recourse

36 Butler, *The Feminine Monarchie* (1609), A2v, emphasis added. The 1623 edition reads differently: "if she droops and die, they will never after enjoy their home, but either languish there until they be dead too, or yielding to the Robbers, fly away with them." Butler, *The Feminine Monarchie* (1623), B2r.

37 Butler, *The Feminine Monarchie* (1609), A3r–v.

38 Ibid., A2r.

to poor decisions when engaged in ruling and will thus tend to use their "little spear" to rule with violence rather than ruling with virtue—and, obviously, the use of that "little spear" necessarily entails the death of the queen bee.

5 From Monarch to Beekeeper and Back

It is not just the style of rule that Butler identifies. He also draws a connection between the virtue of the bees and the virtue of the beekeeper; after all *The Feminine Monarchie* is ostensibly an apicultural text intended to be used by actual beekeepers. Bees, Butler constantly reminds the reader, display an "incredible power and virtue."[39] This is a particularly interesting section of *The Feminine Monarchie* because it is one of the few places in the entire text where humans play a direct part and points to how the text can be read as advice to the prince because here the monarch and the beekeeper become indistinguishable. Just as it is the purpose of the monarch to display the finest virtues and moderation in order to give coherence and stability to the hive, the beekeeper must approach the hive with virtue and moderation with the goal of regulating the external conditions of the hive (where to place the colony, the form of the hive, the relation between the hive and environment—precisely the aspects that could affect the "continual labour, consenting order" that the queen bee is unable to govern). Proper regulation of the external conditions will enable the hive to prosper; neglect will cause the hive to "languish and die." If the beekeeper takes care of the hive, the hive will take care of him. He isolates four principle virtues: temperance, justice, chastity, and cleanliness:

1. "In the pleasures of their life the Bees are so moderate, that perfect temperance seems to rest only in them."
2. "Also, in their own commonwealth, they are most just, not the least wrong or injury is offered among them."
3. "Their chastity is to be admired. [. . .] They engender not as other living creatures: only they suffer their drones among them for a season, by whose masculine virtue they strangely conceive and breed for the preservation of their sweet kind."
4. "For cleanliness and neatness they may be a mirror of the finest dames. [. . .] For neither will they suffer any sluttery within . . . neither can they endure any unsavouriness without . . . pied and garish colours belong to the wasp, which is good for nothing but to spend and waste."[40]

39 Ibid., B5r.t.

40 Ibid., B5r–v.

The virtues displayed by the bees must be replicated by the beekeeper or anyone else who would approach a swarm or hive:

> But if you will have the favour of your Bees that they sting you not, you must avoid such things as offend them: you must not be (1) unchaste or (2) unclean for impurity and sluttishness (themselves being most chaste and neat) they utterly abhor; you must not come among them (3) smelling of sweat, or having a stinking breath caused either through eating of leekes, onions, garlic, and the like; or by any other means; the noisomeness whereof is corrected with a cup of beer and therefore it is not good to come among them before you have drunk; you must not be given to (4) surfeiting and drunkeness; you must not come (5) puffing and blowing or sweating unto them, neither hastily stir among them, nor violently defend yourself when they seem to threaten you; but softly moving your hand, before your face gently put them by; and lastly you must be (6) no stranger unto them. In a word you must be chaste, cleanly, sweet, sober, quiet, and familiar so they will love you, and know you from all other.

Recall the previously cited passage: "of whom [the monarch] above all things they [the bees] have a principle care and respect, loving and reverencing, and obeying her in all things."[41] The queen and the beekeeper are bound to the hive through a connection of love and respect. Because the bee most perfectly displays the virtues, it is absolutely necessary that any beekeeper who would approach the hive or swarm likewise mimic the virtues as perfectly as possible because vice—be it unchastity, sluttishness, drunkenness, or laziness, which are traits of the drone—is a certain source of disorder that will disrupt the entire hive. Consequently, the virtues of the subjects and the monarch must be in complete harmony and perfect mirrors of one another in order to ensure the "continual labour, consenting order." The lesson, if I understand Butler correctly, is that virtue begets virtue and vice begets vice. The central node in the transmission of virtue/vice is the monarch, thus implying a downward continuity. Should the monarch's desire be properly ordered, then that moral ordering will spread downwards to the lowest tiers of the hive. Likewise, vice spreads in the exact same way. Consequently the monarch—or beekeeper—must always monitor the commons so as to ensure the proper functioning of the hive. However, that monitoring must not extend to violent intervention. The monarch's "spear," being smaller than that of the other bees, "is borne rather for show and authority" than for use.[42]

41 Ibid., A2r.

42 Ibid., A3r–v.

6 Conclusion

The art of government identified by Michel Foucault found its first expression on the European continent in the mid-sixteenth century as a reaction to Niccolo Machiavelli's *The Prince*. The proponents of the art of government argued that to possess the art of government was different than to possess sovereign power, as the art of government is concerned with "the right disposition of things" while sovereign power is concerned with maintaining the synthetic link between prince and principality. A ruler who does not possess the art of government will not be a good ruler. As a result, government must be inculcated in both the prince and the subjects through the intermediary of policy understood as tactics rather than laws. Those writing the history of the art of government have not identified a penetration of government into England until the eighteenth century with the advent of liberal political economy. In this essay I've argued that the art of government was, in fact, taken up in the early seventeenth century in England, albeit not by political philosophers, but by apiarists. The extent to which this discourse on the government of bees influenced politics and political theorists remains obscure. Indeed, there may not be a significant influence at all thus rendering the discourse of the apiarists into a mere historical curiosity—albeit one that possesses a certain degree of charm. Nonetheless, through my careful analysis of Charles Butler's *The Feminine Monarchie*, we have seen that many of the core tenets of the art of government were sufficiently in circulation in England that an apiarist saw fit to include them in his text.

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CHAPTER 12

Animal Friendship as a Way of Life: Sexuality, Petting and Interspecies Companionship

Dinesh Joseph Wadiwel

I thought there's no use getting
Into heavy petting
It only leads to trouble
And seat wetting
"Touch-a, Touch-a, Touch Me," Rocky Horror Picture Show[1]

It seems impossible to escape the sense that pets have a use value for humans in producing good feeling. Recent empirical studies have explored the health and wellbeing benefits of relationships with companion animals,[2] and observed the potential benefits these animals provide as "social support" to humans.[3] These benefits to humans extend to include pleasure gained through physical interaction with companion animals, including through practices such as "petting."[4] Indeed, according to some studies, these interactions can create powerful sensations for pet owners: "a few minutes of stroking our pet dog prompts a release of a number of 'feel good' hormones in humans,

1 Jim Sharman, Richard O'Brien, Michael White, Tim Curry, Susan Sarandon, Barry Bostwick, Patricia Quinn, et al., *The Rocky Horror Picture Show* (Beverly Hills, California: Twentieth Century Fox Home Entertainment, 2006).

2 See for example Deborah L. Wells, "The Effects of Animals on Human Health and Well-Being," *Journal of Social Issues* 65:3 (2009): 523–543; and June McNicholas, Andrew Gilbey, Ann Rennie, Sam Ahmedzai, Jo-Ann Dono, Elizabeth Ormerod, "Pet Ownership and Human Health: a Brief Review of Evidence and Issues," *BMJ: British Medical Journal* 331:7527 (2005): 1252–1254.

3 James A. Serpell, "Anthropomorphism and Anthropomorphic Selection—Beyond the 'Cute Response,'" *Society & Animals* 11 (2003): 83–100 (88–90).

4 See for example C. J. Charnetski and S. Riggers, "Effect of Petting a Dog on Immune System Function," *Psychological Reports* 95 (2004): 1087–1091; and Sophia Vrontou, Allan M. Wong, Kristofer K. Rau, H. Richard Koerber & David J. Anderson, "Genetic Identification of C Fibres that Detect Massage-Like Stroking of Hairy Skin in Vivo," *Nature* 493 (2013): 669–673.

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including serotonin, prolactin and oxytocin."[5] It would appear that, on the face of it, touching animals generates pleasure for at least some humans, perhaps in a way that humans touching other humans might also be pleasurable in a range of contexts. How might we understand these pleasure generating practices? Are these shared pleasures? Do companion animals "consent" to our physical interactions with them? How are these touch relations regulated? And perhaps more controversially, do these practices of intimacy, involving pleasurable touch relationships, have anything to do with sexuality? And if not, why not?

In order to understand these questions, this chapter will explore the question of human sexual relations with animals through the lens offered by the thought of Michel Foucault. The aim of this chapter is to offer some more nuanced reflections on how we might understand sexuality between humans and animals by considering practices that might be understood as belonging to the field of sexuality, and exploring how forms of friendship between humans and animals might beckon us to think through the pleasures experienced by animals and our relationships to them. My starting point will be Peter Singer's infamous 2001 essay "Heavy Petting." In my reading of this essay, I seek to explore both the normative limits of how Singer understands sexuality, and the problem this poses for conceptualising consent in the context of human and animal relationality. Secondly, I will turn to examine the perspective on sexuality advanced by Foucault in *History of Sexuality Vol. 1* and the role of discourse in framing pleasurable practice as constituting a "sexuality." Thirdly, I will explore the possibility of understanding commonplace practices of non-genital pleasurable stimulation between humans and animals—that is "petting"—as potentially comprising a sexuality. As I point out, these practices must be understood in the troubling context of human violence towards animals, including in the forms of domination that are part and parcel of the companion animal relationship. However, as I observe with reference to the Alfred C. Kinsey et al.'s studies of human sexuality, "petting" practices are ambiguous and are potentially useful for thinking about inter-species relationality. Finally, I will examine Foucault's brief discussions of friendship, as a radical mode of relationality which might resist norms and as a different frame by which we might understand human interaction with animals. As I shall discuss, this form of friendship might involve practices of pleasurable interaction that resist the

5 Jane Weaver, "Puppy Love: Its Better Than You Think," *NBC News*, August 4, 2004. Accessed January 6, 2016. http://www.nbcnews.com/id/4625213/ns/health-pet_health/t/puppy-love----its-better-you-think/#.VnDibEp97IU.

structural violence of domination that overtly characterizes our relations with non-humans.

1 "Heavy Petting" and Consent

In 2001, the journal *Nerve* published a short, albeit infamous, review essay by Peter Singer exploring the ethical issues arising from sexual relationships between human and nonhuman animals.[6] In this essay, Singer ponders the taboo around bestiality and asks if, like other historic sex act prohibitions (for example, around oral sex or homosexuality), sexual relations with animals should be open to critical interrogation. Singer stresses that bestiality remains an ethical challenge in so far as many sex acts between humans and animals demonstrate "cruelty towards an animal" and thus "should remain crimes."[7] However, Singer allows for the fact that there may be a number of acts which are not cruel in themselves, and may constitute "mutually satisfying activities" for both humans and animals. In this context, Singer suggests that even if we might reasonably object to bestiality because of its potential cruelty towards animals, there is no reason to object on the basis of maintaining the separation between human and animal (that is preserving human dignity formed through anthropocentrism).[8]

The essay generated a great deal of controversy for Singer, and even a decade later the philosopher is identified as having provided endorsement of bestiality.[9] In my view, while the essay might certainly be understood as a radical intervention into sexual politics, it also represents, simultaneously, a remarkably conservative view of sexuality. Indeed, what is perhaps most

6 Peter Singer, "Heavy Petting," *Nerve*, March 12, 2001. Reprint available at: http://www.utilitarianism.net/singer/by/2001----.htm.

7 Singer, "Heavy Petting."

8 Singer, "Heavy Petting."

9 See for example Clive Hamilton, "Cory Bernardi is Right, in Peter Singer's Anti-human World," *The Conversation*, September 25, 2012. Accessed January 6, 2016. http://theconversation.com/cory-bernardi-is-right-in-peter-singers-anti-human-world-9774. This criticism only seems to demonstrate that the essay was not carefully read by Singer's critics, since Singer makes clear that he does not endorse any act of cruelty towards animals, a stance that, potentially, excludes as unethical many, if not all, existing practices that we might associate with bestiality. Some other responses to Singer include Piers Beirne, "Peter Singer's 'Heavy Petting' and the Politics of Animal Sexual Assault," *Critical Criminology* 10:1 (2001): 43–55; and Chloë Taylor, "'Sex without all the politics'? Sexual Ethics and Human-Canine Relations," in *Pets and People*, ed. Christine Overall (Oxford: Oxford University Press, forthcoming).

striking about the essay is the relatively restrictive way in which sexuality is imagined by Singer. On one hand, the philosopher proclaims that the "taboo" in relation to homosexuality has been dispensed with, and that non-procreative sex acts are increasingly tolerated. However, against this potential openness, the essay is centrally animated by a heteronormative and phallocentric worldview of sex. This is partly because genital sexuality is overtly the focus of Singer's conceptualization. And the "main game" of this sexuality appears to be primarily centered upon the coital imaginary: a penis that seeks to penetrate. This means that Singer's essay cannot avoid reproducing a gender normative account of possible human/nonhuman encounters. For women, this almost seems to suggest that a "true" sexuality with animals is elusive:

> Women having sex with bulls or rams, on the other hand, seems to be more a matter of myth than reality. For three-quarters of the women who told Kinsey that they had had sexual contact with an animal, the animal involved was a dog, and actual sexual intercourse was rare. More commonly the woman limited themselves to touching and masturbating the animal, or having their genitals licked by it.[10]

This logic, which implies that genitally penetrative sexuality between a woman and an animal is a "myth," positions other possible sexual acts (such as stroking or licking) as a consolation prize. The flipside of this overdetermined role for phallocentric genital sexuality is that, for men, sexuality is constructed as the possibility of a pleasurable lodging place[11] for their penises:

> . . . we cannot help behaving just as animals do—or mammals, anyway—and sex is one of the most obvious ones. We copulate, as they do. They have penises and vaginas, as we do, and the fact that the vagina of a calf can be sexually satisfying to a man shows how similar these organs are.[12]

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10 Singer, "Heavy Petting."

11 I use the term "lodging place" here in the sense in which Luce Irigaray has coined the phrase, to describe the phallocentric determination of female sexuality in relation to the privileged male organ: "In these terms, woman's erogenous zones never amount to anything but a clitoris-sex that is not comparable to the noble phallic organ, or a hole-envelope that serves to sheathe and massage the penis in intercourse: a non-sex, or a masculine organ turned back upon itself, self-embracing." Luce Irigaray, "This Sex Which is Not One," *This Sex Which is Not One* (Ithaca: Cornell University Press, 1985), 23–33 (23).

12 Singer, "Heavy Petting."

Here the animal body is imagined in its sexuality as a receptacle for male pleasure; indeed, it would appear that the "proof" of a sexuality that crosses the species divide arrives with the confirmation that "the vagina of a calf can be sexually satisfying to a man."[13]

We should be clear here that Singer does not advocate violence towards animals in his discussion of bestiality. For example, Singer draws critical attention to some acts of interspecies violence, such as the human penile penetration of a hen's cloaca.[14] Here, Singer is clear to his readers that this violence is "cruelty, clear and simple."[15] Nevertheless, the phallocentricism of Singer's understanding of sexuality produces a somewhat disturbing view of the nature of sexuality, its borders and its relationship to violence. We might find evidence for this in the final paragraph of the essay, where Singer describes the advances of a male orangutan on a female human visitor to a rehabilitation centre:

> At a conference on great apes a few years ago, I spoke to a woman who had visited Camp Leakey, a rehabilitation center for captured orangutans in Borneo run by Birute Galdikas, sometimes referred to as "the Jane Goodall of orangutans" and the world's foremost authority on these great apes. At Camp Leakey, the orangutans are gradually acclimatised to the jungle, and as they get closer to complete independence, they are able to come and go as they please. While walking through the camp with Galdikas, my informant was suddenly seized by a large male orangutan, his intentions made obvious by his erect penis. Fighting off so powerful an animal was not an option, but Galdikas called to her companion not to be concerned, because the orangutan would not harm her, and adding, as further reassurance, that "they have a very small penis." As it happened, the orangutan lost interest before penetration took place, but the aspect of the story that struck me most forcefully was that in the eyes of someone who has lived much of her life with orangutans, to be seen by one of them as an object of sexual interest is not a cause for shock or horror. The

13 Ibid. In the one example offered by Singer of a mutually satisfying—non-cruel—sexual relation between human and animal we find a variation of this formula. This time, consent in relation to where the animal's penis might lodged: "Who has not been at a social occasion disrupted by the household dog gripping the legs of a visitor and vigorously rubbing its penis against them? The host usually discourages such activities, but in private not everyone objects to being used by her or his dog in this way, and occasionally mutually satisfying activities may develop."

14 Ibid.

15 Ibid.

> potential violence of the orangutan's come-on may have been disturbing, but the fact that it was an orangutan making the advances was not.[16]

Singer includes the story because of its potential to highlight that species differentiation need not be the source of concern in thinking through sexual relations. However, the frame that Singer applies to sexuality and its relationship to violence and consent is disturbing. It would appear here that the thin line that separates violent and non-violent sexuality rests upon the consent of a person to be penetrated; in this case the line is extraordinarily thin, since penetration is understood as a mere trifle ("they have a very small penis"). Here an act becomes violent or coerced where another has failed to agree to the act. This view of sexuality and consent fails to engage with the power relations that shape decision making.[17] Failure to interrogate the relations of power that informs decision making means, as Wendy Brown discusses, that agreement can be simply about surrendering to a relationship of domination:

> . . . if the measure of rape is not whether a woman sought or desired sex but whether she acceded to it or refused it when it was pressed upon her, then consent operates both as a sign of subordination and a means of its legitimation. Consent is thus a response to power—it adds or withdraws legitimacy—but is not a mode of enacting or sharing in power.[18]

It is clear that sexuality and sexual practices emerge within a broader context of power relationships between individuals, regulated by norms, laws and disciplinary practices. As such *consent* can only be understood in the context

16 Ibid.

17 In some respects, Singer's narrow framing of consent is open to Catherine A. MacKinnon's critique of masculine sexuality as being concerned with attaining consent for acts of violation, rather than establishing sexuality as involving mutual pleasures: "That consent rather than nonmutuality is the line between rape and intercourse further exposes the inequality in normal social expectations. So does the substantial amount of male force allowed in the focus on the woman's resistance, which tends to be disabled by socialization to passivity. If sex is ordinarily accepted as something men do *to* women, the better question would be whether consent is a meaningful concept. Penetration (often by a penis) is also substantially more central to both the legal definition of rape and the male definition of sexual intercourse than it is to women's sexual violation or sexual pleasure." Catherine A. MacKinnon, "Feminism, Marxism, Method, and the State: An Agenda for Theory," *Signs* 7:3 (1982): 515–544 (532).

18 Wendy Brown, *States of Injury: Power and Freedom in Late Modernity* (Princeton: Princeton University Press, 1995), 163.

of these broader relations. Beyond an awareness of threshold practices that might be identified as "cruel," there is little in Singer's essay to illustrate an awareness of how the social and political context of our relationships with animals might frame how we understand the possibility of human/animal sexuality. For example, imagining sexual relationships between a human and a companion animal must take into account everything that is implied by the power relationships that circulate "pet ownership," including the forms of constraint and enablement that are part and parcel of that animal's "domestication" (which may include overt sexual and reproductive controls, forms of containment and isolation, and intense forms of disciplinary and nutritional control). We certainly don't need to draw hard and fast lines here about what "domestication" might universally mean for all animals: as Donna Haraway reminds us, relationships of domestication may involve forms of co-shaping between humans and nonhumans that require more subtle attention to the dynamics of interactions, with "degrees of freedom" involved.[19] Nevertheless, given that much human interaction with nonhuman animals will be framed broadly by relationships of domination—farming, domestication, slaughter, sport, experimentation—and given that these relationships are themselves layered by systemic forms of human oppression and inequality, such as patriarchy, then consent becomes complex to unpick. It is perhaps for this reason that Chloë Taylor suggests that zoophilia should be understood in relation to rape culture.[20]

The response of some animal advocates to Singer's "Heavy Petting" has been strong. Tom Regan, for example, has stated in no uncertain terms that "in my view, bestiality is always morally wrong for the same reasons that nonconsensual sex with children is always morally wrong: the rights of those that cannot give consent are violated."[21] Of course, Regan's response highlights the problems that Singer identifies with a conception of rights that rests upon human dignity, which always presumes, uncritically it would seem, that animals lack the ability to consent in the way human moral agents might, and therefore lack the ability, even in constrained situations, to navigate towards pleasurable sexual activity. However, as I shall discuss below, there are some different ways we might imagine sexuality, beyond the constraints imposed by both Singer and Regan.

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19 Donna J. Haraway, *When Species Meet* (Minneapolis: University of Minnesota Press, 2008), 42.

20 See Taylor, "'Sex without all the politics'?"

21 Tom Regan, quoted in Claudette Vaughan, "An American Philosopher: The Tom Regan Interview," *Tom Regan's Animal Rights and Writes*. Website. Originally published in *Vegan Voice*. Accessed January 6, 2016. http://www.animalsvoice.com/regan/?p=266

2 Foucault, Sexuality and Bestiality

Foucault's 1976 *History of Sexuality Vol. 1* marked a speculative shift in how sexuality, its conceptualization, its history and its relation to power might be understood. One of the rallying points of the book is Foucault's rejection of what he termed the "repressive hypothesis." This hypothesis would suggest that societies of the Victorian era engaged in a social and legal repression of sexuality which had prior to this point enjoyed a relatively stronger degree of freedom of expression. Against this view, Foucault argued that this period might be more accurately understood as marked by an explosion of discourse around "sexuality" which continues to this day; an explosion that betrayed the overt intensification of interest in sex and reproduction as a site of political intervention, and simultaneously, through this concentrated interest, led to a proliferation in forms of pleasure, identities, and practices which are increasingly understood as important for human subjectivities: "never have there existed more centers of power; never more attention manifested and verbalized; never more circular contacts and linkages; never more sites where the intensity of pleasures and the persistency of power catch hold, only to spread elsewhere."[22]

The conceptualization offered by Foucault runs against particular narratives on how we might understand the history of "sexual freedom." Foucault's perspective makes it impossible to sustain a view that the Victorian era imposed repression upon sexuality, and that the liberation movements of the twentieth century have sought simply to restore a primordial sexual freedom to individuals. On the contrary, Foucault would suggest that our modern interest in freeing ourselves from sexual repression, our intense interest in finding our sexual identities and pursuing sexual satisfaction, is a product of the overt investment of the field of sexuality by power, which affects how bodies are governed and how we conduct and see ourselves. Here, Foucault is rejecting a narrative of "progress" in relation to sexual enlightenment or liberation: the fact that we talk about sex with increasing frankness and intensity only indicates that it is increasingly invested by power (in the forms of surveillance, truth telling, normalization, law). This investment does not act simply as a means of repression, but, on the contrary, intensifies sexual practice as a site of innovation and pleasure. In this sense, Foucault is working directly against a view of sexuality which sees it as a response to a "taboo" that must be overcome. It is true that legal and moral institutions generate prohibitions and sanctions against sexual

22 Michel Foucault, *The Will To Knowledge: The History of Sexuality Vol. 1*, trans. Robert Hurley (London: Penguin, 1988), 49.

practices; however intensifying discourse around sexuality generates new subjectivities and institutional action (legal, medical, pedagogical):

> More than the old taboos, this form of power demanded constant, attentive, and curious presences for its exercise; it presupposed proximities; it proceeded through examination and insistent observation; it required an exchange of discourses, through questions that extorted admissions, and confidences that went beyond the questions that were asked. It implied a physical proximity and an interplay of intense sensations . . . The power which thus took charge of sexuality set about contacting bodies, caressing them with its eyes, intensifying areas, electrifying surfaces, dramatizing troubled moments. It wrapped the sexual body in its embrace.[23]

"Sexuality" thus emerged as a historically located set of discourses in the West, which Foucault ties specifically with interests in understanding, framing and regulating pleasures and their relations to bodies. "Sexuality" creates truths, about bodies, what they can know about themselves and their orientation, establishes regimes of normality and abnormality, systems of surveillance and discipline, which function to reproduce relations between power and truth: "nearly one hundred and fifty years have gone into the making of a complex machinery for producing true discourses on sex . . . it is this deployment that enables something called 'sexuality' to embody the truth of sex and its pleasures."[24]

From this view, we might gain a different perspective on Singer's understanding of the problematic of bestiality as a taboo.[25] If we adopt a Foucauldian perspective on the "taboo" of bestiality, then we can might understand that the problem presented by human relations with animals, relations that could comprise a sexuality, are not really a matter of articulating or rejecting a "taboo" that remains contentious. Instead, a set of questions might arise in relation to a history of human and animal relationships, where discourses of sexuality might

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23 Ibid., 44.

24 Ibid., 68.

25 Singer states: "not every taboo has crumbled. Heard anyone chatting at parties lately about how good it is having sex with their dog? Probably not. Sex with animals is still definitely taboo." Singer, "Heavy Petting." It is worth noting relevant literature on bestiality including: Gaston Dubois-Desaulle, *Bestiality: An Historical, Medical, Legal and Literary Study* (USA: University Press of the Pacific, 2003); Midas Dekkers, *Dearest Pet: On Bestiality* (London: Virago, 1994); Hani Miletski, *Understanding Bestiality and Zoophilia* (Bethesda, 2002); and Andrea M. Beetz and Anthony L Podberscek, eds., *Bestiality and Zoophilia: Sexual Relations with Animals* (West Lafayette: Purdue University Press, 2005). See also Richard von Krafft-Ebing, *Psychopathia Sexualis* (Philadelphia: F. A. Davis Company, 1894), 56.

frame understandings of normalized human sexuality, and simultaneously construct lines of relationality between humans and animals. Firstly, Foucault is clear in *History of Sexuality Vol.1* that up until the "end of the eighteenth century" bestiality represented a prohibited act under civil law and moral authority, a view he repeats in the "Abnormal" lectures of 1974–5 at the Collège de France.[26] Bestiality in this view is constructed in the Western tradition as a prohibited act through a collusion between law and religious morality, informed by interpretation and application of the biblical Sixth Commandment, and application of other biblical laws such as those established in Leviticus.[27] Secondly, though sexual relations between humans and animals had been subject to prohibition by contemporary moralities and laws, Foucault observes a discursive shift from the eighteenth century onwards which would arguably treat bestiality as not merely a breach of God's law, nor a simple breach of civil law, but as something "unnatural"; that is, bestiality would be understood as a perversion of the natural order, a biological, psychological or developmental aberration. Indeed, Foucault hints that what animates the fear of bestiality is precisely the sense that transgression of the moral and legal prohibition leads to the production of an unnatural aberration—a "monster"—that cannot be captured by existing law or morality:

> the monster is said to be a being in which the mixture of two kingdoms can be seen, because where do we look for the cause when we detect the presence of the animal and human species in one and the same individual? We look for a breach of human and divine law in the progenitors,

26 Foucault, *The Will To Knowledge*, 38; and Michel Foucault, *Abnormal: Lectures at the Collège de France 1974–1975*, ed. Valerio Marchetti and Antonella Salomoni, trans. Graham Burchell (London: Verso, 2003), 184–9.

27 See *The Holy Bible*, King James Edition, Deut. 5.1–21. Accessed January 6, 2016. http://www.kingjamesbibleonline.org/Deuteronomy-Chapter-5/. The Sixth Commandment—prohibiting adultery—is itself non-specific on the question of bestiality. However acts involving bestiality are explicitly prohibited in the Bible, for example in Leviticus: "Neither shalt thou lie with any beast to defile thyself therewith: neither shall any woman stand before a beast to lie down thereto: it is confusion." See *The Holy Bible*. King James Edition. Lev. 18.23. Accessed January 6, 2016. http://www.kingjamesbibleonline.org/Leviticus-18-23/. In the teachings of the Catholic Church, the contemporary prohibition of sexual acts outside of marriage is detailed in Catholic Church, *Catechism of the Catholic Church* (Libreria Editrice Vaticana, Citta del Vaticano 1993), 2337–2359. For a commentary on the Christian response to bestiality see Roland Boer, "Bestiality IV: Christianity," *Encyclopedia of the Bible and Its Reception*, Volume III: Athena—Birkat ha-Minim (Berlin: Walter de Gruyter, 2011), 941–2.

> that is to say, for fornication between a human individual and an animal. It is because there was a sexual relationship between a man and an animal that a monster appears in which the two kingdoms are mixed. In that respect we are referred to a breach of civil or religious law. However, at the same time as natural disorder refers to a breach of religious and civil law, the law finds itself acutely embarrassed. We see this in the problem, for example, of whether an individual with a human body and an animal's head, or with an animal's body and a human head, should be baptized. Canon law, which provided for many disabilities and incapacities, cannot resolve this problem. Consequently, the disorder of nature upsets the juridical order and the monster appears.[28]

The individual who thus is compelled towards sexual relations with animals is not merely marked as an outlaw, but as in some way a monster themselves; as upsetting the natural order in such a way as to put that individual beyond law and morality. The animal "lover" did not willfully transgress the law or God in the name of pleasure, but was instead compelled to transgress by some kind of innate and unnatural drive: "underneath the libertine, the pervert" as Foucault economically summarizes.[29] Thus, as we might also find in relation to the history of homosexuality, bestiality in the contemporary order emerges not merely as a moral and legal prohibition, but as a form of pathologized "abnormality" that is subject to scientific, psychological and pedagogical concern. All these elements are arguably there in Singer's understanding of bestiality—moral and legal prohibition, and the sense that bestiality has been understood as "unnatural"—however a closer reading of the genealogy of bestiality suggests that we are probably dealing with an intertwined set of histories here, one that suggests a greater deal of complexity than is supplied by Singer's closing remarks in "Heavy Petting": "this does not make sex across the species barrier normal, or natural, whatever those much-misused words may mean, but it does imply that it ceases to be an offence to our status and dignity as human beings."[30] Human status and dignity is increasingly inseparable from biopolitical normalization. This suggests that what is discursively constructed as "normal" or "natural" is precisely at issue in understanding the contemporary formulation of the bestiality taboo. Indeed, insofar as bestiality represents an abnormality that is entwined with a legal and moral taboo, it arguably has a profound shaping effect on the construction of sexuality itself, its limits and imaginary. In other words the naturalized dividing line between human

28 Foucault, *Abnormal*, 64.

29 Foucault, *The Will To Knowledge*, 39.

30 Singer, "Heavy Petting."

and animal has shaped not only a conception of the "human" but has also intimately sculpted what falls within the bounds of "sexuality": how humans see their own sexuality, what is natural in sex acts, and which acts might be seen as bestial and intolerable.[31]

3 "Petting"

I want to leave aside, though, the project of tracking in more depth the genealogy of bestiality and its relationship to sexuality in general, a project which doubtless would be a significant intellectual undertaking. Of more interest to me here is a related side venture: that is, understanding the way in which a discourse around sexuality might have framed some forms of human relation with animals as clear examples of "bestiality"—and therefore connected to "sexuality," even if just as perversion—while simultaneously failing to frame other relations as conforming to the same understanding; relations that might otherwise be conceived as belonging to a "sexuality" if the rules governing sexuality and its identification were consistently applied, or obeyed a uniform rational order. I refer here to practices of "petting," which have meaning—potentially divergent meaning—for relations between humans and those between humans and animals. In the realm of human sexuality, "petting" is a description for non-coital caresses, cuddles and amorous touching bestowed upon a loved one, across the site of their bodies and not restricted to the genitals (non-coital genital touching is given the phrase "heavy petting"). In relation to domesticated animals, particularly dogs and cats, petting is often the primary touch relationship between human and nonhuman companion partners, and refers to caresses, cuddles and touching that is discursively understood as non-sexual in nature. The two kinds of petting—between humans, and between humans and animals—share an intertwined etymology, at least insofar as they delineate a set of practices that are applied to one's "pets."[32] We might speculate that petting thus probably derives from a shared set of intimate touching practices

31 In this context, we would do well to remember that removing the taboo does not necessarily mean liberating our sexuality with animals either. As Foucault would remind us, opening the question of bestiality to increased public discussion, does not necessarily liberate it as a practice, but merely confirms the pressure for human sexual relations with animals to be governed, examined and understood, as belonging within the realm of the discourse of "sexuality."

32 The "pet" is a term of endearment that relates to both humans and some animals; and probably shares a common root in the French word "petite."

that are applied to loved ones—children, lovers, animals—which intertwine the home, infantilization/diminution, domestication, grooming and pleasure.[33]

Many if not most humans who keep dogs and cats as companion animals derive immense pleasure from elaborate petting and grooming regimes, with forms of intimacy involving touching and stimulation, often for many hours during a day. These practices are understood as generating pleasures, for both the human and the animal companion. These pleasures have been increasingly identified in recent scientific literature.[34] Indeed one study, involving "dog loving humans, interacting with well-tempered dogs by talking softly, touching and stroking the dogs"[35] found that there were possibilities of generating mutual "interspecies" pleasure:

> if the physiological reaction is mutual, animals used in therapy can experience the same feeling of elation. . . . The facilitator (dog) experiences thus as much a good feeling as the patient and this is of importance from an animal welfare point of view.[36]

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33 See Donna Haraway's discussion on the relationship between children and pets in Donna Haraway, *The Companion Species Manifesto: Dogs, People and Significant Otherness* (Chicago: Prickly Paradigm Press, 2003), 33–36. See also J. Jack Halberstam, "The Wild: Humans, Animals, Anarchy," presentation at *Critique of Political Zoology Conference*, Hamburg, June 14–15, 2013.

34 Recent testing of responses from mice was said to have shown "stroking of the skin produces pleasant sensations that can occur during social interactions with conspecifics, such as grooming." See Vrontouet et al., "Genetic identification of C fibres that detect massage-like stroking of hairy skin in vivo"; see also other research which reinforces the reward characteristics of petting practices, such as E. Fonberg, E. Kostarczyk and J. Prechtl, "Training of Instrumental Responses in Dogs Socially Reinforced by Humans," *The Pavlovian Journal of Biological Science* 16:4 (1981): 183–93. This builds on other scientific exploration in humans, which sought to demonstrate positive benefits for humans in practising petting with companion animals, including in generating pleasurable effects. See for example J. S. Odendaal, *A Physiological Basis for Animal-Facilitated Psychotherapy*, Unpublished Doctoral Dissertation (Pretoria: University of Pretoria, 1999); Rebecca A. Johnson, Richard L. Meadows, Jennifer S. Haubner, and Kathleen Sevedge, "Animal-Assisted Activity Among Patients With Cancer: Effects on Mood, Fatigue, Self-Perceived Health, and Sense of Coherence," *Oncology Nursing Forum* 35:2 (2008): 225–232; and News Medical, "Interacting and Petting Animals Creates a Hormonal Response in Humans that Can Help Fight Depression," *News Medical* May 14, 2004. Accessed January 6 2016. http://www.news-medical.net/news/2004/05/14/1552.aspx.

35 J. S. J. Odendaal and S. M. C. Lehmann, "The Role of Phenylethylamine During Positive Human-Dog Interaction," *Acta Veterinaria Brno* 69 (2000): 183–188 (184).

36 Odendaal and Lehmann, "The Role of Phenylethylamine During Positive Human-Dog Interaction," 187. See also Paul McGreevy, *A Modern Dog's Life* (Sydney: New South, 2009), 42–43.

This understanding of shared pleasures flows into education, advice and information on animal interaction, training techniques and grooming practices relating to the conduct and relationality between humans and companion animals. One dog care manual, authored by veterinary scientist Paul McGreevy, acknowledges that some dog petting practices, such as stroking the "zone between the collar and the two front legs" generates pleasures of an intensity to "transport most reasonably confident dogs directly to heaven"; McGreevy thus advises that grooming, combined with social connection, may be utilized as a reward resource in training companion dogs.[37]

There is here an admittedly messy question whether and how animals consent to petting practices. Dog training frequently relies upon desensitizing puppies to the experience of human touch—that is, acculturating the bodily sensations of the dog to frequent touching—not only to facilitate human desires with regard to pleasurable touching, but also to facilitate grooming and care practices. One training manual advises:

> Desensitization training and obedience training should be started as early as eight weeks of age . . . Desensitization training will condition your pet to allow its feet, ears and mouth to be handled without struggle. This is vitally important for your pet's grooming program, as such permission afforded to you will allow you to trim nails, clean ears, and brush your pet's teeth without a fight . . . Soon your pet will become accustomed to such handling, making future grooming efforts much easier.[38]

Given the relationship between petting and reward within the context of training, animal touching interconnects with disciplinary regimes that must be read in concert with the overarching forms of domination that frame human relationships with companion animals: regimes of power that encompass segregation; deep controls over movement, sexuality, reproduction, and diet; body modifications such as neutering and micro-chipping; and powers of life and death including state and owner regulated force to make companion animals live and die (literally in Foucault's conception of biopolitics, "to *foster* life or *disallow* it to the point of death"[39]). I do not mean to imply here that pleasures are not possible within this context of overarching domination—certainly as I discuss below, this context may allow for the emergence of new pleasures—rather that the questions around consent are hardly straightforward. As J. Jack Halberstam has noted, the "pet," in its use to describe both animals and

37 McGreevy, *A Modern Dog's Life*, 43–5.

38 Chris C. Pinney, *Guide to Home Pet Grooming* (New York: Barron's, 2005), 17.

39 Foucault, *The Will To Knowledge*, 138.

children, implies a form of "forced intimacy,"[40] and at least in this sense, forms of intimate touching that relate to petting practice participate directly in a web of intimacies that are pushed onto companion animals, throwing into question how we might understand whether consent has been "achieved." In other words, if regimes of violence overtly shape our relationships with companion animals—disciplinary controls, body modifications, regulation of sexuality etc.—then forms of forced intimacy might belong to this same repertoire of violent acts. And there is certainly evidence that companion animals enact forms of resistance to these acts of forced intimacy. Veterinary textbooks have ascribed "petting-induced aggression" or "overstimulation aggression" as a syndrome affecting some cats, who turn on their owners at certain unpredictable points during petting sessions. In these cases, owners are advised to recognize "the warning signs of impending aggression and have them immediately cease what they are doing and extricate themselves from the situation."[41] However, avoidance is not the only advice offered, particularly with respect to dogs. Indeed there are numerous circumstances where pet owners persevere with touching through practices of "desensitization," clearly against the comfort and distress levels of the animal. On dealing with sensitive paws, one dog training guide suggests using treats as rewards for allowing paws to be touched: "be sure to touch your puppy's feet as often as you can to help her get used to the sensation. With enough touching, she will learn to accept foot handling, which will make it easier to keep her toenails in good shape."[42] These circulating discourses are at least indicative of a complex interplay between animal desire and subjectivity, acculturation, discipline, consent, violence and domination; regimes and techniques of pleasure, and bodily sensitization, are determined, articulated, and negotiated in the midst of this interplay between human and nonhuman actors, forces and norms.

Returning to the question of pleasure, it is perhaps surprising that animal petting—a set of potentially pleasurable practices, regulated by intense norms

40 Halberstam, "The Wild: Humans, Animals, Anarchy." See also Judith Halberstam, "Animal Sociality Beyond the Hetero/Homo Binary," *Women & Performance: A Journal of Feminist Theory* 20:3 (2010): 321–331 (328).

41 Nicholas Dodman, "The Bossy Cat and Owner-Directed Aggression," *Veterinary Practice News*, February 8, 2012. Accessed January 6, 2016. http://www.veterinarypracticenews.com/vet-practice-news-columns/pet-projects/the-bossy-cat-and-owner-directed-aggression.aspx.

42 Arden Moore, *What Dogs Want: A Visual Guide to Understanding Your Dog's Every Move* (Sydney: Bantam, 2012), 171.

and codes and requiring a grappling between subjectivities and corporeal sensitivities—has not been understood as belonging to, and generated by, the sphere of human-animal sexuality. Why is it that we are not dealing with "bestiality" here when we encounter petting between humans and animals? Why is it that for many humans, despite their privileged relation with companion animals comprising a daily regimen of intimate (and potentially mutually pleasurable) touching, this activity is not understood as comprising a sexuality? Singer is at least partially correct that the species line has some role to play here; indeed it is perhaps because these relations involve animals and not other humans that there is a suspension of the understanding that this might belong to a sexuality.

However, the question seems to open a deeper problematic. Perhaps one clue is the obsessively phallocentric overdetermination of bestiality within discourses of sexuality, and conversely, the lack of attention accorded to petting practices within this economy of sexuality. We know that within the sphere of human to human sexuality, itself overdetermined by phallocentric conceptualizations of sexuality, all forms of "petting" ("heavy" or otherwise) lack the priority and privilege accorded to coitus. Human to human petting is configured, for example, as the activity of the young prior to a penetrative sexuality involving a penis, or as a precursor to the main event in "foreplay"; in either configuration it is understood as a poor substitute for the "real" activity of sex. As discussed above, Singer reproduces this heirarchization of sexuality in his own reading of bestiality ("actual sexual intercourse was rare. More commonly the woman limited themselves to touching and masturbating the animal, or having their genitals licked by it"). If bestiality—understood in this economy as involving primarily coitus between a human and animal—has been subject to a historically persistent legal and moral taboo, or, alternatively, understood as a perversion of nature that must be responded to with scientific, medical and psychological expertise, then perhaps the counter-effect of this overarching set of prohibitions and discourses has been the production of multiple pleasure practices that are captured neither by moral and legal prohibition nor subject to normalising surveillance: these animal petting practices perhaps slip under the radar of sexuality.

Indeed, from this standpoint, it is interesting to note that petting practices between humans and other humans have, at least within the twentieth century, occupied a parallel grey zone. The panic over the petting practices of young people throughout the twentieth century, particularly those practices developed in Anglo-American pre-marital sexual cultures, have highlighted the potentially subversive role petting played in allowing young people to

observe religious and moral prohibitions relating to sex before marriage, while enabling navigation of a variety of pleasures that stopped short of coitus.[43] This does not mean that petting practices were not subject to moral concern, or forms of gender normalizing behavior regulation (for example, for young women, regulating heterosexual petting techniques within an economy in order to avoid being labeled as either "frigid" or "easy"[44]). Rather, petting was a site of contestation which allowed young people to engage in management of their own conduct with respect to pleasure, while navigating between absolute moral prohibitions: "petting emerged as an acknowledged and discussed 'way station' between absolute chastity and intercourse."[45]

It is perhaps useful in this context to refer to the famous study by Alfred C. Kinsey et al., which highlighted the overwhelming importance of petting practices within a generalized description of sexuality.[46] The Kinsey reports describe a proliferation of techniques in petting practices, techniques which work with, and in resistance to, religious and legal codes, and generate with them forms of discourse: on petting the reports remark that "there is probably no single aspect of sex about which American youth more often ask questions and seek scientific information."[47] Individuals surveyed by Kinsey and his colleagues actively utilized petting practices to achieve sexual pleasure

43 There is a range of scholarship exploring particularly United States teen culture and sexual experimentation through the twentieth century, including for example John Modell, *Into One's Own: From Youth to Adulthood in the United States, 1920–1975* (Berkeley: University of California Press, 1989); Nicholas L. Syrett, *The Company He Keeps: A History of White College Fraternities* (Chapel Hill: University of North Carolina Press, 2009); Chad Heap, *Slumming: Sexual and Racial Encounters in American Nightlife, 1885–1940* (Chicago: University of Chicago Press, 2009); Mary E. Odem, "Teenage Girls, Sexuality and Working-Class Parents," *Generations of Youth: Youth Cultures and History in 20th Century America*, ed. Joe Austin and Michael Willard (New York: New York University Press, 1998), 50–64; Mary E. Odem, *Delinquent Daughters: Protecting and Policing Adolescent Female Sexuality in the United States, 1885–1920* (Chapel Hill: University of North Carolina Press, 1995); Randy McBee, *Dance Hall Days: Intimacy, Power, and Leisure among Working-Class Immigrants in the United States* (New York: New York University Press, 2000); and Elizabeth Alice Clement, *Love for Sale: Courting, Treating, and Prostitution in New York City, 1900–1945* (Chapel Hill: University of North Carolina Press, 2006).

44 See Syrett, *The Company He Keeps*, 219; and Modell, *Into One's Own*, 97–105.

45 Syrett, *The Company He Keeps*, 219.

46 See Alfred C. Kinsey, Wardell B. Pomeroy and Clyde E. Martin, *Sexual Behavior in the Human Male* (Bloomington: Indiana University Press, 1975); and Alfred C. Kinsey, Wardell B. Pomeroy, Clyde E. Martin and Paul H. Gebhard, *Sexual Behavior in the Human Female* (Philadelphia and London: W. B. Saunders and Company, 1953).

47 Kinsey, Pomeroy, Martin and Gebhard, *Sexual Behavior in the Human Female*, 261.

while apparently obeying moral and legal edicts.[48] As I have stated above, the lack of clear direction and policing from moral and legal prohibition on some forms of petting meant that petting practices were opened to discourse, public concerns and normalized codes which allowed young people to somewhat anxiously regulate their own techniques and practices, navigating the complex field of hard rules, norms and rough guides, as well as taking advantage of discursive silence and opacity where these opportunities presented: "evidently the religious and public condemnation of petting has had a minimal effect on the attitudes and behavior of the youth of more recent generations, but many of those who engage in petting do so with some sense of guilt."[49]

Throughout the Kinsey reports there are continued references to the sexual practices of animals, particularly the "lower mammals," as a way to frame, reinforce and contextualize the discussion of human sexuality. Thus, for example, when the reports discuss petting of the female genitalia within human heterosexual practice, it is observed that "some sort of non-penile stimulation of the female genitalia is almost universal among the lower mammals."[50] It is however the ubiquity of petting practices described by the Kinsey reports which is of particular interest here. Within the Kinsey reports, a story is told of an ever present and insistent non-coital sexuality that might characterize the bulk of sexuality in the "natural world":

> Among most species of mammals there is, in actuality, a great deal of sex play which never leads to coitus. Most mammals, when sexually aroused, crowd together and nuzzle and explore with their noses, mouth and feet over each other's bodies. They make lip-to-lip contacts and tongue-to-tongue contacts, and use their mouths to manipulate every part of the companion's body, including the genitalia. They may nip, bite, scratch, groom, pull at the fur of the other animal, pull out fur, urinate, and repeatedly mount without, however, making any serious attempt to effect a genital union. Such activity may continue for a matter of minutes, or hours, or even in some cases for days before there is any attempt at coitus.

48 The Kinsey report found that "it is particularly significant to find that the devout female, after she has once accepted orgasm in a petting relationship, engages in such activity about as often as the average of the less devout females." Ibid., 249.

49 Ibid., 261. Guilt here reinforces an understanding of the movement of sexuality between moral and legal taboo towards a more subtle form of discursive regulation.

50 Ibid., 256. In relation to homosexuality the Kinsey report notes "sexual contacts between individuals of the same sex are known to occur in practically every species of mammal which has been extensively studied." Ibid., 448.

> The student of mammalian mating behavior, interested in observing coitus in his animal stocks, sometimes may have to wait through hours and days of sex play before he has an opportunity to observe actual coitus, if indeed the animals do not finally separate without ever attempting genital union.[51]

Petting in this description becomes virtually indistinguishable from any other form of intimate sociability between bodies. We are given a picture of a world of persistent stimulation, genital and otherwise, pleasurable stroking, pulling and licking that may be momentary, or may stretch out for days. The analytic problem becomes understanding where sex starts and stops. While the scientist is depicted as vigilantly waiting for "actual coitus" to occur—that moment of theoretical relief where finally the sex act that is promised, "through hours and days of sex play," finally materializes—the more pressing problem that petting generates is surely in understanding which activities might be understood as a technique of sex play, and which not. In some respects, this problem is apparent in the methodology of the Kinsey reports, which mark the obscurity in actually defining what might constitute a petting practice:

> The term petting is properly confined to physical contact which involves a deliberate attempt to effect erotic arousal. Most females and males who engage in petting frankly recognize its significance as a source of erotic satisfaction. Accidental contacts do not constitute petting, even though they may be responsible for some erotic arousal. While petting may not always result in arousal, we have considered the term was applicable if there was an attempt to achieve arousal, and have so interpreted the records in making the calculations which are presented . . .[52]

Leaving aside whether petting practices require "physical contact" (what, might we ask, of sensation play, or various forms of "dirty talk"?[53]), the Kinsey definition of petting is remarkable in its absence of particularity. The definition

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51 Ibid., 229. See Haraway's description of non-coital dog sexuality in Haraway, *The Companion Species Manifesto*, 98–100.

52 Kinsey, Pomeroy, Martin and Gebhard, *Sexual Behavior in the Human Female*, 228.

53 Kinsey draws a distinction between mammals and other animals in this characterization: "among the mammals, tactile stimulation from touch, pressure, or general contact is the sort of physical stimulation which most often brings sexual response. In some other groups of animals, sexual responses are more often evoked by other sorts of sensory stimuli." Ibid., 570–1.

provided of arousal does not help here; the Kinsey reports differentiate a touch that generates sexual arousal from other sensations by suggesting, in a circular way, that this sort of touch creates a behavior that "leads the animal to engage in mating behavior, or to manifest some portion of the reactions which are shown in mating behavior."[54] Even if the signs of physiological arousal ("mating behavior") described in the Kinsey reports are universal to all erotic encounters—pulse and blood pressure rate increases, genital secretion, body movements and contractions, muscular tension etc.[55]—the extraordinary variety, location and intensity of so called sexual responses, and their inevitable interaction with culture, deportment, traditions and norms, only remind us that what actually counts as "sexual" touching is itself shaped by what we understand at any given moment as comprising and belonging to the field of sexuality. Here, in the sense Judith Butler describes, materiality is the materialization of a "regulatory norm."[56]

As such, it would be pointless here to try to ascribe a deterministic schema by which human petting practices involving animals might be understood as belong to a sexuality. It is conceivable that scientific research might be able to demonstrate physiological responses in both humans and animals associated with petting techniques that might be understood as a "sexual" response; indeed, as I have indicated above, there already exists research demonstrating shared pleasure in tactile stimulation of body surfaces between humans and animals in the process of petting.[57] Yet such ascriptions already risk an anthropomorphism that would treat human sexual responses (if these exist in a universally identifiable form) as the marker for whether animals can be said to similarly respond sexually to particular touch techniques. More interesting for me here is admitting the possibility that petting practices between humans and animals *may* constitute a sexuality as a way of thinking about the boundaries of sexuality and the boundaries of species themselves. Indeed, the Kinsey reports I have referred to potentially provide a sketch of sexual responsiveness

54 Ibid., 571.

55 See ibid., 595–623.

56 Butler states: "what constitutes the fixity of the body, its contours, its movements, will be fully material, but materiality will be rethought as the effect of power, as power's most productive effect. And there will be no way to understand 'gender' as a cultural construct which is imposed upon the surface of matter, understood as 'the body' or its given sex. Rather, once 'sex' itself is understood in its normativity, the materiality of the body will not be thinkable apart from the materialization of that regulatory norm." Judith Butler, *Bodies That Matter: On the Discursive Limits of "Sex"* (London and New York: Routledge, 2011), xii.

57 See n34.

that would suggest that human to animal petting might very well be understood as belonging to a sexuality. The authors of the Kinsey reports admit that response to tactile stimulation may constitute "sexual response" where entities seek to make this stimulation endure, by "pressing against" the source of stimulation. The pleasure inculcated by touch generates a confirmation through its repetition and endurance:

> one-celled animals mass against objects. Multicellular bodies like cockroaches crowd into corners. Infants and small children spontaneously snuggle against other human bodies. Uninhibited human adults do the same thing whenever the opportunity affords.[58]

This creates a complex picture of sexuality which is intertwined with intimate sociality and economies of touch, including in forms of inter-species sociality, and understands sexuality as an intersubjective touch relay between entities aimed at generating and governing pleasurable sensations, a process of pleasurable pressing upon, or "petting," the other:

> If an animal pulls away from the stimulating object, little else may happen to it physiologically. If it responds by pressing against the object, a considerable series of physiologic events may follow. If the tactile stimulation becomes rhythmic, or the pressure is long-continued, the level of response may increase and build up neuromuscular tensions which become recognizable as sexual responses.[59]

Petting may simply describe the process of negotiating pleasurable touch relations—governing sensations, timing, duration and intensities—between entities in an intersubjective relay. What these relations mean, how pleasures are formed, whether they are "sexual" is a discursive rather than intercorporeal "material" problem. Norms, cultures and laws establish the boundaries of sexuality, rather than an objectively verifiable set of truths. If we understand all forms of embodied sociality, including interspecies sociality, as involving intimacies which allow entities to press upon others pleasurably, and that through an historical and cultural process some of these practices are understood as "sexual" and some not, then this opens a critical set of questions: how are practices of petting differentiated at any given time, and how do these forms of differentiation conform and reinforce other divisions, including between "species"?

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58 Kinsey, Pomeroy, Martin and Gebhard, *Sexual Behavior in the Human Female*, 595.

59 Ibid., 595.

4 Friendship as a Way of Life

None of the above makes it easier for us to understand whether animals can be said to consent to sexual relations with humans, or offer us easy pathways to move beyond the discourse of bestiality. As I have suggested above, practices of violence circulate and frame human relations with companion animals. These include practices such as forcible constraint and segregation; reproductive and sexuality controls; surveillance and disciplinary regimes in relation to nutrition, sleep, movement; forms of body modification such as microchipping; and life and death powers wielded by the state and pet owners. This context potentially suggests a violent relationality framing relations between humans and animals, even in the context of "companionship," a set of relationships I have elsewhere suggested might be understood as part of a generalized "war against animals."[60] This web of violence and domination means we must carefully consider how consent to forms of intimate relationality—such as petting—might be understood. In this context we might quite reasonably observe, as Halberstam suggests, that some forms of intimacy, including petting, are not consensual; they are instead "forced."

This does not mean however that shared pleasures are impossible; rather that we must seek to understand how a constraining and enabling environment collaborates to produce particular forms of pleasure, including those shared between humans and animals. If human to animal petting today is a form of mutual pleasurable activity, this is only possible through a long history of human relationships with companion animals; a history of violence, domination and domestication, a history of living together and coshaping techniques and practices of touching; a history intertwined with movements in work and family which have allowed the contemporary companion animal to be bound, at least in the West, to the familial household as a site for privatized affection and infantalization; and a whole history of acculturating pleasures, allowing bodily sites to become charged and receptive, a process, as I have suggested above, that need not be seen as distinct from the history of human sexuality itself.

I would suggest that an interconnected question relates to *friendship* and whether and how relationships of companionship might be understood between humans and animals in spite of the forms of violent relationality that attend the pet industry and contemporary practices of interspecies animal

60 See Dinesh Joseph Wadiwel, *The War Against Animals* (Leiden: Koninklijke Brill, 2015). See also Dinesh Joseph Wadiwel, "The War Against Animals: Domination, Law and Sovereignty," *Griffith Law Review* 18:2 (2009): 283–297 (285–286).

companionship.[61] It seems apparent that despite these forms of violence, the "companion animal" offers a type of friendship to humans; and it is within this context of love, intimacy and trust that forms of relationality specific to companionship between humans and animals, such as petting practices, have evolved and developed. Foucault might offer some useful guides here, particularly in his brief comments on friendship, late in his life.[62] Some of these views on friendship were expressed in a 1981 interview for the magazine *Gay Pied*, where Foucault turned his attention to the question of friendship and its relation to sexuality and sexual pleasure. Against aspects of the gay liberation movement which focused upon allowing homosexuals to claim authenticity and legitimacy for their identities (for example through the formal institution of marriage), Foucault instead calls for more thinking and experimentation around forms of relationships:

> The problem is not to discover in oneself the truth of one's sex, but, rather, to use one's sexuality henceforth to arrive at a multiplicity of relationships. And, no doubt, that's the real reason why homosexuality is not a form of desire but something desirable. Therefore, we have to work at becoming homosexuals and not be obstinate in recognizing that we are. The development toward which the problem of homosexuality tends is the one of friendship.[63]

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61 There has been recent scholarship on the problem of friendship, including from Jacques Derrida and Giorgio Agamben. See Jacques Derrida, *The Politics of Friendship* (London: Verso: 1997); and Giorgio Agamben, "Friendship," *Contretemps* 4 (2004): 2–7. See also Sandra Lynch, "Aristotle and Derrida on Friendship," *Contretemps* 3 (2002): 98–108. For an exchange on animal ethics and friendship, see Barbro Fröding and Martin Peterson, "Animal Ethics Based on Friendship," *Journal of Animal Ethics* 1:1 (2011): 58–69; and Mark Rowlands, "Friendship and Animals: A Reply to Fröding and Peterson," *Journal of Animal Ethics* 1:1 (2011): 70–79. See also Dominique Lestel, *Les Amis de mes amis* (Paris: Seuil, 2007); Lestel argues for understanding intimate friendships between humans and animals through sharing duration.

62 Work reflecting on friendship from the standpoint offered by Foucault, particularly examining the subversive potential of Foucault's comments on friendship, appears limited. Recent work examining Foucault on friendship includes Mark Kingston, "Subversive Friendships: Foucault on Homosexuality and Social Experimentation," *Foucault Studies* 7 (2009): 7–17; and Tom Roach, *Friendship as a Way of Life: Foucault, Aids and the Politics of Shared Estrangement* (Albany: State University of New York Press, 2012).

63 Michel Foucault "Friendship as a Way of Life," *Ethics, Subjectivity and Truth: Essential Works of Foucault, 1954–1984, Vol. 1*, ed. Paul Rabinow (London: Penguin, 1997), 135–140 (135–6).

The standpoint is fascinating insofar as it shifts the focus of sexual liberation away from a rights agenda of offering legal recognition either for prohibited practices or prohibited identities, towards the goal of developing new forms of relations with others. Part of the challenge, Foucault acknowledges here, is developing relations where laws and norms do not dictate how these relationships should be formed and validated. Thus, he argues, for example, that relationships not governed by codes of behavior or institutional validation, such as the homosexual relationship between an older man and a younger man, must be invented:

> Between a man and a younger woman, the marriage institution makes it easier: she accepts it and makes it work. But two men of noticeably different ages—what code would allow them to communicate? They face each other without terms or convenient words, with nothing to assure them about the meaning of the movement that carries them toward each other. They have to invent, from A to Z, a relationship that is still formless, which is friendship: that is to say, the sum of everything through which they can give each other pleasure.[64]

Friendship here is an act of resistance and social experimentation. It pleasurably works to form relationality against or without prevailing norms to guide relationship forms; as Mark Kingston suggests, this would imply friendship "entails localised resistance to social normalisation."[65] On one hand, Foucault is addressing here a homophobic fear that homosexual attraction won't merely stop at sex, but affect relations between people: love, family, marriage, children. Friendship innovates in creating a new relationality against this homophobic response:

> the common fear that gays will develop relationships that are intense and satisfying even though they do not at all conform to the ideas of relationship held by others. It is the prospect that gays will create as yet unforeseen kinds of relationships that many people can't tolerate.[66]

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64 Ibid., 136.

65 Kingston, "Subversive Friendships," 15.

66 Michel Foucault, "Sexual Choice, Sexual Act," *Ethics, Subjectivity and Truth: Essential Works of Foucault, 1954–1984, Vol. 1*, ed. Paul Rabinow (London: Penguin, 1997), 141–156 (153).

On the other hand, Foucault is situating this relationality as the site for an inventiveness around pleasure itself: "what we must work on, it seems to me, is not so much to liberate our desires but to make ourselves infinitely more susceptible to pleasure."[67] Experimenting with relationship forms—the form of friendship itself—creates the possibility for new pleasures to emerge. Thus experimentation with pleasure simultaneously calls for experimentation with established relations: "we must escape and help others escape the two readymade formulas of the pure sexual encounter and the lover's fusion of identities."[68]

This view of friendship seems productive for thinking through our relations with companion animals, and the way in which we might understand histories of evolving pleasures, and navigate and experiment with the production of new pleasures. Foucault is aware when discussing the potential subversiveness of friendship that this relationship is formed in the context of domination, exploitation and subjectification; where power relations structure and inform the location, forms and opportunities where friendship might flourish. It is for this reason that Foucault is interested in how friendship, physical intimacy and sexuality between men in Western cultures only becomes enabled in the midst of extraordinary circumstances, such as in prisons or in wartime conflict: "it's only in certain periods and since the nineteenth century that life between men was not only tolerated but rigorously necessary: very simply during war."[69] If we

67 Foucault, "Friendship as a Way of Life," 137.

68 Ibid., 137.

69 Ibid., 139. This is one of the many places where Foucault effects an erasure of women's sexuality and its genealogy. Foucault is interested in the possibility of men experiencing intimate physical relations with other men; but he does so by assuming, through a reference to Lillian Faderman's *Surpassing the Love of Men*, that woman already are able to already enjoy physically intimate homosocial relations: "Women have had access to the bodies of other women: they put arms around each other, kiss each other. Man's body has been forbidden to other men in a much more drastic way" (139). The assumption here beckons closer analysis, both for an understanding of the limits of female intimacy and the effects this has on sexuality; and the cultural specificity of the prohibitions he refers to, since there are other cultures where men can display affection publicly—kiss each other, hold hands—yet prohibitions around homosexual relations still apply, sometimes with a life and death stringency. A challenge here is that Foucault fails to draw enough attention to the structuring relationship between male freedom and women's unfreedom. In this regard, Judith Butler comments on Foucault, drawing from Luce Irigaray, that "oppression works through other means as well, through the *exclusion* and *erasure* effected by any discursive formation, and that here the feminine is precisely what is erased and excluded in order for intelligible identities to be produced." Judith Butler, "Sexual Inversions," *Feminist Interpretations of Michel Foucault*, ed. Susan J. Hekman (Pennsylvania: Pennsylvania

understand human relations with animals as involving large scale systems of violence and domination, across industrialized food production, experimentation, sport and hunting, then perhaps one way to understand petting practices is as a curious evolution in the history of this large scale war against animals, one which has allowed humans and animals to negotiate shared pleasures, a provisional friendship, within the trenches of war. In this sense the companion animal, as the exceptional animal which is periodically spared specific forms of violence—being eaten, hunted, experimented on etc.—also exists as a site for an exceptional friendship. Tied to this friendship, the companion animal allows for unique forms of physical intimacy through petting practices. These practices are exceptional, not only because they are specifically bound to the human pleasure and the utility of pet ownership, but because they allow the practice of forms of physical intimacy with interspecies bodies that would otherwise be understood as sexual, and indeed might be rendered as acts of bestiality (and ruthlessly prohibited) if there were not a silence occurring in relation to non-genital/non-coital intimacies in the understanding of bestiality. Some of these practices are no doubt "forced," and therefore non-consensual. They therefore belong to the repertoire of violence that characterizes human domination of animals. However it seems imaginable that some, perhaps many, petting practices may have developed in friendship. Perhaps these practices offer a reprise from the mainstay hostility of human relationships with animals?

All of this also highlights an activist project that suggests the need for the development of friendship and pleasure practices between the species beyond their existing bounds. On one hand, acts of friendship between species outside of the established normative and legal order—for example companionship between humans and lab animals, or humans and livestock—potentially acts as a form of subversion to the normative and legal order, in so far as they seek to create new unheard of relations, and generate new forms of pleasure. Indeed, in Foucault's view, all friendship seeks ethically to navigate relations between, in spite of, and against, a normative and legal order. On the other hand, there remains an activist project around pleasure itself, since friendship from this view asks us not merely to take pleasure from animals in the way that suits us

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State University Press, 1996), 59–76 (68). Examples of other feminist scholarship exploring some of the limits of Foucault's discussions of sexuality and women include: Helen O'Grady, "An Ethics of the Self," *Feminism and the Final Foucault*, ed. Dianna Taylor and Karen Vintges (Urbana and Chicago: University of Illinois Press, 2004), 91–117; and Jon Simons, "Foucault's Mother," *Feminist Interpretations of Michel Foucault*, ed. Susan J. Hekman (Pennsylvania: Pennsylvania State University Press, 1996), 179–209.

(that is to utilize animals as simple resource for our own satisfaction), but to negotiate around mutual pleasure and invent new forms of shared pleasure, in the name of our developing friendships. We must surely innovate in human practices of companionship with animals to go beyond the normalized regime of the "pet" and the pet industry, towards admitting, facilitating and creating new pleasures that disrupt regimes of domination. In a sense, this offers us a path forward that is quite different from the trajectory that has traditionally been offered within animal rights and welfare discourses which have primarily focused on the question of suffering, often to the exclusion of all other considerations. This limited focus only highlights that very little has been asked by ethics about the pleasure of animals, and how we can work to ask questions of, to multiply and intensify, the pleasure of the animals that we engage with.[70] Rather than asking how we can know if animals can consent to our own sexual desires, a more promising goal is surely to seek to understand what pleasures animals desire, and how we can facilitate these through our relations. Can we genuinely co-create pleasures with animals? In other words, how might we better pursue friendship with animals?

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70 One rare exception is the work of Jonathan Balcombe. See Jonathan Balcombe, *Pleasurable Kingdom: Animals and the Nature of Feeling Good* (New York: Macmillan, 2007); and Jonathan Balcombe, "Animal pleasure and its moral significance," *Applied Animal Behaviour Science* 118 (2009): 208–216. See also Jonathan Balcombe, *The Exultant Ark: A Pictorial Tour of Animal Pleasure* (Berkeley: University of California Press, 2011).

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CHAPTER 13

Foucault and the Ethics of Eating

Chloë Taylor

In a 1983 interview, Michel Foucault contrasts the ancient Greek preoccupation with controlling diet to the modern obsession with sex.[1] "[S]ex is boring," Foucault says, and notes that the contrary view is a relatively recent one:

> [The Greeks] were not much interested in sex. [Sex] was not a great issue. Compare, for instance, what they say about the place of food and diet. I think it is very, very interesting to see the move, the very slow move, from the privileging of food which was overwhelming in Greece, to interest in sex. Food was still much more important during the early Christian days than sex. For instance, in the rules for monks, the problem was food, food, food. Then you can see a very slow shift during the Middle Ages when they were in a kind of equilibrium . . . and after the seventeenth century it was sex.[2]

In *The Use of Pleasure*, Foucault devotes a chapter to "Dietetics," in which he explores the ancient Greek techniques of caring for the self through dietary regulations that he mentions in this interview.[3] In writings from this period he describes such "techniques of the self" both as an ethical relation to the self and as an aesthetics of one's own life. Relations with others, Foucault claims, are the domain of power, which he had explored throughout his genealogical period, whereas ethics is the domain of how we relate to ourselves, or how we transform ourselves,[4] and it is to this topic that he devotes his final books. To approach one's own life ethically through such techniques of the self is, for Foucault, to see one's existence as an aesthetic project or a work of art. This notion of the self as a work of art, or as something that the subject *makes*, was,

1 This essay was first published in *Foucault Studies* 9 (2010): 71–88.

2 Michel Foucault, "On the Genealogy of Ethics: An Overview of Work in Progress," in *Michel Foucault: Beyond Structuralism and Hermeneutics*, ed. Hubert Dreyfus and Paul Rabinow (Chicago: University of Chicago Press, 1983), 229–252 (229).

3 Michel Foucault, *L'usage des plaisirs* (Paris: Gallimard, 1984), 127–183.

4 Foucault, "On the Genealogy of Ethics," 237.

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for Foucault, refreshingly opposed to the modern, social science or psychoanalytic notion of the self as something inherent, to be discovered or deciphered.

Besides diet, techniques of the self that approach the self as an ethico-aesthetic project include writing, meditation, and controlling one's relations to sexual pleasure.[5] Foucault was not particularly interested in the example of diet other than in so far as it demonstrated for him the contingency of our own interest in sex as locus for self-discovery. It is significant to Foucault that food was once the focus of a complex set of restrictions and inspired a greater discursive interest than did sexual activity, since, he thinks, this is in marked contrast to the modern West, in which sex rather than food became the privileged site of moral restriction, scientific inquiry, and individuating reflexivity.

In the same interview, Foucault suggests that we might take up the model of ethico-aesthetic practices provided by the Greeks, of which diet is an example, for our own political times: "nowadays," he says, "[...] most of us no longer believe that ethics is founded in religion, nor do we want a legal system to intervene in our moral, personal, private life. Recent liberation movements suffer from the fact that they cannot find any principle on which to base the elaboration of a new ethics."[6] Foucault's suggestion is that contemporary liberation movements reactivate the Greek model of ethics—giving it a different content—in order to ground their politics in a self-transformative practice.

In this paper I will argue that the manner in which we regulate our food consumption in fact continues to be (or has returned as) a means of ethical and aesthetic self-constitution in the modern West. Although we are disciplined in what we eat by our upbringings, media, agribusiness, and by government agencies, we may resist these disciplines through counter-cuisines that are in fact a form of political resistance to disciplinary power. Moreover, I will suggest that this ethico-aesthetic alimentary self-constitution is not divorced from the constitution of sexual selves which Foucault describes. In particular, I will argue that ethical vegetarianism can be seen as a counter-discipline, a self-transformative practice, and an ethico-aesthetics of the self, and that vegetarianism and meat-eating are caught up with sexualities in contemporary Western culture. Finally, I will take up Foucault's statement about liberation movements in order to explore the implications of these claims for the Animal Liberation Movement.

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5 Michel Foucault, "L'écriture de soi," *Dits et écrits II, 1976–1988* (Paris: Gallimard, 2001 [1983]), 1234–1249; Foucault, *L'usage des plaisirs*; and Michel Foucault, *Le souci de soi* (Paris: Gallimard, 1984).

6 Foucault, "On the Genealogy of Ethics," 231.

1 Alimentary Identities

According to anthropologists and sociologists, in every culture food is a crucial manner of self-constitution and alimentary choices are a means of expressing adherence to a social group. In the phrase that is often reiterated in this literature, "you are what you eat," or, as Brillat-Savarin puts it, "tell me what you eat: I will tell you what you are."[7] As Catherine Manton writes, "A cuisine [...] is a categorization that helps society's members define themselves. This sort of societal self-definition establishes who are insiders or outsiders to that group. Like language, a cuisine is a medium by which society establishes its special identity."[8] While anthropologists study eating as an expression of group or ethnic identity, other scholars have argued that food consumption is a key manner in which individuals define more fine-tuned identities within modern Western societies. In North America, for instance, because "Canadian cuisine" and "American cuisine" are considered either non-existent or else are widely criticized as unsophisticated and unhealthy, diverse culinary counter-cultures have arisen to disassociate individual consumers from the undesirable cuisine or non-cuisine of their nation, resulting in a plethora of gastronomically-bound identities. American philosopher Cathryn Bailey describes the manners in which her vegetarian consumption defines her self-chosen identity as feminist and cosmopolitan, for instance, even while she recognizes that the foods she eats and the manners in which she eats them also mark her "special whiteness" and upper middle-class status. She describes the "processed, prepackaged fast-food world" of her childhood in a working-class white family, and the manners in which she redefined her identity as an adult through her gastronomical choices of "organic yogurt, fresh greens, tofu, and a passion for Indian food, usually eaten in measured quantities," over the "slabs of processed cheese, white bread, and heaps of tuna casserole from [her] childhood."[9] If we associate North American food with junk food, those who eat it may themselves be identified with junk, as in the unfortunate expression "white trash." In Foucault's terms, Bailey's alimentary self-constitution is an on-going aesthetic practice of distancing herself from her childhood world through the choices

7 Cited in Elspeth Probyn, *Carnal Appetites: FoodSexIdentities* (London and New York: Routledge, 2000), 11.

8 Catherine Manton, *Fed Up: Women and Food in America* (Westport, Connecticut and London: Bergin and Garvey, 1999), 62.

9 Cathryn Bailey, "We Are What We Eat: Feminist Vegetarianism and the Reproduction of Racial Identity," *Hypatia: A Journal of Feminist Philosophy* 22:2 (2007): 39–59 (39).

of moderation, vegetarianism (which she associates with her feminism), and a cultivated connoisseurship of ethnic cuisines.

Other feminist thinkers have also argued for a vegetarian diet as expression of feminist identity, given the association of hunting, meat-eating and the butchering of human and non-human animals alike with masculinity, and the inter-related exploitations and abuses of women and non-human animals at the hands of men. Rejecting meat, along with fur, leather, and products tested on animals, is one way of rejecting masculine violence or expressing a feminist identity. In *The Old Brown Dog: Women, Workers, and Vivisection in Edwardian England*, Coral Lansbury explores the manners in which nineteenth-century feminists identified the abuses of non-human animals with the oppression of women, and Adams demonstrates this historical point at length in *The Sexual Politics of Meat*.[10] Complicating matters, however, in *Neither Man nor Beast*, Adams, like Bailey, perceives that the ethical attitude towards animals which she advocates, and vegetarianism in particular, tends to be a marker of whiteness and middle-class status as well as a gendered politics.[11] As Manton writes, "These food preferences at the end of the century [...] differentiate upscale eaters from members of lower social classes who persist in eating the same meat-and-fat-saturated diet that their parents ate a generation before."[12] While feminist vegetarians have wanted to attribute the greater prevalence of animal activism and vegetarianism among women to women's historical association with non-human animals and to an ethical superiority on the part of women—caring for animals and thus not eating them is, for instance, theorized within the feminist tradition of care ethics[13]—these claims are problematized by the fact that vegetarianism in the West also tends to be a dietary choice of a select group of middle class white people. African Americans also have a long history of being "animalized" within racist discourses and practices and this has not given rise to a particularly animal-friendly African American cuisine.

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10 Coral Lansbury, *The Old Brown Dog: Women, Workers, and Vivisection in Edwardian England* (Madison: University of Wisconsin Press, 1985); and Carol J. Adams, *The Sexual Politics of Meat: A Feminist-Vegetarian Critical Theory* (New York and London: Continuum, 2004), 132–152.

11 Carol J. Adams, *Neither Man Nor Beast: Feminism and the Defense of Animals* (New York and London: Continuum, 1995), 71–84.

12 Manton, *Fed Up*, 77.

13 Josephine Donovan and Carol J. Adams, eds. *Beyond Animal Rights: A Feminist Caring Ethic for the Treatment of Animals* (New York and London: Continuum, 1996).

Eating does not only participate in the constitution of intersecting racial, ethnic, gendered, and political identities, but even more fundamentally in our self-identifications as human, which can be understood in different ways. If we eat according to what we have been constructed to be or what we wish to be, one thing that many humans wish to be and have been constructed to believe themselves to be is superior to non-human animals. It is not the case that we first determine that we are superior to non-human animals and we then conclude that we have the moral license to eat them. Rather, it is through our very eating of other animals that we constitute our superiority. According to this logic, we *must* be superior to other animals since we put them in cages and do horrible things to them, even eating them. Human superiority is not a fact from which the permissibility of our practices is deduced; on the contrary, human superiority is something which we construct through our instrumentalization of other species.

For many individuals, then, the vegetarian diet is a forsaking of human privilege, a denial of human superiority over other animals. For some vegetarians this is exactly what is desired. For others, however, the vegetarian diet on the part of humans—who, unlike other vegetarian animals have a choice to eat other animals or not—is the true proof of humanity. Vegetarianism is "humane" and rational, whereas meat-eating humans are unreflective if not sadistic beasts. Vegetarianism, for some, demonstrates that we, unlike tigers, are moral agents who can choose what we eat, regardless of instinct or what may or may not be "natural." Vegetarianism, like meat-eating, may therefore be understood as proof of human superiority.

Whether ethical vegetarianism is understood as a recognition of our common animality or as an assertion of a specifically human capacity to rise above our animality, it is always constitutive of the vegetarian's identity. We do not say that we eat vegetarian but that we *are* vegetarian. Given the morally problematic nature of a meat-based diet, which, in addition to the misery that it inflicts on animals, is a major environmental pollutant and cause of global warming and obliges people in developing countries to grow cash crops to feed first world cattle rather than subsistence crops, a vegetarian diet functions as a counter-cuisine, indicating identification with an ethico-political counterculture, a desire to tread lightly on the earth and to not inflict needless suffering. According to Manton, "individuals who eat only organic natural food acquire the moral superiority already attributed to that category of food."[14] While types of food consumption serve as markers of ethnicity, gender, class, and race,

14 Manton, *Fed Up*, 8.

categories into which we are disciplined,[15] this suggests that an ethical diet can also work as a political and aesthetic practice of counter-disciplinary self-constitution. Dietary choices may do more than simply reflect who we are as products of unchosen disciplinary practices which precede us, but may actively and self-consciously transform that being that we are.

What this indicates is that, in the contemporary North American context in particular, where gastronomic identities or what Elspeth Probyn has called "alimentary subjectivities" proliferate in a manner which was perhaps unparalleled in Foucault's France, the ancient Greek example of diet as technology for ethically and aesthetically constituting the self is not so alien as Foucault assumed. Foucault thinks that identity today is produced primarily through relations to our sex, and yet many people identify as belonging to a racial or ethnic group, a nationality, a political movement or sub-culture, and not only according to their sexual orientation. Food, marking for gender, race, ethnicity, class, and politics, is a significant expression of each of these sites of identification, and thus functions as an important means of self-constitution. As Probyn writes, "we need to pay attention to how food and eating have now become a central site of intensity for public and popular questions about who we are."[16]

2 The New Sex

According to Probyn, and contra Foucault, food is in fact a *more* significant marker of subjectivity than sex in the modern West since, as she puts it, "bodies that eat connect us more explicitly with limits of class, gender and ethnicity than do the copulating bodies so prominently displayed in popular culture."[17] If this suggests that Foucault was overhasty in thinking that sex had supplanted food as ethical and aesthetic focus of self-constitution some centuries ago, several authors have argued that food is in fact the new sex. Put otherwise, it is not so much that food has replaced sex as our privileged form of self-constitution, or the other way around, but that gastronomy and eroticism have become intertwined. In particular, several authors have explored the connections between meat-eating and social constructions of heterosexuality. In works such as *The Pornography of Meat*, Adams and other feminist scholars have provided exhaustive examples of non-human animal bodies presented

15 Ellen Feder, *Family Bonds: Genealogies of Race and Gender* (Oxford: Oxford University Press, 2007).

16 Elspeth Probyn, "An Ethos with a Bite: Queer Appetites from Sex to Food," *Sexualities* 2:4 (1999): 421–431 (422).

17 Ibid., 423.

in manners which self-consciously invoke heterosexual pornographic representations of women. Such images and the captions that go with them are to be found in mundane venues ranging from advertisements to food magazines to cookbooks. Similarly, these authors have shown that women are frequently described as meat that heterosexually virile men consume. We may think of the so-called "meat shots" in heterosexual porn or jokes about whether a man prefers legs or breasts (when he eats chicken-meat). The upshot is that both women's and non-human animal bodies are conceived of as intended for heterosexual male consumption and little else, while species-domination is eroticized. The flip side of this trope is that men who do not eat meat are seen as effeminate, abnormal and homosexual. A stranger on an airplane assured me that there are only two reasons that a man would say he is vegetarian: either he is trying to impress a vegetarian woman or he is gay. Food choices—especially meat- versus plant-based diets—are again seen to be bound up with identities, and with sexual identities in particular.

While Adams explores images of meat in relation to heterosexual porn consumed by men, other authors suggest that cultural representations of food may serve as a quasi-pornographic medium *for women*. In her cookbook, *The CanLit Foodbook*, Margaret Atwood writes that "One man's cookbook is another woman's soft porn," and describes the presence of food in fiction as "Sort of like sex."[18] Ros Coward has argued that the gourmet sections in women's magazines serve as "food porn," "seduc[ing] women in the same way that conventional pornography tempts men.'"[19] In *Last Chance To Eat: The Fate of Taste in a Fast Food World*, Gina Mallet recounts just such an experience, describing her encounter with Elizabeth David's Mediterranean cookbook in postwar London in distinctly sexual terms:

> The fact that you couldn't buy olive oil easily, if at all, only made Elizabeth David's book more alluring. It was [. . .] erotic, like Charles Ryder's dinner in Paris in *Brideshead Revisited*. Evelyn Waugh's description of the food made the deprived eater lust for blinis dripping with globules of butter, sour and frothy sorrel soup, the sound of duck juices being pressed from the carcass. [. . .] A Dionysian strain and an enticing sensuality runs through [David's] book.[20]

18 Margaret Atwood, *The CanLit Foodbook: From pen to palate—a collection of tasty literary fare* (Toronto: Totem Books, 1987), 1–2.

19 Cited in Probyn, "An Ethos with a Bite," 424.

20 Gina Mallet, *Last Chance to Eat: The Fate of Taste in a Fast Food World* (Toronto: McClelland and Stewart, 2004), 107–8.

In *Carnal Appetites*, Probyn describes the mostly male chefs on television cooking shows as a breed of porn stars, and discusses the many manifestations of "gastroporn" in British and Australian culture. In Québec, a young media chef, Ricardo, was recently to be seen on a television talk show advising men to shave their pubic hair, his expertise in the kitchen apparently qualifying him as a sexual lifestyle expert as well. Ricardo's website lauds his "quasi-visceral passion" for cooking and temporarily featured a photo of the chef sitting on a counter, tightly gripping a glass bowl between his thighs while breaking eggs with one hand, a grin on his face as he does so.

Interestingly, like many other television chefs, Ricardo advocates that families take the time to eat together, and hosts his cooking show from his family's kitchen as if to establish himself as moral exemplar of family values as well as gastroporn star and sexual lifestyle expert. As Iggers writes, "Food [...] has become eroticized, politicized, fetishized," but also "invested with symbolism and moral power as never before in [North] American society."[21] If food is the new sex, this means that eating, like sex, is a manner in which our consumption habits identify us, and this brings all the moral baggage to our food choices that once resided in sex. As Iggers writes, "if it is remarkable how riddled with guilt our relationship with food has become, it is even more noteworthy how much our morality has become centered on food"—"At the heart of this new food guilt is a migration of both our eroticism and our moral focus from our groins to our guts."[22] As Ricardo ecstatically grips his bowl of eggs against his groin as another shell bursts, he exemplifies the manner in which the groin and gut are in fact not kept separate. Manton, similarly, argues that

> The previously vast realm of guilt-provoking areas in life has shrunk to a 'beleagered enclave' dominated by our morally problematic interaction with food [...] Perhaps the essence of personal identity has shifted from how one is connected to the social world, typical of Victorian times when sex was loaded with expectation and responsibility, to a more modern world in which individualism and privacy are valued greatly, one in which an individual is defined by what is consumed rather than by connections.[23]

Fat and unhealthy eating are associated with immorality and give rise to guilt, and even a vegan dessert cookbook is given the tongue-in-cheek title, *Sinfully*

21 Cited in Manton, *Fed Up*, 83.

22 Cited in Manton, *Fed Up*, 82.

23 Manton, *Fed Up*, 83.

Vegan. While eating unhealthy foods can result in genuine guilt and shame, eating fattening foods like chocolate is presented as an exquisite, transgressive and quasi-erotic pleasure, frequently described as orgasmic.

While many writers stress the morality of our food choices, or the manners in which food is bound up with lists of dos and don't—don't eat fat, don't overeat, don't eat sugar, don't eat carbs, don't eat meat, eat local, eat health foods, eat seasonal, eat organic, eat in moderation (while similarly moralizing lists of sexual do's and don'ts recede from view)—I am suggesting that eating can also be aesthetic or ethical, in Foucault's sense of these terms as he opposes them to Judeo-Christian and Kantian morality, and as he finds to have been the case in ancient Greece. Diet can function as a care of the self and self-transformative activity, and not exclusively as disciplinary and moral. Eating is moral in so far as we feel bound to rules into which we are indoctrinated by family and media, and in so far as we feel internalized guilt at their transgression. Eating is disciplinary in so far as we are inculcated with specific eating habits or are corporeally constituted to eat in certain ways that are highly difficult to get away from because they have become our habitual means of relating to our bodies, emotions, and selves. The complex manners in which food is bound up with affect, and can thus be compulsive and apparently beyond our control, is well-known from studies of over-eating, anorexia, and bulimia. Over-eating to compensate for lack or loss of love, and to cope with stress, is a common phenomenon. Gina Mallet vividly describes taste as memory, writing nostalgically of the egg, dairy, and meat-based foods of her childhood while lamenting the manners in which modern food science has added fear and inhibition to this emotional mix.[24] Eating habits, like sexual habits, are affective, as well as a key part of our involuntary corporeal constitution by others. Nevertheless, I am arguing that diet, like sex, can also be a technology of self-appropriation, self-transformation, or an ethico-aesthetics of the self.

Within the Foucaultian-feminist tradition, weight-loss dieting has been described as disciplinary by Sandra Bartky and Susan Bordo, while anorexia has been discussed as an aesthetics of the self by Liz Eckermann. Bringing these perspectives together, Cressida Heyes analyzes weight-loss dieting as a complex interaction between disciplinary regimes and technologies of self-care.[25] Although she focuses on Weight Watchers, Heyes mentions the manner in which we in the West are disciplined to consume an animal-based

24 Mallet, *Last Chance to Eat*.

25 Cressida Heyes, *Self-Transformations: Foucault, Ethics, and Normalized Bodies* (Oxford: Oxford University Press, 2007), 63–88.

diet.[26] In *Carnal Appetites*, Probyn, like Heyes, draws on *The Use of Pleasure* in order to discuss eating, identity and Foucault's final works on care of the self, but, unlike other feminist Foucauldians, she has not restricted herself to thinking about weight-loss dieting. Instead, Probyn analyzes the culture of eating more generally, and privileges the sensuous pleasures of eating over the feminine deprivations of weight-loss regimes.

Unfortunately, Probyn quickly dismisses ethical vegetarianism as a rule-bound dogmatism which strictly dictates what everyone should and should not eat, thus placing vegetarianism on the side of the Kantian or Judeo-Christian morality which Foucault opposed in his writings on the care of the self. In exploring the ethico-erotics of cooking, Probyn does not limit herself to "stuffing zucchini flowers: with batons of cheese, rub alongside the full, bursting stamen, and enfold the flower's organ, cheese with petals twisted," but also describes such questionable erotic pleasures as "thrusting [her] hands, covered in buttery crumbs, up the open orifice" of a chicken's cadaver.[27] This "queer" erotics which Probyn describes thus resonates with both bestiality and necrophilia, with the dead chicken serving as unwilling partner to post-mortem anal rape, after which the corpse is consumed. "'This was life being enjoyed'," Probyn approvingly cites an obituary of aggressively anti-vegetarian British gastroporn-star Jennifer Paterson, and concludes: "The point is to make of eating sex a multiplication of all the ways in which life is enjoyed."[28]

Probyn situates this "multiplication of pleasures" within the Foucaultian counter-attack against disciplinary power, or as an ethico-aesthetics of the self, and yet Foucault himself stated that the content of ancient Greek ethics were "disgusting" and not-to-be-emulated because they focused solely on the virile and active self and his pleasures while failing to consider the pleasures of others. He asked, "Are we able to have an ethics of acts and their pleasures which would be able to take into account the pleasure of the other? Is the pleasure of the other something which can be integrated in[to] our pleasure [...]?"[29] What Probyn forgets is that one way in which life is enjoyed is the way in which chickens enjoy life—or in which they *would* enjoy life if they were not condemned to factory farms and factory slaughter. In the virile pleasures of eating chickens, cows, ducks, turkeys and lambs, we do not think about the pleasure of the other—the pleasure of non-human animals. While I do not deny that, as Probyn describes, a carnivorous regime *can* be an ethico-aesthetic technology

26 Heyes, *Self-Transformations*, 76.

27 Probyn, *Carnal Appetites*, 59.

28 Ibid., 77.

29 Foucault, "On the Genealogy of Ethics," 233.

of the self on Foucault's terms, it would be as "disgusting" an ethics as the self-constituting practices of the ancient Greeks, dependent as they were on slavery and misogyny, oppressions to which the non-human flesh industry has often been compared.[30]

The consumption of what we call meat is an overly virile aesthetics of the self which does not account for the pleasures of the other and is also a product of discipline. In contrast, a vegetarian diet can be theorized as an aesthetics and ethics of the self, a resistance to discipline, or a self-transformational re-disciplining. We are disciplined to eat meat by organizations such as the FDA as these are manipulated by the financial interests of agribusiness,[31] in manners which become inscribed on our identities, and so choosing a vegetarian diet, contra Probyn, is a difficult practice of self-overcoming and self-transformation, of undisciplining and rediscipliningourselves, and it is, moreover, a practice which integrates the pleasure of the other into our own pleasure. Eating vegetarian food can be thought of as an *askēsis*, which, as Heyes points out, differs crucially from later Christian practices of asceticism or self-renunciation. A vegetarian *askēsis* involves the exploration of novel sensuous pleasures for the self, obliging the consumer to experiment with new cuisines and foods. As Heyes writes,

> For someone who, for example never ate vegetables, discovering the subtle sweetness of a crisp carrot instead of the hyper-greasiness of fast-food fries may indeed expand horizons. There can be plenty of joy in eating the 'healthy' foods that are too often consumed out of a sense of duty, and the ubiquity of (and pressures to consume) poor quality food in the oversupplied Western countries represent their own challenge to cultural, economic, and social practices.[32]

At the same time this exploration of new culinary pleasures takes into account the pleasures of human and non-human others alike. Of course, by choosing a vegetarian diet we do not directly give these non-human and human animals pleasure, but we at least boycott, resist and refuse to participate in the

30 Marjorie Spiegel, *The Dreaded Comparison: Human and Animal Slavery* (New York: Mirror Books, 1996); Charles Patterson, *Eternal Treblinka: Our Treatment of Animals and the Holocaust* (New York: Lantern Books, 2002); and Donovan and Adams, eds., *Beyond Animal Rights.*

31 Marion Nestle, *Food Politics: How the Food Industry Influences Nutrition and Health* (Berkeley: University of California Press, 2003).

32 Heyes, *Self-Transformations*, 86.

production of their misery, slaughter, and starvation, and we strive through our micropolitical practices for a different world.

3 Moral Arguments versus Aesthetic Practices: Strategies for the Animal Liberation Movement

While animal ethicists have long advocated a vegetarian diet primarily through moral argumentation, and, as seen, Foucauldian philosopher Elspeth Probyn has criticized vegetarianism on precisely these grounds, I have suggested that we may take on the vegetarian diet for aesthetic purposes, or as part of our ethico-aesthetics of the self. I would now like to consider the tactical significance of this claim for the Animal Liberation Movement.

In his influential book, *Animal Liberation*, Peter Singer describes the pleasures gained by eating animal cadavers rather than vegetarian foods as trivial in comparison to the suffering this practice causes to animals, including human animals.[33] Today, when the taste of animal flesh and dairy can be simulated by soy products, the loss of sensuous pleasure for the consumer is small indeed. According to a utilitarian calculus, the choice of vegetarianism is for most of us or under most circumstances both easy and obvious. Nevertheless, Singer notes that many of his philosopher acquaintances grant the rationality of his arguments and yet continue to consume meat, suggesting that the choice of animal flesh is not about reason at all and may not even be about pleasure. Other philosophers writing in this area also note the discrepancy between the rational convictions and actual practices of those who have been exposed to the philosophical arguments for vegetarianism. As Gaverick Matheny writes:

> There are remarkably few contemporary defenses of our traditional treatment of animals. This may suggest that the principal obstacles to improving the treatment of animals are not philosophical uncertainties about their proper treatment but, rather, our ignorance about their current abuse and our reluctance to change deeply ingrained habits. Even the most reasonable among us is not invulnerable to the pressures of habit. Many moral philosophers who believe that eating animals is unethical continue to eat meat. This reflects the limits of reasoned argument in changing behavior.[34]

33 Peter Singer, *Animal Liberation* (London: Pimlico, 1995).

34 Peter Singer, ed., *In Defense of Animals: The Second Wave* (Malden and Oxford: Blackwell, 2006), 25.

Such observations may strike us as cause for despair: if even moral philosophers who are convinced by rational arguments do not change their diet, what hope is there for the rest of the population, for the environment, for the future of humans, or for the billions of factory farm animals bred each year?

When the topic of animal-eating is discussed at all, a common defense is that this practice is part of the individual animal-eater's culture, and that by raising the issue of cruelty to animals one is asking the animal-eater to abandon her culture or is imposing one's values on her. Ethical vegetarianism is thus positioned as a threat to cultural diversity, and animal rights activists' disapprobation for Halal and Kosher methods of slaughter have been particularly criticized on these grounds. A Frenchman, upon learning that I was vegetarian, promptly informed me that my food choices undermined his identity and were an attack on the entire culture of France. A Turkish acquaintance argued that becoming vegetarian, in his culture and for his family, would signal madness and emasculation. After a brief attempt to be vegetarian he returned to his animal-eating ways after a single incident in which a male friend asked him if he was "crazy" for ordering a veggie burger. Another Turkish man expressed concerns that vegetarianism resulted in sexual dysfunctions for men while replacing dairy with soy would lead to excessive amounts of estrogen in his body. In contrast, female Turkish friends encountered little resistance from their families when they became vegetarian. These cases, again, reflect the manners in which ethnic, cultural, and gendered belonging are constituted in part through alimentary choices that are thus disciplinary and affective rather than moral. Similarly, for many alimentary subjects it is an aesthetic rather than an ethical recoiling from meat and eggs that brought on vegetarianism. In 1893, Lady Walb Paget wrote: "I have all my life thought that meat-eating was objectionable from the aesthetic point of view. Even as a child the fashion of handing around a huge *grosse pièce* on an enormous dish revolted my sense of beauty."[35] A doctor writing in 1907 ascribes revulsion for meat in girls to an "artistic" sensitivity:

> There is the common illustration which everyone meets a thousand times in a lifetime, of the girl whose stomach rebels at the very thought of fat meat. The mother tries persuasion and entreaty and threats and penalties. But nothing can overcome the artistic development in the girl's nature which makes her revolt at the bare idea of putting the fat piece of a dead animal between her lips.[36]

35 Cited in Adams, *The Sexual Politics of Meat*, 174.

36 Cited in Ibid.

All of these responses suggest that what is at issue with food choices may be neither reason nor alimentary pleasure and is not trivial. Not eating meat or eating it, although apparently a simple ethical choice, is, for many, a momentous symbolic act, enacting a self-transformation into a different kind of subject—a subject which, for many, does not have positive connotations at all. While for some the choice of a vegetarian diet symbolizes a positive difference, purity, an ethical stance of non-violence, femininity, moral superiority, and political resistance to the dominant culture, for others the choice of vegetarianism spells ethnic annihilation, Western assimilation, castration, squeamishness, weakness, eccentricity, sexual abnormality, madness. For these people, animal activists are crazy and hysterical, vegetarians are abnormal, anti-social, effeminate and opposed to pleasure, while meat-eating is normal, virile, life-affirming and healthy. Paul Auster's *Brooklyn Follies* is an illustration of this image of the vegetarian versus the meat-eating man: the manly, sensual, woman-loving, life-loving men bond over steaks and beer, while the lone male vegetarian in the book is strange, effeminate, anti-social, asexual, and lives with his adult sister. Declining to eat meat is to become a different kind of person, and, as far as many people are concerned, to become an undesirable person at that.

What vegetarianism means, clearly, differs according to context, even within a single individual's life. A philosopher friend became vegetarian when growing up in the Canadian prairies in order to feel different from her family, who ate meat while she prepared herself "special" meals. She began to eat meat again in the Yukon, where eating locally-hunted animals symbolized belonging to a community that she had chosen, whereas a vegetarian diet would have marked her as an urban outsider. In her case, not eating animals and then eating them again were aesthetic choices having more to do with the type of person that she wanted to be than with the animals who would be affected by these choices. Now living in the southern United States and vegetarian again, she, like Bailey, is aware of the manners in which her gastronomical identity marks a simultaneously desired and uncomfortable allegiance to middle-class, academic, white femininity, since the only other vegetarians she is aware of in her community are other white women professors and graduate students.

If, as I have been arguing, eating is affective as well as an effect of discipline, and changing one's diet entails a non-trivial loss or change of identity as well as resistance to disciplinary power, this explains why so many people who are convinced by the ethical claims of a vegetarian diet nonetheless fail to eat accordingly. Whatever the difficulties, however, with a certain amount of corporeal practice, making novel food choices is possible and can be a self-conscious self-transformation, thus entailing a self-disciplined relation to the

self which Foucault would plausibly describe as aesthetic and ethical. To borrow from and expand on Probyn, it is not only that we are what we eat, but, more actively, we may eat what we wish to become.

Given these points, the Animal Liberation Movement would be well-advised to follow Foucault's suggestion that liberation movements in general should take on ethico-aesthetic tactics, rather than relying solely on utilitarian or neo-Kantian moral argumentation. To some extent animal activists already use aesthetic tactics, for instance by de-aestheticizing meat and fur and beauty products tested on animals in their campaigns, showing the blood-and-guts ugliness as well as cruelty behind these products—smearing fake blood on what are meant to be aesthetic window displays in fashionable boutiques selling fur, for instance. Vegetarians often insist on calling meat by unaesthetic terms such as road-kill, corpses, and cadavers, which stress the disgusting aspect of eating flesh, while rejecting sophisticating and aestheticizing names such as *cordon bleu* and *magret de canard*, or euphemisms such as beef, pork, and veal.

Writers on animal ethics also point out the aesthetic self-deceptions involved in imagining the animal-based diet as normal, masculine, strong, and virile. Given that current North American quantities of meat-consumption are historically and globally unprecedented and could only function under the conditions of modern factory farms and concentration camp-style slaughter—conditions which are environmentally unsustainable and disastrous to human health—meat-eating as we know it is not normal at all but is in fact pathological. Given the relation between meat-eating diets and high cholesterol, cancer, and other health concerns, the meat-eating diet is not a healthy one either. Eating factory-farmed animals also means eating mostly female animals and what Adams has called "femininized protein" ("chicken periods," maternal milk intended by nature for baby cows), and so this diet is also not a consumption of masculinity but, in some sense, of femaleness. Moreover eating animals in the West mainly entails eating animals who are themselves vegetarians, and so if we believe that eating meat makes one strong, these animals must be weak. But how can eating weak animals make us strong? Indeed these animals *are* weak, but not because they are vegetarian and female but because of the factory farm conditions in which they live and the genetic modifications which they have undergone to become more financially profitable egg-, milk-, and meat-producing units. These conditions and modifications entail that factory-farmed animals go to their deaths debilitated, mutilated, sick, tumbling and dragged out of trucks because they can no longer stand, debeaked, nearly featherless, with broken wings, broken limbs, and blood blisters on their feet from standing on wire mesh caging or

concrete all their lives. These animals stand no chance, they are absolute victims, so how can eating them be a sign of masculine prowess? The aesthetic self-constructions of meat-eaters as normal, healthy, virile, pleasure-loving and strong, and of vegetarians as weak, effeminate, anti-pleasure and hysterical, are in fact illogical. Affect and self-deception underlie the meat-eating diet, as well as an emotional aversion to knowing the facts about food production, while rationality is on the side of vegetarianism. Through arguments such as these, animal activists expose the bad faith underpinning the meat-eater's aesthetic sense of self.

The largest international animal activist group, People for the Ethical Treatment of Animals (PETA), has also resorted to the flip side of this technique, not only showing the ugliness of meat but promoting the vegetarian body as beautiful and erotic. PETA frequently calls upon members to vote for the "sexiest vegetarian," and advertises the vegan diet as a weight-loss regime. Celebrity personalities such as Anna Nicole Smith and Pamela Anderson serve as PETA spokespeople, attributing their slim and desirable bodies to their refusal to eat meat. Pornstar Jenna Jamieson promotes the use of pleather rather than leather as sexual fetish, while other pornstars for PETA, wearing nothing but lettuce leaves, serve veggie-dogs on a busy city street to mostly male passersby. For PETA's "I'd rather go naked than wear fur" campaign, porn stars, divas, and actresses pose nude for advertisements. In a commercial produced for Superbowl Sunday but rejected on the grounds of its sexual explicitness, PETA counters the trope of meat-eating as pornographic pleasure with its own version of food-porn: against a soundtrack of heavy breathing and erotic sighs, lingerie-clad women lick, rub their bodies against and take whirlpool baths with vegetables, all but masturbating with pumpkins, broccoli and asparagus, while a caption reads: "Studies show vegetarians have better sex."

In another PETA ad, reasons for becoming vegetarian are enumerated orally by attractive women against backdrop images of suffering animals and grossly bleeding packages of meat. One reason alone is not spoken aloud but is given to us as a (not-so) "subliminal" message: "eating meat causes impotence." A woman with attitude interpolates the suddenly masculinized viewer: "did you get that?" While the largest demographic for vegetarianism in countries like the U.K. is single women—a statistic that suggests that women often go back to eating (and preparing) meat once they are in stable relationships with men—the PETA ad suggests that modern, sexually-demanding women may insist that their lovers forsake non-human animal flesh, if only to avoid erectile dysfunction. Linking vegetables with porn and meat with emasculation, these ads subvert the association of meat with virility and vegetarianism with a denial of life's sensual pleasures.

These advertisements nevertheless remain problematic, even at a tactical level: for one thing, they perpetuate the association of vegetarianism with women since the erotic vegetarian body remains in almost all cases female. A related worry is that these are heteronormatively feminine bodies offered to the pornographic male gaze. Indeed, one response to PETA's advertisements is that they are participating in one meat market in order to combat another, trafficking in human flesh in order to save the flesh of non-human animals, although this is not to say that the so called "meat market" of women can compare in brutality to the market of factory farmed meat. Nevertheless, it is clear that PETA, discouraged by the failure of moral arguments to bring about change in actual consumption habits, uses aesthetic strategies that may in fact be more effective than moral ones. It seems to be the case that we care more about the beauty of our bodies and lives than about the suffering of others, and thus we may have more success in changing the lives of non-human animals if we demonstrate the ugliness of meat-eating and the aesthetics of the vegetarian self than if we stress only the immorality of eating non-human animals for the sake of those animals themselves.

A case in point is religious dietary restrictions. Religions have very effectively convinced generations of people to respect alimentary restrictions, not for moral reasons, but in order to express adhesion to a group or as an expression of religious identity, as well as by inculcating the view that eating certain animals is impure for the eater. Some kinds of animal flesh are successfully banned by major world religions, not out of any moral consideration for those animals, but for aesthetic reasons that are entirely concerned with the identity that the believer wishes to manifest with her fork. The example of religious alimentary subjectivities indicates that people are willing to seriously curtail what they eat if it is about their identity and an aesthetic sense of purity, in a way that they are not willing to limit themselves when it is a matter of environmental accountability or preventing needless suffering to sentient creatures. Religious alimentary restrictions have been more effective than any arguments for ethical vegetarianism because they have accurately targeted what culinary choices are about, which is not rationality or morality towards others but an ethico-aesthetics of ourselves.

While I want to defend the vegetarian diet as rational and moral and insist that animal-eating is both irrational and immoral, I also want to suggest that most ethical vegetarians practice their vegetarianism simultaneously or even primarily as an aesthetics of their selves. Vegetarianism, contra Probyn, is an ethical technology of the self, and many ethical vegetarians are as much concerned with their own sense of self as with factory-farmed animals, the environment, or humans in developing countries. This explains why many

vegetarians will not use cutting boards, barbeques, utensils and pots that have been used to cut and cook meat, or will not eat meat which will otherwise go to waste: no animal is saved through these practices and what is at stake is, rather, a matter of not contaminating the purity of the vegetarian's own body. Once one has successfully redisciplined oneself to be vegetarian as a deeply-experienced identity, eating animals becomes almost viscerally impossible, even in cases where, arguably, nothing moral is at stake.

4 Conclusions

When I have discussed *The History of Sexuality* with students, one objection which has been raised is that Foucault only felt that sexuality was central to subjectivity in the modern West because he was homosexual. As a member of a stigmatized minority sexuality group, he was always seen as a gay man, a gay philosopher, a gay political activist. For those who are closer to the sexual "norm," however, my students have argued that sexuality may be experienced as less significant, and other aspects of identity, such as religion, race, class, and ethnicity may be more important. Perhaps Foucault stressed the significance of sexuality rather than race or class because he was marginalized in the former respect but not in the latter. I am not claiming that sexual orientation and the choice to not eat dead animals is comparable in every manner (the issue of biological determination does not even arise in the latter case, for instance), however, one similarity is of interest for the current paper. Like my heterosexual students objecting to Foucault's claims about sexuality, animal-eaters have objected to the arguments of this paper by saying that they simply do not feel that their alimentary choices are constitutive of who they are. However, while Foucault objects to the manner in which every aspect of a homosexual's life comes to be interpreted through the lens of his sexuality, he thinks this is true of all of us, not just gays and lesbians. Heterosexuals simply do not notice the way that their sexuality is taken to be central to who they are in the same way that whites do not think about the significance of race to their lives as much as people of color. Similarly, I would argue, members of a dominant alimentary group do not think about their food choices as practices of subjectification in the way that members of an alimentary subculture do. In contrast to animal-eaters, vegetarians tend to feel that their food choices are central to their identities, and the arguments in this paper have been much clearer to them. Perhaps Foucault did not see food as a contemporary practice of individualization because he belonged to the dominant group in terms of his alimentary identity. For vegetarians, however, finding food one can eat and

needing to explain why one won't eat what others are eating and may not even want to sit at the same table while they are eating it is a daily practice and one which constantly differentiates oneself from others and from the norm. Just like Foucault would want to say that heterosexuals are also identified by their sexuality, simply in ways of which they need not be aware, so I want to say that all of us, and not just members of alimentary subcultures, constitute our identities through what we eat.

While most everyone is rationally convinced by the philosophical arguments for ethical vegetarianism if they take the time to consider them, I have been suggesting that the reason that only a fraction of those convinced transform this conviction into a practice does not correspond to the moral superiority of some or the weakness of will of others, but with the sort of selves that the individuals in question wish to be: Do they identify as conformists or as part of the counter-culture? Do they want to be "normal" or "special"? Do they want to fit in or rebel? Do they identify as masculine or feminine? Do they identify with a meat-eating ethnic group or do they want to assert their difference from where they came? Do they wish to feel "pure" or "virile"? The way different groups answer these questions may go some way towards explaining why more women than men and more whites than non-whites choose to identify with ethical vegetarianism in Western countries today. Members of the dominant racial group may have the luxury and desire to disidentify with their culture to a degree that oppressed racial and ethnic groups do not. Manton describes the early twentieth-century campaign to assimilate immigrants into the American diet:

> After the turn of the century, food reformers [...] realized that if the older female head of the household was too "difficult" or "slow" to change her food behavior, then assimilation might best be served by molding the food preferences of her daughters still in school. Public school cooking lessons (what came to be known as "home economics" classes) were the vehicle for this change. In addition to teaching different food preferences and cooking methods, home economics classes also tried to change table manners and foodshopping behavior in their efforts to "Americanize" immigrant groups. Even though older immigrant women often were resistant to these changes, food reformers usually won out with the second generation of immigrant women's daughters.[37]

37 Manton, *Fed Up*, 49.

Given this history of normalization, it is a different thing for a white middle-class American such as Bailey to look down on and give up the typical white American diet of fatty meat and potatoes and processed foods in order to eat "ethnic food" than it is for a Hispanic American to disassociate herself from her own meat-eating culture in order to embrace what may be understood as a Caucasian fad. Similarly, around the world, in times of food shortages, men and boys get the majority share of meat, while women and girls are thought to be able to make do with a vegetable-based diet, making it a different thing for a man to give up meat than for a woman to do so. While men traditionally do the hunting and butchering, women are the traditional gatherers of non-animal foods. Since, for these reasons, meat-eating is associated with masculinity and a vegetable diet is associated with femininity, women will find it easier than men to take on the identity of vegetarian.

Food choices, I have argued, are based on our affective investments in specific identities, including the intersecting categories of race, gender, ethnicity, sexuality, and socio-economic class, as well as the different aesthetic connotations that these have for us. This is not to say that moral arguments are useless, but only that such arguments serve primarily as instigators for the decision to take on what is best theorized along Foucauldian lines as a practice of self-discipline and self-transformation, the choosing and becoming of new selves. Some people will be more disposed than others to be so-instigated, for reasons that I have argued are largely extra-moral. While I have stressed the ability for alimentary agency or the possibility of refashioning who we are through our culinary choices, I have also suggested the limitations that disciplined identities place on us, and the fact that people who want to disassociate themselves from who they have been gastronomically disciplined to be are the groups most willing to embrace the particular self-transformations entailed by the vegetarian diet. As Foucault understood, we are simultaneously disciplined and self-fashioning subjectivities, and, I have argued, our alimentary choices are a manifestation of this.

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Afterword

Paul Patton

One of the consequences of Foucault's extraordinary visibility across the humanities and social sciences is that his work has had decisive impact in fields about which he wrote very little, in some cases nothing at all. Clare Palmer notes that his work has played a significant role in foundational moments of postcolonial studies, feminist theory and environmental studies, and other examples of this phenomenon might include race studies, geography and international relations.[1] The wager of this volume is that Foucault's work has much to offer the recently emerged field of animal studies, even though, as Matthew Chrulew and Dinesh Wadiwel note in their introduction, Foucault said very little about animals. The volume provides an impressive display of some of the many ways in which Foucault's work can be useful for different aspects of animal studies. Not surprisingly, the suggested applications or extensions of Foucaultian approaches tend to follow the standard periodization of his work into histories of discourse (from *The History of Madness* to *The Archaeology of Knowledge*), theories of power (from *Discipline and Punish* to *The History of Sexuality Volume One* and the lectures on governmentality in 1978 and 1979) and the study of ethics and techniques of the self (from *The Use of Pleasure* and *The Care of the Self* to the final lectures on the government of self and others).

The wager of this volume is all the more courageous in the light of Foucault's apparent blindness with regard to animals or the animal perspective on the institutions and practices he described. He often drew attention to the role that animality played in conceptions of human subjectivity, whether the early modern insane subject, the modern docile subject or the subject of pastoral and other forms of government. The different ways of conceiving animality were central to the archaeology of knowledge of living beings in *The Order of Things*. However, as Saïd Chebili shows, the conceptualization of the many differences that separate humans from animals was not a primary focus of Foucault's research into the limits of the modern understanding of 'man.' Claire Huot's delightful chapter details some specific moments of blindness with regard to animals in Foucault's work, from his relative silence on the central figure of the hunting dog in Velasquez's *Las Meninas* to his apparent lack of interest in the dog-like qualities attributed to the Cynic philosophers. The latter example is based on Foucault's comments on the Cynics in the

1 See Palmer, "'Taming the wild profusion of existing things'?," in this volume.

lectures delivered in English and published in 2001 as *Fearless Speech*.[2] It should be noted, however, that Foucault's more extensive discussion of the Cynics in his *Collège de France* lectures in 1983–84 devotes several pages to the canine features of Cynicism, both as a doctrine and a way of life.[3]

Moments of blindness aside, however, and despite the fact that the human-animal divide was not one of the limits of modern European culture that Foucault sought to interrogate, it is clear that his efforts to unsettle the boundaries of our conception of what it is to be human have consequences for our understanding of animality and ultimately our relations to animals. Len Lawlor and Joseph Pugliese both point to ways in which the question of animality and its relation to humanity lies at the heart of *The History of Madness*. Foucault points out the many ways in which madness has always been associated with figures of animality. It follows that his archaeological project of rethinking the history of reason and unreason cannot be dissociated from rethinking the history of human ways of understanding differences from and relations to animals. In turn, this raises further questions about core elements of the European conception of the human, such as its conception of freedom, and about European relations to non-European as well as non-human others. Attention to the figures and functions of animality in Foucault's first major work thus brings into view a rich field of research that draws animal studies into engagement with the histories of race, colonialism, the biological sciences, philosophical anthropology and the European social imaginary.

Both Foucault's archaeological approach to the history of systems of thought and his genealogical approach to the relation between systems of thought and forms of practice have immediate application to the formation and deployment of apparatuses of knowledge and treatment in relation to animals. Robert Kirk's account of the apparatus of knowledge, regulation and industrial practice that emerged in response to the bioscientific need for certain kinds of laboratory animal is an outstanding exemplar of this kind of study. Among the approaches pioneered in the last years of Foucault's life, his sketches of a history of conceptions of the nature and functions of government in his *Collège de France* lectures from 1978 to 1979 raise in passing the role of animality and animal figures in European treatises on government, as noted by Alex Mackintosh and as discussed in more detail in Craig McFarlane's fascinating chapter on a seventeenth century treatise on beekeeping. The intersections between

2 Michel Foucault, *Fearless Speech*, ed. Joseph Pearson (New York: Semiotext(e), 2001).

3 Michel Foucault, *The Courage of Truth: The Government of Self and Others II*, Lectures at the *Collège de France*, ed. Frédéric Gros, trans. Graham Burchell (Houndmills, Basingstoke: Palgrave Macmillan, 2011), 242–244.

conceptions of government, sovereignty and animality define a rich field of enquiry that overlaps with Derrida's investigations in his 'Beast and Sovereign' lectures.[4] Foucault's concern with ethics and techniques of self in the last two volumes of his *History of Sexuality*, and in lectures from 1980 onwards, provide a useful framework in which to consider ethical vegetarianism as, in Chloë Taylor's words, "a self-transformative practice, and an ethico-aesthetics of the self."[5]

However, of all the ways in which different periods of Foucault's work open up lines of inquiry in relation to animals, it is his different approaches to power that are perhaps the most interesting and productive. One obvious reason for this is that human-animal relations are fundamentally relations of power, in whatever way we choose to understand that concept. This claim could be tested by means of a challenge: take any definition of power from among the myriad on offer across the social sciences and philosophy and see whether it cannot be applied to the human-animal relation. So, for example, Bertrand Russell's definition of power as the production of intended effects, like Robert Dahl's suggestion that A has power over B to the extent that he can get B to do something that B would not otherwise do, have obvious and immediate application to ways in which humans deal with animals.[6] Other definitions of power lack the same immediate application to animals, but only because they raise further questions about our anthropocentric understandings of animality. Consider the family of definitions of power that refer to actions or to the action-environment of those over whom power is exercised, such as Foucault's 1982 definition of power as action on the actions of others or Wartenberg's definition of power in terms of constraints on the action environment of those over whom it is exercised.[7] These conceptions of power seem eminently applicable to many of the ways in which animals are treated by human beings, but

4 See Jacques Derrida, *The Beast & the Sovereign*, Volume 1, ed. Michel Lisse, Marie-Louise Mallet, and Ginette Michaud, trans. Geoffrey Bennington (Chicago: The University of Chicago Press, 2009); and Jacques Derrida, *The Beast & the Sovereign*, Volume II, ed. Michel Lisse, Marie-Louise Mallet, and Ginette Michaud, trans. Geoffrey Bennington (Chicago: The University of Chicago Press, 2011).

5 See Taylor, "Foucault and the Ethics of Eating," in this volume.

6 Bertrand Russell, *Power: A New Social Analysis* (London and New York: Routledge, 2004); and Robert Dahl, "The Concept of Power," in *Political Power: A Reader in Theory and Research*, ed. R. Bell, D. V. Edwards, and R. H. Wagner (New York: Free Press, 1969), 79–93.

7 Michel Foucault, "The Subject and Power," in *Essential Works of Foucault 1954–1984, vol. 3: Power*, ed. James D. Faubion (New York: New Press, 2000), 326–48; and Thomas Wartenberg, *The Forms of Power: From Domination to Transformation* (Philadelphia: Temple University Press, 1990).

only insofar as they raise the question of animal agency: do animals act in the sense that this is usually understood by theorists of human agency?

This question goes to the heart of traditional ways of distinguishing humans from animals. Chrulew draws attention to the different ways in which Chebili and Dominique Lestel argue that Foucault's archaeological and genealogical histories raise the question of animal subjectivity. Lestel in particular makes the case for forms of animal subjectivity that are different to ways of being human, but no less irreducible to mere mechanism in the manner of Descartes. Such a broadening of the concept of subjectivity goes hand in hand with broadening the concept of power to include actions on the actions of animals, both at the level of individual animals, in the many forms of training for specific activities or functions that animals are subjected to, and at the level of animal populations that are bred, controlled and utilised in a variety of ways for human purposes. The former case opens up the intriguing question of the relationship between the development and application of techniques of disciplinary power to humans and their application to animals. This question is helpfully explored by Natalie Hanson in relation to the history of the forms of training and dressage applied to horses.

In the case of power exercised over animal populations, Foucault's concept of biopower is an obvious resource. To what extent were biopolitical technologies developed and applied to animal populations in ways that prefigured their application to human populations? Several of the chapters draw out continuities between biopolitical technologies applied to human populations and techniques first developed in relation to the management of animal populations, from earlier forms of animal husbandry to the development of industrial farming, breeding and more recently genetic identification and manipulation of particular species. Mackintosh notes the connection drawn by several authors between the techniques of animal husbandry, including slaughterhouses, and the Nazi gas chambers. Lewis Holloway and Carol Morris argue for the extension of Rabinow and Rose's concept of 'biosocial collectivity' to non-human populations, in a manner that enriches both our understanding of biopower and our understanding of livestock breeding.[8]

Different periods or different foci of Foucault's studies of power may be applied to different aspects of the human-animal relationship, often in ways that overlap with his periodization of forms of knowledge of living beings, or what passed for knowledge of human insanity, criminality or sexuality. So, for example, the public displays characteristic of pre-modern sovereign power that Foucault described in *Discipline and Punish* have an equivalent in the

8 Paul Rabinow and Nikolas Rose, "Biopower Today," *Biosocieties* 1:2 (2006): 195–217.

public entertainments built around different forms of cruelty to animals: cock fighting, bear-baiting, dog-fighting, along with the ritualised displays of the human power of life and death over animals such as bull-fighting. The persistence of these forms of entertainment, along with the milder forms of display in circuses, rodeos, zoos, and aquariums, raises questions about power that are not part of Foucault's repertoire but easily added to it. Nietzsche's comment in *On The Genealogy of Morality* that cruelty to animals is one of the oldest and most pervasive "festive joys of man" draws attention to the presence in human ways of dealing with animals of what he called "the feeling of power".[9] By this he meant the positive feedback on the reflective awareness of agency that is accompanied by the successful exercise of power. Overt cruelty towards animals is perhaps one of the oldest and most primitive ways of achieving the feeling of power, but more refined and civilized forms of sport and entertainment are often less obvious ways of achieving the feeling of power at the expense of animals. A related issue, raised by Wadiwel concerns the possibility and character of different affective relations with animals, up to and including sexual relations. This dimension of human-animal interaction has obvious overlap with Foucault's initial project for a history of sexuality, but as the heated responses to human-animal sexual activity show, it also raises difficult questions about the connections between power and desire in relations between beings of vastly different capacities. Here as in the other applications, extensions and interrogations of Foucault's work, this volume suggests potentially fruitful paths for future research. It represents an important contribution to the scholarly appreciation of Foucault as well as to animal studies.

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